

Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 349. General Provisions

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 349, Refs & Annos
[Currentness](#)

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 349.1

Section 349.1. Assistance to Cuban refugees

[Currentness](#)

All provisions applicable generally to the public assistance programs shall be applicable to the Cuban refugee program. In addition, assistance under this program shall be granted only to eligible Cuban refugees as defined by Federal regulations.

Credits

Sec. filed Feb. 11, 1963 eff. Feb. 11, 1963.

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18 NYCRR 349.2

Section 349.2. Assistance for United States citizens returned from foreign countries

[Currentness](#)

All provisions applicable generally to the public assistance programs shall be applicable to the program of assistance for United States citizens returned from foreign countries.

Credits

Sec. filed Feb. 11, 1963 eff. Feb. 11, 1963.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 349.2, 18 NY ADC 349.2

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Title 18. Department of Social Services

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18 NYCRR 349.3

Section 349.3. Citizenship and alien status

Currentness

(a) *Definitions.*

(1) A *qualified alien* is:

- (i) a refugee admitted under section 207 of the Immigration and Nationality Act;
- (ii) an asylee granted asylum under section 208 of the Immigration and Nationality Act;
- (iii) a person whose deportation was withheld under section 241(b) or 243(h) of the Immigration and Nationality Act;
- (iv) a Cuban and Haitian entrant (as defined in section 501[e] of the Refugee Education Assistance Act of 1980), including all Cuban or Haitian parolees;
- (v) an alien admitted into the United States as an Amerasian immigrant as described in section 402(a)(2)(A)(i)(V) of the Personal Responsibility and Work Opportunity Act of 1996 ([8 U.S.C. 1612 \[a\]\[2\]\[A\]](#));
- (vi) a person lawfully admitted for permanent residence in the United States;
- (vii) a person paroled into the United States under section 212(d)(5) of the Immigration and Nationality Act for a period of at least one year, except Cuban or Haitian parolees;
- (viii) a person granted conditional entry into the United States under section 203(a)(7) of the Immigration and Nationality Act; and
- (ix) a battered spouse and dependents meeting the criteria of section 431(c) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996.

(2) A *specially qualified alien* is:

- (i) a refugee admitted under section 207 of the Immigration and Nationality Act, for a period of seven years from the date the person was admitted into the United States as a refugee;
- (ii) an asylee granted status under section 208 of the Immigration and Nationality Act, for a period of seven years from the date that the asylee was granted status;
- (iii) a person for whom deportation was withheld under section 241(b) or 243(h) of the Immigration and Nationality Act, for a period of seven years from the date that the deportation was withheld;
- (iv) a Cuban and Haitian entrant (as defined in section 501[e] of the Refugee Education Assistance Act of 1980) for a period of seven years from the the date such status was granted;
- (v) an alien admitted into the United States as an Amerasian immigrant as described in section 402(a)(2)(A) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 ([8 U.S.C. 1612 \[a\]\[2\]\[A\]](#)) for a period of seven years from the date the person was admitted into the United States;
- (vi) a person lawfully admitted for permanent residence into the United States who has worked for or can be credited with 40 qualifying quarters as defined under title II of the Federal Social Security Act, or can be credited with such qualifying quarters exclusive of any quarter after December 31, 1996, in which such person or such person's parent or spouse received any Federal means tested assistance, whose entry into the United States was at least five years earlier or who entered the United States prior to August 22, 1996; and
- (vii) any qualified alien who is on active duty, other than active duty for training, in the United States Armed Forces or who has received a discharge characterized as honorable and not on account of alienage, or the spouse, unremarried surviving spouse or unmarried dependent child of any such alien if such alien, spouse or dependent child is also a qualified alien.

(b) *Eligibility requirements.*

(1) No person except a citizen or a specially qualified alien is eligible for family assistance or safety net assistance except as follows:

- (i) A qualified alien who is not a specially qualified alien, who entered the United States before August 22, 1996, and continuously resided in the United States until attaining qualified status is, if otherwise eligible, eligible for family assistance and safety net assistance.
- (ii) A qualified alien who has resided in the United States for five or more years but whose entry into the United States was on or after August 22, 1996, is, if otherwise eligible, eligible for family assistance and safety net assistance.

(iii) A qualified alien, who is not a specially qualified alien, who has resided in the United States for less than five years and whose entry into the United States occurred on or after August 22, 1996, is, if otherwise eligible, eligible for safety net assistance but is ineligible for family assistance.

(iv) An alien whose status is not within the meaning of the term qualified alien but who is otherwise permanently residing in the United States under color of law; as such term was used on August 21, 1996, by the Federal Administration for Children and Families is, if otherwise eligible, eligible for safety net assistance.

(v) A person paroled into the United States under section 212(d)(5) of the Immigration and Nationality Act for a period of less than one year is, if otherwise eligible, eligible to receive any State or local nonfederal assistance provided under this section on the same terms as such programs are available to persons who are qualified aliens.

(vi) Nothing herein precludes the receipt by an alien of community based noncash assistance in accordance with the directions of the United States Attorney General.

(2) Eligibility for services.

(i) Qualified aliens, if otherwise eligible and except as otherwise provided by Federal law shall be eligible for services funded under title XX of the Federal Social Security Act.

(ii) Any alien, including an alien who is not a qualified alien, is eligible for adult protective services and services and assistance relating to child protection to the extent that such person is otherwise eligible pursuant to the regulations of the Office of Temporary and Disability Assistance and the Office of Children and Family Services of the department.

(3) An alien is eligible for additional State payments for aged, blind and disabled persons under the Social Services Law only to the extent that such person is not ineligible for Federal SSI benefits due to alien status.

(c) *Referral and reporting of aliens unlawfully residing in the United States.*

(1) Referral. Any applicant or recipient who has been determined to be ineligible for family assistance, or safety net assistance because he or she is an alien unlawfully residing in the United States or because he or she failed to furnish evidence that he or she is lawfully residing in the United States must be immediately referred to the United States Bureau of Immigration and Customs Enforcement, or the nearest consulate of the country of the applicant or the recipient for such service or consulate to take appropriate action or furnish assistance.

(2) Reporting. Each social services district must report to the Office of Temporary and Disability Assistance, the name and address and other identifying information known to it with respect to any alien known to be unlawfully in the United States in the manner prescribed by such office. A determination that an individual is not lawfully present in the United States can be made only about someone who is applying for benefits. Such a determination cannot be made about an individual who is only submitting an application for benefits on behalf of other family members. A determination by a social services district that an applicant is not lawfully present in the United States can only be a result of a finding of fact or conclusion

of law that is made as part of a formal determination subject to administrative review and supported by a determination by the Bureau of Immigration and Customs Enforcement or the Executive Office of Immigration Review, such as a final order of removal. A response to the social services district through the Systematic Alien Verification for Entitlements System (SAVE) that shows no service record exists for the individual or indicates that the individual has an immigration status rendering him or her ineligible for benefits does not support a finding of unlawful presence in the United States.

Credits

Sec. filed June 27, 1963; repealed, new filed: Nov. 12, 1963; May 2, 1974; Aug. 31, 1977; amds. filed: March 9, 1979; July 15, 1980; Nov. 17, 1981; Dec. 19, 1985 as emergency measure; Feb. 13, 1986; Jan. 28, 1993 as emergency measure; April 26, 1993 as emergency measure; April 26, 1993; repealed, new filed: Oct. 14, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 24, 1998 as emergency measure; June 2, 1998; amd. filed July 15, 2004 eff. Aug. 8, 2004.

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18 NYCRR 349.4

Section 349.4. Temporary absence. [Additional statutory authority: Social Services Law, §§ 20, 34; L. 1971, ch. 110, § 83]

Currentness

(a) *Public assistance.*

(1) Definition of temporary absence. For the purpose of administration public assistance programs, except the program of medical assistance, *temporary absence* shall mean any absence from the district administering the grant and/or public assistance household, during which the applicant or recipient:

- (i) does not leave the United States;
- (ii) does not evidence intent to establish residence elsewhere; and
- (iii) complies with this subdivision and other provisions of this Title.

(2) Determination of grant during temporary absence. The social services district's decision to provide a grant during temporary absence as defined in paragraph (1) of this subdivision shall be based upon consideration of the following factors:

- (i) Evidence of intent to return to the district of administration and/or public assistance household when the purposes of his or her absence have been accomplished. If such temporary absence extends beyond a six-month period, the absent person shall submit affirmative evidence satisfactory to the district of administration of his or her continuing intention to return to the district and/or public assistance household, and that he or she is prevented from returning to the district and/or public assistance household because of illness or other good cause. If a recipient fails to comply with this requirement, he or she shall be deemed ineligible for a continuance of his or her grant.
- (ii) Continuing financial need for a grant in the same or a different amount.
- (iii) Continuing contact with the recipient by the district through correspondence or through use of the services of another social services agency located within or outside the State.

(3) Nothing in this subdivision shall limit the continuing responsibility of a social services district for payment of costs of care provided in another social services district in New York State.

(b) *Medical assistance.* An individual who dwells in the State and who intends to continue to dwell in the State shall be deemed to be a resident of the State without regard to his length of residence therein. At the time an individual incurs the need for medical care, he shall be deemed to be temporarily absent, within or without the State, from the public welfare district in which he dwells if, prior to such absence, he was affirmatively dwelling in such public welfare district, has evidenced intent to return there and there is lack of affirmative evidence of his intent to establish permanent residence elsewhere.

Credits

Sec. filed April 8, 1973; amds. filed: July 11, 1973; July 15, 1980; March 4, 2005 eff. March 23, 2005. Amended (a)(1)-(2).

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18 NYCRR 349.5

Section 349.5. Emancipated minor. [Additional statutory authority:
Social Services Law, §§ 20, 34, 320; L. 1971, ch. 110, § 83]

Currentness

(a) A grant of public assistance or care may be made to an emancipated minor in his own right if he is otherwise eligible. For this purpose, *emancipated minor* means a person over 16 years of age who has completed his compulsory education, who is living separate and apart from his family and is not in receipt of or in need of foster care.

(b) This section shall not prevent the department from promulgating regulations authorizing direct grants of assistance to be made to minors under other circumstances in the ADC program.

Credits

Sec. added by renum. 82.10, filed July 11, 1973; amd. filed Jan. 30, 1976 eff. Jan. 30, 1976.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 349.6

Section 349.6. Utilization of employee group health benefits as a condition of eligibility.

[Additional statutory authority: Social Services Law, §§ 20, 34, 131-p, 363-a, 366, 367-a]

[Currentness](#)

As a condition of eligibility or continued eligibility, any applicant or recipient of home relief or aid to dependent children who is or becomes employed and whose employer provides group health insurance benefits, including benefits for a spouse and dependent children of such applicant or recipient, shall apply for and utilize such benefits.

(a) Such applicant or recipient may also be required to apply for and utilize benefits provided by former employers.

(b) For those households who have more than one employer offering group health insurance benefits the agency may determine which employer offers the most comprehensive and/or substantial coverage and the applicant or recipient shall be required to apply for or continue and utilize the policy selected by the social services district.

Credits

Sec. filed Oct. 13, 1982 eff. Oct. 13, 1982.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 349.6, 18 NY ADC 349.6

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 350, Refs & Annos
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18 NYCRR 350.1

Section 350.1. Definitions

[Currentness](#)

(a) *Applicant*. An *applicant* is a person who has, directly or by a representative, expressed, in writing on the State-prescribed form, to a social services official a desire to receive assistance and/or care or to have his eligibility considered. In ADC, the relative with whom a child is living or will live is the applicant in the child's behalf.

(b) *Application*. An *application* is an action by which a person indicates, in writing on the State-prescribed form, his desire either to receive assistance and/or care or to have his eligibility considered by a social services official. Such action shall be considered an application even though the applicant subsequently withdraws the application or proves, upon investigation, to be ineligible.

(c) *Inquiry*. An *inquiry* is any request for information.

(d) *Public assistance*. For purposes of this Title, aid to dependent children (ADC) refers to family assistance (FA), home relief (HR) refers to safety net assistance (SNA) and public assistance refers to family assistance, safety net assistance, and veteran assistance.

Credits

Sec. amd. filed Dec. 6, 1968; repealed, new filed June 22, 1973; amds. filed: Jan. 30, 1976; Sept. 15, 1978; Sept. 18, 1979; Oct. 2, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 7, 1998 eff. April 22, 1998. Added (d).

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18 NYCRR 350.2

Section 350.2. Authorization of grant

Currentness

(a) Assistance to an eligible person is granted by a social services official on the basis of an authorization prepared on the State-prescribed form. Such an authorization shall contain all pertinent information as to the status of the case and the amount of the authorized grants of assistance and shall be effective for a period of time coinciding with periods of eligibility determinations and redeterminations and shall be made at the following intervals:

(1) by the 12th month after such certification for Family Assistance (FA) and Safety Net Assistance (SNA) cases;

(2) by the 24th month after such certification for FA and SNA cases wherein a non-legally responsible caregiver is caring for a child or children for whom they are applying for or receiving assistance; and

(3) as needed in excess of the minimum where there is a predictable change in need or circumstances.

(b) Authorizations shall be numbered and filed in the agency and made available to auditors as required.

Credits

Sec. repealed, new filed June 22, 1973; amd. filed March 1, 1974; renum. 350.3, new added by renum. 380.2, filed Jan. 30, 1976; amds. filed: July 15, 1980; April 17, 1981 eff. April 17, 1981; emergency rulemaking eff. Oct. 11, 2024, expires Jan. 8, 2025 (Register dated Oct. 30, 2024); emergency rulemaking eff. Jan. 9, 2025, expires March 9, 2025 (Register dated Jan. 29, 2025); amd. filed Jan. 31, 2025 eff. Feb. 19, 2025 (Register dated Feb. 19, 2025).

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18 NYCRR 350.3

Section 350.3. General

Currentness

(a) *Application rights.*

(1) Any person has the right to make application for that form of public assistance or care that he or she believes will meet his or her needs. The applicant or any adult member of the applicant's family has the right to make application for such assistance or care. If a person establishes a good cause reason, in accordance with section 351.26 of this Title, that prevents the person from applying for public assistance, that person may designate in writing a person to act on the person's behalf, including a relative, friend, other agency or institution, and that designee must have the right to make an application on the person's behalf and provide information to the social services district to determine the person's initial and continuing eligibility for public assistance. The designation of an authorized representative does not relieve the person of the obligation to cooperate with all aspects of initial and continuing eligibility for public assistance and to provide timely and accurate information to the social services district.

(2) A social services district may set a limit on the number of households an authorized representative may represent. Prior to implementing that limit, a social services district must identify the circumstances under which the limit will be imposed and submit such circumstances to this office for approval.

(b) All applications shall be processed promptly. The date of application shall be the date of receipt by the social services official of a signed completed application on the State-prescribed form. While documentation is required for the determination of eligibility, it shall not be a prerequisite to filing an application.

(c) A personal interview with the applicant or a designated representative is required in all cases to establish eligibility for public assistance. Interviews must ordinarily be scheduled within seven working days, except when there is indication of emergency need, in which case the interview must be held at once. The social services district may allow an interview via telephone or other digital means at the request of the applicant or recipient.

Credits

Sec. amd. filed Dec. 6, 1968; renum. 350.4, new filed Aug. 7, 1972; repealed, new filed June 22, 1973; amds. filed: Aug. 8, 1973; March 1, 1974; renum. 350.4, new added by renum. and amd. 350.2, filed Jan. 30, 1976; amds. filed: July 15, 1980; March 27, 1997; May 19, 2003 eff. June 4, 2003. Amended (a); emergency rulemaking eff. Oct. 9, 2021, expires Jan. 5, 2022 (Register dated Oct. 27, 2021); emergency rulemaking eff. Jan. 6, 2022, expires March 4, 2022 (Register dated Jan. 19, 2022); amd. filed Jan. 25, 2022 eff. Feb. 9, 2022 (Register dated Feb. 9, 2022).

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18 NYCRR 350.4

Section 350.4. Use of the application form

Currentness

(a) The State-prescribed form must be completed:

(1) For each individual adult case and for each family case by category.

(2) When a child is transferred from foster care to safety net or family assistance unless the safety net or family assistance grantee is already in receipt of assistance in the program under which the child's needs are to be met.

(3) When there is a permanent change in grantee in a family assistance case.

(4) When the assistance or care is to be given by a different district.

(5) In the event of a reapplication more than 30 days following a case closing. For cases closed but reopened within 30 days, the requirements of Part 351 of this Article shall not be waived.

(6) For a new foster care case, in the event responsibility for care and placement of a child in foster care shall have been explicitly imposed on the social services official by court order.

(b) The State-prescribed form is not required to be completed under the following circumstances: For a person continuously in receipt of some form of assistance or care from the same district, the application form completed at the time of original application will suffice. Transfers or reclassifications, except as required under subdivision (a) of this section, need not be confirmed by completion of a new State-prescribed form. When an application has been denied, reapplication within 30 days does not require a new State-prescribed form.

(c) *Signatures required.* Signatures on the State-prescribed form are required as follows:

(1) In family applications, both spouses shall sign. In situations where a parent in the family is not married to the other parent, both parents, if they are to be included in the grant, shall sign the application form.

(2) Where the case involves a single parent family, the head of the household shall sign.

(3) Where the case involves a single individual, such individual shall sign.

(4) In any case where the applicant, whose signature is required, is incapable of signing the application because of physical incapacities, or mental incompetency, the application shall be signed on behalf of such person by his authorized representative.

Credits

Sec. renum. 350.5, new added by renum. 350.3, filed Aug. 7, 1972; repealed, new filed June 22, 1973; renum. 350.5, new added by renum. 350.3; amds. filed: Jan. 30, 1976; Sept. 18, 1979; Nov. 22, 1982; Nov. 2, 2001 as emergency measure; Jan. 18, 2002 as emergency measure; March 14, 2002 as emergency measure; March 22, 2002; Feb. 2, 2010 eff. Feb. 17, 2010. Repealed (a)(7), amended (b), (c)(1).

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18 NYCRR 350.5

Section 350.5. Notification

[Currentness](#)

Department regulations governing notification of the district's decision shall be followed whenever a request for assistance or care, including a request for transfer and reclassification, is accepted or denied.

Credits

Sec. renum. 350.6, new added by renum. 350.4, filed Aug. 7, 1972; repealed, new filed June 22, 1973; renum. 350.6, new added by renum. 350.4, filed Jan. 30, 1976 eff. Jan. 30, 1976.

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18 NYCRR 350.6

Section 350.6. Statistical reports

[Currentness](#)

Every request for assistance or care, including requests for transfers and reclassifications, shall be recorded and the disposition statistically reported in accordance with the instructions of the department.

Credits

Sec. amd. filed Dec. 6, 1968; renum. 350.7, new added by renum. 350.5, filed Aug. 7, 1972; repealed, new filed June 22, 1973; renum. 350.7, new added by renum. 350.5, filed Jan. 30, 1976 eff. Jan. 30, 1976.

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18 NYCRR 350.7

Section 350.7. Responsibility of a social services district at the time of application interview

[Currentness](#)

At the time of the application interview the social services district shall inform the applicant of:

- (a) the eligibility requirements of the program under which he is applying for assistance or care;
- (b) his responsibility for reporting all facts material to a proper determination of eligibility;
- (c) the joint responsibility of the local department and the applicant for exploring all facts concerning eligibility, needs and resources, and the applicant's responsibility for securing, wherever possible, records or documents to support his statements;
- (d) the kinds of verification needed;
- (e) the fact that any investigation essential to the determination of eligibility will be undertaken;
- (f) his responsibility for notifying the local department immediately of all changes in circumstances; and
- (g) the availability of assistance and/or service under some other program, either public or private, if the applicant appears eligible therefor.

Credits

Sec. filed Dec. 6, 1968; renum. 350.8, new added by renum. 350.6, filed Aug. 7, 1972; repealed, filed June 22, 1973; new added by renum. and amd. 350.6, filed Jan. 30, 1976; amd. filed July 15, 1980 eff. July 15, 1980. Amended (c).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 350.7, 18 NY ADC 350.7



KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 350.8. [Repealed]

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Part 350. Application (Refs & Annos)

18 NYCRR 350.8

Section 350.8. [Repealed]

[Currentness](#)

Credits

Sec. added by renum. 350.7, filed Aug. 7, 1972; repealed, filed June 22, 1973 eff. June 22, 1973.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 350.8, 18 NY ADC 350.8

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Compilation of Codes, Rules and Regulations of the State of New York

Title 18. Department of Social Services

Chapter II. Regulations of the Department of Social Services

Subchapter B. Public Assistance

Article 1. Determination of Eligibility--General

Part 351. Investigation and Eligibility

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 351, Refs & Annos

[Currentness](#)

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 351. Investigation and Eligibility (Refs & Annos)

18 NYCRR 351.1

Section 351.1. Investigation

Currentness

(a) *Definition. Investigation* is a continuous process which is concerned with all aspects of eligibility for public assistance or care from the period of initial application to case closing. *Investigation* means the collection, verification, recording and evaluation of factual information on the basis of which a determination is made of eligibility and degree of need, or of ineligibility, for any form of public assistance or care.

(b) *Responsibility for furnishing information.*

(1) The social services official shall:

(i) provide applicants and recipients, and others who may inquire, with clear and detailed information concerning programs of public assistance, eligibility requirements therefor, methods of investigation and benefits available under such programs; and

(ii) inform each applicant and recipient, at the time of application and subsequently, of such person's initial and continuing responsibilities to furnish the information described in paragraph (2) of this subdivision.

(2) Each applicant and recipient must, as a condition of eligibility for themselves or others:

(i) provide accurate, complete and current information on his or her needs and resources as well as the whereabouts and circumstances of responsible relatives;

(ii) furnish evidence to provide verification of those factors which affect eligibility and the amount of entitlement, including:

(a) identity;

(b) residence;

(c) family composition;

(d) rent payment or cost of shelter;

(e) income from any source;

(f) savings or other resources; and

(g) lawful residence in the United States, if the recipient is an alien;

(iii) apply for and utilize any benefits or resources that will reduce or eliminate the need for public assistance or care;

(iv) make a timely report to the district of any changes in his or her needs and resources. A report will be considered timely if made within 10 days of the changes except as provided in section 351.2(k)(4) of this Part. A report to a social services district concerning changes in income must be made timely. Such a report will be considered timely if made within the time frames specified in section 352.19(b) of this Title; and

(v) cooperate with the social services official in fulfilling necessary reporting requirements for public assistance programs, and at a minimum provide accurate, current and complete demographic and income information required to meet Federal reporting requirements, including:

(a) information concerning themselves if they are caretaker relatives who are not legally responsible for minor children on whose behalf an application for public assistance has been made or for whom public assistance is provided and information concerning the children under their care; and

(b) information concerning minor siblings of a child on whose behalf an application for public assistance has been made or for whom public assistance is provided if the siblings reside in the household of the child.

(c) *Responsibility for prompt determination of eligibility.* Upon receipt of an application for assistance, the social services official shall conduct an investigation and secure, record and evaluate the findings thereof in order to:

(1) promptly determine eligibility or ineligibility for public assistance;

(2) determine the type of public assistance or care, including food stamps required, and authorize such assistance.

(d) *Constitutional and statutory rights of applicants and recipients.* Any investigation or reinvestigation of eligibility shall be conducted in a manner that will not result in practices that violate an applicant's or recipient's constitutional rights. An applicant or recipient shall be permitted to appear with an attorney or other representative at any interview or conference

with a representative of a social services district, whenever such interview or conference relates to questions of eligibility for public assistance and care, or the amount to which the person interviewed is or was entitled.

Credits

Sec. repealed, new filed Nov. 1, 1963; amds. filed: May 31, 1967; Feb. 5, 1970; repealed, new filed Aug. 30, 1973; amds. filed: Nov. 26, 1973; May 2, 1974; April 11, 1994; July 10, 1996; Oct. 10, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 7, 1998; Dec. 26, 2000; Sept. 27, 2011 eff. Oct. 12, 2011. Amended (b)(2)(iv).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.1, 18 NY ADC 351.1

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
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Article 1. Determination of Eligibility--General
Part 351. Investigation and Eligibility (Refs & Annos)

18 NYCRR 351.2

Section 351.2. Aspects of investigation and eligibility

Currentness

(a) *Identity.*

(1) Verification. The applicant or recipient must furnish verification of his or her identity, as a condition of eligibility, at the time of application or recertification for public assistance or care.

(2) Prohibition against automated finger imaging for public assistance.

(i) The use of an automated finger imaging system is prohibited for any purpose under public assistance.

(ii) No social services district may require an applicant or recipient household member to be finger imaged for purposes of public assistance.

(b) *Residence and cost of shelter.* Place of residence and rent payment or other shelter costs of the applicant or recipient shall be verified.

(c) *Family composition.* For each member of the household for whom an application for assistance is made the following information must be furnished: name; date and place of birth; relationship to other members of the household; veteran status; activity status; marital status if 16 years of age or over; if any person is pregnant, the anticipated date of delivery; and if the applicant is employed, the expenses incident to such employment. For each member of the household not applying for assistance, the name and relationship of such individual to those applying for assistance must be furnished. In addition, each member of the household for whom an application for assistance is made or any other individual whose needs are considered in determining the amount of assistance must apply for and must furnish a social security number as a condition of the household's eligibility for public assistance.

(d) *Need.* Consideration shall be given to individual and family requirements for all items of need and any changes in such requirement for need in accordance with department regulations.

(e) *Resources*. Resources include individual or family financial assets, income from employment, eligibility for or receipt of benefits, and the services and social resources available through family relationships and community programs. Resources shall be explored, verified and evaluated, as to their immediate and/or potential availability to remove or reduce the need for public assistance. All resources, except one vehicle which is evaluated as described in section 352.23(b)(2) of this Title, shall be evaluated according to their equity value. *Equity value* means fair market value less encumbrances (legal debts).

(1) Financial resources. Each financial asset or resource immediately or potentially available to the applicant or recipient shall be identified and shall be explored to determine its nature, equity value, form and availability. Each such resource shall be evaluated and a decision reached in regard to its utilization. Such resources include, but are not limited to: employability, earnings, work-related benefits, pensions, health insurance, small business, real and personal property, securities, cash on hand, bank accounts, insurance, trust funds, estate settlements, servicemen's benefits, income in kind, contributions from relatives and friends, support orders, and any other benefits or interest in real or personal property. To obtain information on RSDI payments, each local services department shall, in accordance with the instructions of the State Department of Social Services, submit input to the beneficiary data exchange (BENDEX) system.

(2) Relatives.

(i) There shall be reviewed with the applicant the whereabouts of any legally responsible relatives. Unless proof of death of each legally responsible relative is shown, there shall be referred to the local child support enforcement unit, on a form prescribed therefor, as much information as can be obtained on each such legally responsible relative. A referral in writing shall also be made to the local law enforcement official. The referral to the local child support enforcement unit shall be within two working days of furnishing aid.

(ii) When the applicant for or the recipient of public assistance or care is an unmarried mother and surrender of the child to the social services official for the purpose of adoption is under consideration, or the child has been surrendered to the social services official for the purpose of adoption, referral to the local child support enforcement unit may be deferred for a period of 90 days after the birth of the child.

(iii) When the applicant for or recipient of public assistance is pregnant with, or is the parent of, and residing with, an out-of-wedlock child and surrender of the child to the social services official for purpose of adoption is not under consideration, referral in writing must be made to the local child support enforcement unit within two days of furnishing assistance.

(iv) When an applicant for or recipient of public assistance, or the caretaker of a child applying for or in receipt of public assistance, willfully fails or refuses to cooperate by furnishing information or aid to the local child support enforcement unit in establishing a support obligation, enforcing a support order or establishing paternity, the social services official shall reduce by 25 percent the public assistance otherwise available to the household for so long as such cooperation is withheld.

(f) *Categorical eligibility factors*. The special eligibility requirements of social security retirement, survivor's and disability (RSDI) benefits, supplemental security income (SSI), family assistance (including federally participating non-cash safety net assistance,) and emergency assistance to needy families with children (EAF) shall be considered whenever there is a possibility that eligibility for one of these categories exists. When eligibility or presumptive eligibility is evident, full

utilization of these categories shall be made. Where veteran assistance (VA) is administered, eligibility for this type of assistance shall be considered, if eligibility for a Federal category does not exist. Adult institutional care shall be considered when care in such a facility is required and eligibility for a federally aided category does not exist.

(g) *Residence.* Information obtained shall be sufficient to establish that:

(1) the applicant or recipient is residing or found within the social services district on the date of application, except in cases of temporary absence or continuing responsibility under [subdivision \(5\) of section 62 of the Social Services Law](#);

(2) where applicable, another social services district is responsible for reimbursing the costs of institutional care; and

(3) where indicated, the State is responsible for reimbursing the full costs of assistance or care.

(h) An applicant or recipient who is an alien shall furnish evidence to verify that he is lawfully residing in the United States.

(i) *Requirements for substance use disorder screening, assessment and rehabilitation services.*

(1) Screening and assessment.

(i) Investigation of eligibility for public assistance must include a screening for substance use disorder of all heads of households and of all adult household members, using a standardized screening instrument developed by the Office of Addiction Services and Supports in consultation with the office. Such screening will be performed at the time of application and periodically thereafter, unless the recipient is actively participating in substance use disorder treatment in accordance with the provisions of this subdivision, but no more frequently than every six months, unless the district has reason to believe that an applicant or recipient is misusing or dependent on alcohol and/or drugs.

(ii) When the screening process indicates that there is reason to believe that an applicant or recipient is misusing or dependent on alcohol or drugs, or there is other evidence that an applicant or recipient is misusing or dependent on alcohol or drugs, the local district must require the applicant or recipient to undergo a formal substance use disorder assessment, which may include drug testing, to be performed by substance use disorder professional credentialed by the Office of Addiction Services and Supports. The assessment may be performed directly by the district or pursuant to contract with the district.

(iii) If the formal assessment determines that the applicant or recipient is unable to work by reason of his or her need for treatment for substance use disorder, or the applicant or recipient has been ordered to participate in substance use disorder treatment by a court of competent jurisdiction, the social services official must refer the individual to an appropriate substance use disorder treatment program.

(iv) To be considered an appropriate treatment program, the treatment program must:

(a) be licensed or certified by the Office of Addiction Services and Supports or operated by the United States Department of Veterans Affairs and be determined by the social services official to meet the rehabilitation needs of the individual, in accordance with standards developed by the Office of Addiction Services and Supports;

(b) develop a treatment plan for the individual which includes an expected date of availability for work related activities and provide a copy of such plan to the local district responsible for payment, in a manner consistent with 41 CFR part 2;

(c) provide at a minimum of every three months, a treatment progress report for each recipient of public assistance to the local district responsible for payment of public assistance benefits; and

(d) request approval by the local district responsible for payment of public assistance benefits prior to changing an individual's level of treatment care.

(v) If the local district is responsible for payment of treatment, the district can require in-district treatment, provided an appropriate treatment program is available. When residential treatment is appropriate for a single custodial parent, the social services official must make diligent efforts to refer the parent to a program that would allow the family to remain intact for the duration of the treatment.

(vi) A person who fails to participate in the screening or in the assessment is ineligible for public assistance. Other members of a household which includes a person who has failed to participate in the screening or assessment must, if otherwise eligible, receive public assistance only through non-cash safety net assistance.

(vii) If a person required to participate in treatment pursuant to this subdivision fails to consent to disclosure of necessary treatment information by the treatment program to the social services district, or subsequently revokes such consent, such person will be ineligible for public assistance. Other members of the household which includes such person will, if otherwise eligible, receive public assistance only through non-cash safety net assistance.

(2) Rehabilitation services.

(i) A person referred to, or participating in, a treatment program pursuant to paragraph (1) of this subdivision, and the household in which he or she resides will receive non-cash safety net assistance while the person is participating in such treatment program, if the household is otherwise eligible for public assistance. If a person referred to treatment cannot participate in that treatment because treatment is not presently available, that person and the household in which he or she resides will receive non-cash safety net assistance if the household is otherwise eligible for public assistance.

(ii) Local districts are required to monitor treatment progress at a minimum of every three months.

(iii) If an applicant for or recipient of public assistance is required to participate in an appropriate rehabilitation program and fails to participate in such program without good cause or leaves such program prior to completion of the program without good cause, or if an applicant or recipient has been suspended from the receipt of social security disability

benefits or supplemental security income benefits by reason of noncompliance with requirements of the Federal social security administration for treatment for substance abuse or alcohol abuse, the person must be disqualified from receiving public assistance for the time periods set forth below. Failure to participate in such program is defined as failure to comply with the established treatment plan including scheduled treatment sessions. The applicant or recipient is required to document compliance with the treatment plan. The question of whether the applicant or recipient has completed the program will be determined solely by using the guidelines and rules of the rehabilitation program.

(a) For the first failure to participate in or complete the program or to comply with the requirements of the Federal social security administration, until the failure ceases or for 45 days, whichever period of time is longer.

(b) For the second such failure, until the failure ceases or for 120 days, whichever period of time is longer.

(c) For the third and subsequent failures, the person is disqualified until the failure ceases or for 180 days, whichever period is longer.

The household in which the person resides will continue to receive non-cash safety net assistance, if otherwise eligible.

(iv) The applicant or recipient must be considered to have good cause for failing to participate or failing to complete a rehabilitation program when:

(a) the local district, the facility and the applicant or recipient agree that the applicant or recipient is in need of a different program than the one to which he or she was referred or which he or she is attending and the applicant or recipient has enrolled in a rehabilitation program which the local district has determined appropriate; or

(b) a verified unforeseen circumstance occurs that is beyond the applicant's or recipient's control such as illness or a death in the family.

(v) Persons disqualified from receiving public assistance pursuant to subparagraph (iii) of this paragraph who would otherwise be eligible for public assistance and who return to required treatment prior to the end of the disqualification period and are receiving care in an Office of Alcoholism and Substance Abuse certified congregate care Level II facility, as defined in section 352.8 of this Title or United States Veterans Hospital residential treatment program, are eligible for non-cash safety net assistance.

(vi) If a recipient required to participate in an appropriate treatment program receives a personal needs allowance, such allowance must be made as a restricted payment to the treatment program and must be a conditional payment. If such recipient leaves the treatment program prior to completion of the program, any accumulated personal needs allowance must be considered an overpayment and returned to the local district which provided the personal needs allowance.

(3) For purposes of this subdivision, an *adult* is any individual in the household who is 18 years of age or over who is applying for or in receipt of public assistance, except an individual 18 years of age who is a full-time student regularly attending a secondary school, or in the equivalent level of vocational or technical training.

(j) An applicant for public assistance must comply with work requirements set forth in Part 385 of this Title.

(k) *Ineligible individuals.* In addition to any other individual who is ineligible for public assistance, the following individuals are also ineligible for such assistance:

(1) Any individual under the age of 18 who is not married and has a minor child 12 weeks of age or more in his or her care and who has not successfully completed a high school education or its equivalent if such individual does not participate in educational activities directed toward the attainment of a high school diploma or its equivalent or an alternative educational or training program directly related to employment and approved by the social services district. Local districts must not determine any person ineligible under this paragraph during any period of time in which enrollment in required educational activities is not available. Nothing prohibits a social services district from requiring any person to work toward attaining a secondary school diploma or its equivalent unless such individual has been determined by a medical, psychiatric or other appropriate professional to lack the requisite capacity to complete successfully such a course of study.

(2) Any individual during the 10-year period that begins on the date the individual is convicted in Federal or State court of having made a fraudulent statement or representation with respect to his or her place of residence in order to receive public assistance, medical assistance or food stamps simultaneously from two or more states, or supplemental security income in two or more states. This paragraph does not apply with respect to the conviction of an individual in any month beginning after the President of the United States grants a pardon with respect to the conduct which was the subject of the conviction. Such individual is also ineligible to receive benefits under the Food Stamp Program as set forth in section 387.1 of this Title.

(3)

(i) Any individual who is fleeing to avoid prosecution or custody or conviction under the laws of the place from which the individual flees for a crime or attempt to commit a crime which is a felony under the laws of the place from which the individual flees, or which, in the case of the state of New Jersey, is a high misdemeanor under the laws of such state; or

(ii) Any individual who is violating a condition of probation or parole imposed under Federal or State law. Local districts must consider a person to be violating a condition of probation or parole only if:

(a) the person is currently an absconder from probation or parole supervision and a warrant alleging such a violation is outstanding; or

(b) the person has been found by judicial determination to have violated probation or by administrative adjudication by the Division of Parole to have violated parole. Such person must be considered to be violating a condition of probation or parole under this paragraph only until he or she is restored to probation or parole supervision or released from custody, or until the expiration of the person's maximum period of imprisonment or supervision, whichever occurs first.

A person considered to be violating a condition of probation or parole under this paragraph includes a person who is violating a condition of probation or parole imposed under Federal law. For purposes of this paragraph, *probation* or *parole* includes conditional release, wherever applicable.

(4) Any individual who is a minor child who has been or is expected to be absent from the home of his or her parent or other caretaker relative for a consecutive period of 45 days or more without good cause. In addition, no assistance may be given to any parent or other caretaker relative who fails to notify the social services district of the absence of the minor child within five days after it becomes clear to the parent or relative that the child will be absent for a consecutive period of 45 days or more. Good cause includes absence for placement in foster care if the goal set forth in the child service plan under sections 428.6 and 428.7 of this Title is the return of the child to a member of the household, visits to friends or relatives, attendance at school, attendance at camp or hospitalization; if it is in the best interests of the child to return home and return is expected within a reasonable time. A parent or caretaker relative who fails to comply with the provisions of this paragraph is ineligible for public assistance for a period of 30 days for each whole or partial calendar month during which the child was absent from the home before the social services district was notified of the absence.

(l) *Requirements for domestic violence screening, assessment, and referral for services, public assistance program waivers.*

(1) Definitions.

(i) For purposes of this subdivision, *victim of domestic violence* means an individual who has been subjected to:

(a) physical acts that resulted in, or could result in, physical injury to the individual;

(b) sexual abuse;

(c) sexual activity involving a dependent child;

(d) being forced as the caretaker relative of a dependent child to engage in nonconsensual sexual acts or activities;

(e) threats of, or attempts at, physical or sexual abuse;

(f) mental abuse; or

(g) neglect or the deprivation of medical care; and

(h) such act or acts have or are alleged to have been committed by a family or household member.

(ii) For the purposes of subparagraph (i) of this paragraph, *family* or *household members* mean the following persons:

(a) persons related by blood or marriage;

(b) persons legally married to one another;

(c) persons formerly married to one another regardless of whether they still reside in the same household;

(d) persons who have a child in common regardless of whether such persons are married or have lived together at any time;

(e) unrelated persons who are continually or at regular intervals living in the same household or who have in the past continually or at regular intervals lived in the same household;

(f) unrelated persons who have had intimate or continuous social contact with one another and who have access to one another's household; or

(g) any other persons referenced in [section 459-a\(2\) of the Social Services Law](#).

(2) Domestic violence liaison.

(i) Responsibilities. Domestic violence liaisons are responsible for the following tasks:

(a) assessing the credibility of the applicant/recipient's assertion of domestic violence based upon information and corroborating evidence;

(b) assessing the safety of the victim and the victim's dependents and their need for services and support;

(c) informing a victim of domestic violence referred to the liaison about domestic violence and the options for protection, services and other supports;

(d) informing a victim of domestic violence referred to the liaison about the rights and responsibilities with respect to obtaining waivers of public assistance program requirements;

(e) gathering facts regarding the extent to which domestic violence is a barrier to the victim of such violence meeting public assistance program requirements including employment requirements and the need for obtaining waivers of such requirements;

(f) determining the need for waivers where compliance with public assistance program requirements would place the victim and/or the victim's children at greater risk of harm or make it more difficult to escape from the abuse, and making recommendations for granting waivers or granting waivers of public assistance program requirements;

(g) periodically reassessing the individual's domestic violence circumstances and modifying, terminating or extending the public assistance program waiver(s) at least every six months;

(h) maintaining a list of, at a minimum, available domestic violence services and maintaining a relationship with the providers of the services including, but not limited to domestic violence service providers, key court personnel and the local domestic violence coalition, where applicable;

(i) coordinating activities with other case managers and examiners within the social services district;

(j) facilitating emergency safety planning for victims of domestic violence in a crisis situation, as necessary; and

(k) developing an appropriate services plan when a waiver is granted, which is designed to lead to work, to the extent that the plan would not make it more difficult for the victim to escape domestic violence or unfairly penalize those individuals who are or have been victimized by domestic violence or who are at risk of further domestic violence.

(ii) Qualifications. Social services districts must give a strong preference to relevant advocacy or counseling experience in determining whether someone should be designated a domestic violence liaison. Domestic violence liaisons must meet the following minimum job qualifications:

(a) be a caseworker; or

(1) possess a bachelor's degree; or

(2) have one year of domestic violence advocacy or domestic violence counseling experience with an approved domestic violence program; or

(3) have two years of relevant advocacy or domestic violence counseling experience; and

(b) complete a course of training for domestic violence liaisons sponsored by the Office of Temporary and Disability Assistance (office); and

(c) possess good communication, listening and assessment skills and the ability to work positively in a team setting.

(iii) If a social services district chooses to contract for the domestic violence liaison position(s), it must comply with the following requirements:

(a) the agency employing the liaison(s) must be an approved residential program for victims of domestic violence pursuant to Part 452, 453, 454, or 455 of this Title and/or a non-residential program for victims of domestic violence pursuant to Part 462 of this Title;

(b) if it is not feasible for the assessment function to be carried out at the offices of the social services district, the district must make provision for ensuring that individuals can go to the alternative location, that their safety will be ensured and that their confidentiality will be maintained. The district must make this information available to the office when requested;

(c) the liaison must maintain regular contact with appropriate social services district staff, including providing the district with data pertaining to public assistance program waivers; and

(d) the agency employing the liaison and the district must provide each other with necessary training so that the agency and district can optimally fulfill their obligations under this subdivision.

(3) Universal notification. Social services districts must notify all public assistance applicants and recipients of the procedures for protecting themselves from domestic violence and the availability of domestic violence services. Such notification will be done by using the universal notification handout, developed by the office in consultation with the Office for the Prevention of Domestic Violence and statewide domestic violence advocacy groups.

(4) Screening and referral to liaisons.

(i) Social services districts must inquire of all public assistance applicants and recipients regarding the existence of any domestic violence committed against the applicant or recipient. Such inquiry will be done by using the universal screening form developed by the office in consultation with the Office for the Prevention of Domestic Violence and statewide domestic violence advocacy groups.

(ii) Social services districts must advise clients that responding to questions concerning the existence of domestic violence is voluntary and that any response will remain confidential; provided, however, that information regarding suspected maltreatment or abuse of children will be reported to the Statewide Central Register of Child Abuse and Maltreatment.

(iii) Social services districts must make the screening form available for voluntary client completion at the application and recertification interview. Such screenings may be conducted by telephone or other digital means at the request of the applicant or recipient. However, the district must accommodate clients who wish to provide this screening information verbally when completion is not possible due to literacy problems. The district must also accommodate clients who wish to provide this screening information at another time when completion is not initially possible due to risk of danger to themselves, for example due to the presence of the batterer at the time of the initial screening. The district must provide the screening form to any individual who at any time is identified as a victim of domestic violence, or otherwise requests such screening.

(iv) When an individual indicates the presence of domestic violence by providing an affirmative response on the screening form, the district must refer that individual to a domestic violence liaison as soon as practicable and prior to any other assessment.

(5) Assessment of credibility.

(i) The domestic violence liaison must, as soon as practicable, assess the credibility of a positively screened individual's assertion of domestic violence based upon all relevant information including, but not limited to: an order of protection; court, medical, criminal, child protective services, social services, psychological, or law enforcement records; presence in a domestic violence shelter; a signed statement by a domestic violence counselor or other counselor or other corroborating evidence.

(ii) Such assessment must be based upon the relevant information and corroborating evidence, but must in the absence of other sufficient evidence include, at a minimum, a sworn statement by the individual alleging the abuse.

(6) Services referral and waiver assessment. If the domestic violence liaison determines that the allegation of domestic violence is credible, the domestic violence liaison must, as soon as practicable:

(i) inform the individual of services related to domestic violence, which are available to the individual on a voluntary basis;

(ii) conduct an assessment to determine if and to what extent domestic violence is a barrier to compliance with public assistance program requirements or to employment;

(iii) assess the need for temporary waivers of such program requirements;

(iv) recommend or grant any necessary waivers in coordination with social services district staff who are charged with the implementation of such waivers and/or the administration of public assistance program requirements;

(v) inform social services district staff responsible for the administration of public assistance requirements of the final determination or recommendation with respect to waivers; and

(vi) develop an appropriate services plan when a waiver is granted, which is designed to lead to work, to the extent that the plan would not make it more difficult for the victim to escape domestic violence or unfairly penalize those individuals who are or have been victimized by domestic violence or who are at risk of further domestic violence.

(7) Waivers.

(i) Waivers are a temporary suspension of public assistance program requirements including, but not limited to, residency rules, child support and paternity cooperation requirements, substance use disorder screening and referral requirements, and employment and training requirements. Any such waivers must be consistent with federal law.

(ii) The granting of a waiver does not affect the amount of the grant or the budgeting of income for the applicant or recipient.

(iii) Waivers will be granted in cases where compliance with public assistance program requirements would make it more difficult for the individual or the individual's children to escape from domestic violence or subject them to further risk of domestic violence. Such waivers must be for an initial period of not less than four months. All such waivers will be subject to ongoing review of the individual's circumstances by the domestic violence liaison and may be extended, modified or terminated based on such review at any time, including the time covered by the initial four month waiver period. The need for waivers shall be redetermined at least every six months.

(iv) In considering the extension of waivers, the domestic violence liaison must consider the totality of the individual's case circumstances. However, unwillingness on the part of the individual to engage in any options, steps or activities that might assist the individual in terms of safety or self-sufficiency may affect the individual's credibility.

(v) Waivers may be granted permitting the receipt of family assistance benefits by individuals who have already received benefits for 60 months and who would not be required to participate in work or training activities, pursuant to the regulations of the Department of Labor, because of an independently verified physical or mental impairment resulting from domestic violence that is anticipated to last for three months or longer, or if the individual is unable to work because of the need to care for a dependent child who is disabled as a result of domestic violence.

(vi) An individual may decline a waiver or terminate an existing waiver at any time without penalty.

(8) Alien eligibility and deeming.

(i) Under Immigration and Naturalization Services (INS) rules, certain battered aliens not otherwise considered qualified aliens for public assistance eligibility purposes can petition INS and be granted qualified alien status thereby entitling them to receive benefits. Aliens so qualified will be issued a "Notice of Prima Facie Case" by INS.

(ii) Social services districts must exempt such battered aliens from alien deeming requirements in accordance with section 352.33(c) of this Title.

(m) Social services districts must make all applicants for and recipients of public assistance aware of their option to receive information appropriate for victims of sexual assault. Such information must be made available to all individuals who demonstrate a need for or who are interested in receiving services appropriate for victims of sexual assault, and must include referral and contact information for all local programs that provide services to victims of sexual assault including, but not limited to:

(1) sexual assault examiner programs, including a list of any local hospitals offering sexual assault forensic examiner services certified by the department of health;

(2) rape crisis centers; and

(3) other advocacy, counseling, and hotline services appropriate for victims of sexual assault.

Credits

Sec. renum. 351.6, new added by renum. and amd. 351.3, filed May 31, 1967; repealed, new filed May 7, 1969; amds. filed: Nov. 12, 1969; Jan. 8, 1970; July 23, 1970; March 16, 1972; repealed, new filed Aug. 30, 1973; amds. filed: May 2, 1974; Jan. 28, 1976; March 9, 1977; Oct. 21, 1981; Sept. 14, 1984; June 4, 1992; July 21, 1993; Dec. 13, 1994; Oct. 26, 1995 as emergency measure; Jan. 24, 1996 as emergency measure; March 5, 1996; April 12, 1996 as emergency measure; July 5, 1996 as emergency measure; Aug. 30, 1996 as emergency measure; Sept. 16, 1996; Oct. 10, 1997 as emergency measure; Oct. 29, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; March 10, 1998 as emergency measure; April 7, 1998; April 24, 1998 as emergency measure; May 1, 1998; June 2, 1998; June 8, 1998 as emergency measure; Sept. 4, 1998 as emergency measure; Sept. 4, 1998; July 12, 2001; Sept. 30, 2002; Feb. 11, 2010; Aug. 28, 2012 eff. Nov. 1, 2012; amd. filed June 16, 2015 eff. July 1, 2015; amd. filed April 22, 2016 eff. May 11, 2016; amd. filed Nov. 19, 2019 eff. Jan. 15, 2020; emergency rulemaking eff. Oct. 9, 2021, expires Jan. 5, 2022 (Register dated Oct. 27, 2021); emergency rulemaking eff. Jan. 6, 2022, expires March 4, 2022 (Register dated Jan. 19, 2022); amd. filed Jan. 25, 2022 eff. Feb. 9, 2022 (Register dated Feb. 9, 2022); amd. filed Dec. 4, 2023 eff. Dec. 20, 2023 (Register dated Dec 20, 2023); amd. filed Dec. 23, 2024 eff. Jan. 8, 2025 (Register dated Jan. 8, 2025).

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18 NYCRR 351.3

Section 351.3. Required approval of facility

[Currentness](#)

Insofar as practicable, assistance and care for a needy person shall be provided in his own home, or in an approved facility suitable to the needs of the person in accordance with department regulations relating thereto.

Credits

Sec. amd. filed Dec. 30, 1963; renum. 351.2, new added by renum. and amd. 351.5, filed May 31, 1967; repealed, new filed May 1, 1969; repealed, filed March 3, 1970; new filed Aug. 30, 1973 eff. Aug. 30, 1973.

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18 NYCRR 351.4

Section 351.4. Front end detection system (FEDS) referrals

[Currentness](#)

The appropriate social services eligibility worker must refer applicants for assistance to the social services district's FEDS investigative unit in accordance with criteria set forth in the district's approved FEDS plan submitted to the department in accordance with Part 348 of this Title. Any referrals to the FEDS investigative unit must not delay the eligibility determination process beyond the timeframes established by the Social Services Law or this Title.

Credits

Sec. renum. 351.7, new filed May 31, 1967; repealed, new filed Aug. 30, 1973; renum. 303.5, filed Jan. 30, 1976; new filed: June 30, 1992 as emergency measure; Sept. 28, 1992 as emergency measure; Nov. 27, 1992 as emergency measure eff. Nov. 27, 1992; Nov. 27, 1992 eff. Dec. 16, 1992.

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18 NYCRR 351.5

Section 351.5. Sources of information

Currentness

(a) *Primary sources.* The applicant, recipient, members of his/her household and public records must be relied upon as primary sources of information. Information received from applicants, recipients, and members of the household must be verified. The applicant or recipient is required, wherever possible, to provide such verification by documentation. If the applicant or recipient has previously verified necessary information which is not subject to change and the social services district possesses documentation of such verification in its files, the applicant or recipient is not required to resubmit verification of such information; provided, however, that such documentation may be required in connection with any State quality control review of social services district programs. When an applicant or recipient establishes that he/she has made reasonable efforts to obtain information or verification from a third party (other than a third party who is required to be in the filing unit, or whose income is used in determining eligibility or an individual living in the household) and the third party fails or refuses to provide the information or verification or seeks to impose a charge or fee for providing the information to the applicant or recipient, the social services official must pay such fee or must assist the applicant or recipient in obtaining the information or verification from the third party or by other means as may be necessary.

(b) *Secondary and collateral sources and collateral investigation.* Secondary or collateral sources of information are relatives outside the immediate family group, and other persons, agencies or resources. *Collateral investigation* means the collection of additional information through contacts with secondary sources such as relatives, employers, banks, insurance companies, school personnel, social agencies, and other appropriate individuals and organizations.

Credits

Sec. repealed, new filed Nov. 1, 1963; renum. 351.3, new filed May 31, 1967; repealed, new filed Aug. 30, 1973; amd. filed Feb. 20, 1990 eff. March 7, 1990. Amended (a).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 351.6

Section 351.6. Verification

Currentness

Verification of data, which are pertinent to the determination of initial and continuing eligibility or the amount of the assistance grant, is an essential element of this investigation.

(a) Documents, personal observation, personal and collateral interviews and contacts, reports, correspondence and conferences are means of verification.

(b) When information is sought from collateral sources other than public records because the applicant or recipient cannot provide verification, there shall be a clear interpretation to the applicant, recipient or legally responsible relatives of what information is desired, why it is needed and how it will be used.

(c) Verification of information with respect to legally responsible relatives from collateral sources shall be made only with the knowledge and consent of such relatives, after first giving them the opportunity to provide verification of their income, resources and expenses by other means.

(1) In the event that a legally responsible relative residing outside the applicant's or recipient's household fails or refuses to cooperate in providing necessary information about his financial circumstances, such refusal shall not be a ground for denying or discontinuing assistance. Such refusal shall be referred to the law enforcement officer in accordance with department regulations.

(2) In the event that a legally responsible relative residing in the applicant's or recipient's household fails or refuses to cooperate in providing necessary information about his financial circumstances, such refusal shall be a ground for denying or discontinuing assistance to the persons for whom he is legally responsible.

Credits

Sec. amd. filed Nov. 1, 1963; repealed, new added by renum. and amd. 351.2, filed May 31, 1967; repealed, new filed Aug. 30, 1973; amds. filed: July 15, 1980; April 17, 1981 eff. April 17, 1981.

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18 NYCRR 351.7

Section 351.7. Supervisory review and approval

[Currentness](#)

Social services districts have the option of requiring supervisory approval for case actions on all public assistance cases. Social services districts that choose not to review all public assistance cases must have a plan in place describing their requirements for supervisory approval. Such plan must be approved by the office prior to its implementation. Supervisory approval must be indicated by a dated signature in the case record. Supervisory approval must be based upon review of all available information pertaining to eligibility and the amount of entitlement. It must include approval of decisions to deny public assistance as well as decisions to change grants or to refer applicants or recipients for services.

Credits

Sec. added by renum. and amd. 351.4, filed May 31, 1967; repealed, new filed Aug. 30, 1973; amd. filed May 20, 1999 eff. June 9, 1999.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 351.8

Section 351.8. Decision on initial eligibility and payment of assistance grants

Currentness

(a) Decision on initial eligibility is the conclusion or determination reached at any point in the application process. Such decision, as approved on supervisory review, shall constitute the decision of the social services official. The decision shall be one of the following:

(1) Accepted for assistance. This means that eligibility has been fully established through investigation or that emergency need and presumptive eligibility has been established and authorization for assistance has been made and approved by the social services official.

(2) Not accepted for assistance. Applications are denied and not accepted for assistance when:

(i) In the course of the application interview the information given by the applicant establishes, without the need for further investigation, that he is ineligible.

(ii) Ineligibility is determined in the course of or upon completion of the investigation, or if the applicant refuses to comply with any requirement essential to the determination of eligibility.

(3) Terminations without decision. No decision is required when:

(i) an application is withdrawn by the applicant; or

(ii) the social services official documents that the applicant has died, cannot be located, or has left the district prior to the completion of the investigation.

(b) The decision to accept or deny the application must be made within 30 days from the date of application for both family assistance and safety net assistance, except where the applicant requests additional time or where difficulties in verification lead to an unusual delay, or for other reasons beyond the social services official's control. The applicant must be notified in writing of the decision in accordance with department regulations. The reason for the delay in deciding whether to accept or

deny an application must be recorded in the case record and communicated to the applicant. The applicant must be notified of the availability of assistance to meet emergency circumstances or to prevent eviction.

(c)

(1) When eligibility has been established, the application shall be accepted for assistance pending the development of potential resources, *i.e.*, support from relatives, adjustment of insurance, or eligibility for benefits. It shall be the responsibility of the social services official to fully explore and develop all such resources.

(2) The amount of the initial grant of regularly recurring financial assistance for both family assistance and safety net assistance must be computed starting with the date of establishment of eligibility or the 30th day after the date of application, whichever is earlier. In determining the amount of the initial grant, the monthly budget deficit must be prorated to reflect the number of days in the month in which there was initial coverage.

(3) For family assistance and safety net assistance cases, the first payment must be authorized no later than 30 days from the date of application.

(4) When eligibility has not been established but immediate need is determined to exist, an emergency or predetermination grant of assistance shall be made in accordance with department regulations.

(5)(i) A child who is born to a recipient of public assistance is eligible for such assistance from the date of their birth, provided verification of the birth is received by the appropriate social services official:

(a) within six months of the birth of the child; or

(b) by the recipient's first scheduled recertification interview after the birth of the child;

whichever is later.

(ii) The failure to present verification of a child's birth to a social services official in accordance with the provisions of subparagraph (i) of this paragraph will result in such child becoming eligible for public assistance beginning on the date that verification of the birth is provided to such official.

Credits

Sec. filed Aug. 30, 1973; amds. filed: Nov. 12, 1976; June 28, 1988; June 5, 1992 as emergency measure; Sept. 3, 1992 as emergency measure; Oct. 27, 1992 as emergency measure; Oct. 27, 1992; July 13, 1993; Jan. 8, 1996; Nov. 25, 2003 eff. Dec. 10, 2003. Amended (c)(2); amd. filed March 7, 2023 eff. March 22, 2023 (Register dated March 22, 2023).

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18 NYCRR 351.9

Section 351.9. Concurrent benefits prohibited

Currentness

(a) *Definitions.* For purposes of this section:

(1) *Benefits* means public assistance grants or any other grants or benefits provided in accordance with the Social Services Law or in accordance with other provisions of this Title. Such benefits include home relief, aid to dependent children or other public assistance cash grants which are provided to cover basic needs.

(2) *Concurrent benefits* means benefits paid from a public assistance program more than once or from more than one public assistance program, or any other programs or activities for which the department is responsible, which are provided during the same time period to meet the same needs of the same individual. Medical assistance, energy assistance, food stamp assistance or other assistance provided to individuals who have been determined to be eligible for a public assistance cash grant will not be considered concurrent benefits. Aid to dependent children may be considered concurrent benefits when provided to meet the needs of home relief recipients; medical assistance based upon eligibility for home relief may be considered concurrent benefits when provided to meet the needs of recipients of federally funded aid to dependent children.

(3) *Individual* includes a public assistance recipient or a recipient of benefits from any other programs or activities for which the department is responsible, any legally responsible relative of such recipient and any other adult payee for such recipient.

(b) No individual may receive concurrent benefits unless a social services official, in accordance with the policies or directions of the department, specifically has determined that such duplication of benefits is necessary and appropriate due to specific case circumstances which are stated in the case record.

(c) If a social services official learns that an individual is applying improperly for or receiving benefits when such individual is also receiving, or has been approved to receive, concurrent benefits in that social services district, or in another social services district, state, territory or commonwealth, then the social services official must deny the benefits for which the individual, legally responsible relative or payee is applying, or must discontinue any concurrent benefits being provided for such individual.

(d) A determination that an individual is receiving or applying for concurrent benefits must be based on information which establishes with reasonable certainty that the same individual is receiving or applying for assistance to meet the same needs

in the same or separate subdivisions of that social services district, or in another social services district, state, territory or commonwealth. Information used to identify an individual with reasonable certainty includes, but is not limited to:

(1) [Reserved]

(2) photographic images;

(3) official identification documents; and

(4) governmental or public records containing verifiable biological or demographic information unique to particular individuals.

(e) A social services official discovering or investigating the application for or receipt of concurrent benefits must notify any other social services entity which has authorized payment for benefits which are concurrent and inform such social services entity of the existence of the concurrent cases and of the action that the referring social services official has taken or plans to take. A social services official that has been notified that concurrent benefits are being claimed or paid, must, after an investigation, take any necessary action to assure that only appropriate social services benefits are being provided to any individual identified as receiving concurrent benefits.

(f) Subject to the provisions of sections 358-3.3(g), 358-3.6(a)(2)(vi) and 358-3.6(c)(2)(iii) of this Title, individuals whose benefits are being discontinued are entitled to aid continuing as defined in section 358-2.5 of this Title for only one open case in the State during the time period in which concurrent benefits are denied or terminated. Social services officials must make determinations to discontinue or deny benefits to individuals applying for or receiving concurrent benefits by issuing, to the extent permitted by Part 358 of this Title, only adequate notices that do not afford to such individuals any right to receive aid continuing as defined in section 358-2.5 of this Title for more than one open case at one time in the State.

Credits

Sec. filed Jan. 5, 1996 eff. Jan. 24, 1996; amd. filed Nov. 19, 2019 eff. Jan. 15, 2020.

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18 NYCRR 351.10

Section 351.10. Identification and referral of adolescents to case management activities

[Currentness](#)

A pregnant or parenting adolescent who is receiving public assistance or is a payee of such benefits on behalf of his or her child(ren) must be identified and referred to the appropriate unit or agency for case management activities as described in Part 361 of this Title.

Credits

Sec. amds. filed: Nov. 12, 1963; May 31, 1967; repealed, filed Aug. 30, 1973; new filed: Dec. 31, 1987 as emergency measure; Feb. 26, 1988 as emergency measure; April 26, 1988 as emergency measure eff. April 26, 1988; April 26, 1988 eff. May 11, 1988.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 351.11. [Repealed]

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18 NYCRR 351.11

Section 351.11. [Repealed]

[Currentness](#)

Credits

Sec. repealed, filed Aug. 30, 1973 eff. Aug. 30, 1973.

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KeyCite Red Flag Negative Treatment Section 351.12. Learnfare--Repealed

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18 NYCRR 351.12

Section 351.12. Learnfare--Repealed

[Currentness](#)

Credits

Sec. amds. filed: Nov. 1, 1963; May 31, 1967; repealed, filed Aug. 30, 1973; new filed: Sept. 5, 1997 as emergency measure; Dec. 3, 1997 as emergency measure; Jan. 30, 1998 as emergency measure; Feb. 5, 1998 eff. Feb. 25, 1998; repealed, filed June 16, 2015 eff. July 1, 2015.

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KeyCite Red Flag Negative Treatment Section 351.13. [Repealed]

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18 NYCRR 351.13

Section 351.13. [Repealed]

[Currentness](#)

Credits

Sec. amd. filed May 31, 1967; repealed, filed Aug. 30, 1973 eff. Aug. 30, 1973.

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KeyCite Red Flag Negative Treatment Section 351.14. [Repealed]

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18 NYCRR 351.14

Section 351.14. [Repealed]

[Currentness](#)

Credits

Sec. repealed, filed Aug. 30, 1973 eff. Aug. 30, 1973.

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Continuing Eligibility.

18 NYCRR 351.20

Section 351.20. Determination of continuing eligibility

Currentness

(a) Continuing eligibility for public assistance shall be established by investigation and documentation at specified intervals and the process shall be known as recertification, which shall include a reevaluation and reconsideration of all variable factors of need and other factors of eligibility.

(b) In connection with periodic redetermination of eligibility, the social services district shall:

- (1) require that the recipient complete the State-prescribed form and submit appropriate supporting data;
- (2) determine the need for additional information from the recipient and/or collateral sources;
- (3) interview the recipient in a face-to-face interview, or may interview the recipient by telephone or other digital means at the request of the recipient, in order to verify factors of eligibility, including those related to:
 - (i) identity of recipient;
 - (ii) domicile of recipient;
 - (iii) family composition;
 - (iv) rent payment or cost of housing;
 - (v) income from any source;
 - (vi) savings or other resources;

(vii) lawful residence in the United States, if the recipient is an alien;

(4) make appropriate collateral investigation, as required, where the recipient is unable to secure documentation of the above factors and any additional factors of eligibility as required to establish continued eligibility;

(5) evaluate all the factual information gathered as to its completeness, relevancy and consistency;

(6) identify the factors of eligibility subject to change which call for prompt review of continuing eligibility; and

(7) advise the recipient of his continuing responsibility to keep the agency informed of changes in his circumstances.

(c) When a social services district becomes aware that the adult relative caretaker of a minor child has died, the district must take prompt steps to adjust case classification and payee and to adjust benefit levels to reflect current circumstances. Public assistance eligibility must not lapse solely by reason of death of the adult caretaker of a minor child until arrangements are completed for the addition of the child to another public assistance household, reclassification of the case, foster care or other appropriate financial support.

Credits

Sec. repealed, filed Nov. 1, 1963; new filed June 22, 1973; amds. filed: May 2, 1974; Sept. 18, 1979; March 21, 2005 eff. April 6, 2005. Added (c); emergency rulemaking eff. Oct. 9, 2021, expires Jan. 5, 2022 (Register dated Oct. 27, 2021); emergency rulemaking eff. Jan. 6, 2022, expires March 4, 2022 (Register dated Jan. 19, 2022); amd. filed Jan. 25, 2022 eff. Feb. 9, 2022 (Register dated Feb. 9, 2022); amd. filed March 7, 2023 eff. March 22, 2023 (Register dated March 22, 2023).

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18 NYCRR 351.21

Section 351.21. Required contacts and investigation

Currentness

(a) Contacts with recipients and collateral sources shall include face-to-face contacts, or, at the request of the recipient, by telephone or other digital means, correspondence, reports on resources, eligibility mailouts and other documentation. Contacts with or concerning recipients shall be made as frequently as individual need, change in circumstances or the proper administration of assistance or care may require.

(b) All variable factors of need and eligibility shall be reconsidered, reevaluated and verified at least once in every:

(1) 12 months, in cases of Family Assistance (FA) and Safety Net Assistance (SNA); and

(2) 24 months, in all cases of FA and SNA wherein a non-legally responsible caregiver is caring for a child or children for whom they are applying for or receiving assistance.

(c) Unless the social services district has an office-approved alternative recertification requirement, the district must use the State-prescribed form in the recertification process and must require a face-to-face interview with the recipient, or, at the request of the recipient, an interview by telephone or other digital means, for each recertification.

(d) The recipient shall appear at the face-to-face interviews, or, at the request of the recipient, may be interviewed by telephone or other digital means, and shall present appropriate documentation as required to substantiate both categorical and financial eligibility. If because of age, handicap or other verifiable limiting condition, the recipient is unable to appear for a face-to-face interview or requires the use of an interpreter for the deaf, the district shall make appropriate arrangement to accommodate the client. The client shall notify the district of special needs or requirements as soon as the notice to appear is received and give the reason for such special needs or requirements.

(e) In addition to personal interviews and correspondence with the recipient, there shall be contact, as the circumstances of the individual case may require, with appropriate persons and agencies to secure verification of data which is essential to establish eligibility for public assistance and which the recipient is unable to secure.

(f) Contacts with recipients and with collateral sources of information shall be directed toward consideration of all variable factors of eligibility.

(1) Financial need. Identity of the recipient and his individual circumstances shall be reviewed and verified as indicated in relation to changes in the household, in living arrangements, in income and in allowance schedules, in order to determine those items of need that should be added, deleted or changed in amount.

(2) Financial resources. Current availability and use of financial resources shall be reconsidered and verified in relation to fluctuations in value or income, or the initiation or termination of rights to benefits.

(3) Employment, employability and training for employment. The employment, potential employability, availability for employment, or need for training or retraining shall be reviewed and established for each person 16 years of age or over.

(4) Relatives. Changes in circumstances, which affect the ability or willingness of relatives to financially assist the recipient, shall be reviewed. If a legally responsible relative is failing to support according to ability and/or court order, referral for appropriate legal action shall be made.

(5) Special categorical requirements. There shall be review of factors of categorical eligibility which are subject to change, such as further impairment, recovery or improvement in the condition of an incapacitated parent, return of an absent parent, termination of eligibility of children because of age or leaving school, and obtaining employment. In review of a SNA case, entitlement to assistance under a federally aided category shall be considered.

(6) Health. Changes in health conditions shall be considered with respect to continuing eligibility and required services.

(7) Services. There shall be a review of the need for services and appropriate referral made therefor.

Credits

Sec. amds. filed: June 27, 1963; Nov. 1, 1963; May 31, 1967; repealed, new filed June 22, 1973; amds. filed: Nov. 7, 1974; Jan. 27, 1975; Sept. 18, 1979; July 15, 1980; Oct. 14, 1981 eff. Oct. 14, 1981; June 16, 2008 eff. July 2, 2008; amd. filed Dec. 4, 2023 eff. Dec. 20, 2023 (Register dated Dec 20, 2023); emergency rulemaking eff. Oct. 11, 2024, expires Jan. 8, 2025 (Register dated Oct. 30, 2024); emergency rulemaking eff. Jan. 9, 2025, expires March 9, 2025 (Register dated Jan. 29, 2025); amd. filed Jan. 31, 2025 eff. Feb. 19, 2025 (Register dated Feb. 19, 2025).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 351.21, 18 NY ADC 351.21

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Title 18. Department of Social Services

Chapter II. Regulations of the Department of Social Services

Subchapter B. Public Assistance

Article 1. Determination of Eligibility--General

Part 351. Investigation and Eligibility (Refs & Annos)

Continuing Eligibility.

18 NYCRR 351.22

Section 351.22. Action to be taken upon failure to appear at face-to-face interviews or failure to participate in an interview by telephone or other digital means, or upon determination of ineligibility or of change in degree of need

Currentness

(a) In all programs of public assistance, there shall be face-to-face recertification interviews, or, there may be interviews by telephone or other digital means at the request of the recipients, and contacts as needed in excess of the minimum required by Office regulations shall be made in cases where there is indication of change in need or resources.

(b) *Failure to appear at the face-to-face interviews or comply with an Office approved alternative recertification requirement or failure to participate in an interview by telephone or other digital means.* If a recipient fails to appear, participate via telephone or other digital means, or comply with an Office approved alternative recertification requirement, without good cause, the social services official must send a 10-day notice of proposed discontinuance of assistance on a form required by the Office.

(1) If the recipient does not respond within this 10-day period, the case shall be closed as of the end of the 10-day period. Any request for assistance made after a case is closed must be considered a new application.

(2) If the recipient appears for a face to-face, telephone or digital interview during the 10-day notice period, an interview must be arranged. If it is determined that the recipient is eligible for continued assistance, the 10-day notice of proposed discontinuance must be nullified.

(3) If the recipient complies with an office approved alternative recertification requirement during the 10-day notice period, the recipient's eligibility information must be reviewed. If it is determined that the recipient is eligible for continued assistance, the 10-day notice of proposed discontinuance must be nullified.

(c) *Eligibility mailout process.*

(1) Social services districts which use eligibility mailout questionnaires must develop plans outlining the eligibility mailout process which is to be used, consistent with the provisions of paragraph (2) of this subdivision. Such plans must be submitted to and approved by this office before a social services district's mailout process can be implemented. Concurrently with the submission of the plan, or anytime thereafter, a social services district may request, and the office may approve, a waiver of the provisions set forth in subparagraphs (i) and (ii) of paragraph (2) of this subdivision. The

office may rescind the approval of any eligibility mailout plan or suspend such process when circumstances make such action appropriate.

(2)

(i) If a recipient fails to respond to an eligibility mailout questionnaire within the time period described in the questionnaire, the social services official must send another eligibility mailout questionnaire with a 10-day notice of proposed discontinuance of assistance on the State prescribed form.

(ii) If the recipient does not respond to the eligibility mailout questionnaire within the 10-day period, the case must be closed at the end of the 10-day period. Any request for assistance made after a case is closed must be considered a new application.

(iii) If the recipient responds to the eligibility mailout questionnaire during the 10-day notice period, the 10-day notice of proposed discontinuance must be nullified.

(d) *Failure to cooperate with a quality control review.* When a head of household refuses without good cause to cooperate in a quality control review conducted in accordance with Part 326 of this Title, the entire household is ineligible for public assistance until the head of household cooperates with the review. Good cause includes circumstances beyond the head of household's control, such as, but not limited to, illness of the head of household, illness of another household member requiring the presence of the head of the household, or a household emergency.

(e) When a social services district receives indication of ineligibility or of change in degree of need, action shall be taken to review these situations as they occur. An investigation shall be initiated promptly and completed within 30 days.

(f) When a social services district verifies ineligibility or a change which results in a decrease in need, it shall immediately initiate action to reduce the grant for the appropriate payment month and to notify the recipient of the proposed change in his assistance grant in accordance with office regulations. When the verified data indicates an increase in need, action shall be taken immediately to increase the grant for the next payment period possible under the existing payment procedure. An appropriate entry shall be made in the case record of any such change in grant, and the basis for it. Such reduction or increase in grant involves a reauthorization for a continuing grant in a different amount, while a discontinued grant may involve the following action:

(1) Case closed. This is a final terminal action, signifying that the case is no longer eligible for financial assistance in that public assistance program. Such action is also taken when the case is transferred or reclassified to another category of public assistance.

(2) The case must be closed when the recipient fails to pick up public assistance benefits from an electronic payment file transfer outlet for two consecutive months.

Credits

Sec. ams. filed: Nov. 1, 1963; May 31, 1967; repealed, new filed June 22, 1973; ams. filed: Jan. 27, 1975; July 15, 1980; Nov. 19, 1985; Jan. 7, 1986; July 14, 1987; Sept. 5, 1989; Sept. 7, 1989; May 4, 1992; filed June 16, 2008 eff. July 2, 2008; emergency rulemaking eff. Oct. 9, 2021, expires Jan. 5, 2022 (Register dated Oct. 27, 2021); emergency rulemaking eff. Jan. 6, 2022, expires March 4, 2022 (Register dated Jan. 19, 2022); amd. filed Jan. 25, 2022 eff. Feb. 9, 2022 (Register dated Feb. 9, 2022).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.22, 18 NY ADC 351.22

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Article 1. Determination of Eligibility--General
Part 351. Investigation and Eligibility (Refs & Annos)
Continuing Eligibility.

18 NYCRR 351.23

Section 351.23. Notification of change in grant

Currentness

- (a) The recipient must be notified of any change in grant in accordance with this Title.
- (b) The recipient must be notified of the right to a fair hearing in accordance with Part 358 of this Title whenever there is a proposed reduction in, or discontinuance of, or increase in, the grant.

Credits

Sec. amds. filed: Dec. 30, 1963; May 31, 1967; repealed, new filed June 22, 1973; amds. filed: Jan. 27, 1975; July 15, 1980; Dec. 23, 1988; eff. Jan. 15, 1989. Amended (a)-(b).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 351.23, 18 NY ADC 351.23

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 351.24. [Repealed]

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18 NYCRR 351.24

Section 351.24. [Repealed]

[Currentness](#)

Credits

Sec. repealed, new filed: May 31, 1967; June 22, 1973; May 30, 1974; repealed, filed May 25, 1977; new filed Nov. 19, 1985 as emergency measure; amds. filed: Jan. 17, 1986; Dec. 23, 1988; Oct. 22, 1990; repealed, new filed: Dec. 29, 1992 as emergency measure; March 30, 1993 as emergency measure; May 27, 1993 as emergency measure; May 27, 1993; amds. filed: Jan. 5, 1996; Oct. 8, 2002; repealed, filed Sept. 27, 2011 eff. Oct. 12, 2011.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.24, 18 NY ADC 351.24

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18 NYCRR 351.25

Section 351.25. Proration of benefits at time of case closing or reduction of benefits

Currentness

When a case is closed or benefits are reduced, the public assistance grant must be prorated so that only those benefits to which the recipient is entitled, if any, are provided beyond the date of discontinuance or reduction. Any benefits that have been provided for a period in which the recipient was no longer eligible for benefits or was eligible for lesser benefits must be recovered in accordance with section 352.31(d) of this Title.

Credits

Sec. amd. filed Feb. 15, 1968; repealed, filed June 22, 1973; new filed June 5, 1992 eff. June 24, 1992.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.25, 18 NY ADC 351.25

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Continuing Eligibility.

18 NYCRR 351.26

Section 351.26. Good cause

Currentness

(a) An applicant for or recipient of public assistance is exempt from complying with any requirement concerning eligibility for public assistance if the applicant or recipient establishes that good cause exists for failing to comply with the requirement. Except where otherwise specifically set forth in any provision of this Title, good cause for failure to comply with an eligibility requirement exists when:

- (1) the applicant or recipient has a physical or mental condition which prevents compliance;
- (2) the applicant's or recipient's failure to comply is directly attributable to social services district error; or
- (3) other extenuating circumstances, beyond the control of the applicant or recipient, exists which prevent the applicant or recipient from being reasonably expected to comply with an eligibility requirement.

(b) The applicant or recipient is responsible for notifying the social services district of the reasons for failing to comply with an eligibility requirement and for furnishing evidence to support any claim of good cause. The social services district must review the information and evidence provided and make a determination of whether the information and evidence supports a finding of good cause.

Credits

Sec. filed Feb. 15, 1968; amd. filed April 1, 1968; repealed, new filed: April 26, 1968; April 28, 1970; amds. filed: Aug. 10, 1970; Sept. 21, 1970; Jan. 27, 1971; July 23, 1971; Nov. 23, 1971; repealed, filed April 21, 1972; new filed Jan. 5, 1996 eff. Jan. 24, 1996.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.26, 18 NY ADC 351.26



KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 351.27. [Repealed]

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18 NYCRR 351.27

Section 351.27. [Repealed]

[Currentness](#)

Credits

Sec. filed June 20, 1969; repealed, filed June 22, 1973 eff. June 22, 1973.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.27, 18 NY ADC 351.27

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18 NYCRR 351.28

Section 351.28. Home visits

Currentness

(a) A visit to the home of an applicant for or recipient of Aid to Dependent Children (ADC) or Home Relief (HR) may be conducted by an official of the social services district as part of an investigation into eligibility or continuing eligibility for such assistance. The visit may be conducted with advance notice that a visit may take place, or without advance notice in the circumstance described in subdivision (b) of this section. A home visit must ordinarily be conducted only during the normal business hours of the social services district or during daylight hours, unless the circumstances of the applicant or recipient make such time impractical. The social services official conducting such visit must properly identify himself or herself.

(b) A visit to the home of an applicant for or a recipient of ADC or HR by an official of the social services district may be conducted without advance notice to the applicant or recipient when the district has information that is inconsistent with or fails to support pertinent information reported by the applicant or recipient during the eligibility or redetermination of eligibility process, when the applicant or recipient fails to provide information pertinent to the eligibility or redetermination of eligibility process that he or she would reasonably be expected to provide or when it appears that information provided by the applicant or recipient during the eligibility or redetermination of eligibility process is false. Examples of such circumstances include, but are not limited to: where the landlord does not verify the household composition or provides information which is inconsistent with the information in the application; where the household's stated expenses exceed the stated income or the current grant without a reasonable explanation; where there is no information concerning a parent who is alleged to be absent from the home or the information is inconsistent with the information in the application; where the application is inconsistent with prior case information in the district's possession; or where the application contains inconsistent information that would affect eligibility for ADC or HR.

(c) Consent by the applicant or recipient to a visit must not be considered to be permission to search the premises. The official may question the applicant or recipient about people or objects in plain view on the premises.

(d) Failure by the applicant to cooperate during an unscheduled visit or to permit such visit is not a basis for a discontinuance or denial of assistance. An official conducting an unscheduled visit must not indicate or lead the applicant or recipient to believe that failure to cooperate or to permit the visit will be a basis for denying or discontinuing benefits.

Credits

Sec. filed: June 30, 1992 as emergency measure; Sept. 28, 1992 as emergency measure; Nov. 27, 1992 as emergency measure; Nov. 27, 1992; amd. filed May 28, 1996 eff. June 12, 1996.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 351.28, 18 NY ADC 351.28

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 352, Refs & Annos
[Currentness](#)

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.1

Section 352.1. Standard of need for determining eligibility

Currentness

The eligibility for public assistance of all persons who constitute or are members of a family household shall be determined by a social services district by applying the following statewide standard of monthly need which shall consist of:

(a) regular recurring monthly needs, exclusive of shelter, fuel for heating, home energy payments and supplemental home energy payments, in accordance with the following schedule:

SCHEDULE SA-1

STATEWIDE STANDARD OF NEED

EFFECTIVE through June 30, 2009

Number of persons in household

One Two Three Four Five Six Each additional
person

\$112 \$179 \$238 \$307 \$379 \$438 \$60

EFFECTIVE July 1, 2009 through June 30, 2010

Number of persons in household

One Two Three Four Five Six Each additional
person

\$126 \$201 \$268 \$345 \$426 \$492 \$67

EFFECTIVE July 1, 2010 through June 30, 2012

Number of persons in household

One Two Three Four Five Six Each additional

person

\$141 \$225 \$300 \$386 \$477 \$551 \$75

EFFECTIVE July 1, 2012 through September 30, 2012

Number of persons in household

One Two Three Four Five Six Each additional
person

\$150 \$239 \$317 \$409 \$505 \$583 \$80

EFFECTIVE beginning October 1, 2012

Number of persons in household

One Two Three Four Five Six Each additional
person

\$158 \$252 \$336 \$433 \$534 \$617 \$85

(b) plus the amount of money for shelter, fuel for heating, home energy payments and supplemental home energy payments, required monthly for such persons in accordance with provisions of law and department regulations; and

(c) for any of such persons who may because of their case circumstances require any of the following items in accordance with applicable provisions of law and department regulations, the standard of need must include the cost of the required item or items in accordance with such provisions: furniture and furnishings for the establishment of a home, essential repair of heating equipment, cooking stoves and refrigerators, additional cost of meals for persons unable to prepare meals at home, replacement of clothing or furniture which has been lost in a fire, flood or other like catastrophe, cost of services and supplies already received, miscellaneous shelter costs, day care, camp fees and payment of life insurance premiums.

Credits

Sec. repealed, new filed: June 2, 1970; April 30, 1971; amds. filed: June 28, 1974; Nov. 17, 1975; July 3, 1981; Dec. 17, 1985 as emergency measure; Feb. 12, 1986; Dec. 4, 1989; Aug. 8, 1996 eff. Aug. 28, 1996. Amended (c); amd. filed Feb. 17, 2015 eff. March 4, 2015.

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Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.2

Section 352.2. Allowances and grants for persons who constitute or are members of a family household

[Currentness](#)

(a) Each social services district shall utilize the applicable schedules of monthly grants and allowances as found in subdivision (d) of this section to provide for all items of need, exclusive of:

- (1) shelter;
- (2) fuel for heating;
- (3) additional cost of meals for persons who are unable to prepare meals at home;
- (4) purchase of necessary and essential furniture required for the establishment of a home;
- (5) replacement of necessary furniture and clothing for persons in need of public assistance who have suffered the loss of such items as the result of fire, flood, or other like catastrophe;
- (6) essential repair of heating equipment, cooking stoves and refrigerators;
- (7) allowances for occupational training; and
- (8) other items for which specific provision is otherwise made in this Part.

(b) For the purposes of such monthly grants and allowances to households under Family Assistance and non-cash Safety Net Assistance (federally participating), Emergency Assistance to Needy Families with children, and Safety Net Assistance non-federally participating when the household would be eligible for the federal categories except that it has exhausted the 60-month time limit for the receipt of cash assistance, children and adults residing with an SSI beneficiary must be considered a separate household from the SSI beneficiary with whom they live.

(c) Supplemental allowances and grants may not be made other than as authorized under the regulations nor in excess of established schedules except as provided in section 352.3(a)(3) of this Part. In no event, except as provided in Part 397 of this Title, shall a special allowance and grant be required to be made because the cash has been lost, stolen or mismanaged. Any duplicate allowance and grant made for such purpose is not reimbursable by the State unless made as a result of an order made after May 1, 1977 by a court of competent jurisdiction or a payment made after May 1, 1977 pursuant to an order by a court of competent jurisdiction.

(d) The monthly grants and allowances shall be as follows:

SCHEDULE SA-2a STATEWIDE MONTHLY GRANTS AND ALLOWANCES, EXCLUSIVE OF HOME ENERGY PAYMENTS AND SUPPLEMENTAL HOME ENERGY PAYMENTS FOR SNA-VA-FA

EFFECTIVE through June 30, 2009

Number of persons in household

One Two Three Four Five Six Each additional
person

\$112 \$179 \$238 \$307 \$379 \$438 \$60

EFFECTIVE July 1, 2009 through June 30, 2010

Number of persons in household

One Two Three Four Five Six Each additional
person

\$126 \$201 \$268 \$345 \$426 \$492 \$67

EFFECTIVE July 1, 2010 through June 30, 2012

Number of persons in household

One Two Three Four Five Six Each additional
person

\$141 \$225 \$300 \$386 \$477 \$551 \$75

EFFECTIVE July 1, 2012 through September 30, 2012

Number of persons in household

One Two Three Four Five Six Each additional
person

\$150 \$239 \$317 \$409 \$505 \$583 \$80

EFFECTIVE beginning October 1, 2012

Number of persons in household

One Two Three Four Five Six Each additional
person

\$158 \$252 \$336 \$433 \$534 \$617 \$85

SCHEDULE SA-2b STATEWIDE MONTHLY HOME ENERGY PAYMENTS FOR HR-VA-ADC

Number of persons in household

One Two Three Four Five Six Each additional
person

\$14.10 \$22.50 \$30.00 \$38.70 \$47.70 \$55.20 \$7.50

SCHEDULE SA-2c STATEWIDE MONTHLY SUPPLEMENTAL HOME ENERGY PAYMENTS FOR HR-VA-DC

Number of persons in household

One Two Three Four Five Six Each additional
person

\$11 \$17 \$23 \$30 \$37 \$42 \$5

(e) Provision of home energy assistance payments set forth in subdivision (d) of this section shall be effective for grants made on or after July 1, 1981.

(f) Provision of supplemental home energy assistance payments set forth in subdivision (d) of this section shall be effective for grants made on or after January 1, 1986.

Credits

Sec. repealed, new filed Nov. 1, 1963; amd. filed April 20, 1967; repealed, filed June 20, 1969; new filed June 2, 1970; repealed, new filed April 30, 1971; amds. filed: April 4, 1974; June 28, 1974; Aug. 31, 1977; March 30, 1979; March 31, 1980; July 3, 1981; Dec. 3, 1984; Dec. 17, 1985 as emergency measure; Feb. 12, 1986; Dec. 4, 1989; July 19, 1991 as emergency measure; Oct. 7, 1991 as emergency measure; Dec. 6, 1991 as emergency measure; Dec. 6, 1991; July 22, 2003; June 22, 2004; Feb. 11, 2010 eff. March 3, 2010; amd. filed Feb. 17, 2015 eff. March 4, 2015.

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Title 18. Department of Social Services

Chapter II. Regulations of the Department of Social Services

Subchapter B. Public Assistance

Article 1. Determination of Eligibility--General

Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.3

Section 352.3. Rent allowances

Currentness

(a)

(1) Each social services district must provide a monthly allowance for rent in the amount actually paid, for cases with a verified rental obligation. For each social services district, the maximum allowance for each public assistance family size is in accordance with the following schedules:

LOCAL AGENCY MAXIMUM MONTHLY SHELTER ALLOWANCE SCHEDULE WITH CHILDREN
(children defined in sections 369.2[c] and 369.5[c] of this Title)

FAMILY SIZE 1 2 3 4 5 6 7 8+

Albany	214	219	309	348	386	404	421	421
Allegany	190	220	273	308	342	358	373	373
Broome	218	252	290	317	353	368	384	403
Cattaraugus	186	208	269	303	337	352	367	367
Cayuga	201	208	290	326	363	380	396	396
Chautauqua	198	202	285	321	357	374	390	390
Chemung	197	228	283	319	355	371	387	387
Chenango	189	219	264	298	331	346	361	361
Clinton	191	195	275	310	345	360	376	376
Columbia	201	221	290	326	363	379	396	396
Cortland	199	231	281	317	352	368	384	384
Delaware	200	232	274	309	344	359	374	374
Dutchess	286	292	412	464	516	540	563	563
Erie	209	214	301	339	377	395	411	411
Essex	199	231	268	302	336	351	366	368
Franklin	180	191	259	292	325	339	354	354
Fulton	189	193	272	307	341	357	372	372
Genesee	204	234	294	332	369	386	402	402
Greene	197	229	281	317	352	368	384	384
Hamilton	185	189	267	301	335	350	365	365
Herkimer	190	200	275	309	344	359	375	375
Jefferson	200	232	276	311	346	362	377	377
Lewis	193	197	279	314	349	365	381	381
Livingston	213	217	307	346	384	402	419	419

Section 352.3. Rent allowances, 18 NY ADC 352.3

Madison 210 231 304 342 380 397 414 414
Monroe 257 298 343 374 405 420 438 477
Montgomery 196 200 283 319 354 370 386 386
Nassau 308 334 445 501 558 583 608 608
New York City 277 283 400 450 501 524 546 546
Niagara 204 209 294 331 369 385 402 402
Oneida 199 207 287 323 359 375 391 391
Onondaga 210 235 303 341 379 397 413 413
Ontario 213 240 308 347 386 403 421 421
Orange 292 298 421 473 527 551 574 574
Orleans 209 234 302 340 378 395 412 412
Oswego 208 212 300 338 375 393 409 409
Otsego 200 232 280 315 350 366 382 382
Putnam 306 312 441 496 553 578 602 602
Rensselaer 205 210 296 334 371 388 405 405
Rockland 302 350 434 488 543 568 592 592
St. Lawrence 194 211 281 316 351 368 383 383
Saratoga 219 224 316 356 396 414 431 431
Schenectady 216 226 311 351 390 408 425 425
Schoharie 199 231 286 322 358 374 390 390
Schuyler 194 224 275 310 345 360 376 376
Seneca 204 237 288 324 360 376 392 392
Steuben 188 192 271 305 339 354 370 370
Suffolk 310 358 447 503 560 586 611 611
Sullivan 211 244 297 335 372 389 406 406
Tioga 201 233 285 321 357 373 390 390
Tompkins 219 251 317 357 396 414 432 432
Ulster 263 305 350 382 413 427 445 486
Warren 215 250 299 337 375 392 408 408
Washington 205 231 295 332 370 387 403 403
Wayne 209 240 302 340 378 395 412 412
Westchester 295 314 426 479 533 557 581 581
Wyoming 199 231 279 314 349 365 381 381
Yates 198 210 286 322 358 375 391 391

LOCAL AGENCY MONTHLY SHELTER ALLOWANCE SCHEDULE WITHOUT CHILDREN
(children defined in sections 369.2[c] and 369.5[c] of this Title)

FAMILY SIZE 1 2 3 4 5 6 7 8+

Albany 184 213 245 267 289 299 311 341
Allegany 190 220 253 276 299 309 321 352
Broome 218 252 290 316 342 354 368 403
Cattaraugus 179 208 239 261 282 292 304 332
Cayuga 179 208 239 261 282 292 304 332
Chautauqua 167 194 223 243 263 272 283 310
Chemung 197 228 262 286 309 320 333 364
Chenango 189 219 252 275 297 307 320 350
Clinton 156 181 208 227 245 254 264 289
Columbia 191 221 254 277 300 310 323 353
Cortland 199 231 265 289 313 323 337 368
Delaware 200 232 267 291 315 326 339 371
Dutchess 216 251 288 314 340 351 366 400
Erie 169 201 215 234 254 262 273 299
Essex 199 231 265 289 313 323 337 368
Franklin 161 191 212 239 250 259 269 295
Fulton 159 184 212 231 250 259 269 295
Genesee 202 234 269 293 317 328 342 374

Greene 197 229 263 287 310 321 334 366
 Hamilton 159 184 212 231 250 259 271 296
 Herkimer 173 200 230 251 271 281 292 320
 Jefferson 200 232 267 291 315 326 339 371
 Lewis 152 177 203 221 240 248 258 282
 Livingston 187 217 249 271 294 304 316 346
 Madison 199 231 265 289 313 323 337 368
 Monroe 257 298 343 374 405 418 436 477
 Montgomery 158 184 211 230 249 257 268 293
 Nassau 288 334 384 419 453 468 527 561
 New York City 215 250 286 312 337 349 403 421
 Niagara 174 202 232 253 274 283 295 322
 Oneida 179 207 238 259 281 290 302 331
 Onondaga 203 235 270 294 319 329 343 375
 Ontario 207 240 276 301 326 337 351 384
 Orange 229 265 305 332 360 372 387 424
 Orleans 202 234 269 293 317 328 342 374
 Oswego 183 212 244 266 288 298 310 339
 Otsego 200 232 267 291 315 326 339 371
 Putnam 237 275 316 344 373 386 401 439
 Rensselaer 153 179 193 210 228 235 245 268
 Rockland 302 350 402 438 474 490 511 559
 St. Lawrence 182 211 242 264 286 295 307 336
 Saratoga 185 215 247 269 291 301 314 343
 Schenectady 195 226 260 283 307 317 330 361
 Schoharie 199 231 265 289 313 323 337 368
 Schuyler 194 224 258 281 304 315 328 359
 Seneca 204 237 272 296 321 332 345 378
 Steuben 159 184 212 231 250 259 269 295
 Suffolk 309 358 412 449 486 503 523 573
 Sullivan 211 244 281 306 332 343 357 391
 Tioga 201 233 268 292 316 327 340 373
 Tompkins 217 251 289 315 341 353 367 402
 Ulster 263 305 350 382 413 427 445 486
 Warren 215 250 287 313 339 350 364 399
 Washington 199 231 265 289 313 323 337 368
 Wayne 207 240 276 301 326 337 351 384
 Westchester 271 314 361 393 426 440 474 536
 Wyoming 199 231 265 289 313 323 337 368
 Yates 181 210 241 263 284 294 306 335

(2) Recipients in receipt of a court ordered shelter supplement, or a temporary shelter supplement pursuant to section 370.10 of this Title, at the time this paragraph is adopted and, who are otherwise eligible for public assistance will continue to receive that supplement, if higher than the shelter allowance set forth in paragraph (1) of this subdivision, for up to a two year period, provided that there is no break in assistance of more than one calendar month or that the family has not been sanctioned. After a two year period from the date this paragraph is adopted or upon a break in receipt of a court ordered supplement or a supplement under section 370.10 of this Title of more than one calendar month, applicants and recipients who were receiving a court ordered shelter supplement or a temporary shelter supplement pursuant to section 370.10 of this Title, must receive a shelter allowance pursuant to paragraph (1) of this subdivision, if otherwise eligible. The amount of the shelter supplement in excess of the shelter allowance maxima set forth in paragraph (1) of this subdivision is not part of the standard of need.

(3)

(i) A social services district, with the approval of the Office of Temporary and Disability Assistance, may provide additional monthly shelter supplements to public assistance applicants and recipients who will reside in private housing, or who currently reside in private housing and are facing eviction. Social services districts choosing to provide such supplements must submit a plan to the Office of Temporary and Disability Assistance, attention: Center for Employment and Economic Supports, prior to providing any such supplements. Plans submitted to the office must include: justification for providing the supplement(s), the targeted population, the amount of the supplement(s) and any additional information as required by the office. The supplement(s) must be a monthly amount that, when combined with the shelter allowance, does not exceed the rental obligation or home ownership shelter expenses of the applicant or recipient. The amount of the shelter supplement is not part of the standard of need.

(ii) The office may authorize a social services district to provide such supplement or a distinct part of such supplement if it determines that the provision of such supplement would accomplish its stated purpose and is justified considering such factors as length of temporary housing stays, existing litigation and other factors affecting the availability of housing. The office must also consider the impact of granting the supplement on the economic incentives for self-sufficiency and the impact on low-income households which are not in receipt of public assistance. The office may authorize the supplement only if it determines that there are sufficient funds available to provide such reimbursement.

(b) When the recipient is obligated to pay for water as a separate charge to a vendor, an allowance must be made for the additional amount required to be paid. When the recipient is obligated to pay for sewer, water (except when paid as a separate charge) and/or garbage disposal, an allowance must be made therefor to the extent that the total of the rent allowances plus such charge or charges does not exceed the appropriate maximum amount in the schedule in subdivision (a) of this section. For the purpose of this subdivision, the term *separate charge* refers to a billing made directly to a recipient in his or her name which is limited to charges for his or her utility service.

(c) *[Reserved]*

(d) *Public housing.*

(1)

(i) An allowance for rent must be made for recipients who are tenants of city, State or federally aided public housing up to the amount actually paid or the following schedule, whichever is less, except when a modified schedule of allowances is approved by this office for a specific housing authority and the modified schedule provides for larger allowances or when the housing authority calculates the rent based on a percentage of household income:

(a) Effective August 15, 2007, public housing authorities may charge rent up to 50 percent of the shelter maximums found in subdivision (a) of this section.

(b) Effective August 15, 2008, public housing authorities may charge rent up to 75 percent of the shelter maximum found in subdivision (a) of this section.

(c) Effective August 15, 2009, public housing authorities may charge rent up to the shelter maximums found in subdivision (a) of this section.

(ii) Modified schedule approved. When a modified schedule is approved by this office for a specific housing authority, the allowance for rent must be the amount actually paid up to the approved schedule amount. A housing authority may request, and the office may grant an increase not to exceed 10 percent in a 12-month period until the modified schedule for the housing authority reaches the maximum allowances for the district found in subdivision (a) of this section. Effective August 15, 2009, modified schedules approved by this office shall be void.

(iii) Rent calculated based on a percentage of income. For any household for which the amount of rent is determined by a public housing authority as a percentage of either gross or adjusted gross income, the applicable shelter allowance is the amount so calculated up to the maximum allowance for the given household size found in subdivision (a) of this section.

(2)

(i) Subsidized housing other than section 8 housing vouchers. The rent allowance for tenants of housing subsidized under a housing assistance payments program, except as provided in subparagraph (ii) of this paragraph, is the amount of rent actually paid (exclusive of the subsidy) but not more than the amount in the applicable schedule in subdivisions (a) and (b) of this section.

(ii) Section 8 Voucher Program.

(a) The rent for recipients whose rental housing payments are subsidized under the Section 8 Voucher Program (not including a recipient participating in the program of special allowances for owners of manufactured homes) shall be the amount actually paid, but not in excess of the amount (rounded to the nearest whole dollar) equal to 30 percent of the applicable standard of need by family size and district of residence, considering only the SA-2a, SA-2b, SA-2c schedules contained in section 352.2(d) of this Part, and the local agency monthly shelter allowance schedule with children, exclusive of any supplement. For the purpose of this subparagraph, the allowance amounts are those in office regulation and in effect on the filing date of this subparagraph.

(b) Clause (a) of this subparagraph shall not apply to recipients whose section 8 vouchers are provided by public housing authorities or other local section 8 voucher issuing agencies that routinely determined the tenants' share of the rent due and payable for months commencing on or before October 1, 2004 to be the local agency shelter maximums under subdivision (a) of this section.

(c) The office shall develop an administrative process to certify whether clause (a) or (b) of this subparagraph shall apply to each individual public housing authority or other local section 8 voucher issuing agency.

(e) *Rent allowances for hotel/motel facilities.* An allowance for shelter shall be made for recipients temporarily housed in hotel/motel facilities under the following circumstances:

(1) No other suitable housing either public or private is available to house the recipient.

(2) Hotel/motel accommodations without cooking facilities shall be utilized only when accommodations with such facilities are not available. An allowance for the actual cost of the rental of a refrigerator, not to exceed \$10 per week per room, shall be made when a homeless family is temporarily placed in a hotel/motel which does not have cooking facilities and which provides a refrigerator on a rental basis.

(3) The continued need for hotel/motel accommodations shall be reviewed, evaluated and authorized monthly by the social services district.

(f) Reimbursement for shelter costs and restaurant allowances and rental fees for refrigerators as provided for in paragraph (e)(2) of this section is available to social services districts for expenditures made by such districts on behalf of recipients temporarily living in hotels or motels for so long as the recipients are actively seeking permanent housing, but in no event for a period in excess of six months unless the local commissioner of social services determines on an annual basis that housing other than hotels or motels or facilities regulated under Part 900 of this Title is not readily available in the social services district and the commissioner submits such determination to the department on an annual basis. Upon such a determination and submission, the social services district will continue to be reimbursed for shelter costs, restaurant allowances as appropriate and rental fees for refrigerators provided to public assistance recipients beyond such six-month period. A recipient's continued need for hotel/motel accommodations must be reviewed and evaluated monthly. The maximum reimbursable amount for shelter costs after August 1, 1984 is \$16 per day for the first person in each hotel room, and \$11 per day for the remaining occupants in each room. Restaurant allowances, if necessary must be provided in accordance with department regulations.

(g) *Standards.* No family shall be referred to a hotel/motel, nor shall any reimbursement be made for costs incurred from such referral unless all of the requirements set forth below are met:

(1) Primary consideration shall be given to the needs of children. Specific factors considered must include but shall not be limited to educational needs, security, the nature of the facility in which the children would be placed, and factors which will insure the minimum disruption of community ties.

(2) The hotel/motel shall have appropriate contractual or other arrangements for maintenance, repair and sanitation in the hotel/motel. The hotel/motel must have available for review by the local social services district information verifying the above-mentioned arrangements or record of such. Such information would include, for example, contracts with private carters, bills, receipts, or other evidence of performance. Such arrangements shall include but not be limited to agreements for provision of the following services:

(i) removal of garbage;

(ii) maintenance of floor coverings, draperies and furniture;

(iii) repainting of the facility at least once every five years;

- (iv) maintenance and inspection of the electrical system;
 - (v) maintenance of plumbing and plumbing fixtures;
 - (vi) maintenance and inspection of heating, ventilation and air conditioning systems;
 - (vii) a regular vermin control program; and
 - (viii) provision to insure that entrances, exits, steps and walkways are kept clear of garbage, ice, snow and other hazards.
- (3) Rooms shall be cleaned at least every other day by hotel/motel staff.
- (4) Furniture necessary for daily living, including but not limited to tables, bureaus, chairs, beds and cribs shall be in each room.
- (5) No more than two adults shall be placed in the same room.
- (6) When children are placed in the same room as adults, there shall be sufficient beds so children shall not have to share single beds.
- (7) All mattresses and bedding material shall be clean. Each bed shall have at least two clean sheets, adequate clean blankets, clean pillows and pillowcases. A complete change of linens shall be made by hotel/motel staff at least once a week and more often where individual circumstances warrant or when a new family occupies the unit. Each unit shall be supplied with towels, soap and toilet tissues. A clean towel shall be provided daily to each resident.
- (8) Each unit must have operational door and window locks. All windows at and above the second floor must have window guards in place unless windows are sealed and the air conditioning works.
- (9) A heating system shall be permanently installed and operated in accordance with applicable local law. Where local law or code does not govern the provision of heat, the system will provide heat to maintain a temperature of 69°F (20°C) in all occupied parts of the building, including corridors. Where windows do not open, proper ventilation, including but not limited to air conditioning, shall be operational.
- (10) Each family with children must have a private bathroom. At a minimum, this must include a toilet, a sink and a shower or bathtub, all of which must be properly maintained with hot and cold running water. Couples without children may be placed in rooms with common bathroom facilities.

(h) *Inspection.* Local social services districts which make hotel/motel referral must inspect at least once every six months the hotels/motels in which families are placed. In addition to verifying that the hotel/motel meets the requirements set forth in subdivision (g) of this section, the local district shall make appropriate inquiries to determine whether the hotel/motel is in compliance with all applicable State and local laws, regulations, codes and ordinances. Any violation found during the on-site inspection shall be reported to appropriate authorities. Further, each inspection shall at least review arrangements for hygiene, vermin control, security, furnishings, cleanliness and maintenance and shall include a review of any applicable documents pertaining to compliance with any local laws or codes. A written report shall be made of each such inspection and shall be maintained at the office of the local district together with such other information as the district may maintain concerning the families placed in the hotel/motel. A copy of any such inspection report shall be provided to the Office of Temporary and Disability Assistance within 30 days of its completion.

(i)

(1) To the extent that units of housing are available and subject to department approval based upon the housing conditions in the region, and to the extent of State appropriations made expressly therefor, social services districts may provide an allowance to secure housing to any homeless family:

(i) residing in a municipality having a rental vacancy rate for low-income housing less than three percent;

(ii) for whom no housing can be located at a rent within the shelter maximum under this section; and

(iii) in which at least one member of the family has resided in a hotel or motel and/or a shelter (including, but not limited to, facilities operated under Part 900 of this Title) at public expense for a period exceeding 12 weeks. Social services districts may consider decreasing this length of stay requirement if a long-term temporary placement in a hotel or motel or shelter would be detrimental to the health and welfare of families, including families with immediate medical needs.

(2) In determining priority for placement in housing units for which an allowance is paid under this subdivision, the district must consider factors affecting need such as:

(i) the length of stay in a hotel or motel and/or a shelter (including but not limited to, facilities operated under Part 900 of this Title) at public expense;

(ii) the size of the family; and

(iii) the location of schools in relation to the temporary housing where the family is residing.

(3) Social services districts must submit to the department for approval annual plans for the operation of programs to make allowances available under this subdivision. Plans must be submitted within 45 days after funds have been authorized in the State budget for allowances for this program. Plans must:

- (i) indicate the number of units of housing for which the allowance will be made available pursuant to this subdivision, identifying the number that would be privately owned units and the number that would be publicly owned units, and the amount of funds being requested;
 - (ii) describe the housing to be utilized;
 - (iii) indicate the number of months that the allowance will be available (not to exceed eight months in the case of privately owned units or four months in the case of publicly owned units);
 - (iv) set forth the procedures for assuring local housing code compliance;
 - (v) set forth the procedures to identify those families likely to be long-term residents of hotels and motels and/or shelters (including, but not limited to, facilities operated under Part 900 of this Title);
 - (vi) indicate the criteria to be used in determining priorities for placement;
 - (vii) indicate the services available in the social services district to assist persons to remain in housing after placement under this program;
 - (viii) indicate the number of homeless families in the social services district that requested emergency housing each month during the most recent 12-month period and the number of families that resided in hotels and motels and/or shelters during the most recent 12-month period; and
 - (ix) indicate the number of months that the social services district will require participating landlords to make specified apartments available to selected families.
- (4) The allowance consists of a rent supplement in an amount to be determined by the social services district, with the prior approval of the department, but cannot exceed the difference between the maximum shelter allowance and the hotel/motel rate for the family. Social services districts must submit claims for State reimbursement for such allowances on forms and in the manner prescribed by the department.
- (5) No allowance will be paid under this subdivision for housing developed for the homeless financed partially or wholly with public funds.
- (6) No allowance under this subdivision will be paid unless the social services district documents that such allowance will not be used to replace funds previously used, or designated for use, to secure housing for homeless families.
- (7) No allowance provided under this subdivision will be paid for housing which does not comply with or which is not brought into substantial compliance with the local housing code or which has been occupied by a family receiving AFDC or home relief within one year prior to the payment of an allowance hereunder; provided, however, that such allowance

may be held in escrow by the district pending correction of existing code violations. Moreover, no allowance will be paid unless the participating landlord agrees to make a specified apartment available to the selected family for a period of up to 32 months as approved by the department, except as provided herein. The landlord must agree that, in the event that a selected family does not remain for any reason in the specified apartment for the period for which it is to be available, the landlord will return a pro rata portion of the allowance reflecting the balance of the period. In such event, the district may provide an allowance with respect to a subsequently selected family for the balance of the period, provided further that such family meets the eligibility criteria set forth in this subdivision.

(8) Allowances provided under this subdivision must be paid for a maximum period specified by the district and approved by the department.

(9) Social services districts providing allowances under this subdivision must submit information on a monthly basis in a manner prescribed by the department, including but not limited to:

(i) the number of units rented that were privately owned and the number of units rented that were publicly owned and the addresses of such units;

(ii) the individual allowances issued; and

(iii) the number of families leaving apartments funded with allowances under this subdivision.

(j) If rent has not been paid for the month in which the case is accepted, a non-prorated shelter allowance, not to exceed the appropriate local agency maximum monthly shelter allowance, must be provided to retain the living accommodation.

(k) *Emergency shelter allowances.*

(1) An emergency shelter allowance must be provided, upon request, to a household composed of an applicant for or recipient of public assistance, who has been medically diagnosed as having AIDS or HIV-related illness as defined from time-to-time by the AIDS Institute of the State Department of Health, and any household members residing with such person. Such household must be homeless or faced with homelessness and have no viable and less costly alternative housing available. The social and medical needs of the household members must be considered in making a determination concerning availability of alternative housing.

(i) An applicant for or recipient of public assistance medically diagnosed as having AIDS or HIV-related illness is considered to be the “first person” in the household, and qualifies the household for an emergency shelter allowance. The first person may or may not be in receipt of Supplemental Security Income (SSI).

(ii) The income and needs of the first person medically diagnosed as having AIDS or HIV-related illness and any additional household member that is not in receipt of SSI are used in calculating an emergency shelter allowance, as described in paragraph (3) of this subdivision.

- (iii) The SSI income and needs of any household member not considered the first person medically diagnosed as having AIDS or HIV-related illness are not used in calculating an emergency shelter allowance.
- (2) An emergency shelter allowance must not exceed \$480 for the first person in the household and \$330 for each additional household member, and in no event be greater than the household's actual monthly rent due. Except for cases specified in paragraph (3) of this subdivision, the emergency shelter allowance is considered to be the household's public assistance shelter allowance for public assistance budgeting purposes.
- (3) When a household comprising both public assistance and SSI eligible persons requests an emergency shelter allowance, the social services district must compute the amount of the allowance as follows:
- (i) determine the public assistance grant of the public assistance eligible persons using the appropriate rent schedule amount in subdivision (a) of this section;
 - (ii) calculate the net amount of actual household shelter costs by subtracting the appropriate rent schedule amount, as determined by referring to subdivision (a) of this section, from the total actual household shelter costs;
 - (iii) calculate the maximum amount of emergency shelter allowance available to the household by subtracting the appropriate rent schedule amount, as determined by referring to subdivision (a) of this section, from the maximum allowance authorized by paragraph (2) of this subdivision for the total number of persons in the household; and
 - (iv) subtract the SSI and other income of the SSI eligible person only when such person is included as the first person in the household, from the sum of the amount calculated in accordance with the provisions of subparagraph (ii) or (iii) of this paragraph, whichever is less, and the incremental non-shelter public assistance standard of need of the SSI eligible persons. The resulting amount, if greater than zero, is the household's emergency shelter allowance. This allowance is added to the public assistance grant determined in accordance with subparagraph (i) of this paragraph.
- (4) When necessary, social services districts must:
- (i) address the social services needs of a person in receipt of an emergency shelter allowance through the direct provision of services or through the provision of appropriate information and referral services; efforts should be made to ensure that an applicant for or a recipient of such an allowance has established appropriate social and medical support networks;
 - (ii) assist an applicant for or a recipient of an emergency shelter allowance to secure the required documentation so that eligibility for such allowance can be determined; and
 - (iii) arrange for required face-to-face interviews to be conducted during home visits or at other appropriate sites.

In accordance with department regulations, designated representatives may file and sign application and recertification documents on behalf of an applicant for or a recipient of an emergency shelter allowance.

(l) *Shelter allowances in excess of the standards.* A shelter supplement plan under paragraph (a) (3) of this section may include provisions for treatment of SSI family members that differ from the requirements of section 352.2(b) of this Part, but only with respect to the shelter supplement and only if approved by the office.

(m) *Inspection of Shelter Placements.* Social services districts that make referrals for temporary emergency shelter for eligible homeless households to temporary housing units, which will be paid for by public funds, that are not otherwise governed by [section 460 of the Social Services Law](#), Parts 900 and 491 of this Title, or subdivision (h) of this section, shall submit for approval by the Office of Temporary and Disability Assistance health and safety standards for those units which comport with all applicable State and local laws, regulations, codes and ordinances. Additionally, social services districts shall be responsible for the inspection of such temporary housing units at least once every 12 months to confirm that such standards are satisfied. A written report shall be made of each such inspection and shall be maintained at the office of the social services district together with such other information as the social services district may maintain concerning the households placed in the temporary housing unit. A copy of any such inspection report shall be provided to the Office of Temporary and Disability Assistance within 30 days of its completion.

Credits

Sec. amds. filed: Nov. 1, 1963; April 20, 1967; repealed, filed June 20, 1969; new filed June 2, 1970; amds. filed: Oct. 13, 1970; April 16, 1971; Jan. 5, 1972; Jan. 15 and 29, 1973; March 1, 1974; April 4, 1974; June 28, 1974; Dec. 30, 1974; March 18, 1975; April 3, 1975; Sept. 2, 1975; Aug. 31, 1976; June 13, 1977; Sept. 2, 1977; Sept. 1, 1978; Aug. 28, 1979; Feb. 25, 1980; March 31, 1980; April 29, 1982; Jan. 5, 1983; Oct. 6, 1983; Nov. 22, 1983; Dec. 2 and 8, 1983; July 18, 1984; Dec. 3 and 6, 1984; June 5, 1985; Aug. 30, 1985; Oct. 24, 1986; Dec. 8, 1987; March 31, 1988 as emergency measure; May 27, 1988 as emergency measure; July 26, 1988 as emergency measure; Sept. 23, 1988 as emergency measure; Sept. 23, 1988; Jan. 19, 1989; May 15, 1989 as emergency measure; June 16, 1989; Aug. 10, 1989 as emergency measure; Oct. 10, 1989 as emergency measure; Oct. 10, 1989; May 4, 1990 as emergency measure; May 4, 1990; May 21, 1991; July 24, 1991 as emergency measure; Sept. 10, 1991; Sept. 26, 1991 as emergency measure; Oct. 9, 1991; Oct. 23, 1991; Dec. 14, 1992; April 6, 1993; April 20, 1993; June 11, 1993; July 21, 1993 as emergency measure; Oct. 18, 1993 as emergency measure; Oct. 18, 1993; March 9, 1994; Aug. 26, 1994; Aug. 22, 1997; July 22, 2003; June 22, 2004; Nov. 30, 2004 as emergency measure; Feb. 28, 2005 as emergency measure, expired 90 days after filing; March 4, 2005; May 31, 2005 as emergency measure; Aug. 1, 2005; Dec. 30, 2008; Feb. 11, 2010 eff. March 3, 2010; amd. filed Aug. 11, 2015 eff. Aug. 26, 2015; amd. filed May 27, 2016 eff. June 15, 2016; amd. filed June 2, 2016 eff. June 22, 2016.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.3, 18 NY ADC 352.3

Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.4

Section 352.4. Shelter costs for applicant/recipient-owned property

Currentness

(a) *Purchase of interest in low cost housing development.*

(1) A social services official may approve a grant, not to exceed \$2,500 toward the purchase of an interest in a cooperative unit in a low cost housing development.

(2) The social services official must require assignment of applicant's/recipient's equity in such cooperative housing.

(b) *Carrying charges.* On applicant/recipient-owned property used as a home, carrying charges must be met in the amount actually paid by the applicant/recipient, but not in excess of the appropriate maximum of the rent schedule, for the items of taxes; interest on mortgage; fire insurance; and garbage disposal, sewer and water assessments.

(c) *Amortization.* The amounts required to amortize a mortgage on the applicant's/recipient's property must be included in the carrying charges when property is income-producing and the resulting carrying charges do not exceed the property income by an amount in excess of the maximum of the established rent schedule or when property is not income-producing but it is essential to retain the home of the applicant/recipient and the resulting carrying charges do not exceed the appropriate maximum of the established rent schedule.

(d) *Property repairs.* The cost of property repairs must be met when:

(1) the property is income-producing and the repairs are essential to retain that status; or

(2) the repairs are essential to the health or safety of the applicant/recipient.

(e) *[Reserved]*

Credits

Sec. amd. filed Aug. 12, 1964; repealed, new filed Dec. 23, 1965; amds. filed: April 20, 1967; July 20, 1967; Sept. 29, 1967; Aug. 23, 1968; repealed, new filed June 20, 1969; amds. filed: Sept. 3, 1969; Jan. 20, 1970; April 3, 1970; repealed, new filed

June 2, 1970; amds. filed: Aug. 2, 1971; April 26, 1982; July 18, 1984; May 12, 1988; Oct. 9, 1991; Dec. 19, 1996; May 31, 2005 eff. May 31, 2005. Amended (d)(2)(i), (ii); amd. filed Feb. 15, 2023 eff. March 8, 2023 (Register dated March 8, 2023).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.4, 18 NY ADC 352.4

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Compilation of Codes, Rules and Regulations of the State of New York
 Title 18. Department of Social Services
 Chapter II. Regulations of the Department of Social Services
 Subchapter B. Public Assistance
 Article 1. Determination of Eligibility--General
 Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.5

Section 352.5. Energy assistance

Currentness

(a) *Tenant and customer of record requirements.* Prior to granting energy assistance under subdivisions (b) through (g) of this section, it must be documented that the applicant/recipient/grantee is the tenant and customer of record. A *tenant of record* is a person who has primary responsibility for payment of the monthly rent or mortgage for the dwelling unit. Individuals who contribute a portion of the monthly rent/mortgage to a person responsible for payment of the monthly rent/mortgage for the dwelling unit will not be considered a tenant of record. A *customer of record* is a person who has an account in his or her name with a home energy vendor. An individual who is not the tenant and customer of record is considered to meet the tenant and customer of record requirement(s) when such individual is the spouse of the tenant and customer of record who is living in the same household or who is the surviving spouse of a deceased spouse who was the tenant and customer of record. The term *home energy vendor* means an individual or entity engaged in the business of selling electricity, natural gas, oil, propane, kerosene, coal, wood, or any other fuel used for residential heating and/or domestic (lights, cooking, hot water) energy.

(b) *Fuel for heating allowances.* Each social services district must grant an allowance for fuel for heating to a public assistance applicant/recipient or self-maintaining grantee in receipt of public assistance for a dependent child or children when it is documented that the applicant/recipient/grantee is the tenant of record, as defined in subdivision (a) of this section, with primary responsibility for payment of the residential heating costs. A fuel for heating allowance must also be granted to a public assistance applicant/recipient/grantee whose utility heating bill may include costs for service for the applicant/recipient/grantee's own residential unit and for space outside that unit or whose non-utility heating bill includes costs for the applicant/recipient/grantee's own residential unit and for other residential units when it is documented that the applicant/recipient/grantee is the tenant and customer of record as defined in subdivision (a) of this section. When a fuel for heating allowance is granted to an applicant/recipient/grantee who is the customer of record for a utility bill which may include costs for service for the applicant/recipient/grantee's own residential unit and for space outside that unit, the social services district must determine whether a referral for a shared meter investigation, in accordance with the provisions of [section 52 of the Public Service Law](#), is appropriate. To have primary responsibility for the payment of residential heating costs, the applicant/recipient/grantee must be the customer of record, as defined in subdivision (a) of this section, for the residential heating bill with a home energy vendor. Fuel for heating allowances must be provided on a 12-month heating season (October 1st - September 30th) in accordance with the following schedules and must be based upon the applicant/recipient/grantee's primary residential heating source:

SCHEDULE SA-6a MONTHLY ALLOWANCES FOR FUEL FOR HEATINGBEGINNING OCTOBER 1, 1987: Oil, Kerosene, Propane

Counties of: Nassau, New York City, Suffolk, Westchester

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$70 70 70 73 77 82 88 93

Counties of: Chautauqua, Dutchess, Orange, Putnam, Rockland, Ulster

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$68 68 68 71 74 80 85 91

Counties of: Columbia, Erie, Genesee, Livingston, Monroe, Niagara, Onondaga,
Ontario, Orleans, Oswego, Wayne

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$69 69 69 72 75 81 87 92

Counties of: Albany, Cayuga, Chemung, Greene, Schenectady, Schuyler, Seneca,
Tompkins, Yates

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$69 69 69 72 75 81 87 92

Counties of: Allegany, Broome, Cattaraugus, Chenango, Cortland, Delaware, Ful-
ton, Jefferson, Madison, Montgomery, Otsego, Rensselaer, Saratoga,
Schoharie, Steuben, Sullivan, Tioga, Warren, Washington, Wyoming

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$72 72 72 75 78 84 90 96

Counties of: Clinton, Lewis, Oneida, St. Lawrence

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$71 71 71 74 78 83 89 95

Counties of: Essex, Franklin, Hamilton, Herkimer

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$77 77 77 80 84 90 96 102

SCHEDULE SA-6b MONTHLY ALLOWANCES FOR FUEL FOR HEATING

BEGINNING OCTOBER 1, 1987: Natural Gas, Coal, Wood,
Municipal Electric Utilities not Regulated by the Public Service Commission,
Any Other Fuel not Covered by SA-6a and SA-6c

Counties of: Nassau, New York City, Suffolk, Westchester

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$56 56 56 58 61 65 69 74

Counties of: Chautauqua, Dutchess, Orange, Putnam, Rockland, Ulster

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$55 55 55 57 60 64 68 73

Counties of: Columbia, Erie, Genesee, Livingston, Monroe, Niagara, Onondaga,
Ontario, Orleans, Oswego, Wayne

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$54 54 54 56 58 63 67 71

Counties of: Albany, Cayuga, Chemung, Greene, Schenectady, Schuyler, Seneca,

Tompkins, Yates

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$58 58 58 60 63 68 72 77

Counties of: Allegany, Broome, Cattaraugus, Chenango, Cortland, Delaware, Ful-
ton, Jefferson, Madison, Montgomery, Otsego, Rensselaer, Saratoga,
Schoharie, Steuben, Sullivan, Tioga, Warren, Washington, Wyoming

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$58 58 58 60 63 67 72 77

Counties of: Clinton, Lewis, Oneida, St. Lawrence

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$55 55 55 57 60 64 69 73

Counties of: Essex, Franklin, Hamilton, Herkimer

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$66 66 66 68 71 77 82 87

SCHEDULE SA-6c MONTHLY ALLOWANCES FOR FUEL FOR HEATING
BEGINNING OCTOBER 1, 1987: Public Service Commission-Regulated
Electric Utilities, Village of Greenport Electric

Counties of: Nassau, New York City, Suffolk, Westchester

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$90 90 90 94 99 106 113 120

Counties of: Chautauqua, Dutchess, Orange, Putnam, Rockland, Ulster

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$105 105 105 109 114 123 131 139

Counties of: Columbia, Erie, Genesee, Livingston, Monroe, Niagara, Onondaga,
Ontario, Orleans, Oswego, Wayne

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$107 107 107 111 117 125 134 142

Counties of: Albany, Cayuga, Chemung, Greene, Schenectady, Schuyler, Seneca,
Tompkins, Yates

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$120 120 120 125 131 140 150 160

Counties of: Allegany, Broome, Cattaraugus, Chenango, Cortland, Delaware, Ful-
ton, Jefferson, Madison, Montgomery, Otsego, Rensselaer, Saratoga,
Schoharie, Steuben, Sullivan, Tioga, Warren, Washington, Wyoming

Number of 1 2 3 4 5 6 7 8+
persons

12 month \$122 122 122 127 133 142 152 162

Counties of: Clinton, Lewis, Oneida, St. Lawrence

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$122 122 122 127 133 143 153 163

Counties of: Essex, Franklin, Hamilton, Herkimer

Number of 1 2 3 4 5 6 7 8+

persons

12 month \$140 140 140 146 153 164 175 186

(c) *Payment essential to obtain nonutility heating fuel for an applicant for aid to dependent children, home relief, veteran assistance or emergency public assistance.* The district must authorize a nonrecoupable payment to an applicant for aid to dependent children, home relief, veteran assistance or emergency public assistance for nonutility (other than natural gas or electricity) heating fuel, including an applicant whose nonutility heating bill includes costs for the applicant's own residential unit and for other residential units, provided such payment is necessary to obtain nonutility heating fuel essential for the applicant's residential heating purposes. Such payment may only be made when it is documented that the applicant is the tenant of record and the customer of record, as defined in subdivision (a) of this section, and alternative payment or housing accommodations cannot be arranged and the applicant is without liquid resources to pay for such nonutility heating fuel. Such payment must not exceed the cost of nonutility heating fuel required to meet the applicant's immediate need. However, once an initial payment has been authorized for an applicant whose nonutility heating bill includes costs for the applicant's own residential unit and for other residential units, subsequent emergency payments to obtain nonutility heating fuel for that applicant may only be authorized for deliveries made on an alternate basis with the other unit(s) sharing the fuel source. Prior to issuing payment for each subsequent delivery, it must be documented that heating fuel in amounts reasonably comparable to the most recent delivery paid for by the social services district has been provided by or on behalf of the other unit(s) sharing the fuel source. When the alternate delivery requirement has not been met or cannot be documented, the social services district must address the applicant's heating emergency with alternative methods. These methods include, but are not limited

to, the following: referrals to services and/or other agencies; exploration of alternative housing; exploration of other funding sources (including HEAP); or the lending of safe supplemental heating devices. Documentation of need for the social services district payment must be fully recorded in the applicant's case file.

(d) *Payment essential to obtain nonutility heating fuel.* This subdivision applies to recipients of aid to dependent children, home relief, veteran assistance, or self-maintaining grantees in receipt of aid to dependent children or home relief on behalf of dependent children and in receipt of fuel for heating allowances as outlined in subdivision (b) of this section. An advance allowance subject to recoupment, in accordance with section 352.11 of this Part, must be authorized for such recipient or grantee when it is documented that the recipient/grantee is the tenant and customer of record for the residential heating bill, as defined in subdivision (a) of this section, and when the recipient/grantee has made a request in writing for such an allowance and also has requested in writing that the monthly grant be reduced to recover the advance allowance. This provision is applicable in those cases where the recipient/grantee's nonutility heating bill includes costs for the recipient/grantee's own residential unit and for other residential units. Once an initial payment has been authorized for a recipient/grantee whose nonutility heating bill includes costs for the recipient/grantee's own residential unit and for other residential units, subsequent payments to obtain nonutility heating fuel for that recipient/grantee may only be authorized for deliveries made on an alternate basis with the other unit(s) sharing the fuel source. Prior to issuing payment for each subsequent delivery, it must be documented that heating fuel in amounts reasonably comparable to the most recent delivery paid for by the social services district has been provided by or on behalf of the other unit(s) sharing the fuel source. When the alternate delivery requirement has not been met or cannot be documented, the social services district must address the recipient/grantee's heating emergency with alternative methods. These methods include, but are not limited to, the following: referrals to services

and/or other agencies; exploration of alternative housing; exploration of other funding sources (including HEAP); or lending of safe supplemental heating devices.

(e) Payment essential to continue or restore utility service for an applicant for family assistance, safety net assistance, veteran assistance or emergency public assistance. A payment must be made for utilities previously provided to an applicant for family assistance, safety net assistance, veteran assistance or emergency public assistance if such payment is essential to continue or restore utility service. Payment essential to continue or restore utility service may be provided to an applicant whose utility bill includes costs for service for the applicant's own residential unit and for space outside that unit. Payment may only be made when it is documented that the applicant is the tenant of record and the customer of record, as defined in subdivision (a) of this section, and alternative payment or housing accommodations cannot be made and the applicant is without liquid resources to continue or restore utility service. Payment must not exceed the cost of utilities provided to the applicant during the four most recently completed monthly billing periods or two most recently completed bi-monthly billing periods for which a bill has been issued immediately preceding the date of application for such assistance. Payment is limited to the applicant's proportionate share of the cost of service for the most recently completed four monthly or two most recently completed bi-monthly billing periods for which a bill has been issued immediately preceding the date of application for such assistance when the applicant's utility bill includes costs for service for the applicant's own residential unit and for space outside that unit. Payment must not exceed the balance due on the account. In a shared meter situation subject to the provisions of [section 52 of the Public Service Law](#), the proportionate share is to be determined by the utility company's apportionment of retroactive charges upon completion of a shared meter investigation and determination. As a condition of receiving

such assistance, an applicant not in receipt of recurring public assistance or supplemental security income whose gross monthly household income on the date of application exceeds the public assistance standard of need for the same size household must sign an agreement to repay the assistance within two years of the date of the payment. A household consists of all persons who occupy a housing unit. A house, an apartment or other group of rooms, or a single room is regarded as a housing unit when it is occupied or intended for occupancy as separate living quarters. A household includes related family members and all unrelated persons, if any, such as lodgers, foster children, wards, or employees who share the housing unit. A person living alone, or a group of unrelated persons sharing a housing unit as partners, also constitutes a household. The public assistance standard of need is determined by applying the following statewide standards of need in accordance with office regulations: the pre-add allowance as set forth in Schedule SA-2a of section 352.3 of this Part; the shelter allowance as paid, but not to exceed the maximum allowance set forth in section 352.3 of this Part; the fuel allowance set forth in Schedule SA-6a, SA-6b or SA-6c of section 352.5 of this Part, if the applicant is the tenant of record and customer of record for the residential heating bill; the home energy and supplemental home energy payments (HEA and SHEA) as set forth in schedule SA-2b or SA-2c of section 352.1 of this Part; and, if applicable, the additional cost of meals for persons unable to prepare meals at home as set forth in schedule SA-5 of section 352.7 of this Part. The repayment agreement must set forth a schedule of payments that will assure repayment within two years of the date of payment. Subsequent assistance to continue or restore utility service must not be provided unless any prior utility arrearage payments have been repaid or are being repaid in accordance with the schedule

of payments contained in each prior repayment agreement as of the date of application such subsequent assistance, or unless the enforcement of such prior repayment agreement(s) is suspended by the local social services district during a period of cold weather, defined, for these purposes, as the time period from November 1st of each year and ending April 15th of the following year. Repayment agreements under this subdivision may be enforced in any manner available to a creditor, in addition to any other remedy the district may have pursuant to the Social Services Law.

(f) Payment essential to continue or restore utility service for a recipient of aid to dependent children, home relief, veteran assistance, or self-maintaining grantee in receipt of public assistance for dependent children and in receipt of a home energy allowance and supplemental home energy allowance (HEA and SHEA) and/or a fuel for heating allowance, as defined in subdivision (b) of this section. For purposes of this subdivision, the term *recipient* is defined as: a recipient of aid to dependent children, home relief, veteran assistance, or a self-maintaining grantee in receipt of public assistance on behalf of dependent children and in receipt of a HEA and SHEA and/or a fuel for heating allowance, as defined in subdivision (b) of this section.

(1) A payment must be made for utilities previously provided to a recipient of aid to dependent children, home relief, veteran assistance or grantee in receipt of public assistance for dependent children and in receipt of a HEA and SHEA and/or a fuel for heating allowance, as defined in subdivision (b) of this section if such payment is essential to continue or restore utility service. Payment essential to continue or restore utility service may be provided to a recipient whose utility bill includes costs for service for the recipient's own residential unit and for space outside that unit. Payment may only be granted when it is documented that the recipient/grantee is the tenant and customer of record, as defined in subdivision (a) of this section and when alternative payment or housing accommodations cannot be made and the recipient is without liquid resources to continue or restore utility service. Payment must not exceed the cost of utilities provided to the recipient for the four most recently completed monthly billing periods or two most recently completed bi-monthly billing periods in which service was rendered within the 10 monthly or five bi-monthly most recently completed billing periods immediately preceding the date of request for such assistance. When the recipient's utility bill includes costs for service for the recipient's own residential unit and for space outside that unit, payment is limited to the recipient's proportionate share of the cost of service for the time frames outlined above. In a shared meter situation subject to the provisions of [section 52 of the Public Service Law](#), the proportionate share is to be determined by the utility company's apportionment of retroactive charges upon completion of a shared meter investigation and determination. Payment must not exceed the balance due on the account and must be provided in accordance with the provisions of paragraphs (2), (3), (4), (5), (6) and (7) of this subdivision.

(2) Payment must be provided as a nonrecoupable grant when it is documented that during the period specified in paragraph (1) of this subdivision the recipient has fully applied the public assistance grant to purposes intended to be included in such grant. Such documentation for recipients must include proof of payment of: an amount at least equal to the combined Home Energy Allowance and Supplemental Home Energy Allowance (HEA and SHEA) budgeted in the public assistance grant to domestic (lights, cooking, hot water) energy costs; the monthly fuel for heating allowance budgeted in the public assistance grant to incurred heating costs; and the monthly shelter allowance budgeted in the public assistance grant to shelter costs. In addition, there must be no other evidence of mismanagement.

(3) If such recipient is not eligible for a nonrecoupable grant pursuant to paragraph (2) of this subdivision, or for other available nonrecoupable grants including Home Energy Assistance Program benefits, payment must be provided as an advance allowance subject to recoupment in accordance with section 352.11 of this Part.

(4) Whenever a social services district makes an arrearage payment to continue or restore the utility service of a public assistance recipient, the district must also, prospectively for a period of six months or until the case is closed, whichever occurs first, act as a guarantor of the recipient's future utility bills or place the recipient on voucher payment. When the recipient is the customer of record for a utility bill which includes costs for service for the recipient's own residential unit and for space outside that unit, only the recipient's proportionate share of the bill is the prospective responsibility of the social services district.

(5) If the agency uses a voucher payment to meet the prospective responsibility for an ADC recipient the agency must be able to document recipient mismanagement. For the purposes of this subdivision, mismanagement is determined in accordance with the provisions outlined in paragraph (2) of this subdivision. In such cases, amounts not to exceed the following are restricted from the recipient's grant:

(i) if the recipient's utility bill represents "heat only," the recipient's monthly fuel for heating allowance is removed from the recipient's monthly grant. Heating costs paid by the district which exceed the amount removed from the recipient's grant are considered to be overpayments subject to recoupment in accordance with section 352.31(d) of this Part;

(ii) if the recipient's utility bill represents domestic costs only (lights, cooking, hot water), the recipient's Home Energy Allowance and Supplemental Home Energy Allowance (HEA and SHEA) or the average monthly cost of the recipient's domestic utility service, whichever is less, is removed from the recipient's grant. Domestic energy costs paid by the district which exceed the amount removed from the grant must be considered to be overpayments subject to recoupment in accordance with section 352.31(d) of this Part;

(iii) if the recipient's utility bill represents heat and domestic costs, a combination of the amounts outlined in subparagraphs (i) and (ii) of this paragraph is removed from the grant. If the recipient's combined heat and domestic costs exceed the amounts removed from the recipient's grant, the balance must be considered an overpayment subject to recoupment in accordance with section 352.31(d) of this Part.

(6) If the agency uses a vendor payment to meet the prospective responsibility for an HR recipient, the agency may do so in accordance with section 381.3(c)(2) of this Title.

(7) When a recipient has been placed on vendor payment, whereby the social services district pays the energy vendor directly, as a result of mismanagement by the recipient or for administrative ease, the district must at least annually, at case closing, and upon termination of the vendor payment arrangement, determine if there has been an under/overpayment. Identified underpayments/overpayments are to be reconciled in accordance with section 352.31(d), (e), and/or (f) of this Part.

(g)

(1) For recipients with heating costs in excess of their annual allowance provided pursuant to the schedules set forth in this section, the district should explore the possibility of alternative housing (renters only) and/or weatherization/conservation services.

(2) Recipients who retain responsibility for the payment of their own heating bills should be made aware of and encouraged to use budget billing programs offered by their heating vendors.

(3) When the heating and/or domestic energy bill of a public assistance recipient/grantee has been placed on vendor payment as a result of a mismanagement determination, voluntary request, or administrative ease provision, the district must determine if there has been an under/overpayment. This reconciliation must be conducted at least annually, at case closing, and upon termination of the vendor payment arrangement. Identified under/overpayments are to be reconciled in accordance with section 352.31(d), (e), and/or (f) of this Part.

(h) The social services official must designate a staff member to function as a liaison to energy vendors, other agencies, and to individuals seeking energy-related information and/or assistance.

(i) The social services official must ensure that 24-hour/seven-day-a-week referral capability exists for receipt of referrals from energy vendors, outside agencies, and individuals with energy-related emergencies. The official may either designate social services district staff to be available on a 24-hour, seven days a week basis or may choose to designate an agency/organization

in the community which agrees to accept calls after normal business hours and on weekends and to assist a referred household in the temporary alleviation of a life-threatening energy emergency until the household can make application for financial assistance on the next normal business day.

Credits

Sec. amd. filed May 1, 1963; repealed, new filed Aug. 12, 1964; amds. filed: Sept. 22, 1964; April 23, 1965; June 22 and 28, 1965; repealed, new filed Dec. 23, 1965; amds. filed: April 20, 1967; June 28, 1968; July 15, 1968; Aug. 23, 1968; repealed, new filed: June 20, 1969; June 2, 1970; amds. filed: Jan. 30, 1974; Oct. 31, 1974; July 25, 1975; Oct. 1, 1975; Sept. 2, 1977; Sept. 28, 1979; March 31, 1980; repealed, new filed March 27, 1986; amds. filed: Oct. 22, 1987 as emergency measure; Dec. 9, 1987 as emergency measure; Feb. 18, 1988 as emergency measure; Feb. 18, 1988; June 5, 1992 as emergency measure; Sept. 2, 1992 as emergency measure; Oct. 30, 1992 as emergency measure; Dec. 29, 1992 as emergency measure; Feb. 9, 1993; July 21, 1994; Jan. 8, 1996 as emergency measure; April 5, 1996 as emergency measure; May 28, 1996 as emergency measure; July 26, 1996 as emergency measure; July 26, 1996; May 20, 1998; Nov. 30, 2004 as emergency measure; May 31, 2005 as emergency measure; Aug. 1, 2005 eff. Aug. 17, 2005; Nov. 5, 2008 as emergency measure; Feb. 2, 2009 as emergency measure; April 2, 2009 as emergency measure; June 25, 2009; Oct. 19, 2010 eff. Nov. 3, 2010. Amended (e).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.5, 18 NY ADC 352.5

End of Document

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.6

Section 352.6. Miscellaneous shelter allowances and grants

Currentness

(a)

(1) A social services official shall provide funds for household moving expenses utilizing the least costly practical method of transportation, a rent security deposit, and/or a brokers' or finders' fee only when, in his judgment, one of the following conditions exists:

(i) the move is to a less expensive rental property and the amount paid for a security deposit and moving expenses is less than the amount of a two-year difference in rentals; or

(ii) the move is necessitated by one of the following criteria:

(a) the need to move results from a disaster/catastrophe and/or a vacate order placed against the premises by a health agency or code enforcement agency;

(b) the move is necessitated by a serious medical or physical handicap condition. Such need must be verified by specific medical diagnosis;

(c) the individual or family is rendered homeless as a result of having been put out by another occupant with whom they were sharing accommodations;

(d) the move is from temporary to permanent housing;

(e) the move is from permanent housing to temporary housing whenever necessary due to the unavailability of permanent housing;

(f) the move is from one temporary accommodation to another temporary accommodation whenever necessary due to the unavailability of permanent housing;

(g) the move is from an approved relocation site or to an approved cooperative apartment; or

(h) there is a living situation which adversely affects the mental or physical health of the individual or family, and the need for alternate housing is urgent, and not issuing a security deposit, moving expenses and/or brokers' or finders' fees would prove detrimental to the health, safety and well-being of the individual or family.

(2) A security deposit and/or brokers' or finders' fees shall be provided only when an applicant or recipient is unable to obtain a suitable vacancy without payment of such allowances.

(3) Documentation of the need for a security deposit, moving expenses and/or brokers' or finders' fees shall be fully recorded in the case record.

(b) *Avoidance of abuses in connection with rent security deposits.*

(1) Whenever a landlord requires that he be secured against nonpayment of rent or for damages as a condition to renting a housing accommodation to a recipient of public assistance, a local social services official may secure the landlord by either of the following means:

(i) by means of an appropriate agreement between the landlord and the social services official; or

(ii) by depositing money in an escrow account, not under the control of the landlord or landlord's agent, subject to the terms and conditions of an agreement between the landlord and the social services official in such form as the department may require or approve; provided, however, that the provisions of this subparagraph do not apply where a public assistance recipient resides in public housing.

(2) A social services official may not pay money to a landlord to be held as a security deposit against the payment of rent or for damages by a public assistance recipient, or issue a grant to a recipient of public assistance therefor, except as provided in paragraph (3) of this subdivision.

(3) When, in the judgment of a social services official, housing accommodations available in a particular area are insufficient to accommodate properly recipients of public assistance in need of housing, and in order to secure such housing, it is essential that the official pay money to landlords to be held as security deposits against the nonpayment of rent or for damages by public assistance recipients or to issue grants to recipients of public assistance therefor, such social services official may pay or furnish funds for such security deposits until sufficient housing accommodations are available in the particular area to accommodate properly recipients of public assistance in need of housing. Social services officials must not pay or furnish such funds where recipients of public assistance reside in public housing. In no case will temporary residence in a shelter, including those defined in Part 900 or 1000 of this Title, a hotel/motel or any other such emergency or transitional residential facility be considered sufficient housing accommodations for purposes of this paragraph. Landlords receiving such security deposits must comply with the provisions of article seven of the General Obligations Law. The recipient is required to assign to the social services official any right the recipient may have to the return of the security deposit and interest accrued thereon. Any social services official paying or furnishing funds for a security deposit in accordance with this paragraph must make diligent efforts to recover such payments or funds from the landlord as allowed

by law. Such efforts must not delay recoupment or recovery from a recipient if recovery or recoupment from the recipient is required by this section.

(c) Recovery of rent security payments.

(1) If as a result of nonpayment of the shelter allowance, the security deposit or security agreement for nonpayment of rent is required to be paid to the landlord, such payment must be considered to be an overpayment made to the recipient and as such, must be recovered according to the provisions of section 352.31(d) of this Part. If rent has not been paid due to a legitimate landlord/tenant dispute, a rent strike or as a result of the application of [section 143-b of the Social Services Law](#), such payment is not an overpayment and cannot be recouped or recovered.

(2) When a security deposit or monies under a security agreement are paid to a landlord for damages caused by a recipient, such payment must be considered an overpayment and must be recovered from a recipient pursuant to the provisions of section 352.31(d) of this Part provided that a social services official has conducted (or arranged for) a pre-tenancy and post-tenancy inspection or survey of the premises, or verified by some other means that the damages were caused by the recipient. The condition of the premises when the recipient moves in and when the recipient moves out must be documented and agreed to by signature of the landlord and the recipient. If the verification does not confirm that there are damages caused by the recipient, then cash must not be issued under a security agreement or, if a cash security deposit had been issued and the landlord retains it for alleged damages, the social services official must attempt to recover the deposit from the landlord. When the verification confirms that the recipient caused the damages, the district must recover the deposit amount from the recipient.

(d) When nonpayment of the shelter allowance or client-caused damages as confirmed by a pre-tenancy inspection and post-tenancy inspection or survey conducted (or arranged for) by the social services district or by some other means of verifying that the damages were caused by the recipient pursuant to paragraph (c)(2) of this section necessitates the authorization of finders' or brokers' fees, or household moving expenses, such payments must be considered to be overpayment made to the recipient and as such, must be recovered according to the provisions of section 352.31(d) of this Part. If rent has not been paid due to a legitimate landlord/tenant dispute, a rent strike or as a result of the application of [section 143-b of the Social Services Law](#), such payments are not overpayments and cannot be recouped or recovered.

(e) Unless prohibited by State or Federal law or regulation, an allowance for expenses, not otherwise authorized under this Title, for the repair, maintenance or retention of housing occupied by, but not owned by, a recipient of public assistance must be paid when necessary for the health and safety of the recipient and his or her family, when other appropriate housing is not available and when the payment is necessary to permit the recipient and his or her family to remain in the housing. An allowance for expenses for repair and maintenance shall be paid only when the owner of the housing is not obligated to provide the repair or maintenance. An allowance under this subdivision does not include payments for utility deposits for gas and electricity, payments covered under subdivision (b) of this section, payments for rent, property taxes or mortgage arrears and payments for litigation costs of any kind, including attorney's fees.

(f) An allowance for storage of furniture and personal belongings must be made when it is necessary for circumstances such as relocation, eviction or temporary shelter, so long as eligibility for public assistance continues and so long as the circumstances necessitating the storage continue to exist, and no other storage options exist.

(1) Furniture to be stored must not exceed the rooms and items in schedule SA-4a of section 352.7(a)(2) of this Part. Furniture to be stored cannot exceed the amount needed for the household size.

(2) Personal belongings to be stored cannot exceed the amount needed for the household size and should be reasonable in number and total volume. For the purpose of storage, personal belongings are those items not found in schedule SA-4a of section 352.7(a)(2) of this Part, such as:

(i) Legal and identification documents;

(ii) Kitchen items, such as tables and chairs, cookware, appliances, dishware, glassware and utensils;

(iii) Bedding and towels;

(iv) Clothing of the household members;

(v) Washing machine and dryer;

(vi) Assistive medical devices;

(vii) Items needed for employment, excluding business inventory except as otherwise provided for in section 352.12(a)(2) of this Part;

(viii) Household electronic devices;

(ix) Items needed for educational purposes; and

(x) Personal keepsakes, including children's toys, high chairs, and changing tables.

(3) Such allowance is limited to the furniture and personal belongings, as provided for in paragraphs (1) and (2) of this subdivision, in the household's possession at the time the circumstance necessitating the storage occurred.

Credits

Sec. amds. filed: Aug. 12, 1964; Dec. 23, 1965; Oct. 24, 1966; April 20, 1967; Nov. 15, 1968; repealed, new filed June 30, 1969; amd. filed Nov. 18, 1969; repealed, new filed June 2, 1970; amds. filed: Feb. 22, 1973; Aug. 30, 1973; June 26, 1975; Jan. 28, 1976; March 14, 1977; Aug. 8, 1977; Dec. 3, 1984; Sept. 12, 1985; Nov. 29, 1989; Nov. 30, 1989; Sept. 25, 1991; April 2, 1992; June 5, 1992 as emergency measure; Sept. 2, 1992 as emergency measure; Oct. 30, 1992 as emergency measure; Oct. 30, 1992; July 10, 1996; July 26, 1996 eff. Aug. 14, 1996; amd. filed Feb. 13, 2017 eff. April 14, 2017.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.6, 18 NY ADC 352.6

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.7

Section 352.7. Allowances and grants for other items of need

Currentness

(a) *Furnishings.*

(1) If provision therefor cannot otherwise be made, each social services district shall provide for the purchase of necessary and essential furniture, furnishings, equipment and supplies required for the establishment of a home for persons in need of public assistance. For purposes of this subdivision, such an allowance shall be provided only when, in the judgment of the social services official, one of the following conditions exists:

(i) An individual or family temporarily housed in a hotel, motel, homeless shelter, residential program for victims of domestic violence or other temporary accommodation to which the individual or family has been referred by the social services district is being permanently rehoused in unfurnished housing accommodations, and suitable furnished accommodations are not available.

(ii) An unattached individual, whose needs cannot otherwise be met under Part 397 of this Title, is discharged from an institution, is determined to be capable of maintaining an apartment in the community, and suitable furnished accommodations are not available.

(iii) An adult, whose needs cannot otherwise be met under Part 397 of this Title, is discharged from an institution and wishes to rejoin his family, which is in need of additional furniture to provide adequate shelter for him.

(iv) A child is returned to his parents, who are in need of additional furniture to provide adequate shelter for him.

(v) An individual's or family's living situation adversely affects the physical and mental health of that individual or family, and it is essential that the individual or family be rehoused in unfurnished housing accommodations in order to safeguard his or their health, safety and well-being.

(2) An allowance provided under paragraph (1) of this subdivision may not exceed the amounts authorized for the appropriate rooms and items in the following schedule:

SCHEDULE SA-4a INITIAL OR REPLACEMENT COST OF ESSENTIAL HOUSEHOLD FURNITURE,

FURNISHINGS, EQUIPMENT AND SUPPLIES

Living room \$182
Bedroom
with a single bed \$145
with two single beds \$205
with double bed \$184
Kitchen (excluding appliances) \$142 (plus \$12 for each additional person)
Range \$182
Refrigerator \$182 (or \$258 for four or more persons)
Bathroom \$ 6 (plus \$4 for each additional person)

Other equipment
Cabinet for linens \$ 22
Stove for heating \$ 72 (or \$82 for five or more persons)

(3) Documentation of the need for such furniture shall be fully recorded in each case record.

(b) *Equipment repairs.* Each social services district must provide for the essential repair of heating equipment, cooking stoves and refrigerators used by persons in need of public assistance in their homes, provided provision therefore cannot otherwise be made except that replacement may be authorized when less expensive than repair. Such allowances for cooking stoves and refrigerators cannot exceed the amounts authorized under schedule SA-4a.

(c) *Additional cost of meals.* Each social services district must provide for the additional costs of meals for persons unable to prepare meals at home or who do not otherwise receive meals in their residences in accordance with the following schedule:

SCHEDULE SA-5
RESTAURANT ALLOWANCE SCHEDULE

Monthly allowances to be added to appropriate monthly grants and allowances for combinations of restaurant meals and meals prepared at home or meals otherwise provided in the residence, including sales tax.

Dinner in a restaurant \$29.00
Lunch and dinner in a restaurant \$47.00
All meals in a restaurant \$64.00
Additional special restaurant allowance as described below

Effective November 1, 1986, a special monthly allowance of an additional \$36 must be granted to any pregnant woman or person under 18 years of age, or any person under 19 years of age who is a full-time student regularly attending a secondary school or in the equivalent level of vocational or technical training if, before such person attains age 19, such person may reasonably be expected to complete the program of such secondary school or training.

HOME DELIVERED MEALS

Monthly allowances to be added to appropriate monthly grants and allowances.
Extra allowance \$36.00

(d) *Replacement of clothing or furniture.* Each social services district shall provide for partial or total replacement of clothing or furniture which has been lost in a fire, flood or other like catastrophe, provided such needs cannot otherwise be met through assistance from relatives or friends or from other agencies or other resources. Such allowances shall not exceed the amounts authorized under schedules SA-4a and SA-4b.

SCHEDULE SA-4b	
REPLACEMENT COST OF CLOTHING	

Birth through 5 years	\$48.00
6 through 11 years	\$73.00
12 through adult	\$89.00

(e)-(f) [*Reserved*]

(g) *Payment for services and supplies already received.* Assistance grants shall be made to meet only current needs. Under the following specified circumstances payment for services or supplies already received is deemed a current need:

(1) Replacement of lost or stolen checks.

(i) If an applicant or recipient reports to a local social services official that a check has been lost or stolen, an affidavit of loss shall be required of the recipient, and payment of the check shall be stopped. If the recipient has not already done so, he shall be required by the local social services official to report the loss or theft to the police, to obtain from them the blotter entry number, or classification number, or file number or other available evidence of the reporting, and to furnish such evidence to the local social services official. When satisfied that such police report has been made, the local social services official shall issue a replacement check to the recipient, on which there shall appear above the place for the recipient's signature, the following: "By endorsing or cashing this check I acknowledge that this is a replacement for a check, number dated drawn to my order on which was lost/stolen; that I have not received the proceeds of said check directly or indirectly; and that I have been informed it is illegal for me to cash said check, and if I do so, I am liable to prosecution."

(ii) If payment is not stopped on the original check and it and the replacement check are both cashed, only one shall be subject to State reimbursement, and the social services district shall limit its claim for State reimbursement to one of the two checks.

(iii) If it is established that a recipient endorsed and cashed an allegedly lost or stolen check which has been replaced, the amount of such check shall be recovered from the recipient as provided for by the provisions of the regulations of this department.

(2) Replacement of electronic benefits. When a recipient claims that he or she has not received electronic cash public assistance benefits which the department's computer issuance record indicates were issued, the social services district must verify the validity of the computer issuance record in accordance with procedures established by the department. If it is verified that a valid issuance transaction occurred, the benefits cannot be replaced. If it is determined that a valid issuance transaction did not occur, the benefits must be restored in accordance with section 352.31(f) of this Part.

(3) A grant may be made to pay for rent, property taxes or mortgage arrears for the time prior to the month in which the public assistance case was opened or for applicants for emergency assistance under Parts 370 and 372 of this Title. Shelter arrears payments authorized for applicants under this paragraph are limited to a total period of six months once every five years unless the district determines at its discretion that additional shelter arrears payments are necessary based on the individual case circumstances. Such payments may be made only when:

- (i) such payment is essential to forestall eviction or foreclosure and no other shelter accommodations are available; or
- (ii) the health and safety of the applicant is severely threatened by failure to make such payment; and
- (iii) the authorization for the payment receives special written approval by the social services official or such other administrative officer as he or she may designate, provided such person is higher in authority than the supervisor who regularly approves authorization;
- (iv) the applicant reasonably demonstrates an ability to pay shelter expenses, including any amounts in excess of the appropriate local agency maximum monthly shelter allowance, in the future. However, when in the judgment of the local social services official, the individual or family has sufficient income or resources to secure and maintain alternate permanent housing, shelter arrears need not be paid to maintain a specific housing accommodation;
- (v) such payment does not exceed the local agency maximum monthly shelter allowance. A district may, consistent with subparagraph (iv) of this paragraph, issue a grant for arrears in excess of the maximum monthly shelter allowance. However, any amount above the local agency maximum monthly shelter allowance paid towards the monthly arrears is an overpayment subject to recovery and recoupment in accordance with section 352.31 of this Part;
- (vi) the applicant, if accepted for on-going public assistance, agrees to future restriction of shelter payments in accordance with Part 381 of this Title; and
- (vii) in the case of an applicant who is not eligible for Safety Net Assistance, Family Assistance, Emergency Assistance to Families, or Emergency Assistance to Adults, such applicant is without income or resources immediately available to meet an emergency need, such applicant's gross household income at the time of application does not exceed 125 percent of the Federal income official poverty line as defined and annually revised by the United States Department of Health and Human Services under the authority of [42 U.S.C. 9902\(2\)](#), and such applicant signs an agreement to repay the assistance in a period not to exceed 12 months from receipt of such assistance. The repayment agreement must set forth a schedule of payments that will assure repayment within the 12-month period, and must specify the frequency of the payments, the due date of the first payment, the address where payments must be made and the consequences of failing to repay the assistance as agreed. Subsequent assistance to pay arrears may not be granted unless there are no past-due amounts owed under any such repayment agreement. The social services district, in addition to any rights it has pursuant to the Social Services Law, may enforce the repayment agreement in any manner available to a creditor.

(4) A recipient of public assistance who is threatened with eviction or foreclosure or who is being evicted or whose property is being foreclosed upon for nonpayment of rent, mortgage or taxes incurred during a period for which a grant had been previously issued to the recipient may be provided with an advance allowance for rent, mortgage principal and interest payments or taxes in accordance with section 352.11 of this Part. Shelter arrears payments, including advance allowance

payments, authorized under this paragraph are limited to a total period of six months once every five years unless the district determines at its discretion that additional shelter arrears payments are necessary based on the individual case circumstances. Advance investigation of the need for restricted payments must be conducted in accordance with Part 381 of this Title. An allowance for rent, mortgage principal and interest payments or taxes which exceeds the appropriate local agency maximum monthly shelter allowance can be made only if all of the following conditions are met:

- (i) notwithstanding section 352.23(b) of this Part, the recipient agrees to use all available liquid resources for the payment of shelter expenses necessary to prevent eviction or foreclosure;
- (ii) the recipient demonstrates an ability to pay shelter expenses in the future, including any amounts in excess of the appropriate local agency maximum monthly shelter allowance;
- (iii) the recipient agrees to future restriction of rent or mortgage payments; and
- (iv) the recipient has not previously received an allowance in excess of the appropriate local agency maximum monthly shelter allowance pursuant to this paragraph and, subsequent to receiving such allowance, requested discontinuation of restriction of the shelter payments to which he or she agreed pursuant to this paragraph.

(h) *Chattel mortgages or conditional sales contracts.* If the furniture or household equipment of an applicant, who has not been a recipient of public assistance within the previous six months preceding his application, is essential to making his living accommodations habitable but are presently encumbered by a chattel mortgage or a conditional sales contract, every effort shall be made to defer, cancel or reduce payments on such chattel mortgage or conditional sales contract. If all such efforts fail, an allowance may be made for a compromise settlement of such payments or, if a compromise cannot be reached, for other essential payments; provided, however, that the compromise settlement or allowances shall not exceed the cost of replacement.

(i) *Camp fees.* When funds cannot be obtained from other sources, camp fees may be paid for children receiving Family Assistance or Safety Net Assistance not in excess of total cost of \$400 per child per annum, in amounts not to exceed \$200 per week.

(j) *[Reserved]*

(k) *Additional needs because of pregnancy.* A monthly allowance of \$50 shall be added to the appropriate monthly grant and allowance of a needy pregnant woman beginning with the fourth month of pregnancy or the month in which medical verification of the pregnancy is presented to the district, whichever is later.

(l) A one-time benefit of \$1800.00 per child, to provide for immediate needs associated with the birth of such child, shall be provided to public assistance recipients upon the birth of a new child, born on or after November 5, 2025.

(m) *Supplemental payments.* The social services official must provide a monthly allowance to supplement the income of an ADC, PG-ADC, HR or VA household when the household experiences a net loss of cash income due to the acceptance of employment by a JOBS participant who is a member of the household, when such acceptance is required by the social services district. A net loss of cash income occurs when the monthly gross income of the household, subtracting necessary actual work-

related expenses, is less than the cash assistance the household received in the month in which the offer of employment was made. The supplement must equal the monthly net loss of cash income that would occur if the supplement were not paid to the household.

(1) Gross income includes, but is not limited to, earnings, unearned income and cash assistance.

(2) Cash assistance means the budget deficit as defined in section 352.29 of this Part.

(3) Necessary actual work-related expenses are the actual, verifiable and unreimbursed expenses directly related to maintaining employment.

(i) Such expenses include, but are not limited to:

(a) mandatory payroll deductions such as Federal, State and local taxes, social security taxes, disability insurance and union dues;

(b) tools, materials, uniforms and other special clothing required for the job;

(c) mandatory fees for licenses or permits fixed by law;

(d) deductions for medical insurance coverage;

(e) child care up to the local market rate; and

(f) transportation, including the cost of transporting children to and from day care, except that the amount for use of a motor vehicle must be computed on a mileage basis at the same rate paid to employees of the social services district and must only be allowed when public transportation is not available.

(ii) Such expenses do not include:

(a) meals;

(b) business-related depreciation;

(c) personal business and entertainment expenses;

(d) personal (not work-related) transportation;

(e) purchase of capital equipment; and

(f) payments on the principal of loans.

(n) *Burials*. Allowances shall be made for burial of applicants for and recipients of public assistance in accordance with [section 141 of the Social Services Law](#).

(o) *Removals*. Allowances must be made to applicants for or recipients of public assistance who are removed to another state or country in accordance with this section. Such allowances can only be made for the reasonable and necessary expenses of such removals, as authorized by the following:

(1) Conditions for removals. A social services official shall authorize removal of a person to another state or foreign country only when the official has determined that:

(i) the person belongs in the other state or foreign country, based upon settlement, residence or otherwise, or relatives or friends have given assurances that they will support the person, in whole or in part; and

(ii) the welfare of the person to be removed and the interest of the State will be promoted by the removal.

(2) Costs of removal. Costs of removing persons from this State to another state or another country are reimbursable at 50 percent for reasonable and necessary expenditures for:

(i) meals enroute;

(ii) transfer of baggage;

(iii) transportation by such means as circumstances warrant; and

(iv) other reasonable and necessary expenses, including meals and lodging, and transportation costs of an attendant, including the attendant's meals and lodging but excluding charges for the attendant's time or services.

Credits

Sec. amds. filed: May 1, 1963; Jan. 9, 1964; Aug. 12, 1964; April 23, 1965; Dec. 23, 1965; April 20, 1967; Nov. 15, 1967; June 6, 1968; July 3, 1968; Dec. 23, 1968; repealed, new filed June 25, 1969; amd. filed April 3, 1970; repealed, new filed June 2, 1970; amds. filed: Oct. 13, 1970; Dec. 4, 1970; April 30, 1971; June 29, 1971; Aug. 2, 1971; Dec. 10, 1971; Feb. 22, 1972; Oct. 17, 1972; March 2, 1973; March 25, 1974; May 30, 1974; Aug. 19, 1974; Sept. 24, 1974; Nov. 17, 1975; Feb. 4, 1976; April 12, 1976; April 11, 1977; July 14, 1977; Jan. 24, 1978; Oct. 20, 1978; Nov. 21, 1978; June 25, 1980; Dec. 19, 1980; Sept. 4, 1981; Dec. 24, 1981; June 8, 1982; Dec. 20, 1982; May 30, 1985; Sept. 17, 1985; Dec. 20, 1985; Jan. 7, 1986; Feb. 12, 1986; March 27, 1986; Nov. 5, 1986; July 3, 1987; Aug. 6, 1987 as emergency measure; Oct. 5, 1987 as emergency measure; Sept. 28, 1989; Nov. 28, 1989; Aug. 30, 1990 as emergency measure; Sept. 28, 1990; Nov. 28, 1990 as emergency measure,

expired 60 days after filing; Jan. 28, 1991 as emergency measure, expired 60 days after filing; April 2, 1991 as emergency measure; May 31, 1991 as emergency measure; May 31, 1991; July 19, 1991 as emergency measure; Oct. 7, 1991 as emergency measure; Dec. 6, 1991 as emergency measure; Dec. 6, 1991; Feb. 28, 1992; June 5, 1992 as emergency measure; Sept. 3, 1992 as emergency measure; Oct. 27, 1992 as emergency measure; Oct. 27, 1992; Feb. 17, 1993; April 20, 1993; Aug. 3, 1993 as emergency measure; Nov. 1, 1993 as emergency measure; Nov. 12, 1993; Feb. 4, 1994; March 9, 1994; Sept. 14, 1994; July 10, 1996; June 14, 2002; July 22, 2003; Aug. 30, 2005 eff. Sept. 14, 2005. Amended (g)(3)(vii); emergency rulemaking eff. June 30, 2021, expires Sept. 12, 2021; emergency rulemaking eff. Sept. 13, 2021, expires Nov. 8, 2021; amd. filed Oct. 15, 2021 eff. Nov. 3, 2021 (Register dated Nov. 3, 2021); amd. filed Oct. 20, 2025 eff. Nov. 5, 2025 (Register dated Nov. 5, 2025).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.7, 18 NY ADC 352.7

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.8

Section 352.8. Standard of assistance and allowances for persons not living in
their own homes; cost of residence for families living in shelters for families

Currentness

(a) The standard of need includes an allowance to be provided by each social services district for persons residing in the following living situations: room and board; approved residential programs for victims of domestic violence; maternity homes; family homes or boarding homes; certified family care or certified residential care facilities; certified substance use disorder treatment facilities and residential facilities for the mentally disabled. With respect to residential programs for victims of domestic violence operated in accordance with the provisions of Parts 452 and 453 or 454 or 455 of this Title, the allowance is established in accordance with the provisions of Part 408 of this Title.

(b) Each social services official must establish:

(1) An allowance for each recipient or family purchasing room and/or board to cover the cost of board, room rent and other expenses, except where such items and services are furnished by a legally responsible relative or a recipient of public assistance. This allowance, including but not limited to rates set for entities governed by section 352.3(e) of this Part, is subject to review and approval by the Office of Temporary and Disability Assistance (the office) pursuant to a timetable established by the office in accordance with paragraph (2) of this subdivision. For each recipient or family purchasing room and/or board from an individual, family or from a commercially operated boarding house, such allowance cannot exceed the sum of the statewide monthly grant and allowance, the statewide monthly home energy payments, the statewide monthly supplemental home energy payments and the local agency monthly shelter allowance schedule without children as contained in section 352.3(a)(1) of this Part.

(2) *[Reserved]*.

(3) An allowance for each person residing in a maternity home, at the lowest rate for which suitable care can be purchased from such facility.

(4) An allowance for each recipient receiving care in a Level 1, Level 2 or Level 3 certified congregate care facility. The allowance is based on the rates provided for care and maintenance under the Supplemental Security Income Program for SSI beneficiaries residing in the same facility, less the amount of any personal needs allowance included in the SSI rate. The facilities included are:

(i) Level 1. Family-type homes certified by the Office of Children and Family Services and family care homes certified by the Office of Mental Health or the Office for People With Developmental Disabilities.

(ii) Level 2. Residences for adults certified by the Department of Health; programs providing intensive residential rehabilitation services, community residential services or supportive living services certified by the Office of Addiction Services and Supports; supportive community residences, supervised community residences and individualized residential alternatives certified by the Office for People With Developmental Disabilities; and apartment treatment, congregate treatment and congregate support facilities certified by the Office of Mental Health. For purposes of this subparagraph, congregate care Level 2 facilities do not include intermediate care facilities or respite care facilities.

(iii) Level 3. Adult homes and enriched housing programs certified by the Department of Health and schools for persons with intellectual/developmental disabilities certified by the Office for People With Developmental Disabilities.

(5) An additional allowance for each public assistance applicant/recipient who meets the requirements of section 349.4 or section 369.4 (c) of this Title concerning temporary absences from the home and who is receiving Level 1, Level 2 or Level 3 care in a certified congregate care facility listed in paragraph (4) of this subdivision at the rates provided for care and maintenance under the Supplemental Security Income Program for SSI beneficiaries residing in the same facility, less the amount of any personal needs allowance included in the SSI rate.

(6) A per diem rate to cover the costs of shelter, care and other activities in an approved residential program for victims of domestic violence for persons who are in receipt of public assistance and care at the time of admission to the program or who apply for emergency assistance to needy families, family assistance, safety net assistance or any other form of public assistance and care under [section 131](#) or [131-a of the Social Services Law](#), during the time of residency in such program and are found eligible for such assistance and care. This rate must be established in accordance with the provisions of Part 408 of this Title.

(c)

(1) Each social services official shall provide an allowance for monthly personal needs for clothing and incidentals for recipients residing in:

(i) Boarding homes or under room and board arrangements or approved residential programs for victims of domestic violence in which three meals per day are provided, or facilities certified by the Office of Addiction Services and Supports other than community residences, in the amount of \$45; infirmaries, nursing homes, intermediate care facilities, or similar medical facilities, in the amount of \$40.

(ii) Congregate care Level 1, Level 2 and Level 3 at the amount included in the SSI payment level as the personal needs allowance for SSI recipients residing in the particular facility. For recipients of public assistance who are required to participate in appropriate residential rehabilitation programs pursuant to section 351.2(i) and section 370.2(c)(8)(ii) of this Title, such allowances must be made as restricted payments to the residential programs and must be conditional payments. If a public assistance recipient required to participate in an appropriate residential rehabilitation program

pursuant to section 351.2(i) and section 370.2(c)(8)(ii) of this Title leaves the program prior to completion of the program, any accumulated personal needs allowance which is held by the program on behalf of the recipient must be considered to be an overpayment and must be returned by the program to the social services district which provided the personal needs allowance. The question of whether the recipient has left the program prior to completion will be determined solely by using the guidelines and rules of the program.

(2) When a facility provides some or all of the items for which the allowance is intended through an in-kind contribution, the value thereof shall be computed and shall be applied to reduce the amount of the allowance.

(3) When a facility does not provide needed personal items including clothing and a recipient is deemed incapable of managing funds, a protective payment shall be made, if feasible; if not, the social services official shall meet such needs in kind.

(d) If necessary to retain Level 1, Level 2 or Level 3 care in a certified congregate care facility listed in paragraph (b)(4) of this section for a recipient expected to be in a medical facility for no more than 30 days, the social services district must authorize an allowance sufficient to retain such care. Such allowance must not be paid for more than 30 days.

(e) An allowance to meet the cost of board and room or care in a maternity home, family-type home, adult home, residence for adults, enriched housing program, intermediate care facility, hostel for persons with intellectual/developmental disabilities or residential facility for persons with intellectual/developmental disabilities shall be made for the entire month in which the case is accepted if essential to retain the use of the facility. An allowance may be made to pay for the cost of such care for a period prior to the month in which the case was opened, but not prior to the date of application under the following specified conditions:

(1) such payment is essential to retain the care in the facility and no other facilities are available; and

(2) the authorization for payment of such back bill receives written approval by the social services official or such other administrative officer as he may designate, provided such person is higher in authority than the supervisor who regularly approves authorization.

(f) The standard of need for determining eligibility of a single person who has applied for safety net assistance who resides in a public shelter for the homeless other than a shelter for families operated under Part 900 of this Title is the sum of the statewide monthly grant and allowance, the statewide monthly home energy payments, the statewide supplemental home energy payments and the local agency monthly shelter allowance schedule without children, as contained in section 352.3(a)(1) of this Part, each for a single person living alone. A single person who resides in a shelter for the homeless who has applied for and is found eligible for safety net assistance must be paid a monthly cash allowance of \$45, reduced by any available income in accordance with section 352.29 of this Part. The remainder of said standard of need is to be met through the provision of items of need by the shelter.

Credits

Sec. filed April 20, 1967; amds. filed: April 20, 1967; Nov. 15, 1968; June 18 and 25, 1969; repealed, new filed June 2, 1970; amds. filed: Oct. 13, 1970; July 11, 1972; Oct. 4, 1974; Aug. 31, 1977; July 3, 1981; June 21, 1983; Nov. 22, 1983; Jan. 20, 1984; Aug. 7, 1984; Jan. 9, 1985; Dec. 17, 1985; Jan. 10, 1986; Aug. 13, 1986; Oct. 10, 1986; Dec. 10, 1986; Dec. 10, 1987; May 10, 1988 as emergency measure; July 8, 1988 as emergency measure; Sept. 6, 1988 as emergency measure; Nov. 4, 1988 as

emergency measure; Nov. 4, 1988; April 7, 1989; May 15, 1989 as emergency measure; Aug. 10, 1989 as emergency measure; Oct. 10, 1989 as emergency measure; Oct. 10, 1989; April 29, 1991; Sept. 26, 1991 as emergency measure; Dec. 17, 1991 as emergency measure; Dec. 17, 1991; Dec. 14, 1992; Feb. 2, 1993; Jan. 5, 1996; Aug. 22, 1997; Dec. 16, 2004; amended adoption filed Dec. 28, 2004; amd. filed June 22, 2005; March 27, 2007; Feb. 5, 2008 eff. Feb. 20, 2008; amd. filed June 2, 2016 eff. June 22, 2016; amd. filed Nov. 25, 2019 eff. Jan. 1, 2020; amd. filed Dec. 23, 2024 eff. Jan. 8, 2025 (Register dated Jan. 8, 2025).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.8, 18 NY ADC 352.8

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Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.9

Section 352.9. Purchase of services

[Currentness](#)

Each of the following services shall be purchased by the social services districts for the recipient in the amount necessary, whenever the special circumstances noted below are found to exist. The special circumstances and the considerations entering into the agency decision to provide such service shall be recorded. For each service purchased for which the department has not established the fee to be paid, each social services district shall establish the amount to be paid. For those services for which establishment of a flat fee or a range of fees is not practicable, the amount actually charged for such service shall be paid. Such fee schedules shall be filed with the department in accordance with section 300.2 of this Title. Child care in a day care center, in a family home or in-home day care shall be purchased for eligible families except as specified in sections 352.7 and 352.19 of this Part. Payments for child care shall be in accord with Part 416 of this Chapter. If in-home day care is provided, provisions shall be made for workers' compensation and other benefits as required by or pursuant to law.

Credits

Sec. filed June 25, 1969; amd. filed April 3, 1970; repealed, new filed June 2, 1970; amds. filed: April 19, 1973; Aug. 31, 1976; Oct. 20, 1978; June 25, 1980; Aug. 8, 1996 eff. Aug. 28, 1996. Repealed (b), (c).

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18 NYCRR 352.10

Section 352.10. Payment of life insurance premiums

[Currentness](#)

Life insurance premiums shall be met under the following circumstances and conditions:

- (a) when the recipient is aged, his life expectancy is short, or he is deemed uninsurable; or
- (b) by vendor payment when the policy is assigned to the agency.

Credits

Sec. filed June 25, 1969; amd. filed April 6, 1970; repealed, new filed June 2, 1970 eff. June 1, 1970.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 352.11

Section 352.11. Advance allowances

[Currentness](#)

Whenever an advance allowance is authorized under this Part, such an allowance may be provided only where the recipient has made a request in writing for such an allowance, and has also requested in writing that his or her monthly grant be reduced to recover such an allowance. The recoupment must be 10 percent of the household's needs for family assistance and safety net assistance. However, where undue hardship is claimed and substantiated, the recoupment must not be less than five percent of the household's needs. Such grant reduction must continue until such time as the amount of the advance allowance is fully recouped.

Credits

Sec. filed June 25, 1969; repealed, new filed June 2, 1970; amds. filed: March 30, 1979; Oct. 21, 1981; repealed, filed Dec. 24, 1981; new filed Jan. 7, 1986; amds. filed: July 19, 1991 as emergency measure; Oct. 7, 1991 as emergency measure; Dec. 6, 1991 as emergency measure; Dec. 6, 1991; Aug. 28, 2001 eff. Dec. 1, 2001.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.11, 18 NY ADC 352.11

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18 NYCRR 352.12

Section 352.12. Income and benefits as related to employment

[Currentness](#)

In determining initial and continuing eligibility, current employment, past employment, employability and work-related benefits shall be fully explored and verified. The applicant or recipient shall be required to seek and accept employment in which he is able to engage, to utilize placement facilities and to make application for work-related benefits.

(a) *Present employment.*

(1) Income from wages. The employment and earnings of an employed applicant or recipient must be verified, including the name and address of employer, social security number, work classification, date employment started, amount of gross and net wages, items covered by deductions, exemptions and number of dependents claimed for income tax purposes.

(2) Income from self-employment or small business. The facts and conditions of a business owned or operated by an applicant or recipient must be explored and verified insofar as possible, including operating costs, gross sales, net profits, current inventory, accounts receivable, accounts payable, general financial history, and present and future prospects. A careful analysis and appraisal of these facts is required as a basis for counseling the owner on liquidation or continuance of the business. The social security number must be secured. If the business has been in existence for three years, the social services district must review the business to determine if the business has the potential for future growth. If the social services district determines that the business has no potential for future growth, and does not produce income at least equal to that which could be expected from employment, the applicant or recipient must be required as a condition of eligibility to liquidate the business. If, after the social services district conducts the review of the business, the district determines that there is potential for growth of the business, the social services district may defer the requirement that the applicant or recipient liquidate the business for a period of up to an additional two years.

(b) *Past employment.* An employment history shall be obtained and verified where practicable for each applicant or recipient with previous work experience, for a period sufficient to determine his presumptive eligibility for work-related benefits, his occupational experience, his work record, and the possibilities for reemployment. The employment history shall include names and addresses of former employers, social security number, dates of employment and the nature of work performed. In the case of recently employed, employable persons the information shall include the amount of weekly wages and reason for termination of employment.

(c) *Work-related benefits.*

(1) The agency shall explore eligibility for work-related benefits, require presumptively eligible persons to make application therefor, and verify the receipt of benefits in accordance with the applicable board rules, department regulations, and the procedures and forms required by the department or administrative agency for clearance of such benefits.

(2) OASDI benefits shall be deemed an available resource that must be utilized as a condition of eligibility, including benefits available for retired workers and the wives of retired workers at age 62 and for widows at age 60. Exceptions may be made in short-term cases where need is presumed to continue for not more than three months. Where need is presumed to be temporary and no referral is made, the case record should clearly state the reason for the decision.

(3) Special OASDI age-72 benefits shall be deemed an available resource that must be utilized as a condition of eligibility, except when a cash assistance applicant and/or recipient would be disadvantaged by receipt of such benefits.

Credits

Sec. filed June 25, 1969; repealed, new filed June 2, 1970; amds. filed: March 25, 1973; Nov. 28, 1994 eff. Dec. 14, 1994. Amended (a).

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18 NYCRR 352.13

Section 352.13. Income and benefits related to military service

[Currentness](#)

The agency shall explore eligibility for and verify receipt of income and benefits related to military service.

Credits

Sec. filed June 25, 1969; repealed, new filed June 30, 1969; amds. filed: Oct. 2, 1969; Nov. 18, 1969; Dec. 5, 1969; repealed, new filed June 2, 1970 eff. June 1, 1970.

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18 NYCRR 352.14

Section 352.14. Contributions from relatives

Currentness

(a) The ability of the spouse of a public assistance applicant or recipient or the parent or stepparent of a minor to support such individual must be determined.

(1) If the parent or stepparent of a minor for whom public assistance is requested is living outside the minor's household, the applicant must be referred to the child support enforcement unit established pursuant to Part 347 of this Title. If the applicant or recipient is pregnant with or is the mother of an out-of-wedlock minor child, the applicant and/or recipient must cooperate in establishing paternity and securing support for the child, unless the child has been surrendered to the local social services commissioner for the purpose of adoption or, for a period not to exceed 90 days after birth of the child, when such surrender for adoption is under consideration. If there are no minor children, but the applicant's spouse resides outside the household, the applicant must petition a court of appropriate jurisdiction for spousal support.

(2) If the spouse or parent of an applicant resides with the public assistance household, the income of the spouse or parent must be applied in accordance with section 352.30 of this Part.

(3) If the stepparent of a child receiving assistance is living in the child's home and not applying as a member of the assistance unit, all the earned and unearned income of the stepparent, after applying the following disregards, is considered available to the assistance unit:

(i) the first \$75 of the stepparent's gross earned income, if he or she is employed full-time or part-time and throughout the month (according to the industry standard), shall be disregarded;

(ii) an amount for the support of the stepparent and other individuals who are living in the home, but whose needs are not taken into account in making the public assistance eligibility determination, if those other individuals were or could be claimed by the stepparent as dependents for purposes of determining the stepparent's Federal personal income tax liability. This disregarded amount shall equal the standard of need, including special needs, for a family group of the same size and composition as the stepparent and the other dependent individuals not in the assistance unit;

(iii) verified alimony and child support payments actually paid to individuals not living in the household; and

(iv) amounts actually paid by the stepparent to individuals not living in the home but who are claimed by him as dependents for purposes of determining his Federal personal income tax liability.

(4) If the stepparent of a child receiving public assistance is living outside of the child's home, the income of that stepparent may not be assumed to be available to the stepchild. However, when a stepparent refuses to voluntarily provide support for the stepchild, appropriate steps must be taken to obtain an order of support from the Family Court.

(5) The income of a stepparent receiving supplemental security income (SSI) is not considered to be available to the ADC assistance unit.

(b) The immediate or potential availability of new, increased or continuing contributions from other relatives shall be explored and determined.

Credits

Sec. filed June 2, 1970; amds. filed: April 30, 1971; March 9, 1977; Dec. 24, 1981; Jan. 13, 1983; Aug. 16, 1984; Dec. 19, 1985 as emergency measure; Feb. 13, 1986; March 14, 1989; Aug. 6, 1992 eff. Aug. 26, 1992. Amended (a); repealed (c).

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18 NYCRR 352.15

Section 352.15. Support payments

Currentness

(a) Child Support Disregard Payment. An amount up to the first \$100 or \$200 per month of any current child or child and spousal support payment(s) received by a public assistance household directly from the support collection unit or directly from the noncustodial parent prior to the requirement that payments toward the support obligation be made through a support collection unit and retained by the social services district, must be disregarded as income or resources in determining eligibility.

(1) Effective January 1, 2010, for public assistance households containing one public assistance individual under the age of 21, the amount disregarded shall be up to the first \$100 of current support received or the monthly support obligation, whichever is less.

(2) Effective January 1, 2010, for public assistance households containing two or more public assistance individuals under the age of 21, the amount disregarded shall be up to the first \$200 of current support received or the monthly support obligation, whichever is less.

(b) Pass-through payments. An amount of child or child and spousal support collections received by the support collection unit under an assignment applied toward the current monthly support obligation for a public assistance household, and retained by the social services district, must be paid to the public assistance household as a pass-through payment. Any pass-through payment made to the public assistance household shall be disregarded as income or resources in determining eligibility or standard of need.

(1) Effective January 1, 2010, for public assistance households containing one public assistance individual under the age of 21, up to the first \$100 of current support collections received or the monthly support obligation, whichever is less, shall be paid to the public assistance household as a pass-through payment.

(2) Effective January 1, 2010, for public assistance households with two or more public assistance individuals under the age of 21, up to the first \$200 of current support collections received or the monthly support obligation, whichever is less, shall be paid to the public assistance household as a pass-through payment.

(3) Date of receipt for pass-through payments. The date of receipt for support collections is the date on which the payment is received by the support collection unit.

(c) Excess support payments.

(1) Support collections retained by the social services district must be used to reduce the amount of unreimbursed assistance by the total amount of support collected. Collections which exceed the cumulative amount of unreimbursed assistance must be paid to the family.

(2) Payments made to the family under paragraph (1) of this subdivision shall be made available to the family within 15 calendar days of the end of month in which the support was processed by the support collection unit.

(d) Any amount paid to the family pursuant to subdivision (b) or (c) of this section shall not be identified as assistance paid to the family.

(e) If a public assistance recipient reports to a local social services official that a payment pursuant to this section has been lost or stolen, the social services district shall follow the procedures outlined in section 352.7(g) of this Part.

(f) If the local social services official establishes that the recipient received a payment pursuant to this section that the recipient claimed was lost or stolen and which has been replaced, the amount of such payment shall be recovered from a subsequent payment or recouped from the recipient in accordance with section 352.31(d) of this Part.

(g) If the payment pursuant to this section is issued to the wrong individual, a payment to the correct individual shall be issued immediately and recovery or recoupment from the incorrect individual shall be made in accordance with section 352.31(d) of this Part.

Credits

Sec. filed June 2, 1970; amds. filed: April 14, 1972; Nov. 17, 1975; Oct. 21, 1981; Dec. 24, 1981; repealed, filed Aug. 16, 1984; new filed: Dec. 19, 1985 as emergency measure; Feb. 13, 1986; amd. filed Feb. 28, 1992 eff. March 18, 1992; amd. filed April 19, 2016 eff. May 4, 2016.

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18 NYCRR 352.16

Section 352.16. Exemption of income and resources--general policy

Currentness

(a) When the terms of an award, the legislative intent of a government benefit, the rules of an organization paying a benefit, the nature of a trust fund, or the agreed upon intent of a friend, nonlegally responsible relative, social agency or other organization limits the use of cash income, the social services official shall abide by such restriction, when verified. The restriction may limit the use of the income to a specified purpose or to a particular member or members of the household. However, whenever any contribution from a nonlegally responsible relative or friend is sought to be restricted for the purpose of supplementing a State-prescribed or -approved standard it shall not qualify as a permissible restriction of income, unless the social services official determines that the health and welfare of the recipient would be specifically and materially enhanced thereby.

(b) No grant or loan to an undergraduate student for educational purposes made or insured under any program administered by the United States Secretary of Education shall be considered as income or resources in determining need and amount of assistance.

(c) No grants or loans, including but not limited to undergraduate or graduate school grants, loans or scholarships, which are obtained and used under conditions that preclude their use for current living costs, shall be considered to be income or resources in determining need and the amount of assistance.

(d) For SSI recipients applying for HR:

(1) in-kind income as determined by the Social Security Administration must not be considered as available income unless a separate verification of its availability is made; and

(2) that portion of the SSI grant being recouped by the Social Security Administration must not be considered as available income.

Credits

Sec. filed June 2, 1970; amds. filed: June 6, 1975; Nov. 17, 1975; Aug. 14, 1978; Dec. 24, 1981; Nov. 12, 1982; June 6, 1985 eff. June 6, 1985.

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18 NYCRR 352.17

Section 352.17. Definition and computation of earned income

Currentness

(a) *Earned income* means income in cash or in kind earned by an individual through the receipt of wages, salary, commissions, or profit from activities in which he/she is engaged as a self-employed individual or as an employee. Such earned income may be derived from his/her own employment such as a business enterprise or farming; or derived from wages or salary received as an employee. It may include earnings over a period of time for which settlement is made at one given time, as in the instance of sales of farm crops, livestock or poultry. Income received by an individual on a contractual basis or income received intermittently on a quarterly, semiannual or yearly basis must be prorated over the period of the contract or the period covered by the income with appropriate monthly exclusions.

(1) With reference to commissions, wages or salary, the term *earned income* means gross earned income prior to deduction of any taxes or other personal and nonpersonal expenses incident to employment.

(2) With respect to self-employment, the term *earned income* means the total profit from a business enterprise, farming, etc., resulting from the gross income received less the business expenses, *i.e.*, total cost of the production of the income as defined in paragraph (b)(2) of this section.

(b) *Computation of net applicable income.*

(1) In computing the amount of net applicable income to be applied against the estimate of needs, the following must be applied sequentially:

(i) the applicable amount of exempt earned income; and

(ii) the prescribed work expense disregard.

The net amount remaining must be applied against public assistance needs in determining the amount of the assistance payment.

(2) For self-employed individuals, those expenses directly related to producing the goods or services, including expenses for inventory, and without which the goods or services could not be produced must be excluded to determine the amount of

earned income. However, depreciation, personal business and entertainment expenses, personal transportation, purchase of capital equipment, and payments on the principal of loans for capital assets or durable goods are not excluded.

(3) Where the gross property cost of client-owned property used as the home exceeds the gross rent receipts, the difference is the public assistance recipient's shelter need that is payable up to the agency maximum. When the gross rent received exceeds the gross property cost, the difference is earned income from self-employment and no amount is included as a shelter item in the client's budget estimate of need.

(c) *Projecting average income.* The amount of earned income used to determine the public assistance grant will be based on an estimate of average monthly earnings. To project average monthly income, the social services district must average the most recent four weeks of earned income, or if there has been a change expected to last at least 30 days, use the new information regarding the amount of pay and the frequency of pay.

(d) Average monthly earned income is applied against need to determine the grant amount for each calendar month of an authorization period. The amount of average earned income applied must be recalculated at recertification. No other adjustments will be made, except as provided in section 352.31(c) of this Part, unless one of the following occurs:

- (i) loss of employment;
- (ii) change in status of the recipient from part-time to full-time employment or the converse;
- (iii) increase or decrease in income expected to last at least 30 days;
- (iv) increase or decrease in number of hours worked per pay period expected to last at least 30 days; or
- (v) receipt of income from an additional source of any kind.

(e) The recipient must report and certify any changes in employment status which are set forth in subdivision (d) of this section. The social services district must adjust the grant beginning with the month in which the change occurred. However, when a report of a new or increased earned income is made timely by the recipient, the district must adjust the grant or calculate the amount of any overpayment only after a reasonable administrative processing period has passed. A *reasonable administrative processing period* means the semi-monthly payment cycle in which the initial or increased earnings began and the following semi-monthly payment cycle.

Credits

Sec. filed June 2, 1970; amds. filed: July 31, 1974; Sept. 22, 1978; Dec. 24, 1981; Dec. 23, 1982; Oct. 4, 1984; Nov. 19, 1985; Dec. 19, 1985 as emergency measure; Jan. 7, 1986; Feb. 13, 1986; Aug. 2, 1988; Nov. 30, 1989 as emergency measure; March 1, 1990 as emergency measure; March 1, 1990; Dec. 29, 1992 as emergency measure; March 30, 1993 as emergency measure; May 27, 1993 as emergency measure; May 27, 1993; Nov. 28, 1994; Oct. 16, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 9, 1998; Feb. 25, 2003; Sept. 27, 2011 eff. Oct. 12, 2011. Amended (d); amd. filed April 21, 2023 eff. May 10, 2023 (Register dated May 10, 2023).

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18 NYCRR 352.18

Section 352.18. Reserved

[Currentness](#)

Credits

Sec. filed June 2, 1970; amds. filed: Oct. 13, 1970; Dec. 1, 1972; repealed, filed Nov. 17, 1975; new filed Dec. 24, 1981; amds. filed: Dec. 20, 1982; June 6, 1985; Aug. 23, 1985; Dec. 19, 1985 as emergency measure; Feb. 13, 1986; Oct. 16, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 9, 1998 eff. April 22, 1998. Added (c); amd. filed Dec. 30, 2008 eff. Jan. 14, 2009. Added (d), amended (c); rep. and reserved filed April 21, 2023 eff. May 10, 2023 (Register dated May 10, 2023).

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18 NYCRR 352.19

Section 352.19. Expenses incident to employment

Currentness

The following expenses incident to employment shall be deducted from gross monthly earnings:

(a) \$150 of earned income for each individual engaged in employment must be disregarded after applying the earned income disregard percentage to the gross income.

(b) Expenses incident to employment shall not be deducted from gross earnings in any month where the individual:

(1) terminated his or her employment or reduced his or her earnings without good cause within the period of 30 days preceding such month;

(2) refused without good cause, within a period of 30 days preceding such month, to accept employment in which he or she is able to engage, offered by the State Employment Service, or any other bona fide offer of employment; or

(3) failed without good cause to make a timely report of new or increased income. A report of income is considered timely if a recipient reports the receipt of new or increased income no later than 10 days after the receipt of the income. A report of such income made more than 10 days after receipt is not timely, but a report made more than 10 days prior to the end of the month is timely with respect to the next month and any succeeding month.

Credits

Sec. filed June 2, 1970; amds. filed: July 6, 1970; Oct. 13, 1970; June 29, 1971; June 14, 1972; April 19, 1973; Oct. 4, 1974; June 9, 1978; repealed, new filed Dec. 24, 1981; amds. filed: Aug. 27, 1982; Dec. 23, 1982; Oct. 4, 1984 as emergency measure; Nov. 30, 1984; Nov. 30, 1989 as emergency measure; March 1, 1990 as emergency measure; March 1, 1990; Dec. 29, 1992 as emergency measure; March 30, 1993 as emergency measure; May 27, 1993 as emergency measure; May 27, 1993; Oct. 16, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 9, 1998; Feb. 25, 2003; Sept. 27, 2011 eff. Oct. 12, 2011. Amended (b)(3); amd. filed April 21, 2023 eff. May 10, 2023 (Register dated May 10, 2023).

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Section 352.20. Exemption of earned income

Currentness

(a) All of the earned income of a dependent child in receipt of Family Assistance (FA) or Safety Net Assistance (SNA), who is a full-time student or part-time student is exempt and must be disregarded as income or resources in determining eligibility or degree of need. For the purpose of this subdivision:

(1) *full-time student* means attending a school, college or university or a course of vocational or technical training designed to fit a person for gainful employment or participation in the Job Corps under the Job Training Partnership Act; and

(2) *part-time student* means attending a school, college or university or a course of vocational or technical training designed to fit a person for gainful employment or participation in the Jobs Corps under the Job Training Partnership Act equal to at least one half of a full-time curriculum as determined by the educational authority.

(b) All of the earned income of an FA or SNA dependent child who is a full-time or part-time student shall be exempt and disregarded.

(c) For all public assistance households, 50 percent of the recipient's monthly earned income is exempt and must be disregarded as income or resources in determining eligibility and degree of need; provided, however, that the percentage amount must be adjusted in June of each year to reflect changes in the most recently issued poverty guidelines of the United States Bureau of the Census, so that a household of three without special needs and without unearned income, living in a heated apartment in the City of New York, would become ineligible for assistance if gross earnings equal the poverty level. This disregard will be allowed only if such person had not:

(1) terminated employment or reduced earnings without good cause within the period of 30 days preceding such month;

(2) refused without good cause, within a period of 30 days preceding such month, to accept employment in which he/she is able to engage, offered by the State Employment Service, or any other bona fide offer of employment; or

(3) failed without good cause to make a timely report of income;

The disregard specified in this subdivision must be provided only to recipients residing in housing provided under section 352.3(a), (b), (c) or (d) or section 352.8(b)(1) of this Part. Other recipients not residing in such housing may have income in excess of the poverty level but the disregard must be provided only to the extent that earnings do not exceed the poverty level.

(d) An applicant's eligibility for public assistance must be determined without taking into consideration the earned income exemption specified in subdivision (c) of this section, unless, after applying the \$150 work expense disregard, the applicant is determined eligible, or the applicant's needs were met in whole or in part by public assistance payments for any one of the four preceding months the earned income disregard must be applied to the remaining earned income.

(e) The earned income exemption specified in subdivision (c) of this section shall be applied against the earnings of a legally responsible caretaker relative whose needs are not included in the public assistance grant in determining the amount of such relative's earnings which are available to such relative's public assistance dependents. When such dependents are applicants for public assistance, the earned income of the nonapplying, legally responsible caretaker relative shall be treated in accordance with conditions set forth in subdivision (d) of this section.

(f) *Safety Net Assistance (SNA) plan of self-support.* All of the earned income and/or resources of an SNA, or Veteran Assistance recipient which are necessary to fulfill a plan of self-support, which has been authorized and approved by a social services official, are exempt and must be disregarded when determining eligibility for or degree of need for such assistance for a period not to exceed one year.

(g) For either an applicant or recipient of public assistance, the social services official must disregard the Federal Earned Income Tax Credit received as either a refund or advance payment.

(h) Provided that the recipient's total income is not more than two hundred percent of the federal poverty level for their household size, all of the earned income of an FA or SNA recipient that is derived from participation in the following qualified training or work activities is exempt and must be disregarded as income or resources in determining eligibility or degree of need: subsidized employment, work experience, job search, vocational education, secondary school, job skills training, educational training, job readiness training, community service and on-the-job training. Earned income from other activities may be subject to this exemption if the activity is determined to be a qualified work activity or training program by the Office of Temporary and Disability Assistance.

(i) Once during the lifetime of a FA or SNA recipient, all earned income from unsubsidized employment of such recipient will be disregarded in determining eligibility or degree of need following job entry, provided that such exemption shall be for no more than six consecutive months from the initial date of obtaining such unsubsidized employment and that the recipient's resulting total income shall not be more than two hundred percent of the federal poverty level for their household size. No other concurrent earned income disregards shall be applied to the income the recipient earns from the unsubsidized employment subject to this exemption during the six month period it applies.

Credits

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31, 1991 as emergency measure; May 31, 1991; July 20, 1992; Dec. 14, 1992; Oct. 16, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 9, 1998; Sept. 9, 2003; Sept. 13, 2004 eff. Sept. 29, 2004. Amended (a)(1)-(3), (b); amd. filed April 21, 2023 eff. May 10, 2023 (Register dated May 10, 2023); amd. filed Aug. 20, 2024 eff. Sept. 4, 2024 (Register dated Sept. 4, 2024).

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18 NYCRR 352.21

Section 352.21. Individual development accounts

Currentness

(a) *Establishment.* An individual development account may be established by or on behalf of an individual eligible for Family Assistance for the purpose of enabling the individual to accumulate funds for a qualified purpose as specified below.

(b) *Qualified purpose.* A qualified purpose is one or more of the reasons listed below:

(1) Postsecondary education expenses. Postsecondary educational expenses paid from an individual development account directly to an eligible educational institution.

(2) First home purchase. Qualified acquisition costs with respect to a qualified principal residence for a qualified first-time homebuyer, if paid from an individual development account directly to the persons to whom the amounts are due.

(3) Business capitalization. Amounts paid from an individual development account directly to a business capitalization account which is established in a federally insured financial institution and is restricted to use solely for qualified business capitalization expenses.

(c) *Contributions to be made from earned income.* An individual may only contribute to an individual development account such amounts as are derived from the disregarded portion of the reported earned income of a recipient of family assistance. Contributions by the individual can only be made while the individual is receiving Family Assistance.

(d) *Withdrawal of funds.* Funds may only be withdrawn for one of the three reasons given above.

(e) *Requirements for establishing accounts.* An individual development account established under these regulations and Federal law and regulations is a trust created or organized in the United States and funded through periodic contributions by the establishing individual and which may be matched by or through a qualified entity for one of the purposes described in this Part.

(f) *Qualified entity.* The term *qualified entity* means:

(1) an organization which meets the definition of not-for-profit under the Internal Revenue Code of 1986 and is exempt from taxation under section 501(c)(3) of the code; or

(2) a local social services district acting in cooperation with an organization described in paragraph (1) of this subdivision. However, neither the State nor social services districts are required to make or match contributions.

(g) *No reduction in benefits.* An individual development account is disregarded for the purpose of determining eligibility to receive, or the amount of, any assistance or benefit authorized under any Federal program for the period during which the person maintains or makes contributions into the account.

(h) *Definitions.* The following definitions are used in this Part.

(1) Eligible educational institution. The term *eligible educational institution* means the following:

(i) An institution described in section 481(a)(1) or 1201(a) of the Higher Education Act of 1965 as such sections were in effect on August 26, 1996.

(ii) An area vocational education school (as defined in subparagraph [C] or [D] of section 521[4] of the Carl D. Perkins Vocational and Applied Technology Education Act as such sections were in effect on August 26, 1996).

(2) Post-secondary educational expenses. The term *post-secondary educational expenses* means:

(i) tuition and fees required for the enrollment or attendance of a student at an eligible educational institution; and

(ii) fees, books, supplies, and equipment required for courses of instruction at an eligible educational institution.

(3) Qualified acquisition costs. The term *qualified acquisition costs* means the costs of acquiring, constructing, or reconstructing a residence. The term includes any usual or reasonable settlement, financing, or other closing costs.

(4) Qualified business. The term *qualified business* means any business that does not contravene any law or public policy.

(5) Qualified business capitalization expenses. The term *qualified business capitalization expenses* means qualified expenditures for the capitalization of a qualified business pursuant to a qualified plan.

(6) Qualified expenditures. The term *qualified expenditures* means expenditures included in a qualified plan, including capital, plant, equipment, working capital, and inventory expenses.

(7) Qualified first-time homebuyer and date of acquisition.

(i) The term *qualified first-time home buyer* means a taxpayer (and, if married, the taxpayer's spouse) who has no present ownership interest in a principal residence during the three-year period ending on the date of acquisition of the principal residence to which this Part refers.

(ii) The term *date of acquisition* means the date on which a binding contract to acquire, construct, or reconstruct the principal residence to which this Part refers is entered into.

(8) Qualified plan. The term *qualified plan* means business plan which:

(i) is approved by a financial institution, or by a nonprofit loan fund having demonstrated fiduciary integrity;

(ii) includes a description of services or goods to be sold, a marketing plan, and projected financial statements; and

(iii) may require the eligible individual to obtain the assistance of an experienced entrepreneurial advisor.

(9) Qualified principal residence. The term *qualified principal residence* means a principal residence (within the meaning of [section 1034 of the Internal Revenue Code of 1986](#)), the qualified acquisition costs of which do not exceed 100 percent of the area purchase price applicable to such residence (determined in accordance with paragraphs [2] and [3] of section 143[e] of the Internal Revenue Code).

(i) *Administration*. Neither the State nor social services districts are required to administer any individual development account.

(j) *Penalties for unauthorized withdrawals*. Subject to any inconsistent Federal laws, rules, or regulations, the following penalties will be imposed on the family assistance recipients who withdraw funds from individual development accounts and use them for purposes other than specified above.

(1) The matching funds are subject to the conditions specified by the terms of the trust, if these funds are still available to the qualified entity.

(2) Penalties assessed under the terms of the trust by the qualified entity must be paid, if these funds are still available.

(3) After any penalties are paid, all moneys retained by the recipient, including matching funds, are treated as unearned income in the month the funds are withdrawn.

(4) The account is considered closed and any moneys left in the account after settlement of any penalties under paragraphs (1) and (2) of this subdivision are considered as unearned income as of the date of the unauthorized withdrawal. Any moneys retained in the following month are considered a resource in that month and subject to the resource limitations found in this Part.

(5) The account holder and his/her legal spouse are prohibited from establishing any other individual development accounts in the future.

(k) *Other provisions.* The following provisions, subject to Federal and State rules, apply.

(1) If the account holder dies, the account may be transferred to a contingent beneficiary subject to the conditions of the trust.

(2) The total of all deposits by the recipient of family assistance paid into an individual development account in a calendar year cannot exceed the amount of the earned income disregarded in calculating the amount of assistance for the recipient's household.

(3) The account holder may, subject to the terms of the trust, transfer available moneys from one individual development account to another without penalty under the family assistance program.

Credits

Sec. filed June 2, 1970; amds. filed: June 22, 1973; Nov. 17, 1975; Jan. 20, 1976; April 11, 1977; Nov. 18, 1982; Jan. 7, 1986; repealed, filed June 7, 1993; new filed: Oct. 3, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 24, 1998 as emergency measure; June 2, 1998 eff. June 17, 1998.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.21, 18 NY ADC 352.21

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18 NYCRR 352.22

Section 352.22. Noncountable income and resources

Currentness

Certain miscellaneous income and resources shall be exempt and disregarded in determining eligibility and the standard of need for public assistance, as follows:

- (a) *Relocation adjustment payments.* Any payment received under title II of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 shall be exempt and disregarded as income and resources in determining eligibility or standard of need.
- (b) *Loans under title III of the Economic Opportunity Act.* The proceeds of a loan to a family made under title III of the Federal Economic Opportunity Act shall be exempt and disregarded as income and resources in determining eligibility or standard of need.
- (c) *Loans.* For purposes of determining eligibility and standard of need for federally funded public assistance, the principal amounts of bona fide loans do not count as income or resources. Funds received by an applicant or recipient of federally funded public assistance can be considered a bona fide loan when the applicant or recipient submits to the social services district one of the following types of documents:
- (1) a signed written agreement between the applicant or recipient and an individual who or establishment which is engaged in the business of making loans which states that a loan was obtained from such individual or establishment; or
 - (2) a signed written agreement between a lender not normally engaged in the business of making loans and the applicant or recipient, which expresses the applicant's or recipient's intent to repay the loan within a specified time; or
 - (3) a signed written agreement between a lender not normally engaged in the business of making loans and the applicant or recipient, which expresses the applicant's or recipient's express intent to repay the loan either by specifying real or personal property which will be used as collateral for the loan by promising to repay the loan from anticipated income at the time that such income is received.

(d) *Energy assistance payments.* Any Federal energy assistance payments received by applicants for or recipients of public assistance shall not be considered income or resources for any purpose in the determination of need, the amount of assistance payment or any other purpose relating to any public assistance program.

(e) *Trust funds.* No application to the court need be made for the release of trust funds when the value of the trust, combined with other countable available resources, does not exceed the resource limits contained in section 352.23(b) of this Part. If the value of the trust, when combined with other countable assets, exceeds the resource limits contained in section 352.23(b) of this Part, the social services district must determine if the terms of the trust and the amount of funds in the trust warrant an application to the court to have funds in the trust released for the basic maintenance of the beneficiary of the trust. If the terms of the trust allow the trust funds to be used for basic maintenance purposes and the amount of funds in the trust warrant, application to the court must be made for release of the funds that exceed such resource limits.

(f) *Major disaster and emergency assistance.* The following assistance is exempt as income or resources when determining eligibility and benefit amount for federally funded public assistance:

(1) Federal major disaster and emergency assistance provided under the Disaster Relief Act of 1974, as amended by the Disaster Relief and Emergency Assistance Amendments of 1988 ([Public Law 100-707](#)); or

(2) comparable disaster assistance provided by states, local governments and disaster assistance organizations.

(g) *Payments for board of child.* Payment received for a child boarded out in the home of a recipient by an agency or a relative of the child shall not be considered in estimating needs of the household or applying income.

(h) *Income from family day care.* In the case of applicants for or recipients of public assistance and care who provide family day care for children, income of \$5 per day for each child, excluding their own child may not be applied against the standard of need.

(i) *Income from garden or livestock.* Value of produce from a garden or livestock shall be disregarded as income if the following conditions are met:

(1) the produce is for the exclusive use of the recipient and his dependents, and not for sale;

(2) no provision is made in the assistance plan for cost of production.

(j) *Meals as income.*

(1) When school lunches are furnished free, their value shall not be considered as income.

(2) When meals are furnished free, their value shall not be considered as income, except when more than one meal per day is furnished or when the recipient receives an allowance for meals away from home.

(k) *Supplemental nutrition assistance program (SNAP) benefits.* The value of SNAP benefits shall be exempt.

(l) *Donated foods.* The value of federally donated foods shall be exempt.

(m) *WIC program.* The value of benefits or assistance under the special supplemental program for women, infants and children (WIC program) shall not be considered as income or resources for any purpose relating to public assistance.

(n) *Seneca Nation Settlement Act payments.* Any payments made pursuant to [Public Law 101-503](#) (the Seneca Nation Settlement Act) are exempt and disregarded as income and resources in determining eligibility or standard of need for public assistance.

(o) *Payment under the Domestic Volunteer Services Act.*

(1) Reimbursement received for out-of-pocket expenses made to individuals serving as retired senior volunteers, foster grandparents, senior health aides, senior companions or any other volunteer providing services under title II of the Domestic Volunteer Services Act ([Public Law 93-113](#)) are exempt and disregarded in determining eligibility for and standard of need for public assistance.

(2) Reimbursement received for out-of-pocket expenses made to volunteers in the Service Corps of Retired Executives (SCORE), Active Corps of Executives (ACE) or any other programs under title III of [Public Law 93-113](#) (as amended by [Public Law 95-510](#)) are exempt and disregarded in determining eligibility for and standard of need for public assistance.

(p) *Adoption subsidies.* An adoption subsidy payment received on behalf of a child not receiving public assistance must be excluded as income or resources when determining the amount of the public assistance grant for the remaining family members, except in cases where including the child in the public assistance household would increase the amount of the public assistance grant paid to the family. In such instances, the child must be included in the public assistance household and the adoption subsidy payment counted as income when determining the amount of public assistance.

(q) *VISTA.* Any payments received by applicants for or recipients of public assistance who are volunteers under part A of title I of [Public Law 93-113](#) (VISTA) must be exempted and disregarded as income and resources in determining eligibility and standard of need; provided, however, that all of the VISTA payment is to be counted as income when the director of the ACTION agency determines that the value of all such payments, adjusted to reflect the number of hours such volunteers are serving, is equivalent to or greater than the minimum wage.

(r) *HUD community development block grant funds.* Any funds received by an applicant or recipient from the Department of Housing and Urban Development (HUD) community development block grants shall be exempt and disregarded as income and resources in determining eligibility or standard of need.

(s) *Needs-based support or maintenance.* Any support or maintenance assistance (including home energy assistance) which is provided on the basis of need and which is either assistance furnished in kind by a private or nonprofit agency or assistance furnished in cash or in kind by a supplier of home heating oil or gas, by an entity whose revenues are primarily derived on a

rate- of-return basis regulated by a State or Federal governmental entity, or by a municipal utility providing home energy, shall be exempt and disregarded as income and resources in determining eligibility or standard of need.

(t) *Support disregard.* Current child or child and spousal support collections received in a month by a household (including support collections received by the support collection unit and paid to the family and payments made directly to the family) shall be disregarded as income or resources in determining eligibility or standard of need pursuant to section 352.15 of this Part.

(u) *Payments to dependent children under the Job Training Partnership Act (JTPA).* Earned and unearned income derived through participation in a program carried out under the JTPA and paid to a dependent child shall be exempt and disregarded as income and resources in determining eligibility and standard of need of a household containing the dependent child unless such income is otherwise exempt and disregarded as student income under section 352.20 of this Part. Earned income shall be disregarded under this subdivision six months per calendar year for each such child.

(v) *Agent Orange payments.* Effective January 1, 1989, the following payments are exempt as income or resources when determining public assistance eligibility and benefit amount when such payments are received from any of the following sources:

(1) payments provided from the Agent Orange settlement fund;

(2) payments from any other fund established pursuant to the settlement in the In re Agent Orange product liability litigation; or

(3) payments from court proceedings brought for personal injuries sustained by veterans resulting from exposure to dioxin or phenoxy herbicides in connection with the war in Indochina in the period of January 1, 1962 through May 7, 1975.

(w) *Radiation exposure compensation.* Any payments received by applicants for or recipients of federally funded public assistance made under the Radiation Exposure Compensation Act ([P.L. 101-426](#)) for injuries or deaths resulting from exposure to radiation from nuclear testing and uranium mining are exempt and disregarded as income or resources in determining eligibility or standard of need for federally funded public assistance benefits.

(x) *Restitution payments.* Any payments made pursuant to [P.L. 100-383](#) and received by individuals of Japanese ancestry and natives of the Aleutian and Pribilof Islands for the purpose of restitution for wartime relocation and internment will be exempt and disregarded in determining eligibility or standard of need for federally funded public assistance benefits. Any such payments received by individuals of Japanese ancestry will also be exempt and disregarded in determining eligibility or standard of need for safety net assistance benefits.

(y) *Alaskan Native Claims Settlement Act (ANCSA) distributions.* The following distributions from a native corporation formed pursuant to ANCSA are exempt as income or resources when determining eligibility for and benefit amount of federally funded public assistance:

(1) cash, to the extent that it does not, in the aggregate, exceed \$2,000 per individual per year;

(2) stock;

(3) a partnership interest;

(4) land or an interest in land; and

(5) an interest in a settlement trust.

(z) *Indian tribe or tribe member trust funds held by the Secretary of the Interior.* All funds that are held in trust by the Secretary of the Interior for an Indian tribe or are to be distributed per capita to members of that tribe are exempt as income or resources when determining eligibility for and benefit amount of federally funded public assistance.

(aa) *Nazi persecution income.* Any payments made to individuals because of their status as victims of Nazi persecution as defined in [Public Law 103-286](#) shall be exempt and disregarded as income and resources in determining the eligibility or standard of need for public assistance.

(ab) *Veterans' Assistance payments provided for under [Public Law 104-204](#).* Veterans' Assistance payments made to or on behalf of certain Vietnam veterans' natural adult or minor children for any disability resulting from spina bifida suffered by such children are exempt and disregarded as income or resources in determining eligibility or standard of need for safety net assistance and federally funded public assistance benefits.

(ac) *Veterans' Assistance payments Covering Birth Defects.* Veterans' Assistance payments made for covered birth defects to or on behalf of the adult or minor children of women Vietnam veterans in service in the Republic of Vietnam during the period beginning on February 28, 1961 and ending on May 7, 1975, are exempt and disregarded as income or resources in determining eligibility or standard of need for safety net assistance and federally funded public assistance benefits. Covered birth defects means any birth defect identified by the veterans' assistance program as a birth defect that is associated with the service of women Vietnam veterans in the Republic of Vietnam during the period beginning on February 28, 1961 and ending on May 7, 1975, and that has resulted or may result, in permanent physical or mental disability.

Credits

Sec. filed June 2, 1970; amds. filed: March 7, 1973; July 11, 1973; July 31, 1974; Oct. 28, 1974; Nov. 17, 1975; Aug. 31, 1976; April 11, 1977; July 19, 1977; Sept. 19, 1977; Jan. 12, 1978; Sept. 4, 1980; May 29, 1981; Dec. 24, 1981 as emergency measure, expired 60 days after filing; Jan. 18, 1982; Aug. 16, 1984; Oct. 4, 1984; Aug. 23, 1985; Dec. 19, 1985; Jan. 7, 1986; June 22, 1987; May 5, 1988 as emergency measure; July 1, 1988 as emergency measure; Aug. 2, 1988; Dec. 19, 1990 as emergency measure, expired 90 days after filing; Feb. 22, 1991; March 19, 1991 as emergency measure; March 19, 1991; March 26, 1991; Jan. 16, 1992; Aug. 6, 1992; Aug. 25, 1992; Oct. 2, 1992; June 25, 1993; June 17, 1998; Dec. 13, 1999; July 28, 2003; Nov. 25, 2003 eff. Dec. 10, 2003; amd. filed April 19, 2016 eff. May 4, 2016.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.22, 18 NY ADC 352.22

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18 NYCRR 352.23

Section 352.23. Use of resources--general policy

[Currentness](#)

(a) Resources must be so used as to eliminate or reduce the need for public assistance, rehabilitate the client and conserve public funds through assignment and recovery. Applicants and recipients must generally be required to use available resources and to apply for and otherwise pursue potentially available resources. The use of resources and the application of income therefrom must be in accordance with the requirements specified in subdivision (b) of this section. In establishing local policies and procedures for the use of resources, distinction should be made between temporary and long-term cases.

(b) The amount of real and personal property, including liquid assets, that can be reserved for each public assistance household must not be in excess of \$2,500 for applicants, except that for applicant households in which any member is age 60 or over or is disabled, such resources must not exceed \$3,750, or \$10,000 for recipient households, excluding only:

(1) the home which is the usual residence of the assistance unit;

(2) one automobile, up to \$12,000 fair market value, or such other higher dollar value as the local social services district may elect to adopt. If the fair market value of the vehicle exceeds \$12,000, or a higher dollar value as adopted by the local social services district, the amount of equity in the vehicle must be determined. The vehicle's equity value must be applied against the applicable resource limits outlined in this subdivision. However, if the automobile is especially equipped with apparatus for individuals with a disability, the apparatus must not increase the value of the vehicle;

(3) an amount up to \$4,650 in a separate bank account established by an individual while currently in receipt of public assistance for the sole purpose of enabling the individual to purchase a first or replacement vehicle for the recipient to seek, obtain or maintain employment, so long as the funds are not used for any other purpose. Funds withdrawn for reasons other than for the purchase of a first or replacement vehicle will result in the full amount of funds in the account prior to the withdrawal being countable toward the public assistance household's resource limit beginning on the first day of the month of the withdrawal;

(4) an amount up to \$1,400 in a separate bank account established by an individual while currently in receipt of public assistance for the sole purpose of paying tuition at a two-year or four-year accredited post-secondary educational institution, so long as the funds are not used for any other purpose. Funds withdrawn for reasons other than paying tuition at a two-year or four-year accredited post-secondary educational institution will result in the full amount of funds in the account prior to the withdrawal being countable toward the public assistance household's resource limit beginning on the first day of the month of the withdrawal;

(5) basic maintenance items essential to day-to-day living, such as clothes, furniture and household appliances, and other similarly essential items of limited value;

(6) one burial plot per household member;

(7) one bona fide funeral agreement per household member up to an equity value of \$1,500 per household member;

(8) for a period of six months, real property which the assistance unit is making a good faith effort to sell, but only if the assistance unit agrees in writing to use the proceeds from the sale to repay public assistance received which would not have been granted if the property had been sold immediately. If the property has not been sold within six months or if eligibility stops for any other reason, any payment of aid for that period must, at the time of the disposal, be considered an overpayment;

(9) tangible personal property necessary for business or for employment purposes, including, but not limited to, the following type of income-producing property when currently in use or reasonably expected to be used in the near future for their livelihood;

(i) business and farm equipment;

(ii) tools used for employment;

(iii) livestock and produce;

(10) funds in an individual development account;

(11) earned income tax credits; and

(12) funds in a New York achieving a better life experience (ABLE) savings account established in accordance with article eighty-four of the mental hygiene law.

(c) Ownership of all other personal property not exempt in subdivision (b) of this section, including but not limited to non-essential household furnishings, jewelry, savings and checking accounts, individual retirement or Keogh accounts, credit union accounts, annuities, stocks, bonds, mortgages, mortgage certificates and other securities, must be explored and analyzed to determine their equity value.

(d) In establishing local policies and procedures for the use of resources in cases of temporary need, social services districts do not have to require the assignment or adjustment of life insurance. However, social services districts may establish local policies and procedures which require the assignment or adjustment of life insurance as a condition of receiving public assistance. *Temporary need* means need which, at the time of application, is expected to terminate within three months.

(e) When a resource, either exempt or nonexempt, is sold, the payment received is treated as a resource, unless the proceeds are paid in installments, in which case the payments are counted as income in the month received.

Credits

Sec. filed June 2, 1970; amds. filed: Dec. 24, 1981 as emergency measure, expired 60 days after filing; Jan. 18, 1982; Aug. 16, 1984; Oct. 4, 1984; Nov. 30, 1984; May 3, 1989; Oct. 3, 1991; Dec. 20, 1991; Oct. 27, 1992; Oct. 2, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 7, 1998; Aug. 8, 2000; Feb. 25, 2003; March 10, 2006 eff. March 29, 2006; Feb. 5, 2008 eff. Feb. 20, 2008; amd. filed April 8, 2016 eff. April 27, 2016; amd. filed Dec. 7, 2016 eff. Dec. 28, 2016; amd. filed Feb. 15, 2023 eff. March 8, 2023 (Register dated March 8, 2023); amd. filed Oct. 31, 2023 eff. Nov. 15, 2023 (Register dated Nov. 15, 2023).

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 352.24. [Repealed]

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18 NYCRR 352.24

Section 352.24. [Repealed]

[Currentness](#)

Credits

Sec. filed June 2, 1970; repealed, new filed Sept. 24, 1974; repealed, filed Dec. 24, 1981 as emergency measure; made permanent by order filed Jan.18, 1982 eff. Jan. 18, 1982.

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18 NYCRR 352.25

Section 352.25. Net income from assigned assets

[Currentness](#)

Net income from an asset assigned to the agency shall be deemed current income and shall be applied against current need. (Net income is the difference between gross income and essential charges.) It may not be applied as a recovery of prior assistance rendered as long as current need remains unmet. Such income includes the following:

- (a) rental income from assigned real property;
- (b) disability or annuity income or benefits under an insurance policy;
- (c) interest from assigned mortgage;
- (d) dividends or interest from assigned stocks or bonds; and
- (e) any other assigned asset that may become income-producing.

Credits

Sec. filed June 2, 1970; amds. filed: Sept. 24, 1974; Dec. 24, 1981 as emergency measure; Jan. 18, 1982 eff. Jan. 18, 1982.

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18 NYCRR 352.26

Section 352.26. Life insurance

[Currentness](#)

(a) When an insurance policy has been assigned to the agency, the agency shall pay the premiums thereon unless it elects to take the paid-up value of the policy.

(b) When the agency is the assignee of the insurance policy, upon the death of the insured, the amount released for burial expenses shall be determined by the existing burial allowance. After deduction of such amount for burial expenses, any balance remaining, up to the amount of the cost of assistance and care rendered to the deceased, shall be taken by the agency for reimbursement, except, when the deceased leaves surviving him any relatives for whom he had been legally responsible and who are, or who are liable to become, public charges, the agency may release such balance to such relatives of the deceased.

Credits

Sec. filed June 2, 1970; amds. filed: Oct. 13, 1970; Sept. 24, 1974; Nov. 26, 1980; Dec. 24, 1981 as emergency measure; Jan. 18, 1982 eff. Jan. 18, 1982.

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18 NYCRR 352.27

Section 352.27. Real property

[Currentness](#)

(a) Ownership of real property by the applicant or recipient, or by the parent of a dependent child, when such property is utilized as their home, does not in and of itself make an individual ineligible for public assistance.

(b) While real property covered by a deed or mortgage is occupied, in whole or in part, by a person who executed that deed or mortgage to the social services official for aid to the aged, blind or disabled, granted to that person before January 1, 1974, the social services official shall not sell the property or assign or enforce the mortgage unless it appears reasonably certain that the sale or other disposition of the property will not materially adversely affect that person's welfare. After the person's death, no claim for assistance granted him shall be enforced against any real property while it is occupied by the surviving spouse.

(c) Except as otherwise provided, upon the death of a person who executed a lien to the social services official in return for aid to aged, blind or disabled granted prior to January 1, 1974, or before the person's death if it appears reasonably certain that the sale or other disposition of the property will not materially adversely affect that person's welfare, the social services official may enforce the lien in the manner provided in article 3 of the Lien Law. After the person's death the lien may not be enforced against real property while it is occupied by the surviving spouse.

Credits

Sec. filed June 2, 1970; amds. filed: Sept. 10, 1975; Sept. 4, 1981; Dec. 24, 1981; April 13, 1984; Aug. 6, 1992 eff. Aug. 26, 1992. Amended (a); amd. filed Feb. 15, 2023 eff. March 8, 2023 (Register dated March 8, 2023).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.27, 18 NY ADC 352.27



KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 352.28. [Repealed]

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18 NYCRR 352.28

Section 352.28. [Repealed]

[Currentness](#)

Credits

Sec. filed June 2, 1970; amds. filed: April 30, 1980; April 17, 1981; repealed, filed Dec. 24, 1981; new filed Nov. 19, 1985 as emergency measure; amds. filed: Jan. 17, 1986; Oct. 9, 1991; repealed, filed: Dec. 29, 1992 as emergency measure; March 30, 1993 as emergency measure; May 27, 1993 as emergency measure eff. May 27, 1993; May 27, 1993 eff. June 16, 1993.

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18 NYCRR 352.29

Section 352.29. Budgeting--the budgetary method

Currentness

- (a) The budgetary method shall be applied to the individual case to determine eligibility and the amount of the grant and/or the amount to be paid for a "purchase of service."
- (b) When the estimate of regularly recurring need based on the regulations of the department exceeds the available income and/or resources, the difference shall be known as a "budget deficit." When the available income and/or resources exceed the estimate of regularly recurring need, the difference shall be known as a "budget surplus."
- (c) An individual or family shall be entitled to public assistance and care when a budget deficit exists; provided, however, a household shall not be deemed in need and entitled to any cash assistance when there is a budget deficit of less than \$10.
- (d) Where investigation has been completed and need established on a continuing basis, the regularly recurring cash grant shall meet the full budget deficit, if there is one, and/or provision shall be made for the purchase of service when need is based on the need for such service, except that when the estimate of regularly recurring need and/or the amount of the assistance grant based on the regulations of the department do not equal a whole dollar amount, the amount(s) shall be rounded down to the next whole dollar amount.
- (e) When an item is paid by voucher or restricted grant, the amount paid must be deducted from the ensuing regularly recurring cash grant. When payments for heat and/or domestic energy (lights, cooking, hot water) are made by voucher, amounts not to exceed the following are to be removed from the grant:
- (1) For heat only bills, the fuel for heating allowance, as defined in section 352.5(b) of this Part, is to be removed from the grant for a recipient not residing in or budgeted in accordance with Section 8 certificate housing provisions as outlined in section 352.31(d)(2)(ii) of this Part. An amount equal to the appropriate fuel allowance schedule set forth in section 352.5(b) of this Part for the appropriate heating type and public assistance household size is to be removed from the grant for a recipient residing in Section 8 certificate housing or budgeted in accordance with the Section 8 certificate housing provisions outlined in section 352.31(d)(2)(ii) of this Part.
 - (2) For domestic only bills, an average monthly amount of the domestic energy cost is to be removed from the grant. However, when the recipient's utility bill (heat and/or domestic energy) is placed on voucher payment as a result of recipient mismanagement, the provisions set forth in section 352.5(g) of this Part apply. In the case where the amount paid is for

a period of more than one month, the deduction from the ensuing regularly recurring cash grants must be for the same number of months for which the bill is being paid.

(f) When the budget deficit increases between periods covered by the last regularly recurring grant, a special grant shall be made for the difference. This shall include the allowance necessary to provide on a prorated basis for an additional member of the household or for a member of the public assistance household who returns home for a visit.

(g) When an applicant for public assistance or care is an essential person in an SSI case, the amount of his/her essential person payment shall be considered as income and available to the applicant in determining his/her eligibility and degree of need.

(h) *Treatment of income in excess of standard of need.*

(1) For public assistance households, when the assistance unit's monthly income after application of applicable disregards exceeds the household's needs because of receipt of non-recurring lump sum earned or unearned income, (including retirement, survivors', and disability insurance benefits as provided for under title II of the Social Security Act; other retroactive monthly benefits; and payments in the nature of a windfall, *e.g.*, inheritances or lottery winnings, personal injury and workers' compensation awards), except to the extent that such lump sum income is earmarked and used for the purpose for which it is paid (*e.g.*, monies for previously incurred medical bills resulting from an accident or injury; funeral and burial costs; and replacement or repair of resources), the family will be ineligible for aid for a calculated period. This period is calculated by dividing the sum of the lump sum income and any other income received during the month, after applicable disregards for the month, by the household needs for a family which consists of the family assistance or safety net assistance unit plus any other individual whose needs are taken into account in determining eligibility and the amount of the grant. Any income remaining from this calculation is income in the first month following the period of ineligibility.

(2) The local district shall shorten the period of ineligibility in any one or more of the following cases and in the following manner:

(i) by excluding from any lump sum income for which this subdivision applies any amount which would be exempt and disregarded as cash and liquid or non-liquid resources because it does not exceed the resource eligibility limit as established under section 352.23(b) of this Part;

(ii) by recalculating the period of ineligibility based upon the new standard of need and the amount of the lump sum which would remain if a proportionate amount thereof had been granted in each month of ineligibility, when an event occurs which, had the family been receiving assistance for the month of occurrence, would result in a change in the amount of assistance payable for such month; or

(iii) by recalculating the period of ineligibility based upon the actual amount of the lump sum remaining when the income received or a portion thereof has become unavailable to the members of the family for reasons that were beyond the control of such members. *Unavailable* shall mean the family no longer has the lump sum income. Reasons which are considered to be beyond the control of the family shall include but are not limited to any event or circumstances which the family did not foresee or could not prevent, such as loss or theft of income or a life threatening circumstance; or

(iv) by recalculating the period of ineligibility based upon the actual amount of the lump sum remaining when the family incurs, becomes responsible for, and pays medical expenses as defined under the Medical Assistance Program in the month of ineligibility; or

(v) by recalculating the period of ineligibility based upon the actual amount of the lump sum remaining if the family, within 90 days of receipt of the lump sum, has used any or all of the lump sum for the following exempt resources:

(a) to purchase an automobile that is needed to seek or retain employment or for travel to and from work activities and which is exempt from the public assistance resource limit under section 352.23(b) of this Part; or

(b) to open a separate bank account or bank accounts that are exempt from the public assistance resource limit under section 352.23(b) of this Part for the purpose of purchasing an automobile to seek or retain employment or for the purpose of paying tuition at a two-year or four-year accredited post-secondary educational institution; or

(c) to purchase a burial plot that is exempt from the public assistance resource limit under section 352.23(b) of this Part; or

(d) to purchase a bona-fide funeral agreement that is exempt from the public assistance resource limit under section 352.23(b) of this Part.

(3) In instances when an individual makes a voluntary payment of excess income to a local district as recovery for past assistance granted, the provisions of paragraph (1) of this subdivision shall not apply; however, if the amount of the excess income exceeds the amount of past assistance, the provisions of paragraph (1) of this subdivision shall apply to the remainder.

(i) *Residency.*

(1) In accordance with [section 131-a\(3\) of the Social Services Law](#), the following rules apply for persons entering this State and applying for home relief. For the first six months after establishing residency in this State, home relief benefits are limited to the standard of payment in the state in which the applicant resides immediately prior to establishing residency in this State. In no event can the grant be greater than the grant for which the applicant would otherwise be eligible for under this Title. For purposes of this subdivision, the standard of payment which would be available under the laws of another state refers to a schedule of comparative grants which the department will distribute to each social services district and other interested parties and which will be effective on July 1st of each odd numbered year, beginning in 1995. The schedule will set forth, for any state which financially participates in or mandates a program of assistance generally available to needy persons meeting specified income and resource requirements, the amount of the state's maximum standard of payment, if any, for each household size. If there is no general assistance program in the state in which the applicant previously resided, home relief will not be payable for the first six months after establishing residency in this State. Home relief benefits are not payable for persons entering this State from outside the United States, its territories or possessions for the first six months after they establish residency in this State.

(2) For purposes of this subdivision, an individual establishes when his or her residency in this State began by providing to the appropriate employee of the social services district information showing when the individual entered the State and establishing that the individual is currently residing in the State with a fixed intention to remain here.

(3) This subdivision will apply to recipients of aid to dependent children when all necessary Federal approvals are obtained.

Credits

Sec. filed June 2, 1970; amds. filed: March 17, 1978; Nov. 9, 1979; Dec. 24, 1981; Jan. 13, 1982; Dec. 23, 1982; Sept. 30, 1983; Oct. 4, 1984; July 2, 1985; Jan. 7, 1986; Oct. 9, 1991; June 5, 1992 as emergency measure; Sept. 1, 1992 as emergency measure; Oct. 27, 1992 as emergency measure; Oct. 27, 1992; July 21, 1994; July 1, 1996; June 22, 1999; March 10, 2006 eff. March 29, 2006; Feb. 5, 2008 eff. Feb. 20, 2008; amd. filed Dec. 5, 2017 eff. Dec. 20, 2017.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.29, 18 NY ADC 352.29

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Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.30

Section 352.30. Persons included in the budget

[Currentness](#)

(a) For budgetary purposes, the number of persons in the public assistance household are those persons who the applicant, recipient or a representative indicates wish to receive public assistance and who reside together in the same dwelling unit. The applicant or recipient must include his or her minor dependent children in the application. When a minor dependent child is named as an applicant for public assistance, his or her natural or adoptive parents and blood-related or adoptive brothers and sisters (who are also minor dependent children) must also apply for public assistance and have their income and resources applied toward the public assistance household if they reside in the same dwelling unit as the applying minor dependent child. A person required to be added to the public assistance household is deemed to be included in the application already on file as of the date the person joins the household, either by birth, adoption, or by moving into the dwelling unit of the existing public assistance household. For the purposes of this subdivision, a minor dependent child is a child who is under 18 years of age. Parents and siblings who are SSI recipients, stepbrothers and stepsisters, ineligible sponsored aliens, aliens who fail to meet the citizenship and alienage requirements in section 349.3(a) of this Title, individuals ineligible due to the lump sum provision of section 352.29(h) of this Part, or children who are receiving adoption subsidies which are exempt under section 352.22(p) of this Part are not required to apply in accordance with this subdivision. The public assistance household may also include persons who are temporarily absent from such household, such as children or minors attending school away from home whose full needs are not otherwise met.

(b) For purposes of determining the amount to be included in the standard of need for shelter under section 352.3 of this Part and fuel for heating under section 352.5 of this Part for persons in permanent housing, if permitted under Federal law and regulations, the public assistance household includes any child entering foster care who was eligible for and in receipt of assistance and care as a member of the household in and for the month of entry into foster care. Such child must be included in the household pending preparation of the child services plan pursuant to Part 428 of this Title and at any time thereafter that the child remains in foster care and the child services plan includes a goal of discharge of the child to a member of the household.

(c) *Three-generation households.*

(1) With respect to an applying dependent child whose parent is under age 18 and living with the child, the dependent child and such minor parent are considered members of the same public assistance household. The local district must deem any income of the minor parent's own nonapplying parent(s) to be available to such public assistance household when they reside together in the same dwelling unit. Such income must be deemed available to the same extent as income of a stepparent under section 352.14 of this Part.

(2) With respect to an applying dependent child whose parent is between the ages of 18 and 21 and living with the child, the dependent child and such parent are considered members of the same public assistance household. The local district must deem any income of the nonapplying parents of the 18-to 21-year-old parent to be available to such parent if they reside together in the same dwelling unit. Such income must be deemed available to the minor parent to the same extent as income of a stepparent under section 352.14 of this Part. However, such income must not be deemed available to the applying dependent child.

(d) *Treatment of sanctioned persons.*

(1) The needs of an individual required to be in the public assistance household pursuant to subdivision (a) of this section must not be considered and the needs of the family must be determined based on the remaining persons in the public assistance household when:

(i) the individual willfully fails or refuses to furnish or apply for a social security number for each member of the household pursuant to section 369.2(b)(1) or section 370.2(c)(3) of this Title;

(ii) *[Reserved]*; or

(iii) the individual fails or refuses to apply for or use employee group health insurance benefits pursuant to section 349.6 of this Title.

(2) When an individual who is required to be in the public assistance household pursuant to subdivision (a) of this section, or who is the caretaker of a dependent child, fails to comply with the requirements of section 351.2 (i) of this Title or willfully and without good cause fails or refuses to comply with the requirements of Part 385 of this Title, the public assistance benefits otherwise available to the household of which such individual is a member will be reduced pro rata.

(3) When an individual who is a member of a household without dependent children fails to comply with the requirement of section 351.2(i) of this Title, or willfully and without good cause fails or refuses to comply with the requirements of Part 385 of this Title, the public assistance benefits otherwise available to the household of which the individual is a member will be reduced pro rata.

(4) When an individual fails to cooperate in establishing paternity or in establishing, modifying or enforcing a support order pursuant to section 369.2(b)(1) or section 370.2(c)(9) of this Title, and the individual does not have good cause for such failure or is not otherwise excepted from so cooperating, the public assistance otherwise available to the household of which such individual is a member will be reduced by 25 percent.

(e)

(1) Treatment of income and resources of nonapplying or ineligible parent or spouse. Unless required to be in the public assistance household pursuant to subdivision (a) of this section, legally responsible relatives of a dependent child or spouse may choose whether or not to apply for assistance. The income and presence in the home of a legally responsible relative

who chooses not to apply for or who is ineligible for assistance for a reason other than a sanction subject to subdivision (d) of this section must be considered. Such persons include, but are not limited to, persons who are ineligible by reason of their immigration status or their receipt of nonrecurring lump sum income. The public assistance budget for a household residing with such a legally responsible relative is calculated as follows:

(i) The needs of the public assistance household are calculated as if the nonapplying or ineligible person were applying for assistance as a member of the public assistance household.

(ii) The pro rata share of the amount calculated in subparagraph (i) of this paragraph which is attributable to the nonapplying or ineligible person is determined.

(iii) If the nonapplying or ineligible person's income is less than his or her pro rata share of the amount in subparagraph (i) of this paragraph, such person's needs and income are not counted when calculating the budget deficit or surplus of the public assistance household, and only the needs and income of the persons actually applying are considered.

(iv) If the nonapplying or ineligible person's income is equal to or greater than his or her pro rata share of the amount in subparagraph (i) of this paragraph, such person's needs and income are counted when calculating the budget deficit or surplus of the public assistance household, as if the person were applying for assistance.

(v) For purposes of the preceding subparagraph, the income of a recipient of SSI who is not applying for public assistance and who is the parent of a home relief applicant or recipient who is under the age of 21 or who is the spouse of a home relief applicant or recipient is considered to be equal to his or her pro rata share of the amount in subparagraph (i) of this paragraph, and any amounts of his or her income which would otherwise exceed such pro rata share are disregarded.

(vi) The resources of the public assistance household include the nonapplying person's resources regardless of the amount of such person's income. With respect to a nonapplying person who is in receipt of SSI, resources which are exempt for purposes of SSI are not taken into consideration.

(f) When an applicant for or recipient of public assistance refuses to cooperate in applying for or accepting SSI benefits for himself or herself or for a member of the public assistance household, the needs of such individual shall be eliminated from the grant, and the needs of the family shall be determined based on the remaining persons in the grant. If, however, such individual is physically or emotionally unable to complete the SSI application process, the local department of social services shall provide any services which are necessary to insure that the individual is assisted in making the SSI application. In such instance, that individual shall not be denied public assistance and care.

(g) *Intentional program violation penalties.* When an applicant for or a recipient of public assistance is found to have committed an intentional program violation (public assistance-IPV) either through an administrative disqualification hearing or by a court of appropriate jurisdiction, or has signed either a waiver of right to an administrative disqualification hearing or a disqualification consent agreement, his or her needs cannot be considered for the following periods when determining the amount of assistance:

(1) for six months for the commission of a first public assistance-IPV;

- (2) for 12 months for the commission of a second public assistance-IPV, or when the offense results in the wrongful receipt of benefit is in an amount between \$1,000 and \$3,900;
- (3) for 18 months for the commission of a third public assistance-IPV or when the offense results in the wrongful receipt of benefits in an amount in excess of \$3,900;
- (4) for five years for the commission of a fourth or subsequent public assistance-IPV; findings of the commission of intentional program violations in the ADC and HR programs prior to August 20, 1997 must be considered in determining the sanction to be imposed for a public assistance-IPV;
- (5) any sanction imposed by this subdivision will remain in effect unless and until the finding upon which the sanction was imposed is reversed by a court of appropriate jurisdiction; or
- (6) the income and resources of an individual disqualified from receiving assistance under this subdivision, but not his or her needs, must be budgeted against the needs of anyone who is in the sanctioned person's filing unit or anyone applying for or in receipt of assistance for whom the sanctioned person is legally responsible.

Credits

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N.Y. Comp. Codes R. & Regs. tit. 18, § 352.30, 18 NY ADC 352.30

Compilation of Codes, Rules and Regulations of the State of New York
Title 18. Department of Social Services
Chapter II. Regulations of the Department of Social Services
Subchapter B. Public Assistance
Article 1. Determination of Eligibility--General
Part 352. Standards of Assistance (Refs & Annos)

18 NYCRR 352.31

Section 352.31. Estimate of need and application of income

Currentness

(a) *For applicant or recipient.*

(1) The estimate of need for any applicant or recipient shall include all items of need as specified in these regulations for persons in the circumstances under which such items are allowed. The amount to be included for each item of need shall be the appropriate amount provided in accordance with schedules and other provisions of these regulations. To the extent that an item offered is otherwise provided, it shall not be included in the estimate of need, but the manner in which such item is provided shall be recorded.

(2) All available and unrestricted income of a legally responsible relative in the home and/or a relative required to be in the public assistance household pursuant to section 352.30 of this Part must be applied against his/her own needs and the needs of the other persons in the public assistance household. In determining eligibility and standard of need, if one of the relatives referenced in this paragraph is sanctioned under Part 347, 349, 352, 369, 370 or 385 of this Title, all of that person's income, minus any appropriate disregards under section 352.19 or 352.20 of this Part, must be applied against the needs of the public assistance household.

(3) The amount of income received by the applicant or recipient in excess of \$15 per month from a lodger, or in excess of income of \$60 per month from a boarding lodger, shall be considered as income to the applicant or recipient, unless such applicant or recipient documents that the actual out-of-pocket expenses incurred in providing the room for the lodger exceed \$15 per month, or that such expenses for room and board for the boarding lodger exceed \$60 per month. If documented expenses exceed \$15 or \$60, actual expenses shall be allowed and the excess considered income to the applicant or recipient.

(4) Support payments made pursuant to an order of the Family Court or other appropriate court by an individual through a social services district's support collection unit on behalf of a safety net assistance applicant or recipient must be applied in the safety net assistance category as follows: an amount of current child or child and spousal support collected on behalf of the safety net assistance household must be disregarded and paid to the safety net assistance household pursuant to section 352.15 of this Part. The remaining amount must be used for purposes of determining eligibility for public assistance, and then applied as reimbursement for public assistance paid to the safety net assistance household on whose behalf such support payments are collected.

(5) Support payments required to be made directly to a recipient by an individual pursuant to an order of the Family Court or other appropriate court will be treated in the safety net assistance category only as follows:

(i) If there has been habitual failure to make court-ordered support payments or where the circumstances are such that there are reasonable grounds to believe that such support payments will not be made, the income therefrom may be considered as irregular as to amount or uncertain as to receipt and the provisions of subdivision (c) of this section shall be considered as applicable.

(ii) Failure to make at least three payments in full during the preceding three-month period shall be deemed to constitute a habitual failure to make payments.

(iii) The following shall constitute reasonable grounds to believe that court-ordered support payments will not be made by the individual who has been ordered to make such payments:

(a) the individual has failed to make at least three consecutive court-ordered support payments in full; or

(b) the whereabouts of the individual are unknown; or

(c) the individual is known to be unemployed; or

(d) the individual's sole means of support is known to be public assistance or supplemental security income or both; or

(e) the individual is confined to a medical institution or is obviously too ill or incapacitated to work; or

(f) the individual is incarcerated in a penal institution.

(iv) In cases in which the individual is making payments on a regularly recurring basis, but in an amount less than the amount stated in the court order, such lesser amount only shall be applied against the needs of the applicants or recipients in determining the amount of the grant.

(v) For current child or child and spousal support received directly by a safety net assistance household in a month, an amount determined pursuant to section 352.15 of this Part must be disregarded.

(6) Upon notification by the support collection unit of the amount of current support collected for a month for a recipient of public assistance, the public assistance unit must review the household's eligibility to receive public assistance. This review must be conducted no later than the second month after the month in which the public assistance unit receives from the support collection unit the report of the current support collected for the month. In determining whether the amount of current support collected was sufficient to make the family ineligible for assistance during the month for which the support was collected, the public assistance unit must treat the amount of support collected, less the portion disregarded pursuant to section 352.15 of this Part, as income. If such treatment makes the family ineligible for assistance, the public assistance unit must notify the family and the support collection unit of the

effective date of the household's ineligibility for assistance. If such treatment does not make the household ineligible for an assistance payment, the assistance payment will be calculated without regard to the amount of support collected.

(7) If assistance which is countable under the durational time limit provisions of section 369.4 or 370.4 of this Title continues to be paid after the effective date of ineligibility pursuant to paragraph (6) of this subdivision, the social services district shall adjust the time limit count of trackable individuals in the case to remove the months of ineligibility during which countable assistance was issued.

(8) Any amount of support paid to the household pursuant to section 347.13(b)(3)(iv), (v), (vi), (vii), (c)(2)(iii), (iv), or (v) of this Title must be treated as income in the month after the month in which the payment is received by the household.

(b) *[Reserved]*

(c) *Temporary changes in earned income.* When there is a temporary change in earned income, no adjustment will be made to the regularly recurring public assistance grant. However, changes in earned income that last for less than 30 days must be supplemented when the following conditions are met:

(1) a supplement has been requested;

(2) verification of the reduced earned income amount has been provided no later than 10 days after the month in which the reduction occurred; and

(3) the recipient has established that the reduction in earned income was beyond the recipient's control. Beyond the recipient's control means that the reduction resulted from:

(i) a mental or physical problem that the recipient had;

(ii) the employer's determination to reduce hours of work or wages; or

(iii) other extenuating circumstances under which the recipient could not reasonably be expected to earn the same amount of income.

(d) *Recovery of overpayments.*

(1) Social services districts shall take all reasonable steps necessary to promptly correct any overpayments, including overpayments resulting from assistance paid pending a hearing decision, subject to the following conditions:

(i) Social services districts must recover an overpayment from:

(a) the assistance unit that was overpaid;

(b) any assistance unit of which an adult member of the overpaid assistance unit, as defined in subparagraph (ii) of this paragraph, has subsequently become a member; and

(c) any adult individual member of the overpaid assistance unit, as defined in subparagraph (ii) of this paragraph, whether or not currently a recipient.

(ii) The term adult, as used in this subdivision, refers to any member of the assistance unit who at the time of overpayment occurrence exceeds the age requirements of an eligible child as set forth in section 369.2(c) of this Title. A child meeting the eligible child age requirements as set forth in section 369.2(c) of this Title who is a member of the assistance unit at the time of overpayment occurrence must not be held liable for overpayment recoupment/recovery by operation of clauses (i)(b) or (c) of this paragraph.

(2) The proportion of the current assistance grant that must be deducted for recoupment must be 10 percent of the household's needs for family assistance and safety net assistance. If undue hardship is claimed and substantiated, the recoupment must not be less than five percent of the household's needs. However, when the grant amount is less than 10 percent of such needs for family assistance or safety net assistance, or less than five percent in undue hardship situations, the full grant must be recouped. For purposes of this paragraph, the household's needs include the following allowances:

(i) an allowance for regularly recurring needs and home energy as contained in schedules SA-2a, SA-2b and SA-2c of section 352.2(d) of this Part;

(ii) an allowance for rent in accordance with section 352.3(a) and (d) of this Part;

(iii) an allowance for fuel for heating as contained in schedules SA-6a, SA-6b and SA-6c of section 352.5(b) of this Part;

(iv) an allowance for personal needs in accordance with section 352.8 of this Part;

(v) a restaurant allowance and an allowance for home delivered meals as contained in schedule SA-5 of section 352.7(c) of this Part;

(vi) an allowance for chattel mortgages or conditional sales contracts in accordance with section 352.7(h) of this Part;

(vii) a pregnancy allowance in accordance with section 352.7(k) of this Part; and

(viii) an allowance for water in accordance with section 352.3(b) of this Part.

(3) If through recoupment, the amount payable to the assistance unit is reduced to zero, members of the assistance unit are still considered recipients of family assistance or safety net assistance.

(4) In cases which have both an underpayment and an overpayment, the social services district shall offset one against the other in correcting the payment.

(5) Recovery shall be made by appropriate legal action against the income or resources of those individuals who are no longer recipients. However, social services districts may waive recovery of an overpayment from an individual no longer receiving assistance if the amount of the overpayment is less than \$125 and the overpayment was not the result of fraud on the part of the recipient as defined in section 348.1 of this Title. In cases involving fraud, social services districts must continue to make an effort to recover the overpayment, regardless of the amount. When the overpayment is \$125 or more and does not involve fraud, social services districts may elect to discontinue collection procedures when it is determined that the cost of recovery is greater than the cost of collection and reasonable efforts to recover the overpayment have been made. Reasonable efforts must include notification of the amount of and reason for the overpayment and that repayment is required. If recovery is not made, the social services district must recoup the amount of overpayment if the assistance unit reapplies and is found eligible.

(6) When a recipient who is subject to recoupment moves from one social services district to another, the new district of residence shall recover overpayments made by the social services district of original residence in accordance with the provisions of this Part.

(7) Social services districts shall take one of the following three actions by the end of the quarter following the quarter in which the overpayment is first identified:

(i) recover the payment;

(ii) initiate action to locate and/or recover the overpayment from a former recipient; or

(iii) initiate recoupment from a current recipient's grant.

(8) When an overpayment, or any portion of an overpayment, represents assistance received during a period of ineligibility for such assistance, and when such assistance was countable toward a time limit pursuant to the provisions of section 369.4 or 370.4 of this Title, social services districts shall take the following actions:

(i) identify the specific whole calendar month(s) of ineligibility for countable assistance;

(ii) identify the amount of countable assistance for each whole calendar month of ineligibility;

(iii) track repayment or recovery of the amount of the overpayment to determine when a previous whole calendar month of countable assistance has been fully recouped or recovered; and

(iv) adjust the individual's time limit count to remove each calendar month of ineligible receipt of countable assistance as the full amount of countable assistance for that month is recouped or recovered.

(e) *Overpayments to aliens.*

(1) Any sponsor of an alien and the alien shall be jointly and severally liable for any overpayment of public assistance made to the alien during the three years after the alien's entry into the United States due to the sponsor's failure to provide correct information under the provisions of section 352.33 of this Part.

(2) When a sponsor is found to have good cause or to be without fault for not providing information to the social services district, the sponsor will not be held liable for the overpayment, and recovery will not be made from such sponsor. The sponsor shall have good cause or be without fault if the information requested was not known and could not have been known to the sponsor or the documentation requested was not available to the sponsor.

(3) An overpayment for which the alien or the sponsor and the alien are liable shall be repaid to the social services district or recovered in accordance with subdivision (d) of this section. If the social services district is unable to recover the overpayment through this method, funds to reimburse the agency shall be withheld from future payment to which the alien or sponsor is entitled under:

(i) family assistance or safety net assistance; or

(ii) any federally-administered cash benefit program established by the Social Security Act.

(f) *Correction of underpayments to current recipients.*

(1) Social services districts must correct any underpayments to current recipients, and to those who would be current recipients if the error causing the underpayment had not occurred, by making appropriate payments in each case within 30 days after discovery of the underpayments. Such retroactive payments will not be considered as income or as a resource in the month paid or in the next following month. Judicial determinations which enjoin or declare invalid departmental policy do not create an underpayment.

(2) Persons who join an existing public assistance filing unit, who are required to be members of the unit and, whose presence causes an underpayment to be made to the case will have an underpayment adjustment made only:

(i) for those months in which the filing unit met all eligibility requirements; or

(ii) for the period retroactive to the date that the persons joined the existing filing unit when the change in household composition is reported within 10 days of its occurrence, and if the appropriate eligibility requirements are met within such 10-day period.

Credits

Sec. filed June 2, 1970; amds. filed: Sept. 1, 1970; Aug. 26, 1971; March 27, 1972; April 2, 1973; May 30, 1974; July 31, 1974; Sept. 24, 1974; Dec. 12, 1974; Aug. 31, 1976; March 9, 1977; May 25, 1977; Sept. 22, 1978; March 30, 1979; March 31, 1980; May 29, 1980; July 15, 1980; Dec. 24, 1981; Dec. 23, 1982; May 30, 1985; Dec. 19, 1985 as emergency measure; Jan. 7, 1986; Feb. 13, 1986; July 19, 1991 as emergency measure; Oct. 7, 1991 as emergency measure; Dec. 6, 1991 as emergency measure; Dec. 6, 1991; April 2, 1992; Aug. 6, 1992; Feb. 9, 1993; March 30, 1993 as emergency measure; May 27, 1993 as emergency measure; May 27, 1993; Aug. 9, 1993; Nov. 15, 1995; July 9, 1996; July 13, 1998; April 4, 2000; Aug. 28, 2001; Oct. 1, 2002; June 22, 2004; June 26, 2009 eff. 30 days after filing; amd. filed Feb. 11, 2010 eff. March 3, 2010; amd. filed April 19, 2016 eff. May 4, 2016.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.31, 18 NY ADC 352.31

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18 NYCRR 352.32

Section 352.32. Calculating the budget

Currentness

(a) Using the State-prescribed form, a budget shall be prepared for each new or reopened public assistance case at the time the application is approved for assistance. This form contains budget data which constitutes an estimate of regularly recurring needs and regularly recurring resources available to meet them. These items are based on the circumstances in each individual case and the policies and allowance schedules of the agency.

(b) The budget shall be recalculated whenever there is a change in the needs and/or resources of the recipient and/or a change in the allowance schedules of the agency.

(c)-(d) *[Reserved]*

(e) *Cooperative cases.* When two or more persons in the same dwelling unit are eligible for separate grants of public assistance, the following procedures shall be applied:

(1) When at least one individual in one assistance unit is legally responsible for at least one member of the other assistance unit:

(i) the basic monthly allowance, home energy allowance, supplemental home energy allowance, shelter and water allowances and fuel allowance shall be prorated; and

(ii) allowances for any other recurring special need included in the standard of need shall not be prorated.

(2) When no one in one assistance unit is legally responsible for anyone in the other assistance unit:

(i) the basic monthly allowance, the home energy allowance and the supplemental home energy allowance, and the fuel for heating allowance must not be prorated unless the members of the assistance units reside together as a single economic unit, generally sharing income and resources as though they were one family;

(ii) the fuel for heating allowance is provided to the unit containing the tenant and customer of record as defined in section 352.5(a) of this Part and reflects the number of persons in that unit;

(iii) allowances for water and fuel must be prorated; and

(iv) allowances for shelter and any other recurring special need included in the standard of need must not be prorated.

(3) All available and unrestricted income of an applicant or recipient shall be prorated and applied against his needs and the needs of his legally dependent relatives in the household.

(f) In all other cases, all available and unrestricted income of an applicant or recipient shall be prorated and applied against his needs and the needs of his legally dependent relatives in the household.

Credits

Sec. filed June 2, 1970; amds. filed: Nov. 17, 1975; Aug. 31, 1976; June 27, 1977; April 17, 1981; Oct. 19, 1983; Dec. 14 and 19, 1984; Dec. 17, 1985; Feb. 12, 1986; April 10, 1986; Feb. 9, 1989 as emergency measure; April 25, 1989; Feb. 11, 1992 as emergency measure; March 20, 1992; April 20, 1992; July 22, 2003; May 27, 2004 eff. June 16, 2004. Repealed (c).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.32, 18 NY ADC 352.32

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Section 352.33. Deeming of sponsor's income and resources

[Currentness](#)

(a) Except as provided in subdivisions (b) and (c) of this section, all the income and resources of a sponsor of an alien who has signed an affidavit of support pursuant to section 213a of the Immigration and Nationality Act, and all the income and resources of such sponsor's spouse is deemed available to such alien for purposes of determining the eligibility of such alien for family assistance and federally funded safety net assistance. A sponsor's income and resources will no longer be deemed available to the alien when the alien:

(1) achieves United States citizenship through the naturalization process; or

(2) has worked 40 qualifying quarters of coverage as defined under title II of the Social Security Act or can be credited with such qualifying quarters as provided under Federal law and, in the case of any such qualifying quarter creditable for any period beginning after December 31, 1996, did not receive any Federal means-tested public benefit during any such period.

(b) If the social services district determines that a sponsored alien would, in the absence of assistance provided by the agency, be unable to obtain food and shelter, taking into account the alien's own income plus any cash, food or housing or other assistance provided by other individuals, including the actual amount of income and resources provided by the sponsor or sponsor's spouse, the agency must:

(1) budget only the amount of income and resources which the sponsor or the sponsor's spouse actually contributes to the alien for a period beginning on the date of such determination and ending 12 months after such date; and

(2) notify the Office of Temporary and Disability Assistance of the department of each such determination including the names of the sponsor and the sponsored alien involved in the manner prescribed by the department.

(c) The social services district may not apply subdivision (a) of this section for a 12-month period with respect to battered aliens and their children described in section 421(f)(1)(A) of the Federal Personal Responsibility and Work Opportunity Reconciliation Act of 1996 and may not thereafter apply such subdivision if the alien demonstrates that the battery or cruelty has been recognized by a court order or order of an administrative law judge or by the Immigration and Naturalization Service. This subdivision does not apply unless the battery or cruelty bears a substantial connection to the need for benefits or if the person responsible for such battery or cruelty resides in the same household as the individual who was subject to the battery or cruelty.

(d) If and to the extent that family assistance, safety net assistance, additional state payments in the supplemental security income program, emergency assistance to aged, blind or disabled adults or emergency assistance to needy families with children is paid to or on behalf of an alien for whom an affidavit of support pursuant to section 213a of the Immigration and Nationality Act has been signed, the social services district must request reimbursement by the alien's sponsor in the amount of such assistance, and, if the alien's sponsor does not within 45 days of such request indicate a willingness to commence payments, such social services district may commence an action against the sponsor pursuant to the affidavit. Indications of a willingness to pay may include only: payment in full, commencement of substantial periodic payments, entry into a payment agreement or a written assurance of payments on a reasonable basis. Oral assurance of payment shall not be sufficient. Remedies available to enforce an affidavit of support include all of the remedies described in [sections 3201, 3202, 3204, 3205 of title 28 of the United States Code](#), as well as an order for specific performance and payment of legal fees and other costs of collection, and include corresponding remedies available under State law; provided, however, that no action shall be brought more than 10 years after assistance was last given.

Credits

Sec. filed Nov. 17, 1981; amds. filed: Dec. 23, 1982; Dec. 19, 1985 as emergency measure; Feb. 13, 1986; May 20, 1991; Jan. 28, 1993 as emergency measure; April 26, 1993 as emergency measure; April 26, 1993; repealed, new filed: Oct. 14, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 24, 1998 as emergency measure; June 2, 1998; amd. filed July 15, 2004 eff. Aug. 4, 2004. Amended (a).

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Section 352.34. Welfare of public assistance recipients

[Currentness](#)

In a manner consistent with department regulations, public assistance shall be granted in such manner as best preserves the health and well-being of the public assistance household. Where there is concern that the living situation of a public assistance household may adversely affect the health and/or well-being of the household members, referral shall be made to the appropriate local district official or unit for investigation and provision of appropriate services and/or assistance. Public assistance grants to otherwise eligible individuals shall not be delayed or terminated while such investigation is pending. Special consideration shall be given to ensuring that the physical, mental and moral well-being of a child or minor receiving public assistance is safeguarded, in accordance with section 369.2(d) of this Title.

Credits

Sec. filed Oct. 19, 1983 as emergency measure; made permanent by order filed Dec. 15, 1983 eff. Dec. 15, 1983.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.34, 18 NY ADC 352.34

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Section 352.35. Eligibility for temporary housing assistance for homeless persons

Currentness

(a) *Scope.* This regulation governs the provision of temporary housing assistance to persons who are homeless. It sets forth the requirements with which an individual or family who applies for temporary housing must comply in order to be eligible for temporary housing assistance.

(b) *Definitions.*

(1) *Assessment* is the evaluation of an individual's or family's housing and housing-related public assistance and care needs including, but not limited to, the availability of housing, the need for temporary housing assistance, employment and educational needs, the need for preventive or protective services, the ability to live independently, and the need for treatment of physical and mental health problems, including substance abuse.

(2) *Independent living plan* is a plan developed and/or revised by a social services district and/or its designee, with the cooperation of an individual or family, which sets forth a strategy for meeting such individual's or family's housing-related public assistance and care needs as identified in an assessment and for obtaining housing other than temporary housing and which establishes such individual's or family's responsibilities during their receipt of temporary housing assistance and specifies the conditions upon which temporary housing assistance will be provided. An independent living plan also must specify the temporary housing facility, if any, to which the individual or family has been or will be referred, any requirements of such facility, and the expected duration of the individual's or family's receipt of temporary housing assistance.

(3) *Temporary housing* includes family shelters authorized by Part 900 of this Title and section 352.8(a) of this Part, room and board authorized by section 352.8(b) of this Part which is provided to a homeless person on a temporary basis, hotel/motel facilities authorized by section 352.3(e) of this Part and shelters for adults authorized by Part 491 of this Title.

(4) *Temporary housing assistance* is a public assistance benefit provided temporarily for an eligible homeless individual or family to meet an immediate need for shelter.

(c) As a condition of eligibility for temporary housing assistance, individuals and families must comply with the requirements of this subdivision. Temporary housing assistance will be denied or discontinued under the conditions specified below. Temporary

housing assistance will not be denied or discontinued for failure of the individual or family to comply with the requirements of this subdivision when such failure is due to the physical or mental impairment of the individual or family member.

(1) An individual or family must cooperate in and complete an assessment conducted by the social services district. When an individual or family fails to cooperate in and complete the assessment, the social services district must deny the individual's or family's application for temporary housing assistance.

(2) An individual or family must cooperate with the social services district in developing, carrying out and completing an independent living plan, if the social services district, based on its assessment of the individual or family, has determined that such a plan will assist such individual or family to relocate to housing other than temporary housing. When an individual or family unreasonably fails to comply with the independent living plan requirements, the social services district must discontinue temporary housing assistance. When an individual or family unreasonably fails two or more times to comply with the independent living plan requirements, the social services district must discontinue temporary housing assistance and the individual or family is disqualified from receiving temporary housing assistance until the failure ceases, or for 30 days, whichever period of time is longer.

(3) An individual or family must actively seek housing other than temporary housing, as required by the social services district, and not unreasonably refuse or fail to accept any such housing, including but not limited to, permanent housing, reunification with family or relocation to other appropriate residential facility. When an individual or family fails to comply with these requirements, the social services district must discontinue temporary housing assistance until the failure ceases, or for 30 days, whichever period is longer.

(4) An individual or family must refrain from engaging in acts which endanger the health or safety of oneself or others, or which substantially and repeatedly interfere with the orderly operation of a temporary housing facility. When an individual or family commits such acts, including but not limited to acts of violence, selling drugs, or repeated violations of the rules of a temporary housing facility, the social services district must discontinue temporary housing assistance until the failure ceases, or for 30 days, whichever period is longer.

(d) Prior to denying or discontinuing temporary housing assistance pursuant to subdivision (c) of this section, the social services district must evaluate the individual's or the family's need for protective services for adults, preventive services for children and protective services for children and, if necessary, make an appropriate referral.

(e) A homeless individual or family applying for or receiving temporary housing assistance, pursuant to section 352.3(e) or 352.8 of this Part or Part 371 or 491 of this Title, also must comply with all other applicable public assistance and care requirements including, but not limited to:

(1) requirements for participation in employment and training programs, in accordance with Part 385 of this Title, including looking for work, engaging in training, accepting jobs and work assignments, and participating in rehabilitative services;

(2) requirements for participation in rehabilitative services, as described in section 370.2(d)(7) of this Title and Part 385 of this Title;

(3) requirements for participation in the child support enforcement program, as described in sections 351.2(e)(2)(iv), 369.2(b) and 370.2(d) of this Title;

(4) requirements to apply for supplemental security income benefits, as described in sections 369.2(h) and 370.2(c)(5) of this Title;

(5) requirements for location of resources, as described in section 351.2(e) of this Title; and

(6) requirements for acceptance of the offer of a home, as described in section 370.2(c) of this Title.

Failure to comply with any public assistance and care requirements, including, but not limited to, those described above, will subject the recipient of temporary housing assistance to the sanctions specified in the applicable sections of this Title.

(f) A homeless individual or family applying for or receiving temporary housing assistance is subject to the income and resource requirements of this Title; and must cooperate with the social services district's efforts to determine available resources, and must apply for and use any benefits and resources that will reduce or eliminate the need for temporary housing assistance, in accordance with the provisions of this Title.

(g) A social services district must deny or discontinue a person's or family's temporary housing assistance if it determines that the person or family has other housing available, or if it determines, consistent with the regulations in this Title, that the person or family is required to, but is not applying income and/or using available resources to reduce or eliminate the need for temporary housing assistance.

(h) Any individual or family whose application for temporary housing assistance is denied or whose temporary housing assistance is discontinued pursuant to subdivision (c) or (g) of this section, is entitled to a fair hearing, in accordance with Subpart 358-3 of this Title.

Credits

Sec. filed: Nov. 6, 1995 as emergency measure; Jan. 16, 1996; amd. filed Aug. 22, 1997 eff. Sept. 10, 1997. Amended (a)(3).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Section 352.36. Factors when providing temporary housing assistance to certain sex offenders

[Currentness](#)

(a) **Statement of purpose.**

(1) Chapter 568 of the Laws of 2008 requires the Division of Parole (DOP), the Division of Probation and Correctional Alternatives (DPCA), and the Office of Temporary and Disability Assistance (OTDA) to promulgate regulations to provide guidance concerning the placement and/or approval of housing for certain sex offenders.

(2) The State has previously enacted laws concerning sex offenders, including the Sex Offender Registration Act, the Sex Offender Management and Treatment Act, the Electronic Security and Targeting of On-Line Predators Act (e-STOP) and laws restricting certain sex offenders who are under probation or parole supervision from entering school grounds. Chapter 568 of the Laws of 2008 continues the State's efforts in the area of sex offender management and specifically in the area of the placement and housing of sex offenders. Sex offender management, and the placement and housing of sex offenders, are areas that have been, and will continue to be, matters addressed by the State. These regulations further the State's coordinated and comprehensive policies in these areas, and are intended to provide further guidance to relevant state and local agencies in applying the State's approach.

(3) Public safety is a primary concern, and these regulations are intended to better protect children, vulnerable populations and the general public from sex offenders. The State's coordinated and comprehensive approach also recognizes the necessity to provide emergency shelter to individuals in need, including those who are sex offenders, and the importance of stable housing and support in allowing offenders to live in and re-enter the community and become law-abiding and productive citizens. These regulations are based upon, and are intended to further, best practices and effective strategies to achieve these goals.

(4) In implementing this statute and the State's comprehensive approach, DOP, DPCA, OTDA and the Division of Criminal Justice Services' Office of Sex Offender Management (DCJS/OSOM) recognize that:

(i) Not all sex offenders are equally dangerous. Some sex offenders may pose a high risk of committing a new sexual crime; others may pose only a low risk.

(ii) All reasonable efforts should be made to avoid an ill-advised concentration of sex offenders in certain neighborhoods and localities. What constitutes such a concentration will depend on many factors, and may vary

depending on housing availability and the locality and community. In addition, it is sometimes safer to house sex offenders together. Law enforcement, probation, and parole officers may more effectively monitor offenders, and service providers may more easily offer transitional services to offenders in these congregate settings. Further, some social services officials and departments rely on congregate housing for sex offenders who seek emergency shelter because of the limited, or lack of other housing options available for this population. All public officials who are responsible for finding or approving housing for sex offenders should recognize that an over-concentration of sex offenders may create risks and burdens on the surrounding community, and that their responsibility is to make judgments that are reasonable under the circumstances.

(iii) All social services districts are required by statute, regulation and directive to arrange temporary housing assistance for eligible homeless individuals, including those who are sex offenders.

(iv) To reduce recidivism it is important that offenders be able to re-enter society and become productive and law-abiding citizens whenever possible. A stable living situation and access to employment and support services are important factors that can help offenders to successfully re-enter society.

(v) Maintaining and/or finding suitable housing for sex offenders is an enormous challenge that impacts all areas of the State. Offenders reside in all regions of the state and may have long-established residences in their respective communities. Even offenders who do not have such long-established relationships are often discharged from prison to the community where they previously lived. As a result, it is not appropriate for any one community or county to bear an inappropriate burden in housing sex offenders because another community has attempted to shift its responsibility for those offenders onto other areas of the State. The proliferation of local ordinances imposing residency restrictions upon sex offenders, while well-intentioned, have made it more challenging for the State and local authorities to address the difficulties in finding secure and appropriate housing for sex offenders.

(vi) Decisions as to the housing and supervision of sex offenders should take into account all relevant factors and no one factor will necessarily be dispositive. These factors should include, but not be limited to, the factors enumerated in the statute, the risk posed by the offender, the nature of the underlying offense, whether housing offenders together or apart is safer and more feasible, the most effective method to supervise and provide services to offenders, and the availability of appropriate housing, employment, treatment and support.

(b) Applicability and factors.

(1) When a social services district has received advance written notice, pursuant to [section 259-c \(17\) of the Executive Law](#), that an inmate who is designated a level two or level three sex offender pursuant to the sex offender registration act is likely to seek to access local social services for homeless persons, and such individual is determined by the social services district to be in immediate need of shelter, the local social services officials shall consider the following factors when making a determination in regard to the placement of such individual in shelter, provided that the individual is otherwise eligible for temporary housing assistance:

(i) the location of other sex offenders required to register pursuant to the sex offender registration act, specifically whether there is a concentration of registered sex offenders in a certain residential area or municipality;

(ii) the number of registered sex offenders residing at a particular property;

(iii) proximity of the entities with vulnerable populations;

(iv) accessibility to family members, friends or other supportive services, including but not limited to locally available sex offender treatment programs with preference for placement of such individuals into programs that have demonstrated effectiveness in reducing sex offender recidivism and increasing public safety; and

(v) investigation and approval of such placement by the state Division of Parole.

(2) When one or more of the factors set forth in paragraph (1) of this subdivision are not relevant or not practicable in determining a placement for such individual, within the timeframe necessary to meet the immediate need for shelter, the local social services officials shall place the individual in the most appropriate available shelter.

Credits

Sec. filed April 6, 2010 eff. April 21, 2010.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.36, 18 NY ADC 352.36

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 352.37. Emergency measures concerning shelters for the homeless--Repealed

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Section 352.37. Emergency measures concerning shelters for the homeless--Repealed

[Currentness](#)

Credits

Emergency rulemaking eff. Jan. 26, 2016, expired April 24, 2016; emergency rulemaking eff. April 25, 2016, expired June 23, 2016; emergency rulemaking eff. June 23, 2016, expired; amd. filed Aug. 1, 2016 eff. Aug. 17, 2016; repealed, filed Nov. 25, 2019 eff. Jan. 1, 2020.

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Section 352.38. Security measures in shelters for the homeless

[Currentness](#)

(a) On an annual basis, the operator of each emergency shelter that is not operating pursuant to an operational plan approved by the Office of Temporary and Disability Assistance (the office) as required by section 491.3 or section 900.3 of this Title, and each emergency shelter that has not been issued an operating certificate pursuant to either section 491.4 or 900.4 of this Title shall submit to the office and the social services district in which the emergency shelter is located a plan for the emergency shelter to provide security and help ensure the physical safety of residents and staff. The social services district shall assess the adequacy of the plan and shall share the results of that assessment with the office. For purposes of this section, emergency shelter shall mean any facility with overnight sleeping accommodations, the primary purpose of which is to provide temporary shelter to recipients of temporary housing assistance. Based upon the individual characteristics of each emergency shelter, including, but not limited to, the location of the emergency shelter and the extent to which the location is known in the community, the size of the emergency shelter, construction characteristics of the emergency shelter, the homeless population served by the emergency shelter, and use of the building or site location for purposes other than the provision of shelter and services to the homeless, the security plan shall address, among other things:

- (1) measures taken to control access to the emergency shelter, including but not limited to admittance procedures in place for persons entering the facility and the installation and use of safety locks on exit and entry doors, security devices such as metal detectors, cameras and security or alarm systems;
- (2) the surveillance of the grounds, facility and activities of the residents to prevent theft and resident harm;
- (3) the training and deployment of staff responsible for security, and in the case of emergency shelters with mental health or domestic violence programs, the availability of security staff trained in recognizing and responding to mental health or domestic violence issues;
- (4) fire safety measures, and the emergency shelter's emergency and disaster plans, including but not limited to, procedures for conducting and supervising facility evacuations and periodic evacuation drills; actions taken in advance of an emergency to prepare emergency shelter employees to be ready for an emergency;
- (5) procedures for handling and documenting individual emergencies, including arranging for medical care or other emergency services, maintaining records of any special medical needs or conditions, the prescribed regimens to be followed, and the names and phone numbers of medical doctors to contact should an emergency arise concerning these conditions; and

(6) Safety measures provided for emergency shelter staff.

(b) In the event of a serious incident impacting upon the safety and well-being of any resident of an emergency shelter or member of the emergency shelter's staff, including, but not limited to, deaths by unnatural causes or suicides, life-threatening injuries including drug overdoses, assaults, rapes, sexual assaults, or attempted rapes or sexual assaults, arrests for alleged child abuse, fires, disasters, or other events that cause evacuation of the building or injury to shelter residents, heating, water, electrical failure that is more than four hours in duration, discovery of any environmental hazard, such as lead paint or asbestos, that threatens resident health or well-being, domestic violence that results in injury of one or more residents, criminal activity on the part of emergency shelter staff, or any misconduct on the part of emergency shelter staff that results in harm to the residents or other staff members, unless otherwise directed by the office, the operator of the emergency shelter or the social services district shall immediately report the serious incident to the office by e-mail or telephone. In the event the operator of the emergency shelter reports the serious incident to the office, the operator also must immediately notify the social services district. The social services district shall then submit a copy of the office-prescribed incident report form to the office within three business days.

(c) The operator must maintain a chronological record of serious incidents of the type described in subdivision (c) of this section using the Office-prescribed Incident Report form. In the case of injury, the operator must include a written statement of the resident's version of the events leading to an accident or incident involving such resident on all Incident Reports unless the resident objects.

(d) Where a security incident has been reported, or upon review of the operator's or social service district's annual plan, the Office may direct the social services district or the operator to take additional security measures including, but not limited to, directing that the emergency shelter deploy additional trained security staff or relocate residents to another facility or emergency shelter. The Office also may direct the social services district or the operator to:

(1) engage a qualified third party, who has been approved by the Office, to conduct an evaluation of the security measures employed by the facility; and

(2) employ any or all of the recommendations made by the third party.

Credits

Emergency rulemaking eff. June 2, 2016, expired Aug. 30, 2016; new adopted filed Aug. 16, 2016 eff. Aug. 31, 2016; amd. filed Nov. 25, 2019 eff. Jan. 1, 2020.

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18 NYCRR 352.39

Section 352.39. Operational plans for uncertified shelters for the homeless

Currentness

(a) For purposes of this section, emergency shelter shall mean any facility with overnight sleeping accommodations, the primary purpose of which is to provide temporary shelter to recipients of temporary housing assistance.

(b) This section shall apply to emergency shelters for which social services districts receive reimbursement, and which are not operating pursuant to operational plans approved by the Office of Temporary and Disability Assistance (the office) as required by section 491.3 or section 900.3 of this Title, and have not been issued operating certificates pursuant to either section 491.4 or 900.4 of this Title.

(c) A social services district may be reimbursed for costs incurred for emergency shelters and services provided by emergency shelters subject to this section only when the emergency shelters are operated pursuant to operational plans that have been approved by the Office of Temporary and Disability Assistance (the "Office"). A separate operational plan must be submitted by the social services district for each emergency shelter for which the district seeks reimbursement, or for each portfolio of emergency shelters where the emergency shelters within the portfolio are operated by a single operator and are comprised of individual apartment units within residential apartment buildings, and the operators are reimbursed by the social services district on a per diem basis.

(d) Operational Plan. For emergency shelters within the scope of this section, the operational plan must provide all of the following information concerning the facility:

- (1) name and location of the facility;
- (2) name and address of the entity which will operate the facility;
- (3) names, addresses and occupations of the members of the board of directors, if the operator is a corporation;
- (4) name and address of the owner of the land and premises, if other than the operator;
- (5) financial resources and sources of future revenue of the facility;

- (6) a financial statement for the shelter's most recently completed fiscal year, if any;
- (7) a proposed one year budget, including estimated income and expenditures, on forms and in a manner prescribed by the Office. Such proposed budget must set forth the amount reasonable and necessary to operate and maintain the shelter;
- (8) the emergency shelter's policies and procedures;
- (9) admissions policies;
- (10) policies ensuring access by legal representatives and legal counsel to their clients who are residents of the facility;
- (11) in shelters for families with children, policies and procedures for providing needed care, services and support of children and families consistent with applicable regulations;
- (12) in shelters for families with children, arrangements for facilitating school attendance by school-age children residing in the facility, including any necessary transportation arrangements;
- (13) plan for health services, including evidence of any arrangement with a fully accredited medical institution or clinic for the referral of resident families for emergency treatment. In addition, if medical supplies are to be stored at the facility or refrigeration is to be provided for personal medical supplies of residents, the arrangements for safekeeping and refrigeration of such medical supplies must be specified;
- (14) procedures for assisting residents in making application for public benefits such as, but not limited to, public assistance, medical assistance, the supplemental nutrition assistance program, Supplemental Security Income, title XX or child welfare or unemployment benefits;
- (15) facility staffing schedules and a description of each position, including job duties, and qualifications;
- (16) plan for staff training including training concerning the emergency and disaster plan for the facility and fire safety;
- (17) bathroom arrangements, including the number of toilets, sinks, showers and bathtubs and, where appropriate, the facility's provision for the bathing and changing of infants and young children;
- (18) food service arrangements. If a food service provider is used, written evidence of such arrangement must be included. If food is prepared onsite provide the number of refrigerators, stoves, and microwaves. A description of the dining area and the number of chairs, tables and seating must also be included;

- (19) physical structure, including land, buildings and equipment, certificate of occupancy and building descriptions including type of construction, planned renovations, and room layouts with dimensions;
- (20) fire safety measures and emergency and disaster plan;
- (21) resident capacity;
- (22) resident rules and rights;
- (23) procedures for handling involuntary discharges or transfers;
- (24) description of any other programs that are operating in the building and copies of the applicable licenses and certifications;
- (25) procedures and environmental safeguards designed to ensure the well-being and safety of residents if the shelter facility is located in the same building or on the same premises where another program is or will be operated; such procedures must indicate the circumstances under which common staff or joint services will be utilized; and procedures for safeguarding the confidentiality of medical records concerning residents of the shelter;
- (26) procedures for informing residents of their rights as residents and a listing of said rights;
- (27) facility leave and absence policy;
- (28) a description of the community services available to the shelter population including public transportation, parks and recreation areas, medical and mental health services, restaurants and stores;
- (29) procedures for advising residents of the conduct or activities for which temporary housing assistance may be discontinued as provided in section 352.35 of this Part;
- (30) procedures which describe the facility's responsibilities in relation to the social services district's requirements for discontinuing temporary housing assistance, including notification to the social services district of acts which may be grounds for the discontinuance of temporary housing assistance;
- (31) procedures for providing shelter residents with services which include at a minimum: necessary medical referrals; assistance with obtaining permanent housing; assistance with securing necessary supportive social and mental health services including but not limited to psychiatric and alcohol abuse services; assistance with securing employment assessments, job training placements, educational opportunities; and information and referral services for community agencies and programs whose services might assist residents to return to permanent housing. If any of these services are provided off site, the name, location, contact information, and description of the service provider must be included;

(32) a plan for the shelter to provide security and help ensure the physical safety of residents and staff, as required by section 352.38 of this Part;

(33) procedures for handling and documenting individual emergencies, including arranging for medical care or other emergency services, maintaining records of any special medical needs or conditions, the prescribed regimens to be followed, and the names and phone numbers of medical doctors to contact should an emergency arise concerning these conditions;

(34) procedures for handling resident complaints and grievances; and

(35) such other information as may be requested by the Office.

(e) Submission and approval:

(1) The social services district must submit a proposed operational plan for each emergency shelter addressed by this section in writing to the Office no less than 45 days before planned use of a facility as an emergency shelter or 120 days from the date this regulation becomes effective for emergency shelters currently in operation.

(2) An operational plan will be approved only when it is established that the facility will be operated in accordance with the operational plan and all applicable laws and regulations.

(f) An operational plan approved by the Office under this section will remain in effect for a maximum period of five years. No later than 60 days prior to the expiration of an operational plan, the social services district must submit on forms and in the manner prescribed by the Office, a request to renew the approval of the operational plan. Such request must include appropriate financial data; any proposed new, or changes to existing, contracts; any proposed revisions to leases or rental agreements; documentation that the facility is in compliance with applicable State and local laws, regulations, and codes; and information regarding any other changes being proposed to the current operational plan. The social services district may request an extension of the 60-day period in order to submit appropriate financial data, and the Office may grant one extension, not to exceed six months. If an extension is granted, the Office may either continue reimbursement at the approved rate or establish an interim per diem rate. State reimbursement may not exceed these per diem rates, and will continue until such time as either the appropriate financial data is submitted and the operational plan is approved, or operational plan approval by the Office is withdrawn or expired.

(g) Proposed revisions to an approved operational plan must be submitted by the social services district to the Office for approval prior to implementation. Proposed revisions are subject to the requirements of subdivision (d) of this section.

(h) In the event that an operator elects to close an emergency shelter falling within the scope of this section:

(1) the social services district shall notify the Office in writing at least 120 days prior to the anticipated closure;

(2) such written notice shall include a proposed plan for closure. The plan shall be subject to Office approval and shall include timetables and shall describe the procedures and actions the operator will take to:

- (i) notify residents of the closure, including provisions for termination of admission agreements and involuntary discharge;
- (ii) assess the needs and preferences of the individual residents;
- (iii) assist residents in locating and transferring to appropriate alternative settings; and
- (iv) maintain compliance with the Office's regulations until all residents have relocated.

(i) For costs incurred by a facility that begins operation after the effective date of this Part, reimbursement may be available from the date the social services district submits its proposed operational plan provided:

- (1) the facility is operational at the time the plan is submitted or within 45 days after the date of submittal;
- (2) if the Office has requested additional information, the social services district submits such information within 30 days; and
- (3) the operational plan is fully approved no later than one year from the date the social services district submits its proposed operational plan or a lesser time period as specified by the Office.

Credits

Sec. filed Jan. 17, 2017 eff. Feb. 1, 2017; amd. filed Nov. 25, 2019 eff. Jan. 1, 2020.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 352.39, 18 NY ADC 352.39

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 353, Refs & Annos

[Currentness](#)

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18 NYCRR 353.1

Section 353.1. Introduction and applicability

[Currentness](#)

This Part implements [subdivision 5 of section 211 of the Social Services Law](#), as amended by chapter 41 of the Laws of 1992 (section 137). [Section 211](#) authorizes recovery of payments made from State and local funds for basic needs of individuals whose applications for Supplemental Security Income (SSI) are pending or whose SSI benefits are retroactively reinstated after a period of suspension or termination. This Part applies to any SSI paid as a retroactive lump sum after the effective date of the Part.

Credits

Sec. amds. filed: Dec. 23, 1965; April 20, 1967; repealed, new filed June 24, 1969; repealed, filed June 2, 1970; new filed Oct. 18, 1993 eff. Nov. 3, 1993.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 353.2

Section 353.2. Interim assistance to SSI applicants and recipients

Currentness

(a) *Definitions.*

(1) *Interim assistance* means payments for basic needs made exclusively from State and/or local funds and furnished to or on behalf of:

(i) an applicant for SSI during the period in which the application is pending, beginning with the date on which the recipient became eligible for SSI and ending with the month in which the initial SSI payment is received or the following month if delivery of such payment for basic needs cannot be stopped during the month the individual's SSI payment begins; or

(ii) a recipient or former recipient of SSI for any period for which the recipient's SSI payment is reinstated after a period of suspension or termination, such period ending with the month in which the SSI payment is reinstated or the following month if delivery of such payment for basic needs cannot be stopped during the month the individual's SSI payment resumes.

(2) *Payments for basic needs made exclusively from State and/or local funds* include but are not limited to costs incurred for:

(i) safety net assistance;

(ii) veteran assistance;

(iii) predetermination grants under Part 382 of this Title;

(iv) institutional care for adults under Part 371 of this Title;

(v) shelter care;

(vi) child care at public expense; and

(vii) for any period in which Federal funds have not been used, family assistance.

(3) *Initial payment* means the total amount of SSI benefits payable to an eligible individual (including retroactive amounts, if any) at the time the first payments of SSI benefits are made or at the time SSI benefits are first reinstated following a period of suspension or termination, but does not include any emergency advance payments or presumptive disability or blindness payments authorized by the Social Security Administration (SSA).

(4) *SSI benefits* means supplemental security income payments made under title XVI of the Social Security Act and any State payments made under article 5, title 6 of the Social Services Law and agreements executed pursuant thereto.

(5) *Repayment of interim assistance authorization or interim assistance authorization form* means an instrument signed by an applicant for or recipient of interim assistance or his or her representative, authorizing SSA to make the initial payment of SSI benefits to the social services district, and authorizing the social services district to deduct therefrom the amount of interim assistance provided to the recipient. An authorization remains valid until SSA has made a final determination on the SSI applicant's or recipient's application. A signed authorization applies to any interim assistance received by the individual, without regard to whether execution of such authorization is a condition of eligibility under subdivision (b) of this section.

(6) Grants or payments *furnished to or on behalf of an applicant for SSI* means the amount of assistance for basic needs given to an individual applicant for SSI or the incremental amount of assistance for basic needs given to such an individual above the amount given to a family with which the individual resides, including amounts paid to vendors for such individual and amounts expended directly on behalf of the individual. In the case of child care at public expense, such term refers to payments made for the support and maintenance of a child applying for SSI.

(b) *Eligibility requirements.* As a condition of eligibility for public assistance, applicants for or recipients of such assistance must sign a repayment of interim assistance authorization. If an applicant for or recipient of any form of interim assistance is, or reasonably appears to be, legally blind or disabled, or has become or will become 65 years of age before the end of the following calendar month, the social services district must promptly notify him or her that, as additional conditions of eligibility or of continued eligibility, he or she or his or her authorized representative must:

(1) if a recipient, provide verification within the next 30 days that he or she has applied for SSI benefits;

(2) if an applicant, provide verification that he or she has applied for SSI benefits;

(3) cooperate with the SSI eligibility determination process; and

(4) appeal any denial of his or her SSI application and exhaust the available administrative remedies.

(c) *Administrative responsibilities and procedures.*

(1) If the applicant is determined to be eligible for interim assistance, the social services district must issue interim assistance for so long as eligibility continues.

(2) If a social services district which does not have an operating automated interim assistance referral procedure requires an applicant for or recipient of interim assistance to apply for SSI benefits or discovers that a recipient has applied for SSI benefits, the social services district must send within five working days of the date that an applicant is found to be eligible for interim assistance or within five working days of the date that the social services district learns that a recipient has applied for SSI benefits, a copy of the signed, valid repayment of interim assistance authorization and respective identifying information to the appropriate SSA district office. In no event may an interim assistance authorization be sent until an application for interim assistance has been approved.

(3) Upon receipt of any check or checks comprising an initial payment, the social services district must deduct therefrom the amount of interim assistance. Recovery of interim assistance cannot be made from subsequent SSI payments.

(4) Within 10 working days after receipt of a check or checks comprising an initial payment, the social services district must send the balance of the initial payment, if any, to the recipient. The social services district must notify the recipient of the following:

(i) the initial date of eligibility for SSI;

(ii) the amount of the initial payment received by the social services district;

(iii) the period of time during which interim assistance was provided, the total amount of interim assistance provided and a monthly accounting of interim assistance benefits;

(iv) the amount deducted as reimbursement of interim assistance; and

(v) the recipient's right to a fair hearing if he or she objects to the amount deducted in accordance with subparagraph (iv) of this paragraph.

(5) Social services districts must keep accurate records concerning each recipient covered by this section. These records must include the following information:

(i) the amount of the initial payment received from SSA;

(ii) the amount of interim assistance paid to the individual;

(iii) the amount of the initial payment retained;

- (iv) the amount of the initial payment forwarded to the individual;
- (v) the amount of the initial payment returned to SSA;
- (vi) the date the initial payment was received from SSA;
- (vii) the date the respective individual accounting form was received from SSA; and
- (viii) the date the initial payment, or any portion thereof, was forwarded to the individual.

These records must be available for inspection by the department and by SSA.

(6) Reports concerning the payment and recovery of interim assistance and consequent reduction adjustments under Part 608 and section 621.2 of this Title must be submitted to the department as the department may require.

(7) Administrative costs incurred by a social services district in implementing this section must be borne by the district, subject to the standard reimbursement provisions of the Social Services Law and this Title.

Credits

Sec. amd. filed Aug. 12, 1964; repealed, new filed Dec. 23, 1965; amd. filed April 20, 1967; repealed, new filed June 24, 1969; repealed, filed June 2, 1970; new filed Oct. 18, 1993; amds. filed: Oct. 2, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; Feb. 25, 1998 as emergency measure; April 24, 1998 as emergency measure; June 2, 1998 eff. June 17, 1998. Amended (a)-(b).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 353.2, 18 NY ADC 353.2

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 353.3. [Repealed]

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18 NYCRR 353.3

Section 353.3. [Repealed]

[Currentness](#)

Credits

Sec. amds. filed: Aug. 12, 1964; April 23, 1965; Sept. 10, 1965; Dec. 23, 1965; April 20, 1967; July 28, 1967; May 14, 1969; June 24, 1969; repealed, filed June 2, 1970 eff. June 1, 1970.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 353.4. [Repealed]

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18 NYCRR 353.4

Section 353.4. [Repealed]

[Currentness](#)

Credits

Sec. amd. filed April 20, 1967; repealed, filed June 2, 1970 eff. June 1, 1970.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 354, Refs & Annos
[Currentness](#)

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18 NYCRR 354.1

Section 354.1. General

Currentness

(a) *Definition of case record.* *Case record* means all written material concerning an applicant or recipient, including the application form, the case history, budget and authorization forms, medical, resource and financial records.

(b) *Maintenance of case record.* A case record shall be maintained for each application and for each case of public assistance in order to provide a systematic record of interviews with the applicant or recipient and with other sources of information. The information obtained through social investigation shall be entered promptly on required forms (or approved local equivalents) and/or recorded in the social case history.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 354.1, 18 NY ADC 354.1

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18 NYCRR 354.2

Section 354.2. Content of case records: purpose and use

[Currentness](#)

The case record shall present a clear and accurate account of the district's provision of assistance and care, and of the services provided either directly or by referral to other community programs. The evidence in the case record shall be used to:

- (a) substantiate the determination of initial and continuing eligibility, or ineligibility, for assistance or care;
- (b) document compliance with requirements pertaining to the fiscal and accounting aspects of the use of public funds;
- (c) validate the supervisory review and written approval of case action by the social services official or by his authorized representative;
- (d) insure continuity and consistency of service and planning in accordance with individual need regardless of changes in district staff;
- (e) evaluate the situation in connection with appeals or reapplication.

Credits

Sec. amd. filed Jan. 30, 1976 eff. Jan. 30, 1976.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 354.2, 18 NY ADC 354.2

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18 NYCRR 354.3

Section 354.3. Case activity control

[Currentness](#)

Each district shall establish and maintain supervisory control of required interviews with recipients, periodic redetermination of eligibility, periodic reauthorizations of assistance, issuance of notices to recipients, and shall record the completion of such action. There shall be maintained, easily available to the social service staff, a current, cumulative record of assistance authorized.

Credits

Sec. repealed, filed June 24, 1971; new added by renum. 354.4, filed Jan. 30, 1976 eff. Jan. 30, 1976.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 354.3, 18 NY ADC 354.3

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18 NYCRR 354.4

Section 354.4. [Renumbered]

[Currentness](#)

Credits

Sec. renum. 354.3, filed Jan. 30, 1976 eff. Jan. 30, 1976.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 354.4, 18 NY ADC 354.4

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18 NYCRR 355.1

Section 355.1. Responsibility of social services agency to provide information to applicants and recipients

[Currentness](#)

(a) Each local social services department shall give information concerning the following to every person who inquires about or applies for public assistance or care:

- (1) the eligibility requirements for public assistance or care;
- (2) the legal responsibility of the applicant or recipient to give the social services official complete information about his property, his earnings, his relatives, and any other resources which might affect his eligibility;
- (3) the method of computing a public assistance grant or determining eligibility for care;
- (4) the right to complain to the State department when dissatisfied with the local decision, and the right to appeal to the department and request a fair hearing;
- (5) the right to appeal and to request a fair hearing is also extended to an applicant for home relief whose application is denied under the provisions of [section 139-a of the Social Services Law](#); and
- (6) the prohibition against discrimination on the basis of race, color, religion, national origin, age, sex, handicap or marital status under State and Federal law.

(b) In order to fully comply with the provisions of 45 CFR part 84, which was issued to effectuate section 504 of the Rehabilitation Act of 1973, each district must provide information in a manner that is accessible to blind or deaf applicants or recipients.

(c) Social services districts must provide all applicants for and recipients of public assistance whose households include a child(ren) five years of age or younger with information and a schedule regarding age-appropriate immunizations. Districts must also provide such applicants and recipients with information about eligibility for free vaccinations for children.

Credits

Sec. amds. filed: May 13, 1964; March 1, 1965; Nov. 19, 1968; Jan. 30, 1976; April 17, 1981; Oct. 14, 1981; June 17, 1998 eff. July 8, 1998. Added (c).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 355.1, 18 NY ADC 355.1

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18 NYCRR 355.2

Section 355.2. Informational pamphlets

Currentness

(a) *General.* To provide information about public assistance and care, each local department shall promptly give a copy of the appropriate informational pamphlet to each person who inquires or applies.

(b) *Fair hearings.* Information about fair hearings shall be given to applicants for and recipients of assistance under the following conditions and at the following times:

- (1) at the time of application;
- (2) upon denial of application or notification of intent to reduce or discontinue assistance;
- (3) upon receipt of a complaint about or appeal of the local department's determination;
- (4) upon receipt of a complaint concerning the alleged inadequacy of a grant;
- (5) at the time of transfer or reclassification to another program administered by the same local department; and
- (6) at the time of an increase in assistance.

(c) *Public distribution.* Pamphlets shall be made available to community agencies and to individuals in any way which will increase public understanding of the public assistance programs and fair-hearing process.

Credits

Sec. amds. filed: May 13, 1964; Nov. 7, 1966; Nov. 19, 1968; repealed, new filed Jan. 30, 1976; amd. filed Dec. 23, 1988 eff. Jan. 15, 1989. Added (b)(6).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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18 NYCRR 355.3

Section 355.3. Notification of local department decisions-- all programs except SSI and MA

Currentness

(a) *Notification to applicants.* Each applicant for ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA shall be notified in writing of the local department decision on his application. Each applicant for institutional care for adults shall be notified either in writing or in an interview of the local department decision on his application.

(1) Notification of acceptance.

(i) When an application is accepted for ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA and a grant is to be made to the applicant, the letter of notification shall state the amount of the grant and the date the check may be expected; contain information on the program and on the right of appeal; and include an explanation of the budget on which the grant was based.

(ii) When an application is accepted for care in a congregate care facility, the applicant shall be notified by letter or interview that the care has been approved and the controlling conditions including any plans for partial payment or repayment under which such care is approved.

(2) Notification of denial.

(i) When an application for ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA is denied, the letter of notification shall state adequately and clearly the reasons for denial. The letter shall include a statement informing the applicant of his right of appeal to and a hearing before the State department.

(ii) When an application for care in a congregate care facility is denied, the notification, whether by letter or interview, shall state adequately and clearly the reasons for the denial. A notice, where appropriate, shall also be sent to the facility giving care and to a person requesting assistance or care in behalf of the applicant.

(iii) When an application for HR is denied under the provisions of [section 139-a of the Social Services Law](#), the letter of notification shall state clearly the reasons for denial and shall include a statement informing the applicant of his right of appeal to and a hearing before the State department.

(iv) When an applicant is found to be in need but not to meet the special eligibility requirements of a Federal category he shall be informed of this fact in order that he may apply for the form of assistance for which eligible. Similarly when an applicant for a noncategorical program of assistance is found to meet the special eligibility requirements of a Federal category he shall be informed of this fact in order that he may apply for the special form of assistance.

(3) Withdrawal of application. When an application is withdrawn, the reasons therefor shall be recorded in the case record. The applicant may be notified of the termination of his application in order to confirm the local department's understanding of his decision to withdraw his application.

(b) *Notification to recipients.* Each recipient of ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA shall be notified in writing of any change in the grant or care, or of the discontinuance of the grant or care. Each recipient of care in a congregate care facility shall be notified either in writing or in an interview of any change in the grant or care, including the form or manner of payment, or the discontinuance of the grant or care.

(1) Notification of change in grant or care.

(i) When a change in the grant or the care approved is made for a recipient of ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA, the letter of notification shall state the nature of the change including the amount of the new cash grant where appropriate, the effective date, the reason for the change and give assurance of an opportunity to discuss the change. The recipient shall be notified of his right of appeal and fair hearing and given a pamphlet or appropriate information.

(ii) When any changes occur which effect the conditions under which continued care is approved for recipients of care in a congregate care facility a notice of such change shall be given to both the recipient and the facility providing care.

(2) Notification of discontinuance of grant or care.

(i) When discontinuance of a grant or care occurs, the recipient of ADC, ADC-U, ADC-FC, EAF, EAA, HR or VA shall receive a written notification which states the effective date, the reason therefor, the appropriate information or pamphlet and the opportunity to discuss the discontinuance. He shall be informed of his right of appeal and fair hearing and given a pamphlet or appropriate information.

(ii) Each recipient of care in a congregate care facility shall be notified of the discontinuance of care at public expense and the reasons therefor. A facility giving care shall be notified of the discontinuance and the effective date thereof.

Credits

Sec. amds. filed: May 13, 1964; March 20, 1969; Jan. 30, 1976 eff. Jan. 30, 1976.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 355.3, 18 NY ADC 355.3

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18 NYCRR 355.4

Section 355.4. Notification of local department decisions--SSI and MA

[Currentness](#)

(a) Each applicant for social services who is an applicant for or recipient of supplemental security income or medical assistance shall be notified in writing of the decision on his application.

(b) When an application for services is denied, the letter of notification shall state adequately and clearly the reasons for the denial.

Credits

Sec. renum. 355.5, new filed Jan. 30, 1976 eff. Jan. 30, 1976.

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18 NYCRR 355.5

Section 355.5. Transfers and reclassifications

[Currentness](#)

All of the above listed procedures covering notification of agency decision shall be observed for persons actively in receipt of assistance or care when transferred or reclassified to another program. The notification should include statements covering the programs involved and the reason for the change, right of complaint or appeal if dissatisfied with the new action, and reference to and enclosure of an appropriate informational pamphlet.

Credits

Sec. added by renum. 355.4, filed Jan. 30, 1976 eff. Jan. 30, 1976.

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 356, Refs & Annos

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18 NYCRR 356.1

Section 356.1. Definitions

Currentness

(a) *Inquiry.* An *inquiry* is any request for information that does not constitute an application for public assistance or care and that does not come within the definition of a complaint as defined in subdivision (b) of this section.

(b) *Complaint.* A *complaint* is any written or oral communication made to a social services district or the department by or on behalf of an applicant for or recipient of public assistance or care, other than a complaint for which there is a right to a fair hearing, or a communication from any other source directed or referred to the social services district or the department alleging, directly or indirectly, dissatisfaction with:

- (1) the action or failure to act in a particular case;
- (2) the manner in which a social services district generally handles its cases;
- (3) the social services districts' facilities and services, or the manner in which it generally conducts its business;
- (4) other facilities or services (public or private) employed by a social services district for providing care and services for its clients; or
- (5) any other aspect of social services administration not mentioned in this section.

Credits

Sec. amd. filed Nov. 30, 1966; repealed, new filed March 1, 1968; amd. filed April 17, 1968 eff. immediately. Substituted new (b) (2)-(5).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 356.1, 18 NY ADC 356.1

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18 NYCRR 356.2

Section 356.2. Handling of inquiries

[Currentness](#)

(a) Every inquiry received by a social services district or the department shall be promptly answered. If the information requested is not available, the inquiry shall be acknowledged and referred to the appropriate source for reply. Whenever appropriate, informational pamphlets shall be utilized.

(b) Requests from other agencies, within or without the State, for information requiring field investigation shall receive an immediate acknowledgment followed by a reasonably timed report of findings. The instructions published in the Public Welfare Directory shall be followed.

Credits

Sec. repealed, new filed March 1, 1968 eff. immediately.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 356.2, 18 NY ADC 356.2

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18 NYCRR 356.3

Section 356.3. Handling of complaints

Currentness

- (a) Every complaint received shall be promptly acknowledged. If received by mail, acknowledgment may be either by letter or a home visit by a staff member. In acknowledging a complaint, the writer shall be informed that the letter or interview is in response to the communication.
- (b) The substance of the complaint shall be reviewed and analyzed in relation to the case history or other office records in order to relate the social services district's knowledge of the past situation to the present problem as the complainant sees it and to determine the validity of the complaint.
- (c) The social services district shall be responsible for reviewing its own activity and for making such additional investigation as may be necessary in order to determine what appropriate action is required.
- (d) When a complaint has been referred by another agency and a report requested, the local social services department shall render such report with due regard to the confidential nature of social services records.
- (e) When a complaint has been referred by the department to a social services district, a report shall be submitted within 20 days of the date of such request and shall cover fully all matters pertaining to the complaint. If the time limit cannot be met, an interim report shall be sent. The final report shall include:
- (1) a statement that the complainant was informed the contact resulted from the complaint;
 - (2) facts in possession of the social services district and any additional information requested by the department or essential to its understanding of the case; and
 - (3) any action taken by the social services district and whether the complainant is satisfied with the explanation provided him.

Credits

Sec. amd. filed Nov. 30, 1966; repealed, new filed March 1, 1968; amds. filed: April 17, 1968; Jan. 30, 1976 eff. Jan. 30, 1976. Amended (d).

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 356.4. [Repealed]

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18 NYCRR 356.4

Section 356.4. [Repealed]

[Currentness](#)

Credits

Sec. amds. filed: Oct. 7, 1964; Nov. 30, 1966; repealed, filed March 1, 1968 eff. immediately.

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 357, Refs & Annos
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18 NYCRR 357.1

Section 357.1. Nature of information to be safeguarded

Currentness

(a) Information to be safeguarded includes names and addresses of applicants, recipients, and their relatives, including lists thereof; information contained in applications and correspondence; reports of investigations; reports of medical examination, diagnostic tests and treatment, including reports on whether an applicant or recipient has had an HIV-related test or has been diagnosed as having AIDS, HIV infection or an HIV-related illness; resource information; financial statements; and record of agency evaluation of such information. This applies to all information secured by the agency whether or not it is contained in the written record.

(b) For purposes of this Part:

(1) *AIDS* means acquired immune deficiency syndrome, as may be defined from time to time by the Centers for Disease Control of the United States Public Health Service.

(2) *HIV infection* means infection with the human immunodeficiency virus or any other related virus identified as a probable causative agent of AIDS.

(3) *HIV-related illness* means any illness that may result from or may be associated with HIV infection.

(4) *HIV-related test* means any laboratory test or series of tests for any virus, antibody, antigen or etiologic agent whatsoever thought to cause or to indicate the presence of AIDS.

Credits

Sec. amds. filed: Feb. 1, 1989 as emergency measure, expired 90 days after filing; May 3, 1989 as emergency measure; June 30, 1989 as emergency measure; Aug. 21, 1989 as emergency measure; Aug. 21, 1989; June 22, 1999 eff. July 7, 1999. Amended (b)(1).

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18 NYCRR 357.2

Section 357.2. Prohibition against disclosure of information

[Currentness](#)

(a) Officers and employees of social services districts shall not reveal information obtained in the course of administering public assistance for purposes other than those directly connected with the administration of public assistance, except for the name, address and the amount received by or expended for a recipient of public assistance when the appropriating body or social services official has authorized their disclosure to an agency or person deemed entitled to it pursuant to [section 136 of the Social Services Law](#).

(b) Any release of information pursuant to this section which would reveal that a person has been the subject of an HIV-related test, or has HIV infection, HIV-related illness or AIDS, is subject to the provisions of [section 2782 of the Public Health Law](#). In accordance with such section, confidential HIV-related information relating to a recipient of a health or social service as defined in [section 2780 of the Public Health Law](#), may be disclosed to authorized employees of the department or of social services districts when reasonably necessary for such employees to supervise, monitor, administer or provide such service and such employees would, in the ordinary course of business, have access to records relating to the care of, treatment of or provision of a health or social service to such recipient.

(c) Each social services official shall designate the person, or persons, within the agency with authority to disclose information.

Credits

Sec. amds. filed: July 15, 1980; Feb. 1, 1989 as emergency measure, expired 90 days after filing; May 3, 1989 as emergency measure; June 30, 1989 as emergency measure; Aug. 21, 1989 as emergency measure eff. Aug. 21, 1989; Aug. 21, 1989 eff. Sept. 12, 1989.

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18 NYCRR 357.3

Section 357.3. Basis for disclosure of information

Currentness

(a) Safeguards in disclosing information. Information shall be released to another agency or person only when the public welfare official providing such data is assured that:

- (1) the confidential character of the information will be maintained;
- (2) the information will be used for the purposes for which it is made available, such purposes to be reasonably related to the purposes of the public welfare program and the function of the inquiring agency; and
- (3) the information will not be used for commercial or political purposes.

(b) Disclosure of medical information.

- (1) Upon the transfer of a foster child to the care of another authorized agency, the former agency must provide to the receiving agency the child's comprehensive health history, both physical and mental, to the extent it is available.
- (2) To the extent they are available, the comprehensive health history of the child and of his or her biological parents and the health care needs of the child must be provided by an authorized agency to foster parents at the time of the child's placement in foster care. In all cases, information identifying the biological parents must be removed from the comprehensive medical history.
- (3) To the extent it is available, the comprehensive health history, both physical and mental, of a child legally freed for adoption and of his or her biological parents must be provided by an authorized agency to the child's prospective adoptive parent(s). Prospective adoptive parent means an individual who meets criteria as defined in section 421.16 of this Title and who has indicated an interest in adopting a particular child, and for whom the authorized agency has begun the placement agreement process in accordance with section 421.18 of this Title. In the case of finalized adoptions, such information must be provided upon request to the child's adoptive parents. In all cases, information identifying the biological parents must be removed from the comprehensive health history.

(4) To the extent it is available, the comprehensive health history, including both physical and mental, of the child in foster care and of his or her biological parents must be provided by an authorized agency at no cost to such child when discharged to his or her own care. Such information must include the names and addresses of the child's health care providers.

(5) To the extent it is available, the comprehensive health history of a child in foster care must be provided to the child's parents or guardian when the child is discharged to their care, except that confidential HIV-related information must not be disclosed without a written release from the child if the child has the capacity to consent as defined in section 360-8.1(a)(8) of this Title and in article 27-F of the Public Health Law. The conditions for the written release authorizing such disclosure are described in section 360-8.1(a)(8) of this Title and in article 27-F of the Public Health Law. The term confidential HIV-related information is defined in section 360- 8.1(a)(5) of this Title and in article 27-F of the Public Health Law.

(6) To the extent it is available, the comprehensive health history, both physical and mental, of any adopted former foster child and of his or her biological parents must be provided by an authorized agency to the adopted former foster child upon request. In all cases, information identifying the biological parents must be removed from the comprehensive health history.

(7) For the purposes of this subdivision, the comprehensive health history must include, but is not limited to, conditions or diseases believed to be hereditary, where known; drugs or medication taken during pregnancy by the child's biological mother, where known; immunizations received by the child while in foster care and prior to placement in care, where known; medications dispensed to the child while in care and prior to placement in care, where known; allergies the child is known to have exhibited while in care and prior to placement in care, where known; diagnostic tests, including developmental or psychological tests and evaluations given to the child while in care and prior to placement in care, where known, and their results, laboratory tests for HIV, where known, and their results; and any follow-up treatment provided to the child prior to placement in care, where known, or provided to the child while in care, or still needed by the child.

(c) Disclosure to applicant, recipient, or person acting in his behalf.

(1) The case record shall be available for examination at any reasonable time by the applicant or recipient or his authorized representative upon reasonable notice to the local district. The only exceptions to access are:

(i) those materials to which access is governed by separate statutes, such as child welfare, foster care, adoption or child abuse or neglect or any records maintained for the purposes of the Child Care Review Service;

(ii) those materials being maintained separate from public assistance files for purposes of criminal prosecution and referral to the district attorney's office; and

(iii) the county attorney or welfare attorney's files.

(2) Information may be released to a person, a public official, or another social agency from whom the applicant or recipient has requested a particular service when it may properly be assumed that the client has requested the inquirer to act in his behalf and when such information is related to the particular service requested.

(d) Disclosure to relatives and other legally responsible persons.

(1) To the extent available and upon request, an authorized agency must provide a relative or other legally responsible person with whom a child is placed, or to whom a child is discharged or released, by the family court pursuant to [section 1017](#) or [1054 of the Family Court Act](#), but who is not a foster parent for the child, with the same background information regarding the child as is provided to a foster parent with whom a child is placed. Such information, as available, must include the child's medical history and any other information which is provided to a foster parent as necessary for the child's health, safety and welfare pursuant to this section, section 443.2 of this Title, and any other applicable regulations of the Office of Children and Family Services. However, if the child's medical history includes confidential HIV-related information, such information must not be provided to the relative or other legally responsible person without a written release from:

(i) the child, if the child has capacity to consent as defined in section 360-8.1(a)(8) of this Title and in article 27-F of the Public Health Law; or

(ii) a person authorized to consent to health care for the child, if the child lacks capacity to consent.

(2) A social services district is required, under [section 132 of the Social Services Law](#), to investigate the ability and willingness of relatives, and the liability of legally responsible relatives, to contribute to the support of an applicant for or recipient of public assistance or care. In regard to these investigations, such a relative is a person considered entitled, under [section 136 of the Social Services Law](#), to necessary and appropriate information regarding the applicant or recipient. Information concerning the applicant's or recipient's needs and basic circumstances may be disclosed to such a relative to the extent necessary to discuss contributions of support from that relative. However, confidential HIV-related information may not be disclosed to such a relative without a written release from:

(i) the applicant or recipient, if the applicant or recipient has capacity to consent as defined in section 360-8.1(a)(8) of this Title and in article 27-F of the Public Health Law; or

(ii) from a person authorized to consent to health care for the applicant or recipient, if the applicant or recipient lacks capacity to consent.

(3) The social services district or other authorized agency must, in writing, inform the relative or other legally responsible person receiving information under this subdivision, of the confidential nature of the information and of any restrictions against redisclosure of such information. In the case of confidential HIV-related information, the warning statement against redisclosure set forth in section 360-8.1(h) of this Title and in article 27-F of the Public Health Law must be provided to the person receiving confidential HIV-related information.

(4) The term confidential HIV-related information is defined in section 360- 8.1(a)(5) of this Title and in article 27-F of the Public Health Law. The conditions for the written release authorizing disclosure of such information are set forth in section 360-8.1(g) of this Title and in article 27-F of the Public Health Law.

(e) Disclosure to Federal, State or local official.

(1) Information may be disclosed to any properly constituted authority. This includes a legislative body or committee upon proper legislative order, an administrative board charged with investigating or appraising the operation of public welfare, law enforcement officers, grand juries, probation and parole officers, government auditors, and members of public welfare boards, as well as the administrative staff of public welfare agencies.

(2) Information may be released to a selective service board when such information is necessary in order that the board may arrive at a valid and consistent decision regarding dependency.

(3) A social services official must disclose to a Federal, State or local law enforcement officer, upon request of the officer, the current address of any recipient of family assistance, or safety net assistance if the duties of the officer include the location or apprehension of the recipient and the officer furnishes the social services official with the name of the recipient and notifies the agency that such recipient is fleeing to avoid prosecution, custody or confinement after conviction, under the laws of the place from which the recipient is fleeing for a crime or an attempt to commit a crime which is a felony under the laws of the place from which the recipient is fleeing, or which, in the case of the state of New Jersey, is a high misdemeanor under the laws of that state, or is violating a condition of probation or parole imposed under a Federal or State law or has information that is necessary for the officer to conduct his or her official duties. In a request for disclosure pursuant to this paragraph, such law enforcement officer must endeavor to include identifying information to help ensure that the social services official discloses only the address of the person sought and not the address of a person with the same or similar name.

(4) Nothing in this Part precludes a social services official from reporting to an appropriate agency or official, including law enforcement agencies or officials, known or suspected instances of physical or mental injury, sexual abuse or exploitation, sexual contact with a minor or negligent treatment or maltreatment of a child of which the social services official becomes aware of in the administration of public assistance and care.

(5) Nothing in this Part precludes a social services official from communicating with the Federal Immigration and Naturalization Service regarding the immigration status of any individual.

(f) Disclosure upon subpoena by court.

(1) When a public assistance record is subpoenaed by court, the public welfare agency shall immediately consult its legal counsel before producing any record or revealing any information or giving any testimony.

(2) When the subpoena is for a purpose directly related to the administration of public assistance or protection of the child, the agency before complying with the subpoena shall endeavor to get in touch with the client whose record is involved or his attorney and secure permission to reveal the contents of the record which relate to the administration of public assistance.

(3) In the event that the subpoena is for a purpose not directly related to the administration of public assistance or the protection of a child, the agency shall plead, in support of its request to withhold information, that the Social Security Act, the Social Services Law and the regulations of the State Department of Social Services prohibit disclosure of confidential information contained in records and files, including names of clients. The agency will be governed by the final order of the court after this plea is made.

(g) Disclosure to bona fide news disseminating firm. The written assurance required by [section 136 of the Social Services Law](#) that the names and addresses of applicants and recipients of assistance shall not be published, shall be obtained by the public welfare official before allowing examination of records of disbursements by that bona fide news disseminating firm.

(h) Disclosure of confidential HIV-related information.

(1) Notwithstanding any other provision of any law or regulation, confidential HIV-related information concerning persons claiming disability benefits under the provisions of titles II and XVI of the Social Security Act may be disclosed to persons employed by or acting on behalf of the department's office of disability determinations engaged in the conduct of processing such claims on the basis of a general medical release in the form approved by the Social Security Administration of the United States Department of Health and Human Services. The employees and agents of the office of disability determinations, including providers of clinical laboratory services, consultative medical examinations or claimant-related medical information, to the extent they have acted in accordance with department procedures and instructions, will be held harmless and indemnified by the department for any liability for the disclosure or redisclosure of any HIV-related information when such information is solicited by or provided to the office of disability determination.

(2) All medical information, including confidential HIV-related information, solicited by or provided to the office of disability determinations for the purpose of determining a person's disability will be treated as confidential and this information must not be disclosed except as prescribed by the regulations of the Secretary of the United States Department of Health and Human Services.

(3) The term confidential HIV-related information is defined in section 360- 8.1 of this Title.

(i) Disclosure of domestic violence related information.

(1) Information with respect to victims of domestic violence collected as a result of procedures for domestic violence screening, assessment, referrals and waivers pursuant to Part 351 of this Title shall not be released to any outside party or parties or other government agencies unless the information is required to be disclosed by law, or unless authorized in writing by the public assistance applicant or recipient.

(2) Employees of the office, social services district or any agency providing domestic violence liaison services, consistent with applicable statute and regulation, may have access to client identifiable information maintained by a domestic violence liaison or by the welfare management system only when the employees' specific job responsibilities cannot be accomplished without access to client identifiable information.

(3) Each social service district and agency providing domestic violence liaison services, with access to the welfare management system, must develop and implement policies and practices to ensure the maintenance of confidential individual information.

(j) Disclosure of education information. To the extent available, an authorized agency must provide a copy of a foster child's education record at no cost to the child when such foster child is discharged to his or her own care. For the purposes of this

subdivision, the education record of a foster child includes the names and addresses of the child's educational providers; the child's grade level performance; assurances that the child's placement in foster care took into account proximity to the school in which the child was enrolled at the time of placement; and any other relevant education information concerning the child.

Credits

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18 NYCRR 357.4

Section 357.4. Prohibition against improper use of lists of applicants and recipients

[Currentness](#)

Additional statutory authority: [Social Services Law, §§ 136, 258, 320](#)

All material sent to applicants and recipients of public assistance, including material enclosed in envelopes containing checks, must be directly related to the administration of the public assistance programs and shall not have political implications.

Credits

Sec. filed June 3, 1965 eff. June 3, 1965.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 357.4, 18 NY ADC 357.4

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Part 357. Confidential Nature of Records (Refs & Annos)

18 NYCRR 357.5

Section 357.5. Procedures for safeguarding information maintained by the New York State
Department of Social Services, local social services districts and other authorized agencies

Currentness

- (a) Records containing individually identifiable information shall be marked “confidential” and kept in locked files or in rooms that are locked when the records are not in use.
- (b) When in use, records shall be maintained in such a manner as to prevent exposure of individual identifiable information to anyone other than the authorized party directly utilizing the case record.
- (c) No records shall be taken from the place of business without prior authorization by appropriate supervisory staff of the New York State Department of Social Services, the local social services district or other authorized agency.
- (d) No records shall be taken home by agency staff except upon prior authorization by appropriate supervisory staff in order to perform a function which requires the possession of the records outside of the agency and where return of the records to the agency at the close of business would result in an undue burden to the staff. In those cases where records are taken home by staff, the records are to be maintained in a secure location and are not to be disclosed to anyone other than those expressly authorized by statute or regulation. The records are to be returned to the agency by staff on the following business day.
- (e) Records shall be transmitted from one location to another in sealed envelopes stamped “ confidential,” and a receipt shall be obtained documenting delivery of said records.
- (f) Interviews with clients shall be conducted at a location and in a manner which maximizes privacy.
- (g) Employees of the New York State Department of Social Services, the local social services district or the other authorized agency, consistent with applicable statute and regulation, shall have access to individual identifiable information only where the employee's specific job responsibilities cannot be accomplished without access to individual identifiable information.

Credits

Sec. filed June 18, 1982 eff. June 18, 1982.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 357.5, 18 NY ADC 357.5

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18 NYCRR 357.6

Section 357.6. Confidentiality policy and procedures manual

[Currentness](#)

The New York State Department of Social Services, local social services districts, and other authorized agencies shall disseminate to staff a policy and procedures manual establishing and describing:

- (a) responsibilities of staff to safeguard information pursuant to statute, regulation and policy;
- (b) procedures for properly informing clients of records collection, access, utilization and dissemination;
- (c) policies and practices relating to the safeguarding of confidential information by the agency;
- (d) procedures relating to employee access to information; and
- (e) disciplinary actions for violations of confidentiality statutes, regulations and policies.

Credits

Sec. filed June 18, 1982 eff. June 18, 1982.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 357.6, 18 NY ADC 357.6

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NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Refs & Annos

[Currentness](#)

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.1. [Repealed]

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18 NYCRR 358.1

Section 358.1. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 15, 1968; repealed, new filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.1, 18 NY ADC 358.1

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.2. [Repealed]

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18 NYCRR 358.2

Section 358.2. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 15, 1968; repealed, new filed April 21, 1972; amd. filed Aug. 24, 1982; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.2, 18 NY ADC 358.2

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.3. [Repealed]

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18 NYCRR 358.3

Section 358.3. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 15, 1968; amd. filed Sept. 30, 1968; repealed, new filed April 21, 1972; amds. filed: Dec. 5, 1972; Aug. 24, 1982; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.3, 18 NY ADC 358.3

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.4. [Repealed]

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18 NYCRR 358.4

Section 358.4. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 15, 1968; amd. filed Sept. 30, 1968; repealed, new filed April 21, 1972; amds. filed: Dec. 19, 1980; July 12, 1983; Jan. 16, 1984; April 1, 1986; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.4, 18 NY ADC 358.4

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.5. [Repealed]

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18 NYCRR 358.5

Section 358.5. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 15, 1968; amds. filed: Sept. 30, 1968; Aug. 6, 1971; repealed, new filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Sections 358.6 to 358.7. [Repealed]

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18 NYCRR 358.6 to 358.7

Sections 358.6 to 358.7. [Repealed]

[Currentness](#)

Credits

Secs. filed Feb. 15, 1968; repealed, new filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.8. [Repealed]

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18 NYCRR 358.8

Section 358.8. [Repealed]

[Currentness](#)

Credits

Sec. filed Feb. 20, 1969; renum. 358.9, new filed June 20, 1969; repealed, new filed April 21, 1972; amds. filed: July 18, 1972; April 30, 1974; May 30, 1974; March 21, 1975; Feb. 16, 1977; June 23, 1978; Sept. 18, 1979; March 31, 1980; Dec. 19, 1980; July 22, 1981; Aug. 24, 1982; Nov. 8, 1982; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.8, 18 NY ADC 358.8

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.9. [Repealed]

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18 NYCRR 358.9

Section 358.9. [Repealed]

[Currentness](#)

Credits

Sec. added by renum. 358.8, filed June 20, 1969; repealed, new filed April 21, 1972; amds. filed: June 6, 1974; Aug. 4, 1983; Sept. 14, 1987; Dec. 11, 1987; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Sections 358.10 to 358.11. [Repealed]

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18 NYCRR 358.10 to 358.11

Sections 358.10 to 358.11. [Repealed]

[Currentness](#)

Credits

Secs. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.10 to 358.11, 18 NY ADC 358.10 to 358.11

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.12. [Repealed]

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18 NYCRR 358.12

Section 358.12. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; amd. filed Sept. 8, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.13. [Repealed]

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18 NYCRR 358.13

Section 358.13. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.13, 18 NY ADC 358.13

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.14. [Repealed]

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18 NYCRR 358.14

Section 358.14. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; amd. filed May 16, 1980 as emergency measure; made permanent by order filed July 11, 1980; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.15. [Repealed]

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18 NYCRR 358.15

Section 358.15. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.16. [Repealed]

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18 NYCRR 358.16

Section 358.16. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; amds. filed: Dec. 9, 1976; May 16, 1980 as emergency measure; July 11, 1980; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.17. [Repealed]

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18 NYCRR 358.17

Section 358.17. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.18. [Repealed]

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18 NYCRR 358.18

Section 358.18. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; amds. filed: Sept. 8, 1972; June 6, 1974; Nov. 14, 1974; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.19. [Repealed]

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18 NYCRR 358.19

Section 358.19. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, new filed March 8, 1979; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag Negative Treatment Sections 358.20 to 358.21. [Repealed]

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18 NYCRR 358.20 to 358.21

Sections 358.20 to 358.21. [Repealed]

[Currentness](#)

Credits

Secs. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.22. [Repealed]

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18 NYCRR 358.22

Section 358.22. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, new filed Dec. 4, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag Negative Treatment Sections 358.23 to 358.25. [Repealed]

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18 NYCRR 358.23 to 358.25

Sections 358.23 to 358.25. [Repealed]

[Currentness](#)

Credits

Secs. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag Negative Treatment Section 358.26. [Repealed]

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18 NYCRR 358.26

Section 358.26. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, new filed Aug. 24, 1982; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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KeyCite Red Flag Negative Treatment Section 358.27. [Repealed]

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Title 18. Department of Social Services

Chapter II. Regulations of the Department of Social Services

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Article 1. Determination of Eligibility--General

Part 358. Fair Hearings: Family Assistance, Safety Net Assistance, Medical Assistance, Emergency Assistance to Aged, Blind or Disabled Persons, Emergency Assistance to Needy Families with Children, Supplemental Nutrition Assistance Program, Home Energy Assistance, and Services Funded Through the Department of Family Assistance (Refs & Annos)

18 NYCRR 358.27

Section 358.27. [Repealed]

[Currentness](#)

Credits

Sec. filed April 21, 1972; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358.27, 18 NY ADC 358.27

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358.28. [Repealed]

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18 NYCRR 358.28

Section 358.28. [Repealed]

[Currentness](#)

Credits

Sec. filed Aug. 8, 1975; repealed, filed Dec. 23, 1988 eff. Jan. 15, 1989.

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Subpart 358-1. Scope and Effective Date

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Subpt. 358-1, Refs & Annos

[Currentness](#)

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Subpart 358-1. Scope and Effective Date (Refs & Annos)

18 NYCRR 358-1.1

Section 358-1.1. General

Currentness

These regulations govern the fair hearing process and establish the rights and obligations of applicants, recipients, and social services agencies when an applicant or recipient seeks review of a social services agency action or determination regarding that individual's assistance or benefits under public assistance programs, medical assistance, the supplemental nutrition assistance program (SNAP), and the home energy assistance program (HEAP) and under various service programs as defined in section 358-2.20 of this Part and any program or service administered through the New York State Office of Temporary and Disability Assistance (OTDA) as described in 18 NYCRR Part 385.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 29, 1997 as emergency measure; Nov. 26, 1997 as emergency measure; Jan. 23, 1998 as emergency measure; Feb. 2, 1998; Aug. 19, 2003 eff. Sept. 3, 2003; June 5, 2007 eff. June 20, 2007; amd. filed March 3, 2015 eff. March 18, 2015.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-1.1, 18 NY ADC 358-1.1

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Subpart 358-1. Scope and Effective Date (Refs & Annos)

18 NYCRR 358-1.2

Section 358-1.2. Applicant/recipient

Currentness

For applicants and recipients, these regulations govern the following:

(a) *Notice.* These regulations set forth what information you are entitled to receive if you have been accepted for or denied public assistance, medical assistance, HEAP, or SNAP benefits or services, or if there is to be a discontinuance, reduction, or suspension in the public assistance, medical assistance, or SNAP benefits or services which you are receiving, or if there is an increase in the public assistance, medical assistance, or SNAP benefits you are receiving, or if there is to be a change in the calculation of such assistance or benefits, or if you are involuntarily discharged from a tier II facility as defined in Part 900 of this Title.

(b) *Timing.* These regulations set forth the time periods within which you are obligated to request a fair hearing and/or conference if your application for public assistance, medical assistance, HEAP, or SNAP benefits or services is not acted upon in a timely manner, or if you have been denied public assistance, medical assistance, or SNAP benefits or services, or if there is to be a discontinuance, reduction, or suspension in the public assistance, medical assistance, or SNAP benefits or services you are receiving, or if there is an increase in the public assistance, medical assistance, or SNAP benefits you are receiving, or if there is to be a change in the calculation of such assistance or benefits; or if you are told that you have received an over-issuance of SNAP benefits.

(c) *Procedures.* These regulations set forth what you are required to do to have an action of a social services agency reviewed when you are denied public assistance, medical assistance, SNAP, or HEAP benefits or services, or when there is a discontinuance, reduction, or suspension in the public assistance, medical assistance, or SNAP benefits or services which you are receiving, or when there is an increase in the public assistance, medical assistance, or SNAP benefits which you are receiving, or if you are involuntarily discharged from a tier II facility as defined in Part 900 of this Title, or if the social services agency has not acted in a timely manner, or if there is a change in the calculation of such assistance or benefits, or if you are told that you have received an over-issuance of SNAP benefits; how to ask for a conference and fair hearing; how to exercise your right to have your public assistance, medical assistance, or SNAP benefits or services continued until a hearing decision is issued; how to request another hearing date if you are unable to attend the fair hearing on the day it is scheduled to be held; how to get an interpreter if you do not speak English or if you are deaf; and whom you may bring to a conference or fair hearing.

(d) *Decision.* These regulations set forth what you should do if the social services agency which is a party to the fair hearing does not comply with your fair hearing decision.

Credits

Sec. filed Dec. 23, 1988; amds. filed: April 5, 1993; Aug. 19, 2003 eff. Sept. 3, 2003; amd. filed March 3, 2015 eff. March 18, 2015.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-1.2, 18 NY ADC 358-1.2

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Subpart 358-1. Scope and Effective Date (Refs & Annos)

18 NYCRR 358-1.3

Section 358-1.3. Social services agencies

Currentness

For social services agencies, these regulations govern the following:

- (a) notices to be sent to applicants and recipients of covered programs or services;
- (b) agency conferences;
- (c) information and documents to be provided to applicants/recipients, or their representatives, who have requested a fair hearing;
- (d) the fair hearing process; and
- (e) compliance with fair hearing decisions.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-1.3, 18 NY ADC 358-1.3



KeyCite Red Flag

KeyCite Red Flag Negative Treatment Section 358-1.4. [Repealed]

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Subpart 358-1. Scope and Effective Date (Refs & Annos)

18 NYCRR 358-1.4

Section 358-1.4. [Repealed]

[Currentness](#)

Credits

Sec. filed Dec. 23, 1988; repealed, filed Aug. 19, 2003 eff. Sept. 3, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-1.4, 18 NY ADC 358-1.4

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Subpart 358-2. Definitions

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Subpt. 358-2, Refs & Annos

[Currentness](#)

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.0

Section 358-2.0. Introduction

[Currentness](#)

The terms in Part 358 have the meanings set forth in this Subpart.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.0, 18 NY ADC 358-2.0

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.1

Section 358-2.1. Action taken notice

[Currentness](#)

An *action taken notice* means a notice from a social services agency advising:

- (a) an applicant for food stamp benefits or a recipient of food stamps at recertification of the social service agency's determination to accept or deny food stamp benefits; or
- (b) a recipient of food stamp benefits, of an increase in benefits.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.1, 18 NY ADC 358-2.1

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.2

Section 358-2.2. Adequate notice

Currentness

(a) Except as provided in subdivision (b) of this section, an *adequate notice* means a notice of action or an adverse action notice or an action taken notice which sets forth all of the following:

(1) the action the social services agency proposes to take or is taking, and if a single notice is used for all affected assistance, benefits or services, the effect of such action, if any, on a recipient's other assistance, benefits or services. Otherwise the notice shall state that there will be a separate notice for other affected assistance, benefits or services. In addition, in the case of:

(i) a reduction of public assistance or food stamp benefits: both the dollar amount of assistance or benefits prior to the reduction and the reduced amount must be specified;

(ii) an increase in the amount of a medical assistance spenddown: the amount of the spenddown, if any, prior to the increase and the spenddown amount after the increase must be specified. In addition, such notice must include an explanation of the procedures to be followed for meeting the spenddown;

(iii) a recoupment: the total amount to be recouped and the rate of recoupment must be specified. In addition, in the case of a recoupment of a public assistance grant, the right to claim that the rate of recoupment will cause undue hardship must be specified;

(iv) an acceptance of a food stamp application:

(a) the benefit level, including variations based on changes anticipated and at the time of certification, the date when benefits become available and the dates covering the certification/eligibility period must be specified. In addition, if the initial allotment contains benefits for both the month of application and the current month, the notice must explain that the initial allotment includes more than one month's benefits, and must indicate the monthly allotment amount for the remainder of the certification period;

- (b) when an application is approved on an expedited basis without verification, the notice must explain that the household must provide the verification which was postponed and any special conditions applicable to the household if a normal certification period was assigned to such household;
- (v) a denial of a food stamp application: when a household is potentially categorically eligible for food stamp benefits but is denied food stamp benefits, the notice must ask the applicant to inform the social services agency if the applicant is approved to receive family assistance, federally funded safety net assistance or supplemental security income benefits;
- (vi) a notice of authorization of a public assistance grant: the amount of the grant must be specified;
- (vii) an increase in a public assistance grant or food stamp benefits: the new amount of the grant or benefits must be specified;
- (viii) a restriction of a medical assistance authorization: the date the restriction will begin, the effect and scope of the restriction, the reason for the restriction, the right of the recipient to select a primary care provider within two weeks of the date of the notice of intent to restrict, if the social services agency provides a limited choice of providers to the recipient; the right of the social services agency to select a primary provider for the recipient, if a list of primary care providers is not provided or where the recipient fails to select a primary care provider within two weeks if the recipient is given a choice; and the right of the recipient to change providers every three months, or sooner for good cause shown; the right of the recipient to explain and present documentation, either at a conference or by submission, showing the medical necessity of the services cited in the recipient information packet; the right of the recipient to examine records maintained by the social services agency which identify medical assistance services paid for on behalf of the recipient (*i.e.*, claim detail of recipient profile information), must be specified;
- (ix) an acceptance of an application for services: the type of services to be provided, the duration of services planned, the name of the worker or unit responsible for the case and such person's telephone number, and the right of the applicant and recipient to accept or reject the services shall be specified. In addition, the notice must include a statement regarding the continuing responsibility of the recipient to report any changes in status;
- (x) a determination that an applicant is eligible for the HEAP program: if Federal funds are available, the amount of benefits must be specified. If Federal funds are unavailable, a statement shall be included that HEAP benefits will be provided if sufficient Federal funds become available;
- (xi) an acceptance of an application for medical assistance: the extent of coverage, including what care and services are authorized as well as any limitations, must be specified. In addition, if only part of the cost of a particular service will be allowed, such limitation must be specified. If the notice of acceptance indicates a spenddown liability, such notice must include an explanation of the procedures to be followed for meeting the spenddown;
- (xii) a disqualification of a food stamp household, or a member of such household for failure to comply with food stamp registration or work requirements: the particular act of noncompliance, the proposed period of disqualification and that the household or individual may reapply in order to resume participation in the food stamp program at the end of the disqualification period as well as information about avoiding or ending the disqualification, must be specified;

(xiii) a notice of action taken in the food stamp program when a member of the applicant household has without good cause failed to comply with work registration requirements: the particular act of noncompliance, the proposed period of disqualification, that the individual or household may reapply in order to participate at the end of the disqualification period as well as information about ending the disqualification, must be specified; and

(xiv) a disqualification of a household from the food stamp program based upon the voluntary termination of employment by the head of household: the proposed period of disqualification, the household's right to reapply in order to resume participation at the end of the disqualification period as well as information about ending the disqualification, must be specified.

(2) except in the case of a denial, the effective date of the action;

(3) except in the case of an acceptance of an application for a covered program or service, the specific reasons for the action;

(4) the specific laws and/or regulations upon which the action is based;

(5) the applicant's or recipient's right to request an agency conference and fair hearing;

(6) the procedure for requesting an agency conference or fair hearing, including an address and telephone number where a request for a fair hearing may be made and the time limits within which the request for a fair hearing must be made;

(7) an explanation that a request for a conference is not a request for a fair hearing and that a separate request for a fair hearing must be made. Furthermore, that a request for a conference does not entitle one to aid continuing, and that a right to aid continuing only arises pursuant to a request for a fair hearing;

(8) when the agency action or proposed action is a reduction, discontinuance, restriction or suspension of public assistance, medical assistance, food stamp benefits or services, the circumstances under which public assistance, medical assistance, food stamp benefits or services will be continued or reinstated until the fair hearing decision is issued; that a fair hearing must be requested separately from a conference; and a statement that when only an agency conference is requested and there is no specific request for a fair hearing, there is no right to continued public assistance, medical assistance, food stamp benefits or services; and that participation in an agency conference does not affect the right to request a fair hearing;

(9) the right of the applicant or recipient to review the applicant's or recipient's case record and to obtain copies of documents which the agency will present into evidence at the hearing and other documents necessary for the applicant or recipient to prepare for the fair hearing at no cost. The notice must contain an address and telephone number where the applicant or recipient can obtain additional information about: the applicant's or recipient's case; how to request a fair hearing; access to the case file; and/or obtaining copies of documents;

(10) the right to representation by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing;

(11) the right to present written and oral evidence at the hearing;

(12) the liability, if any, to repay continued or reinstated assistance and benefits, if the recipient loses the fair hearing;

(13) information concerning the availability of community legal services to assist an applicant or recipient at the conference and fair hearing;

(14) a copy of the budget or the basis for the computation, in instances where the social services agency's determination is based upon a budget computation; and

(15) when an action concerning medical assistance is based on a change in law, a statement of the circumstances under which a hearing may be obtained and assistance continued. Such statement must advise the recipient that although the recipient has the right to have a hearing scheduled, the hearing officer at the hearing may determine that the recipient did not have a right to a hearing or continuation of assistance if the sole issue is a Federal or State law requiring an automatic change adversely affecting some or all medical assistance recipients.

(b) Where an automatic public assistance grant adjustment is required for a class of recipients because of a change in either State or Federal law, the notice provided to a member of such class will be adequate if it includes:

(1) a statement of the intended action;

(2) the reasons for such intended action;

(3) a statement of the specific change in the law requiring such action;

(4) a statement of the circumstances under which a hearing may be obtained and assistance continued. Such statement must advise the recipient that although the recipient has the right to have a hearing scheduled, the hearing officer at the hearing may determine that the recipient did not have a right to a hearing or continuation of assistance unless the reason for the appeal is the incorrect computation of the grant; and

(5) the liability, if any, to repay continued or reinstated assistance, if the recipient loses the fair hearing.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Sept. 25, 1989; Nov. 29, 1989; Nov. 20, 1990; Aug. 19, 2003; Feb. 9, 2007 eff. Feb. 28, 2007. Amended (a)(14).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.2, 18 NY ADC 358-2.2

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.3

Section 358-2.3. Adverse action notice

[Currentness](#)

Adverse action notice means a notice from a social services agency advising a recipient of food stamp benefits of its determination to discontinue, reduce, or suspend such recipient's food stamp benefits, within the food stamp certification period.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.3, 18 NY ADC 358-2.3

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.4

Section 358-2.4. Agency conference

[Currentness](#)

Agency conference means an informal meeting at which an applicant or recipient may have any decision of a social services agency concerning the applicant's or recipient's public assistance, medical assistance, food stamp benefits, HEAP or services reviewed or may have any other aspect of the applicant's or recipient's case reviewed by an employee of that agency who has the authority to change the decision with which the applicant or recipient disagrees.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.4, 18 NY ADC 358-2.4

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.5

Section 358-2.5. Aid continuing

Currentness

Aid continuing means the right to have public assistance, medical assistance, food stamp benefits or services continued unchanged until the fair hearing decision is issued.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.5, 18 NY ADC 358-2.5

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.6

Section 358-2.6. Appellant

[Currentness](#)

Appellant means the party for whom the fair hearing is requested.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.6, 18 NY ADC 358-2.6

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.7

Section 358-2.7. Applicant

[Currentness](#)

Applicant means a person who has applied for public assistance, medical assistance, HEAP, food stamp benefits, or a service.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.7, 18 NY ADC 358-2.7

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.8

Section 358-2.8. Commissioner

[Currentness](#)

Commissioner means the New York State Commissioner of Temporary and Disability Assistance, or the Commissioner of Health or the Commissioner of the Office of Children and Family Services, depending upon the type of hearing involved as set forth in section 358-2.30 of this Part, or their designees.

Credits

Sec. filed Dec. 23, 1988; amd. filed: Aug. 19, 2003; Feb. 28, 2006 eff. March 15, 2006.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.8, 18 NY ADC 358-2.8

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.9

Section 358-2.9. Covered programs or services

Currentness

Covered programs or services means one or more of the following: family assistance, safety net assistance, medical assistance, emergency assistance to aged, blind or disabled persons, emergency assistance to needy families with children, food stamps, HEAP, and any services funded through the New York State Department of Family Assistance as defined in section 358-2.20 of this Subpart.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 31, 2000; Aug. 19, 2003; Feb. 13, 2004; Feb. 28, 2006 eff. March 15, 2006.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.9, 18 NY ADC 358-2.9

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.10

Section 358-2.10. Department

[Currentness](#)

Department means the New York State Department of Family Assistance.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 19, 2003; Feb. 13, 2004 eff. May 15, 2004.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.10, 18 NY ADC 358-2.10

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.11

Section 358-2.11. Expiration notice

Currentness

Expiration notice means a notice sent by a social services agency which advises a household in receipt of food stamp benefits that its certification period is due to expire. The expiration notice must contain:

- (a) the consequences of failure to comply with the expiration notice;
- (b) the date the current certification period ends;
- (c) the date by which the recipient's household must reapply to receive uninterrupted benefits;
- (d) the date of any scheduled interview, and a statement that the recipient is responsible for rescheduling a missed interview;
- (e) the number of days the recipient has for submitting missing verification after the interview or after the recertification form is received by the local social services district if no interview is required;
- (f) the specific regulation upon which the action is based;
- (g) the household's right to request an application for food stamp benefits and the obligation of the local social services district to accept the application, provided that the application is signed and contains a legible name and address;
- (h) the address where the application must be filed;
- (i) the household's right to apply for food stamp benefits by mail or through an authorized representative;

(j) information that any household consisting only of supplemental security income (SSI) applicants or recipients is entitled to apply for food stamp recertification at any office of the Social Security Administration (SSA);

(k) the household's right to a fair hearing;

(l) the procedure for requesting an agency conference or fair hearing, including an address and telephone number where a request for a fair hearing may be made and the time limits within which the request for a fair hearing must be made;

(m) the right of the recipient to review the recipient's case record. The notice must contain an address and telephone number where the recipient can obtain additional information about the recipient's case; how to request a fair hearing; access to the case file; and/or obtaining copies of documents;

(n) the right to representation by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing; and

(o) the right to present written and oral evidence at the hearing.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.11, 18 NY ADC 358-2.11

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.12

Section 358-2.12. Fair hearing

Currentness

Fair hearing means a formal procedure provided by OAH upon a request made for an applicant or recipient to determine whether an action taken or failure to act by a social services agency was correct.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.12, 18 NY ADC 358-2.12

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.13

Section 358-2.13. Hearing officer

Currentness

Hearing officer may be used interchangeably with the term “*administrative law judge*” and both terms mean an attorney assigned by OAH to preside at hearings.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003; amd. filed Jan. 30, 2025 eff. Feb. 19, 2025 (Register dated Feb. 19, 2025).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.13, 18 NY ADC 358-2.13

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.14

Section 358-2.14. Mass change in the Food Stamp Program

Currentness

Mass change in the Food Stamp Program means changes initiated by the Federal government or a social services agency which affect all food stamp households or a significant portion of all food stamp households. *Mass changes* may include, but are not limited to, adjustments to income eligibility standards, shelter and dependent care deductions; the thrifty food plan and the standard deduction; annual and seasonal adjustments to social security, supplemental security income and other Federal benefits.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.14, 18 NY ADC 358-2.14

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.15

Section 358-2.15. Notice of action

Currentness

Notice of action means a notice from a social services agency advising an applicant, recipient or resident of a tier II facility of any action the agency intends to take or has taken on any assistance or benefits except food stamp benefits, including the acceptance, denial, discontinuance, suspension, or reduction of public assistance, medical assistance or services, an increase in public assistance or medical assistance, a change in the amount of one of the items used in the calculation of a public assistance grant or medical assistance spenddown although there is no change in the amount of such public assistance grant or medical assistance spenddown, a change in the manner or method or form of payment of a public assistance grant, a determination that an applicant for or a recipient of public assistance is not exempt from work program requirements pursuant to section 385.2 of this Title, a restriction of a medical assistance authorization, and a denial or acceptance of HEAP or a determination to discharge a resident of a tier II facility involuntarily after such resident requests and participates in a hearing held by the facility or the social services district in which the facility is located.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 27, 1990; April 5, 1993; Aug. 31, 2000; Feb. 28, 2006 eff. March 15, 2006.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.15, 18 NY ADC 358-2.15

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.16

Section 358-2.16. Parties to a fair hearing

[Currentness](#)

Parties to a fair hearing means the person for whom a fair hearing is requested and the social services agency or agencies whose decision, action or failure to act is subject to review at the fair hearing.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.16, 18 NY ADC 358-2.16

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.17

Section 358-2.17. Public assistance

Currentness

Public assistance includes family assistance and safety net assistance, emergency assistance to aged, blind or disabled persons, emergency assistance to needy families including special grants and benefits available pursuant to Part 352 of this Title and, for the purposes of this Part, refugee cash assistance issued in accordance with Part 373 of this Title.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 16, 1995 as emergency measure; Feb. 14, 1996 as emergency measure; April 12, 1996 as emergency measure; April 12, 1996; Nov. 1, 1996 as emergency measure; Jan. 28, 1997 as emergency measure; March 28, 1997 as emergency measure; May 20, 1997 as emergency measure; July 18, 1997 as emergency measure; Sept. 3, 1997 as emergency measure; Oct. 28, 1997 as emergency measure; Dec. 29, 1997 as emergency measure; March 30, 1998 as emergency measure, expired 90 days after filing; Aug. 19, 2003 eff. Sept. 3, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.17, 18 NY ADC 358-2.17

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.18

Section 358-2.18. Recipient

[Currentness](#)

Recipient means a person who is, or has been, receiving a covered program or service. For the purpose of this Part, recipient includes a former recipient seeking to review a determination of a social services agency and who would have a right to a hearing under section 358-3.1 of this Part if such person were a current recipient.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.18, 18 NY ADC 358-2.18

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.19

Section 358-2.19. Restricted payment

Currentness

Restricted payment means one of the methods of payment described in Part 381 of this Title, including restricted money payment, indirect or vendor payment and protective payment.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.19, 18 NY ADC 358-2.19

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.20

Section 358-2.20. Services funded through the New York State Department of Family Assistance

[Currentness](#)

Services funded through the New York State Department of Family Assistance means services provided pursuant to the local social services district's consolidated services plan or integrated county plan. Such services may include, but are not limited to child care services, preventive services for children and families and for adults, protective services for children and adults, homemaker services, housekeeper/chore services, and information and referral services.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 19, 2003; Feb. 13, 2004 eff. May 15, 2004.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.20, 18 NY ADC 358-2.20

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.21

Section 358-2.21. Social services agency

[Currentness](#)

Social services agency means the State, county, city, town official or town agency, social services district, HEAP certifying agency or other entity responsible for making the determination or for the failure to act, which is the subject of review at the fair hearing.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.21, 18 NY ADC 358-2.21

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.22

Section 358-2.22. Social services district

[Currentness](#)

Social services district means the county department of social services or the New York City Department of Social Services.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.23

Section 358-2.23. Timely notice

[Currentness](#)

Timely notice means a notice which is mailed at least 10 days before the date upon which the proposed action is to become effective.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.24

Section 358-2.24. Title

[Currentness](#)

Title means Title 18 of the *New York State Official Compilation of Codes, Rules and Regulations (NYCRR)* also referred to as the regulations of the Department of Family Assistance.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 19, 2003; Feb. 13, 2004 eff. May 15, 2004.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.24, 18 NY ADC 358-2.24

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.25

Section 358-2.25. Witness

Currentness

Witness means a person, other than the applicant, recipient, or the representative thereof, who presents testimony and/or documentary evidence at a fair hearing.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.25, 18 NY ADC 358-2.25

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.26

Section 358-2.26. Resident of a tier II facility

[Currentness](#)

Resident of a tier II facility means a family or family member residing in a tier II facility as defined in Part 900 of this Title.

Credits

Sec. filed April 5, 1993 eff. April 21, 1993.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.26, 18 NY ADC 358-2.26

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.27

Section 358-2.27. Food stamps

[Currentness](#)

Whenever the term **food stamps** is used in this Part it means SNAP benefits.

Credits

Sec. filed: Aug. 29, 1997 as emergency measure; Nov. 26, 1997 as emergency measure; Jan. 23, 1998 as emergency measure; Feb. 2, 1998 eff. Feb. 18, 1998; amd. filed March 3, 2015 eff. March 18, 2015.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.27, 18 NY ADC 358-2.27

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.28

Section 358-2.28. Notice of missed interview

[Currentness](#)

Notice of missed interview means a notice sent by a social services district informing an applicant or recipient that they have missed a scheduled food stamp eligibility or recertification interview and advising them that it is their responsibility to reschedule the interview.

Credits

Sec. filed Aug. 26, 2003 eff. Sept. 10, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.28, 18 NY ADC 358-2.28

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Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.29

Section 358-2.29. Request for contact notice

Currentness

Request for contact notice means a notice sent by a social services district advising a household that information needs to be verified or clarified during its food stamp certification period.

Credits

Sec. filed Aug. 26, 2003 eff. Sept. 10, 2003.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.29, 18 NY ADC 358-2.29

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Part 358. Fair Hearings: Family Assistance, Safety Net Assistance, Medical Assistance, Emergency Assistance to Aged, Blind or Disabled Persons, Emergency Assistance to Needy Families with Children, Supplemental Nutrition Assistance Program, Home Energy Assistance, and Services Funded Through the Department of Family Assistance (Refs & Annos)

Subpart 358-2. Definitions (Refs & Annos)

18 NYCRR 358-2.30

Section 358-2.30. Office of Administrative Hearings

Currentness

Office of Administrative Hearings (OAH) means the office established in the Office of Temporary and Disability Assistance for the purpose of conducting fair hearings under this Part. The OAH is authorized to conduct hearings under this Part for:

- (a) *[Reserved]*
- (b) applicants for and recipients of medical assistance on behalf of the Department of Health; and
- (c) applicants for and recipients of services and foster parents challenging rates paid to them for foster care on behalf of the Office of Children and Family Services.

Credits

Sec. filed Aug. 19, 2003; amd. filed Feb. 28, 2006 eff. March 15, 2006. Repealed (a).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-2.30, 18 NY ADC 358-2.30

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Subpt. 358-3, Refs & Annos

[Currentness](#)

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.0

Section 358-3.0. Introduction

Currentness

The rights and obligations of applicants and recipients and sponsors of aliens receiving food stamp benefits are governed by this Subpart.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.0, 18 NY ADC 358-3.0

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.1

Section 358-3.1. Right to a fair hearing

Currentness

(a) An applicant or recipient has the right to challenge certain determinations or actions of a social services agency or such agency's failure to act with reasonable promptness or within the time periods required by other provisions of this Title, by requesting that the OAH provide a fair hearing. The right to request a fair hearing cannot be limited or interfered with in any way.

(b) If you are an applicant or a recipient of assistance, benefits or services you have a right to a fair hearing if:

(1) your application has been denied by a social services agency, or you have agreed in writing that your application should be withdrawn but you feel that you were given incorrect or incomplete information about your eligibility for the covered program or service; or

(2) a social services agency has failed to:

(i) determine your eligibility for a covered program or service with reasonable promptness or within the time periods required by other provisions of this Title;

(ii) issue or adjust your cash grant;

(iii) issue or adjust your food stamp benefits; or

(iv) authorize medical care or services for you; or

(3) your public assistance, medical assistance, food stamps or services have been discontinued, suspended or reduced, or your public assistance, medical assistance or food stamps have been increased; or

- (4) the method or manner or form of payment of all or part of your public assistance grant has been changed, a restricted payment is being made or is being continued or a medical assistance authorization is restricted; or
- (5) you object to the payee selected for a restricted payment; or
- (6) your public assistance, medical assistance, HEAP or services are inadequate; or
- (7) although there has been no change in the amount of your public assistance grant, medical assistance spenddown or food stamp benefits, you wish to challenge the social services agency's determination that the amount of one of the items used in the calculation of your public assistance grant, medical assistance spenddown or food stamp benefits has changed; or
- (8) your request for restoration of any food stamp benefits lost less than one year prior to the request for restoration has been denied; or you do not agree with the amount of food stamp benefits restored or any other action taken by the social services agency to restore such benefits; or
- (9) your food stamp benefits have been reduced, suspended or cancelled as a result of an order issued by the United States Food and Nutrition Service to reduce allotments because the requirements of states participating in the Food Stamp Program will exceed appropriations; however, in such case you have the right to a fair hearing only if you believe that your benefit level was computed incorrectly under Federal rules, or that Federal rules were misapplied or misinterpreted; or
- (10) you are aggrieved by a mass change in the Food Stamp Program; or
- (11) within a certification period, the amount of your food stamp benefits is inadequate and you have made the request for a fair hearing within such certification period; or
- (12) your application for food stamp benefits has been denied or your food stamp benefits have been reduced or discontinued due to a determination that you are not exempt from Food Stamp Program work requirements and that you have failed to comply with work registration or employment and training requirements. You may request a fair hearing to review such determination including the determination of exemption status, the type of requirement imposed, or a social services agency's refusal to make a finding of good cause for failure to comply with such requirements if you believe that the finding of failure to comply was improper; or
- (13) you are required to participate in a service, except when required to do so by court order; or
- (14) you are an applicant for or a recipient of public assistance and you object to a social services agency determination that you are not exempt from work program requirements or to the determination that you are not work-limited as provided by section 385.2 of this Title; or
- (15) you object to the amount deducted from your initial payment of supplemental security income as reimbursement of public assistance; or

(16) the amount you are being charged for a service has been increased and such increase is not based on a change in the fee or family share schedule; or

(17) you disagree with the amount of a claim for the overpayment of public assistance or the over-issuance of food stamp benefits, except if the amount of such claim has already been determined in accordance with Part 359 or 399 of this Title, by an administrative disqualification hearing, a waiver for an administrative disqualification hearing, a court determination or a disqualification consent agreement; or

(18) you are a recipient of medical assistance and you have reached a utilization threshold and your application for an exemption from or increase to such threshold has been denied; or

(19) you are participating in a work-related program or activity under Part 385 of this Title and you have a complaint regarding the calculation of your hours of participation in work experience or in work experience as part of community service; or

(20) you have been denied a waiver of public assistance program requirements under section 351.2(l) of this Title or an extension of such waiver has been denied or such waiver has been terminated or modified.

(c) As the sponsor of an alien receiving food stamp benefits and for whom there has been an over-issuance of benefits for which you are liable, you have a right to a hearing to contest the following:

(1) the determination that you were responsible for the incorrect information which was provided and which resulted in the over-issuance; and

(2) the amount of the over-issuance for which you are liable.

(d) As a relative or friend of a deceased person, you have a right to a fair hearing if you have paid for the burial arrangements of such deceased person and your claim for reimbursement made pursuant to [section 141 of the Social Services Law](#) is denied by the local social services agency.

(e) As a recipient of food stamp benefits, you do not have the right to a fair hearing to challenge the following:

(1) the placement of your household on an alternate issuance system; or

(2) the length of time that your household is required to participate in an alternate issuance system; or

(3) an adverse decision in an administrative disqualification hearing; or

(4) a disqualification penalty imposed after you have waived your rights to an administrative disqualification hearing.

(f) As an applicant or recipient you do not have the right to a fair hearing in all situations. For example, you do not have a right in the following situations:

- (1) the Department of Health has discontinued payment to the medical facility in which you are or had been residing because the facility has been decertified from participation in the Medical Assistance Program; or
- (2) your physician has ordered a change in the level of care being provided to you; or
- (3) a utilization review committee has ordered a higher level of care; or
- (4) the sole issue involving your receipt of medical assistance is a Federal or State law requiring an automatic change which adversely affects some or all recipients; or
- (5) you are complaining about the amount of any lien taken by a social services agency; or
- (6) a local social services agency has demanded restitution, in accordance with the provisions of [section 104](#) or [106-b of the Social Services Law](#), of public assistance paid, other than by a reduction of the public assistance grant; or
- (7) you are complaining about the amount of a child support payment which is passed through to you; or
- (8) your services have been discontinued as a result of a court order, or the court order which required the provision of services has expired; or
- (9) you are a member of a class of public assistance recipients for whom either State or Federal law requires an automatic grant adjustment, unless the reason for your appeal is the incorrect computation of your grant; or
- (10) you are a foster family care services recipient, a foster family caregiver, or a respite caregiver pursuant to section 505.29 of this Title, and a sponsoring agency terminates the foster family caregiver's or the respite caregiver's authority to provide foster family care services or a social services district or the Office of Children and Family Services or the Department of Health terminates its contract with a sponsoring agency; or
- (11) you have been sent a request for contact notice in order to verify or clarify information during your food stamp certification period; or
- (12) you have been sent a notice of missed interview informing you that you have missed a scheduled food stamp eligibility or recertification interview and advising you that it is your responsibility to reschedule the interview.

(g) If you are an institutionalized spouse or a community spouse, as defined in section 360-4.10 of this Title, and a determination has been made on an application for medical assistance for the institutionalized spouse, you have a right to a fair hearing to challenge:

- (1) the amount of the community spouse monthly income allowance; and/or
- (2) the amount of monthly income determined to be otherwise available to the community spouse; and/or
- (3) the amount of resources attributed to the community spouse or to the institutionalized spouse; and/or
- (4) the amount of the community spouse resource allowance.

(h) You have a right to a fair hearing if you are a resident of a shelter for families as defined in section 900.2 of this Title and you have been involuntarily discharged from the shelter after having requested and participated in a hearing, held by the facility or by the social services district in which the facility is located, to determine whether you should be involuntarily discharged. If you do not request and participate in such a hearing you do not have a right to a fair hearing. You also do not have a right to a hearing under this Part if the basis for the discharge is that you are or a family member is no longer medically appropriate to reside in the facility, as determined by qualified medical personnel, you or a family member's temporary housing assistance has been discontinued pursuant to the provisions of section 352.35 of this Title or, you have or a family member has been absent from the facility for more than 48 hours without having complied with the facility's rules concerning absence and you have not or the family member has not been readmitted to the facility.

Credits

Sec. filed Dec. 23, 1988; amds. filed: April 12, 1989 as emergency measure; June 27, 1989; Aug. 28, 1989; Nov. 3, 1989 as emergency measure; Feb. 1, 1990 as emergency measure; April 2, 1990 as emergency measure; June 1, 1990 as emergency measure; July 31, 1990 as emergency measure; Sept. 28, 1990 as emergency measure; Sept. 28, 1990; Nov. 20, 1990; Nov. 27, 1990; April 2, 1991 as emergency measure; May 31, 1991 as emergency measure; May 31, 1991; April 1, 1992; June 30, 1992 as emergency measure; Sept. 28, 1992 as emergency measure; Sept. 28, 1992; April 5, 1993; March 10, 1998 as emergency measure; June 8, 1998 as emergency measure; Sept. 4, 1998 as emergency measure; Sept. 4, 1998; Aug. 31, 2000; Aug. 19, 2003; Aug. 26, 2003; Feb. 13, 2004; Feb. 28, 2006 eff. March 15, 2006; amd. filed Nov. 25, 2019 eff. Jan. 1, 2020.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.1, 18 NY ADC 358-3.1

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.2

Section 358-3.2. Right to priority in hearing and determination

Currentness

Priority in scheduling of your hearing and determination will be provided when:

(a) you are an applicant for emergency assistance to needy families with children, emergency assistance to aged, blind or disabled persons or emergency home relief and you are appealing the denial of such benefits; or

(b) your circumstances warrant priority in scheduling and your hearing is being scheduled because you have:

(1) no food; or

(2) no shelter, or your shelter is imminently about to be lost or terminated; or

(3) an inadequate or inappropriate emergency shelter placement; or

(4) an eviction/dispossess notice; or

(5) no fuel for heat during the cold weather period; or

(6) a utility disconnect scheduled for a specific date; or

(7) a utility shut-off; or

(8) need for rental security deposit, broker's fee and/or first month's rent, if necessary to obtain permanent housing, and failure to expedite processing will lead to loss of such housing; or

(9) urgent need for medical care, services or supplies; or

(10) a denial or discontinuance of or inadequate personal care services; or

(11) a denial or discontinuance of or inadequate adult protective services; or

(12) been involuntarily discharged from a tier II facility as defined in Part 900 of this Title and you requested and participated in a hearing, held by the facility or by the social services district in which the facility is located, to determine whether you should be involuntarily discharged; or

(13) any other problem which is determined at the commissioner's discretion, to be an appropriate subject for priority processing and which presents a crisis situation or a threat to your health and safety or that of your family; or

(c) you are requesting a fair hearing concerning your food stamp benefits and your household is planning to move away from the local social services district before the fair hearing decision would normally be issued; or

(d) you have been denied public assistance for yourself or your dependent child because:

(1) you are under the age of 18;

(2) you have never married;

(3) you either reside with and provide care for your dependent child or are pregnant;

(4) you are not residing in a place of residence maintained as a home by your parent, legal guardian or other adult relative or in an adult-supervised supportive living arrangement; and

(5) you have alleged that your physical or emotional health or safety or that of your dependent child would be jeopardized if you or such child lived in the same residence with your parent or legal guardian and an investigation conducted in accordance with [section 424 of the Social Services Law](#) did not support your allegation.

Credits

Sec. filed Dec. 23, 1988; amds. filed: March 8, 1990; April 5, 1993; Nov. 7, 1995 as emergency measure; Feb. 5, 1996 as emergency measure; April 4, 1996 as emergency measure; May 28, 1996 as emergency measure; May 28, 1996; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (b)(13), (d).

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.3

Section 358-3.3. Notice requirements

Currentness

(a) *Public assistance, medical assistance and services: notice of action.*

(1) Action to discontinue, suspend, reduce, restrict; changes in the manner of payment for child care services; denial of an extension of a waiver of public assistance program requirements or termination or modification of such waiver. Except as set forth in subdivision (d) of this section, you have a right to timely and adequate notice when a social services agency proposes to:

- (i) take any action to discontinue, suspend, or reduce your public assistance grant, medical assistance authorization or services; or
- (ii) change the manner or method or form of payment of your public assistance grant; or
- (iii) restrict your medical assistance authorization; or
- (iv) make changes in the manner or amount of payment for your child care services and such change results in the discontinuance, suspension, reduction or termination of benefits or forces you to make changes in child care arrangements; or
- (v) make changes in the manner of payment for your supportive services provided to enable you as a recipient of public assistance to participate in work activities pursuant to Part 385 of this Title and such changes result in the discontinuance, suspension, reduction or termination of benefits, or force you to change child care arrangements; or
- (vi) deny an extension of a waiver of public assistance program requirements under section 351.2(l) of this Title or such waiver has been terminated or modified.

(2) Action to accept, deny, increase or make change in calculation; denial of utilization threshold exemption or increase application; employability determination changes in the manner of payment for denial of a waiver of public assistance program requirements. You have a right to adequate notice when a social services agency:

(i) accepts or denies your application for public assistance, medical assistance or services; or

(ii) increases your public assistance grant; or

(iii) determines to change the amount of one of the items used in the calculation of your public assistance grant or medical assistance spenddown although there is no change in the amount of your public assistance grant or medical assistance spenddown; or

(iv) denies an application for an exemption from or an increase of a medical assistance utilization threshold and you have reached the utilization threshold; or

(v) changes the manner or amount of payment for your child care services except as provided in subparagraph (1) (iv) of this subdivision; or

(vi) determines that you are not eligible for an exemption requested from work requirements as described in Part 385 of this Title and you are an applicant for or recipient of public assistance; or

(vii) denies a waiver of public assistance program requirements under section 351.2(l) of this Title.

(3) Action based on a change in State or Federal law requiring automatic public assistance grant adjustments for classes of recipients. When you are a member of a class of public assistance recipients for whom changes in either State or Federal law require automatic grant adjustments, you are entitled to timely notice of such grant adjustment. This notice will be adequate if it includes those items listed in section 385-2.2(b) of this Part.

(b) Food stamps.

(1) Action to discontinue, reduce or recoup: action notice. Except as set forth in subdivision (e) of this section, when a social services agency proposes to take any action to discontinue or reduce your food stamp benefits you have the right to timely and adequate notice.

(2) Action to accept, deny, increase, change in calculation: adverse action taken notice. When a social services agency accepts or denies your application for food stamp benefits or increases your food stamp benefits, or changes the amount of one of the items used in the calculation of your food stamp benefits although there is no change in the amount of your food stamp benefits, you have the right to adequate notice.

(3) Expiration notice.

(i) Before or at the beginning of the last month of your household's current certification period for food stamp benefits, you have a right to an expiration notice as defined in section 358-2.11 of this Part; however, if your household was recertified for both public assistance and food stamps prior to the last month of the food stamp certification period, an expiration notice is not required.

(ii) For households with certification periods longer than one or two months the notice of expiration must be sent by the social services agency so that your household receives it no earlier than the first day of the second to the last month of the certification period and no later than one day before the last month of the certification period.

(iii) Households certified for one month only, or initially certified for two months during the month following the month of application, must be sent the expiration notice at the time of certification.

(c) *Home Energy Assistance Program (HEAP)*. When a social services agency accepts or denies your application for HEAP benefits or determines that you are eligible for HEAP benefits but Federal funds are unavailable, you have a right to adequate notice.

(d) *Public assistance and medical assistance programs: exceptions to timely notice requirements.*

(1) As a recipient of either public assistance or medical assistance you have the right to adequate notice sent no later than the effective date of the proposed action when:

(i) the social services agency has factual information confirming the death of a recipient or the payee of a family assistance case, and there is reliable information that no relative is available to serve as a new payee; or

(ii) the social services agency has received a clear written statement signed by you which includes information that requires the social services agency to discontinue or reduce your public assistance or medical assistance and you have indicated in such statement that you understand that such action will be taken as a result of supplying such information; or

(iii) the social services agency has received a clear written statement from you indicating that you no longer wish to receive public assistance or medical assistance; or

(iv) the agency has reliable information that you have been admitted or committed to an institution or prison which renders you ineligible for assistance or services under the Social Services Law; or

(v) your whereabouts are unknown and mail addressed to you by the social services agency has been returned by the post office with an indication that there is no known forwarding address. However, public assistance or medical assistance will be given to you if the social services agency is made aware of your whereabouts during the period covered by the returned public assistance check or medical assistance authorization; or

(vi) you have been accepted for public assistance or medical assistance in another local social services district, state, territory or commonwealth, and that acceptance has been verified by the social services district previously providing you with such assistance.

(2) As a recipient of public assistance, you have the right to adequate notice sent no later than the date of the proposed action when the following actions affect your public assistance grant:

(i) you have been placed for long-term care in a skilled nursing facility, intermediate care facility or hospital; or

(ii) a child has been removed from your home as a result of a judicial determination, or voluntarily placed in foster care by the child's legal guardian; or

(iii) a special allowance granted for a specific period has been terminated and you had been informed in writing at the time that you were first granted the special allowance that the allowance would automatically terminate at the end of the specified period; or

(iv) the social services agency has determined to accept your application for public assistance or has determined to increase your assistance;

(v) the social services agency action results from information you furnished in a quarterly report required by section 351.24 of this Title;

(vi) you are a recipient of public assistance and you have been determined eligible for supplemental security income and the social services agency has made a determination that the amount of supplemental security income makes you no longer eligible for public assistance.

(3) As a recipient of medical assistance, you have the right to adequate notice if you are in a general hospital, not receiving chronic care services and a utilization review committee has determined that your medical assistance payment should be reduced or discontinued.

(e) *Food Stamp Program: exemption from notice requirements or timely notice requirements.*

(1) You are not entitled to an individual adverse action notice when:

(i) a mass change is initiated which affects all food stamp households or significant portions thereof; or

(ii) based on reliable information, the social services agency determines that all members of your household have died or that the household has moved from the social services district or will not be residing in the social services district and will be unable therefore to obtain its next food stamp allotment from such district; or

(iii) your certification period has expired, you were previously informed of the expiration, and you have not reapplied for benefits; or

(iv) your household has been receiving an increased food stamp allotment to restore lost benefits, the restoration is complete, and the household was previously notified in writing of the date when the increased food stamp allotment would terminate; or

(v) your household's allotment of food stamp benefits varies from month to month within the certification period to take into account changes which were anticipated at the time of certification, and the household was notified that the food stamp allotment would vary at the time of certification; or

(vi) your household applied jointly for public assistance and food stamp benefits and has been receiving food stamp benefits pending the approval of the public assistance grant and was notified at the time of food stamp certification that food stamp benefits would be reduced upon approval of the public assistance grant; or

(vii) a household member is disqualified from the Food Stamp Program for an intentional program violation in accordance with Part 359 or Part 399 of this Title or the food stamp benefits of the remaining household members are reduced or terminated to reflect the disqualification of that household member; or

(viii) the social services agency has elected to assign a longer certification period to your household which was certified on an expedited basis and for which verification was postponed. The household must have received written notice that in order to receive benefits past the month of application the household must provide the verification which was initially postponed and the social services agency may act on the verified information without further notice; or

(ix) a social services agency has converted your household from cash repayment of an intentional program violation claim or an inadvertent household error to benefit reduction, as a result of the household's failure to make an agreed upon cash repayment; or

(x) you are a resident of a treatment center or group living arrangement which is determined to be ineligible for food stamp benefits because the facility has either lost its certification from the appropriate State agency/agencies or lost its status as an authorized representative due to its disqualification by the Federal Food and Nutrition Service as a retailer. However, residents of group living arrangements applying on their own behalf may remain eligible to participate in the Food Stamp Program; or

(xi) your household voluntarily requests, in writing or in the presence of an agency employee, that its food stamp benefits be terminated. If the household does not provide a written request, the social services agency must send the household a letter confirming the voluntary withdrawal.

(2) Mass changes.

(i) When the Federal government initiates an adjustment to eligibility standards, allotments or deductions and the State initiates adjustments to utility standards, you are not entitled to a notice of adverse action.

(ii) When OTDA initiates a mass change in food stamp eligibility or benefit levels simultaneously for the entire caseload or that portion of the caseload that is affected, or by conducting individual desk reviews in place of the mass change, no later than the date your household is scheduled to receive the benefits which have been changed, you shall be informed of the following:

(a) the general nature of the change;

(b) examples of the effect the changes will have on household allotments;

(c) the month in which the change will take effect;

(d) the right to a fair hearing;

(e) the right to continued benefits and under what circumstances benefits will be continued, pending issuance of the fair hearing decision. You will be informed that at the hearing, the hearing officer may determine to end your continuation of benefits if it is determined that the issue being contested is not based on improper computation of benefits or misapplication or misinterpretation of Federal law or regulation;

(f) general information on whom to contact for additional information; and

(g) the liability the household will incur for any over-issued benefits if the fair hearing decision is adverse.

(3) As a recipient of food stamp benefits you have the right to an adequate notice sent no later than the date of the proposed action when the social services agency action results from information you furnished on a periodic report. As a recipient of food stamp benefits, you have the right to an adequate and timely notice because you failed to return a periodic report required by section 387.17(d) of this Title.

(f) *Involuntary discharges from tier II facilities.* As a resident of a tier II facility you have a right to adequate notice when you have been involuntarily discharged from a tier II facility as set forth in section 900.8 of this Title and you have requested and participated in a hearing, held by the facility or by the social services district in which the facility is located, to determine whether you should be involuntarily discharged. Such notice must be on a form mandated by OTDA, which meets the requirements for adequate notice as set forth in section 358-2.2 of this Part.

(g) *Concurrent benefits.* For the purposes of this subdivision, the term *benefits* has the same meaning as that used in section 351.9 of this Title and *concurrent benefits* has the same meaning as that used in section 351.9 of this Title.

(1) Denial of benefits. You have the right to an adequate notice when a social services official determines to deny you benefits on the grounds that you are receiving or have been accepted to receive a concurrent benefit in that social services district or in another social services district, state, territory or commonwealth.

(2) Discontinuance of benefits--timely and adequate notice. You have the right to timely and adequate notice when:

(i) a social services official determines to discontinue your benefits because you are receiving concurrent benefits in that social services district and in another state, territory or commonwealth, but you are not receiving concurrent benefits from social services districts solely within the State; or

(ii) a social services official determines to discontinue your benefits because you are receiving benefits in that social services district and all concurrent benefits in that district and in any other social services district in the State have been discontinued and no aid continuing has been granted under section 358-3.6 of this Subpart for any such discontinuances.

(3) Discontinuance of benefits--exception to timely notice. Notwithstanding any other provision of this section, you have a right to adequate notice sent no later than the effective date of the proposed action when a social services official determines to discontinue your benefits because you are receiving concurrent benefits in the same social services district or in another social services district within the State.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 28, 1989; Nov. 29, 1989; Aug. 29, 1990 as emergency measure; Aug. 30, 1990 as emergency measure; Nov. 20, 1990; Nov. 27, 1990 as emergency measure; Nov. 27, 1990; Nov. 28, 1990 as emergency measure; Jan. 25, 1991 as emergency measure, expired 60 days after filing; March 27, 1991 as emergency measure; March 27, 1991, expired 60 days after filing; April 2, 1991 as emergency measure; May 31, 1991 as emergency measure; May 31, 1991; Dec. 29, 1992 as emergency measure; March 30, 1993 as emergency measure; April 5, 1993; May 27, 1993 as emergency measure; May 27, 1993; Jan. 5, 1996; March 10, 1998 as emergency measure; June 8, 1998 as emergency measure; Sept. 4, 1998 as emergency measure; Sept. 4, 1998; Aug. 31, 2000; Aug. 19, 2003; Aug. 26, 2003; Feb. 13, 2004; amended adoption filed March 29, 2004; amd. filed Feb. 28, 2006 eff. March 15, 2006; emergency rulemaking eff. Sept. 25, 2019, expired Dec. 8, 2019; emergency rulemaking eff. Dec. 9, 2019, expires Feb. 6, 2020; emergency rulemaking eff. Feb. 6, 2020, expires April 5, 2020; emergency rulemaking eff. April 6, 2020, expires June 4, 2020; amd. filed May 15, 2020 eff. June 3, 2020.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.3, 18 NY ADC 358-3.3

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.4

Section 358-3.4. Rights in the fair hearing process

Currentness

As an appellant you have the right:

- (a) to the continuation or reinstatement of your public assistance, medical assistance authorization, food stamp benefits or services until the issuance of a decision in your fair hearing, to the extent authorized by section 358-3.6 of this Subpart. You have the right to request that your assistance, benefits or services not be continued or reinstated until the fair hearing decision is issued;
- (b) to examine your case record and to receive copies of documents in your case record which you need to prepare for the fair hearing, upon your request, to the extent authorized by and within the time periods set forth in section 358-3.7 of this Subpart;
- (c) to examine and receive copies of all documents and records which will be submitted into evidence at the fair hearing by a social services agency, upon your request, to the extent authorized by and within the time periods set forth in section 358-3.7 of this Subpart;
- (d) to the rescheduling (adjournment) of your hearing, to the extent authorized by section 358-5.3 of this Part;
- (e) to be represented by an attorney or other representative at any conference and hearing, or to represent yourself;
- (f) to have an interpreter at any fair hearing, at no charge to you, if you do not speak English or if you are deaf. You should advise OAH prior to the date of the fair hearing if you will need an interpreter;
- (g) to appear and participate at your conference and fair hearing, to explain your situation, to offer documents, to ask questions of witnesses, to offer evidence in opposition to the evidence presented by the social services agency and to examine any documents offered by the social services agency;

- (h) to bring witnesses to present written and oral evidence at any conference or fair hearing;
- (i) at your request to the social services agency, to receive necessary transportation or transportation expenses to and from the fair hearing for yourself and your representatives and witnesses and to receive payment for your necessary child care costs and for any other necessary costs and expenditures related to your fair hearing;
- (j) to have the fair hearing held at a time and place convenient to you as far as practicable, taking into account circumstances such as your physical inability to travel to the regular hearing location;
- (k) to request removal of a hearing officer in accordance with section 358-5.6 of this Part; and
- (l) to seek review by a court if the decision is not in your favor.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 29, 1989; May 13, 1991; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (f).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.4, 18 NY ADC 358-3.4

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.5

Section 358-3.5. Requests for a fair hearing

Currentness

- (a) A fair hearing may be requested in writing, by telephone, by electronic means, or facsimile or in person.
- (b)
- (1) A request for a fair hearing must be made within 60 days after the social services agency's determination, action, or failure to act about which you are complaining except as provided in paragraphs (2) and (3) of this subdivision for fair hearings relating to food stamp benefits, and paragraph (4) relating to HEAP benefits and paragraph (5) relating to involuntary discharges from tier II facilities, and paragraph (6) relating to determinations of exemptions from work activities due to disability. Where the social services agency's action is based on a change in State or Federal law requiring automatic public assistance grant adjustments for classes of recipients, a request for a fair hearing must be made within 60 days after the changed grant becomes available to you.
- (2) A request for a fair hearing to complain about any action by the social services agency affecting your food stamp benefits, including a loss of food stamp benefits, must be made within 90 days after the determination, action or failure to act about which you are complaining. Action includes a denial of a request for restoration of any benefits lost more than 90 days but less than one year prior to the request for restoration. Where the social services agency's action is the result of a mass change, a request for a fair hearing must be made within 90 days after the changed level of benefits become available to you.
- (3) A request for a fair hearing to dispute the current level of food stamp benefits granted to your household must be made during the food stamp certification period.
- (4) A request for a fair hearing to review the denial of, the failure to act on an application for, or the adequacy of a HEAP benefit must be made no later than 60 days after the mailing of the notice. Notwithstanding the provisions of this Part and Part 393 of this Title, no person shall be certified as eligible to receive a HEAP benefit as a result of a fair hearing if no federal funds are available for such purpose. Federal funds are available for the provision of a HEAP benefit until the end of the federal fiscal year succeeding the end of the HEAP program year for which such benefit is claimed. The issuance

of a HEAP benefit in compliance with a fair hearing decision can only be provided if the hearing request is made during the period of time when federal funds are available.

(5) A request for a fair hearing to review the involuntary discharge of a resident from a tier II facility after the resident has requested and participated in a hearing, held by the facility or social services district in which the facility is located, must be made no later than 30 days after the decision of the facility or social services district is rendered.

(6) A request for a fair hearing relating to determinations of exemptions from work activities due to disabilities must be made with 10 days of the agency's notice of determination pursuant to section 385.2(d)(7)(i) of this Title.

(7) If the last day for requesting a fair hearing falls on a weekend or holiday, a hearing request postmarked or received by OAH on the day after the weekend or holiday will be considered as timely received.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 20, 1990; April 5, 1993; Aug. 31, 2000; August 19, 2002; Aug. 19, 2003; Feb. 28, 2006; Feb. 27, 2013 eff. March 20, 2013.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.5, 18 NY ADC 358-3.5



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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.6

Section 358-3.6. Right to aid continuing

Currentness

In certain situations, you have the right to have your public assistance, medical assistance, food stamp benefits, and services continued unchanged until your fair hearing decision is issued. OAH will determine whether you are entitled to aid continuing and advise the appropriate social services agency and you of its decision.

(a) *Public assistance, medical assistance and services.* For public assistance, medical assistance and services, the right to aid continuing exists as follows:

(1)

(i) Except as provided in paragraph (2) of this subdivision, where the social services agency is required to give you timely notice before it can take any action in your case, you have the right to aid continuing for your public assistance and medical assistance and services until the fair hearing decision is issued if you request a fair hearing before the effective date of a proposed action as contained in the notice of action. In the Medical Assistance Program, if you have been receiving assistance based on a spenddown of excess income, the right to aid continuing includes the right to have your spenddown liability continue unchanged.

(ii) If your assistance or services have been reduced or discontinued, restricted or suspended by the social services agency and you requested a hearing before the effective date contained in the notice, your assistance or services must be restored by the social services agency as soon as possible but no later than five business days after notification from OAH that you were entitled to have your public assistance, medical assistance or services continue uninterrupted pursuant to this paragraph.

(iii) In cases where the action is an automatic public assistance grant adjustment based on a change in State or Federal law, the effective date for determining the right to continued public assistance, medical assistance and food stamps will be deemed to be 10 days after the date the changed grant becomes available to you.

(iv) If the effective date of the proposed action falls on a weekend or holiday, a hearing request postmarked or received by OAH on the day after the weekend or holiday will be considered timely for the purposes of aid continuing.

(2) There is no right to aid continuing of:

(i) public assistance where OAH has determined that the sole issue is one of State or Federal law or policy, or change in State or Federal law and not one of incorrect grant computation; or

(ii) medical assistance or services where OAH has determined that the sole issue is one of State or Federal law or policy; or

(iii) medical assistance when you have been determined presumptively eligible for medical assistance and have subsequently been denied eligibility for medical assistance; or

(iv) medical assistance if you are a recipient in a general hospital, not receiving chronic care services, and you are in short-term hospitalization and a utilization review committee determines that such level of care is no longer required; or

(v) public assistance, medical assistance or services when the social services official determines to discontinue your benefits because you are receiving concurrent benefits as described in section 351.9 of this Title in the same social services district or in another social services district within the State; or

(vi) child care assistance provided pursuant to section 415.2(a)(1)(i) of this Title before the eligibility determination and you have subsequently been determined ineligible for child care assistance pursuant to section 415.2(a)(1)(ii) of this Title.

(3)

(i) Where the social services agency is required only to give you adequate notice but not timely notice and has discontinued, reduced, restricted or suspended your public assistance, medical assistance or services, you have the right to have your public assistance, medical assistance or services reinstated and continued until a fair hearing decision is issued only if you request a fair hearing within 10 days of the mailing of the agency's notice of the action and if OAH determines that the action on your public assistance or medical assistance benefits or services did not result from the application of or change in State or Federal law or policy. If OAH determines that you are entitled to have your public assistance, medical assistance or services reinstated and continued in accordance with this paragraph, the social services agency must restore your public assistance, medical assistance or services as soon as possible but not later than five business days after being advised by OAH of such determination. With the exception of child

care services, there is no right to reinstatement for supportive services provided to enable you to participate in work activities pursuant to Part 385 of this Title.

(ii) If the 10th day of the mailing of the agency's notice of the action falls on a weekend or holiday, a hearing request postmarked or received by OAH on the day after the weekend or holiday will be considered timely for the purposes of reinstatement pursuant to subparagraph (i) of this paragraph.

(4)

(i) Where an applicant for or a recipient of public assistance has claimed to be exempt from work requirements under the disability program pursuant to section 385.2(d) of this Title and has been determined not to be exempt or to be work limited and a hearing is requested to contest such determination within 10 days of the date of the agency's notice, any failure to comply with employment requirements within the 10-day period or thereafter until a fair hearing decision is issued will not be considered noncompliance regardless of the outcome of the fair hearing.

(ii) If the 10th day after effective date of the agency's notice of the action falls on a weekend or holiday, a hearing request postmarked or received by OAH on the day after the weekend or holiday will be considered to be received within 10 days of the effective date of the agency notice for purposes of subparagraph (i) of this paragraph.

(b) Public assistance, medical assistance, and services will not be continued pending the issuance of a fair hearing decision when:

(1) you have voluntarily waived your right to the continuation of such assistance, benefits or services in writing; or

(2) you do not appear at the fair hearing and do not have a good reason for not appearing; or

(3) prior to the issuance of your fair hearing decision, a social services agency proposes to take or takes an action which affects your entitlement to public assistance, medical assistance, or services, and you do not make a request for a fair hearing regarding the subsequent notice.

(c) *Food stamp benefits.* For food stamp households, including households in receipt of both food stamps and public assistance, the right to aid continuing exists as follows:

(1)

(i) You have the right to have your food stamp benefits continue at the same level as you have been receiving until the fair hearing decision is issued only where the proposed adverse action is to take place during the certification period of your food stamp authorization and your request for a hearing is made prior to the effective date contained in a timely notice for your case closing or authorization reduction.

(ii) If your food stamp benefits have been reduced or discontinued by the social services agency and you have made a timely hearing request by the effective date contained in the notice, your food stamp benefits must be restored by

the social services agency as soon as possible but no later than five business days after notification from OAH that you are entitled to have your benefits continue unchanged pursuant to this paragraph.

(iii) Where the action being taken is the result of a mass change, the effective date of the action is deemed to be 10 days after the date the changed level of benefits become available to you.

(iv) If the effective date of the proposed action falls on a weekend or holiday, a hearing request postmarked or received by OAH on the day after the weekend or holiday will be considered timely for the purposes of this paragraph.

(2) There is no right to aid continuing where:

(i) OAH has determined that the sole issue is one of Federal law or regulation and your claim that your benefits were improperly computed or the law or regulation was misapplied or misinterpreted is invalid; or

(ii) your food stamp benefits have been reduced, suspended or cancelled as a result of an order to reduce allotments issued by the Food and Nutrition Service because the requirements of states participating in the Food Stamp Program will exceed appropriations; or

(iii) a social services official determines to discontinue your benefits because you are receiving concurrent benefits as described in section 351.9 of this Title in the same social services district or in another social services district within the State.

(3) When food stamp benefits are reduced or terminated because you fail to make the request for a hearing within the required period stated in the notice, upon your request for a fair hearing your food stamp benefits will be reinstated if you establish that your failure to request a hearing in a timely manner was for good cause. If OAH determines that you have the right to have your food stamp benefits reinstated in accordance with this paragraph, the social services agency must reinstate your food stamp benefits as soon as possible but no later than five business days after being advised by OAH of such determination.

(4) When benefits are reduced or terminated due to a mass change, your benefits will be reinstated only if the issue being contested is that:

(i) food stamp eligibility or benefits were improperly computed; or

(ii) Federal law or regulation is being misapplied or misinterpreted by a State agency or by a social services agency.

If OAH determines that you have the right to have your food stamp benefits reinstated in accordance with this paragraph, the social services agency must reinstate your food stamp benefits as soon as possible but no later than five business days after being advised by OAH of such determination.

(5) If the action proposed in the notice results from a regularly scheduled recertification of your food stamp authorization, your level of participation in the Food Stamp Program will be continued at the level determined at your recertification. You do not have the right to have your level of benefits continued at the prior benefits level unless and until the fair hearing decision is issued requiring such benefit level.

(6) Once your benefits are continued or reinstated, your benefits should continue without change until you receive your hearing decision unless:

(i) your certification period expires, in which case you may reapply and may be determined eligible for a new certification period; or

(ii) a change affecting your household's eligibility for food stamps or the basis of issuance of food stamp benefits occurs before your hearing decision is issued and you fail to make a request for a fair hearing regarding a subsequent notice of adverse action; or

(iii) before the hearing decision is issued a mass change occurs which affects your household's eligibility for food stamps or basis of issuance.

(d) If your public assistance grant, child care services, or food stamp benefits are continued until a fair hearing decision is issued and you lose the fair hearing, the social services agency may recover the benefits or services which you should not have received. This subdivision does not apply to fair hearings to review the imposition of a work sanction under sections 351.2(i)(2), 385.12 and 385.13 of this Title.

(e) If you are involuntarily discharged from a tier II facility after requesting and participating in a hearing, held by the facility or the social services district in which the facility is located, and you request a fair hearing to review this determination, you do not have the right to remain at the facility pending the outcome of your fair hearing.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 30, 1990 as emergency measure; Nov. 20, 1990; Nov. 28, 1990 as emergency measure; Nov. 27, 1990; April 2, 1991 as emergency measure; May 31, 1991 as emergency measure; May 31, 1991; April 5, 1993; Jan. 5, 1996; Aug. 31, 2000; Aug. 19, 2003; Feb. 13, 2004; Feb. 28, 2006 eff. March 15, 2006; emergency rulemaking eff. Sept. 25, 2019, expired Dec. 8, 2019; emergency rulemaking eff. Dec. 9, 2019, expires Feb. 6, 2020; emergency rulemaking eff. Feb. 6, 2020, expires April 5, 2020; emergency rulemaking eff. April 6, 2020, expires June 4, 2020; amd. filed May 15, 2020 eff. June 3, 2020.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-3.6, 18 NY ADC 358-3.6

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.7

Section 358-3.7. Examination of case record before the fair hearing

Currentness

(a)

(1) At any reasonable time before the date of your fair hearing and also at the fair hearing, you or your authorized representative have the right to examine the contents of your case record and all documents and records to be used by the social services agency at your fair hearing.

(2) Except as provided in paragraph (3) of this subdivision, the only exceptions to access to your case record are:

(i) those materials to which access is governed by separate statutes, such as records regarding child welfare, foster care, adoption or child abuse or neglect or any records maintained for the purposes of the Child Care Review Service; and

(ii) those materials being maintained separately from public assistance files for the purposes of criminal prosecution and referral to the district attorney's office. This exception applies only to records which are part of an active and ongoing investigatory action; and

(iii) the county attorney or county welfare attorney's files.

(3) Case records secured by the Commission for the Visually Handicapped or by a local rehabilitation agency acting on behalf of such commission will not ordinarily be made available for examination since they contain information secured from outside sources; however, particular extracts will be furnished to you or your authorized representative when provision of such information will be beneficial to you. The case record, or any part thereof, admitted as evidence in a fair hearing shall be available for review by you or your authorized representative.

(b)

(1) Upon request, you have a right to be provided at a reasonable time before the date of the hearing, at no charge, with copies of all documents which the social services agency will present at the fair hearing in support of its determination. If the request for copies of documents which the social services agency will present at the hearing is made less than five business days before the hearing, the social services agency must provide you with such copies no later than at the time of the hearing. If you or your representative request that such documents be mailed, such documents must be mailed within a reasonable time from the date of the request; provided however, if there is insufficient time for such documents to be mailed and received before the scheduled date of the hearing such documents may be presented at the hearing instead of being mailed;

(2) Upon request, you have the right to be provided at a reasonable time before the date of the hearing, at no charge, with copies of any additional documents which you identify and request for purposes of preparing for your fair hearing. If the request for copies of documents is made less than five business days before the hearing, the social services agency must provide you with such copies no later than at the time of the hearing. If you or your representative request that such documents be mailed, such documents must be mailed within a reasonable time from the date of the request; provided however, if there is insufficient time for such documents to be mailed and received before the scheduled date of the hearing such documents may be presented at the hearing instead of being mailed;

(3) Your request for copies of documents pursuant to paragraphs (1) and (2) of this subdivision may at your option be made in writing, or orally, including by telephone.

(4) If the social services agency fails to comply with the requirements of this subdivision the hearing officer may adjourn the case, allow a brief recess for the appellant to review the documents, preclude the introduction of the documents where a delay would be prejudicial to the appellant, or take other appropriate action to ensure that the appellant is not harmed by the agency's failure to comply with these requirements.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 29, 1989; Oct. 29, 1997 eff. Nov. 19, 1997. Amended (b)(1), (2) and (4).

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.8

Section 358-3.8. Agency conference

Currentness

- (a) At any reasonable time before the date of your fair hearing, you may request that the agency schedule an agency conference before your fair hearing to review the agency decision for which you have requested the fair hearing except as provided for in subdivision (c) of this section.
- (b) Even though you have not requested a fair hearing, you may request an agency conference to review any action on your case.
- (c) No agency conference is required for actions involving the involuntary discharge of residents of tier II facilities.

Credits

Sec. filed Dec. 23, 1988; amd. filed April 5, 1993 eff. April 21, 1993. Amended (a), added (c).

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Subpart 358-3. Rights and Obligations of Applicants and Recipients and Sponsors of Aliens (Refs & Annos)

18 NYCRR 358-3.9

Section 358-3.9. Authorization of representative

Currentness

(a) Except where impracticable to execute a written authorization, an individual or organization seeking to represent you, other than an attorney or an employee of an attorney, must have your written authorization to represent you at any conference or fair hearing and to review your case record. An employee of your attorney will be considered an authorized representative if such employee presents written authorization from your attorney or if such attorney advises the social services agency by telephone of such employee's authorization.

(b) Once a social services agency and the OAH have been notified that a person or organization has been authorized to represent you at your fair hearing, such representative will receive copies of all correspondence to you from the social services agency and OAH relating to the conference and fair hearing.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003. Amended (b).

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Subpart 358-4. Rights and Obligations of Social Services Agencies

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Subpt. 358-4, Refs & Annos
[Currentness](#)

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Subpart 358-4. Rights and Obligations of Social Services Agencies (Refs & Annos)

18 NYCRR 358-4.0

Section 358-4.0. Introduction

[Currentness](#)

The rights and obligations of social services agencies are governed by this Subpart.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

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Subpart 358-4. Rights and Obligations of Social Services Agencies (Refs & Annos)

18 NYCRR 358-4.1

Section 358-4.1. Proposed actions

Currentness

(a) A social services agency must review or cause to be reviewed any of the following intended actions to determine whether the action is correct based upon available evidence included in the applicant's or recipient's case record:

- (1) proposed approval, denial, discontinuance, suspension or reduction of a public assistance grant, medical assistance authorization, food stamp benefits or services;
- (2) proposed increase in a public assistance grant, food stamp benefits, or a medical assistance spenddown;
- (3) proposed change in the amount of one of the items used to calculate a public assistance grant, food stamp benefits, or a medical assistance spenddown;
- (4) proposed acceptance or denial of an application for HEAP benefits;
- (5) proposed involuntary discharge of a resident from a tier II facility as defined in Part 900 of this Title; or
- (6) proposed denial of an exemption from work requirements pursuant to section 385.2 of this Title.

(b) Where it is determined that the intended action is correct after review, the social services agency must send to the applicant/recipient a notice which meets the requirements of section 358-3.3 of this Part.

Credits

Sec. filed Dec. 23, 1988; amds. filed: April 5, 1993; Aug. 31, 2000; Aug. 19, 2003; Feb. 28, 2006 eff. March 15, 2006. Amended (a)(6).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-4.1, 18 NY ADC 358-4.1

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Subpart 358-4. Rights and Obligations of Social Services Agencies (Refs & Annos)

18 NYCRR 358-4.2

Section 358-4.2. Prehearing responsibilities

Currentness

(a) When requested, the social services agency must provide assistance to applicants and recipients in making a request for a fair hearing.

(b)

(1) Upon notification by OAH that a fair hearing has been requested and that the appellant's public assistance, medical assistance, food stamp benefits, or services must be continued or reinstated in accordance with section 358-3.6 of this Part until the fair hearing decision is issued, the social services agency, except as provided in section 358-3.6(b) and (c)(6) of this Part, must take immediate action to assure that the appellant's public assistance, medical assistance, food stamp benefits and services continue unchanged until the fair hearing decision is issued.

(2) Upon receipt of such notification, if public assistance, medical assistance, food stamp benefits or services already have been discontinued, reduced, restricted or suspended, the social services agency must take whatever action is necessary to restore the appellant's public assistance, medical assistance, food stamp benefits or services to their previous level. Such action must be taken as soon as possible but no later than five business days from notification that appellant's public assistance, medical assistance, food stamp benefits or services must continue or be reinstated.

(c) Upon oral or written request, including request by telephone, the social services agency must provide to the appellant and the appellant's authorized representative copies of the documents to be presented at the fair hearing. Such copies must be provided at a reasonable time before the date of the hearing. If the request for copies of documents is made less than five business days before the hearing, the social services agency must provide the appellant and the appellant's authorized representative such copies no later than at the time of the hearing. Such documents must be provided without charge and must be provided to the appellant and the appellant's authorized representative by mail within a reasonable time from the date of the request if the appellant or the appellant's authorized representative request that such documents be mailed; provided however, if there is insufficient time for such documents to be mailed and received before the scheduled date of the hearing such documents may be presented at the hearing instead of being mailed.

(d) Upon oral or written request, including request by telephone, the social services agency must provide to the appellant and the appellant's authorized representative copies of any documents from appellant's case file which the appellant or the appellant's authorized representative identifies and requests for purposes of hearing preparation. Such copies must be provided at a reasonable time before the date of the hearing. If the request for copies of documents is made less than five business days before the hearing, the social services agency must provide the appellant and the appellant's authorized representative such copies no later than at the time of the hearing. Such documents must be provided without charge and must be provided to the appellant and the appellant's authorized representative by mail within a reasonable time from the date of the request if the appellant or the appellant's authorized representative request that such documents be mailed; provided however, if there is insufficient time for such documents to be mailed and received before the scheduled date of the hearing such documents may be presented at the hearing instead of being mailed.

(e) The social services agency must encourage the use of agency conferences to settle disputes and complaints concerning actions regarding an applicant's or recipient's public assistance, medical assistance, food stamp benefits, request for an exemption from work requirements, HEAP benefits or services so as to eliminate the need to hold fair hearings wherever the dispute can be resolved by scrutiny of documents and/or thorough investigation.

(f) The social services agency must hold agency conferences when such conference is requested as provided for in section 358-3.8 of this Part. The conference may not be used to inhibit the appellant's right to a fair hearing. Agency conferences must be scheduled before the date of the fair hearing. If the appellant is contesting a denial of expedited participation in the Food Stamp Program, the conference must be scheduled within two business days of the conference request, unless the appellant requests a later date.

(g) The social services agency must bring the necessary information and documentation to any agency conference, including a telephone conference, to explain the reason for the agency determination and to provide a meaningful opportunity to resolve the problem.

(h) Except for telephone agency conferences approved pursuant to subdivision (i) of this section, a representative of the social services agency must appear with the case record at the agency conference. Such representative must have reviewed the case and must have the authority to make binding decisions on behalf of the social services agency, including the authority to withdraw the intended action.

(i) Social services agencies may provide telephone conferences upon prior approval of the Office of Administrative Hearings of the OAH. The OAH may approve such requests in its discretion, where holding an in-person conference is not feasible.

(j) The social services agency must send copies of all correspondence relating to the conference and fair hearing to the authorized representative of the appellant.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 29, 1989; Oct. 29, 1997; Aug. 31, 2000; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (b)(1)(i).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-4.2, 18 NY ADC 358-4.2

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Subpart 358-4. Rights and Obligations of Social Services Agencies (Refs & Annos)

18 NYCRR 358-4.3

Section 358-4.3. Responsibilities and rights in the fair hearing process

Currentness

(a) The social services agency must provide complete copies of its documentary evidence to the hearing officer at the fair hearing and also to the appellant or appellant's authorized representative, where such documents were not provided previously to the appellant or appellant's authorized representative in accordance with sections 358-3.7 and 358-4.2(c) of this Part. Such documents must be provided without charge.

(b) Except as provided in subdivision (c) of this section, a representative of the social services agency must appear at the hearing along with the case record and a written summary of the case. Such representative must:

(1) have reviewed the case; and

(2) be prepared to present evidence in support of the action, including:

(i) the case number;

(ii) the applicable category or categories or type of public assistance or care, medical assistance, food stamp benefits or services involved;

(iii) the names, addresses, relationships and ages of persons affected;

(iv) the determination regarding which the hearing request was made;

(v) a brief description of the facts, evidence and reasons supporting such determination, including identification of the specific provisions of law, regulations and approved local policies which support the action;

(vi) the relevant budget or budgets prepared by the social services agency for the appellant or the household of such appellant, including printouts of relevant budgets produced on the Welfare Management System (WMS); and

(vii) a copy of the applicable action taken notice, adverse action notice, expiration notice or notice of action, including any notices produced on the client notices system.

(3) have the authority to make binding decisions at the hearing on behalf of the social services agency, including the authority to withdraw the action or otherwise settle the case.

(c)

(1) No later than five calendar days before the hearing date, the social services agency may make application to the OAH to appear at a hearing on papers only. The OAH may approve such application in its discretion where the rights of the appellant can be protected and the personal appearance of the agency is neither feasible nor necessary.

(2) Notwithstanding paragraph (1) of this subdivision, a hearing officer may require the appearance of a representative of a social services agency where such appearance is necessary to protect the due process rights of the appellant.

(d) Upon request of the appellant, the social services agency must provide necessary transportation and transportation expenses to and from the fair hearing for the appellant and appellant's representatives and witnesses and payment for appellant's necessary child care costs and for any other necessary costs and expenditures related to the fair hearing.

(e) Social services agencies have those hearing rights which appellants have as set forth in sections 358-3.4(d) (adjournment), 358-3.4(e) (representation), 358-3.4(g) (present evidence, question witnesses, examine documents), and 358-3.4(h) (bring witnesses) and 358-3.4(k) (removal of hearing officer) of this Part.

Credits

Sec. filed Dec. 23, 1988; amds. filed: May 13, 1991; Nov. 12, 1991; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (b)(2)(v), (vii), (c)(1).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-4.3, 18 NY ADC 358-4.3

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Subpart 358-4. Rights and Obligations of Social Services Agencies (Refs & Annos)

18 NYCRR 358-4.4

Section 358-4.4. Compliance with fair hearing decision

Currentness

A social services agency must comply with fair hearing decisions in accordance with section 358-6.4 of this Part.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-4.4, 18 NY ADC 358-4.4

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Subpart 358-5. The Fair Hearing Process

NYCRR T. 18, Ch. II, Subch. B, Art. 1, Pt. 358, Subpt. 358-5, Refs & Annos
[Currentness](#)

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.0

Section 358-5.0. Introduction

Currentness

The fair hearing process is governed by this Subpart.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.0, 18 NY ADC 358-5.0

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.1

Section 358-5.1. Notice of fair hearing

Currentness

(a) Except for hearings which are given priority in scheduling in accordance with section 358-5.2 of this Subpart, at least 10 calendar days prior to the date of the fair hearing, a written notice of the fair hearing will be sent by OAH to the appellant, appellant's authorized representative and to the social services agency.

(b) The fair hearing notice will state the following:

(1) the date, time and place of the fair hearing and an explanation of how and when a change in the date and place of the fair hearing may be requested, and under what circumstances a hearing will be rescheduled if neither the appellant nor the appellant's representative appears at the hearing;

(2) whether public assistance, medical assistance, food stamp benefits or services must be continued unchanged;

(3) the appellant's right upon request to necessary transportation or to transportation expenses to and from the fair hearing for the appellant and the appellant's authorized representatives and witnesses and for payment of the appellant's necessary child care costs and for any other necessary costs and expenditures related to the fair hearing;

(4) the appellant's right to be represented at the fair hearing by legal counsel, a relative, friend or other person or to represent oneself, and the right to bring witnesses to the fair hearing and to question witnesses at the hearing;

(5) the right to present written and oral evidence at the hearing;

(6) that the appellant should bring the notice of fair hearing to the hearing as well as all evidence that has a bearing on the case such as books, records and other forms of written evidence, and witnesses, if any;

- (7) the appellant's right to review appellant's case record prior to and at the fair hearing;
- (8) the appellant's right upon request to obtain copies of documents which the social services agency will present at the fair hearing and copies of other additional documents for the purpose of preparing for the fair hearing;
- (9) the right of a deaf or non-English speaking appellant to interpreter services at the fair hearing at no charge; and
- (10) the issues which are to be the subject of the hearing.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 29, 1989; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a).

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.1, 18 NY ADC 358-5.1

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.2

Section 358-5.2. Scheduling

Currentness

(a) The fair hearing will be held at a time and place convenient to the appellant as far as practicable. In scheduling the hearing, OAH will consider such things as the physical inability of the appellant to travel to the regular hearing location.

(b) *Priority scheduling.*

(1) Except as set forth in paragraph (4) of this subdivision, a fair hearing which is subject to priority processing pursuant to section 358-3.2 of this Part must be scheduled as soon as practicable after the request therefor is made. In determining the date for which the hearing will be scheduled, consideration must be given to the nature and urgency of the appellant's situation, including any date before which the decision must be issued to allow for meaningful resolution of the issue under review.

(2) When a hearing is requested concerning food stamp benefits and the food stamp household intends to move from the local social services district before the decision normally would be issued, priority will be given to the scheduling of the hearing, taking into account any date before which the hearing must be scheduled to allow for the appellant to receive the decision while still in the district.

(3) Except as set forth in paragraph (4) of this subdivision, after a hearing which was scheduled on a priority basis as set forth above, the decision must be issued as soon as practicable. In determining the date by which the decision will be issued, consideration must be given to the nature and urgency of the appellant's situation, including any date before which the decision must be issued to allow for meaningful resolution of the issue under review. If, at the conclusion of a hearing which was scheduled on a priority basis, the hearing officer determines that the issues do not warrant continued priority processing, the hearing officer will inform the parties that the issuance of the decision will not receive priority processing.

(4) When a fair hearing is requested concerning the involuntary discharge of a resident of a tier II facility after such resident requests and participates in a hearing, held by the facility or the social services district in which the facility is located, such fair hearing must be scheduled within seven working days of the request. The decision after the fair hearing must be issued within seven working days of the date of the fair hearing.

(c) When a hearing is requested pursuant to section 358-3.1(g) of this Part or has been given priority in accordance with section 358-3.2(d) of this Part, the hearing will be held within 30 days of the request, unless delayed by, or adjourned at the request of, the appellant.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 3, 1989 as emergency measure; Feb. 1, 1990 as emergency measure; March 8, 1990; April 2, 1990 as emergency measure; June 1, 1990 as emergency measure; July 31, 1990 as emergency measure; Sept. 28, 1990 as emergency measure; Sept. 28, 1990; April 5, 1993; Nov. 7, 1995 as emergency measure; Feb. 5, 1996 as emergency measure; April 4, 1996 as emergency measure; May 28, 1996 as emergency measure; May 28, 1996; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a).

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.3

Section 358-5.3. Adjourning the fair hearing

Currentness

- (a) Upon request of either the appellant or a social services agency, the fair hearing may be rescheduled, upon a showing of good cause for requesting the delay. Provided, however, for a fair hearing concerning SNAP benefits or services, the appellant may request, and is entitled to receive, an adjournment not exceeding 30 days from the date of the scheduled hearing without a showing of good cause.
- (b) When in the judgment of OAH or the hearing officer the parties' due process rights would best be served by adjourning the fair hearing, or if there are special circumstances which make proceeding with the case fundamentally unfair, OAH or the hearing officer may reschedule the fair hearing.
- (c) Requests to adjourn a fair hearing must be made in accordance with the instructions in the notice of fair hearing.
- (d) If a fair hearing is adjourned based upon a request by the appellant, the time limit set forth in section 358-6.4 of this Part will be extended by the number of days the fair hearing has been postponed.
- (e) If public assistance, medical assistance, and SNAP benefits or services are continued in accordance with section 358-3.6 of this Part and the fair hearing is rescheduled for the reasons set forth in subdivision (a) or (b) of this section, an appellant has the right to have public assistance, medical assistance, and SNAP benefits or services continued until the fair hearing decision is issued.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003. Amended (b); amd. filed Jan. 30, 2025 eff. Feb. 19, 2025 (Register dated Feb. 19, 2025).

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.4

Section 358-5.4. Withdrawal of a request for a fair hearing

Currentness

(a) OAH will consider a hearing request to be withdrawn under the following circumstances:

(1) OAH has received a written statement from the appellant or appellant's authorized representative stating that the request for a fair hearing is withdrawn; or

(2) the appellant or appellant's authorized representative has made a statement withdrawing the request to the hearing officer on the record at the hearing.

(b) An oral statement by telephone or in person to a social services agency employee that an appellant is withdrawing a request for a fair hearing is insufficient to withdraw a fair hearing request.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a), (a)(1).

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.5

Section 358-5.5. Abandonment of a request for a fair hearing

Currentness

(a) Except as provided in subdivision (b) of this section, OAH will consider a fair hearing request abandoned if neither the appellant nor the appellant's authorized representative appears at a fair hearing, and neither the appellant nor the appellant's authorized representative:

(1) contacts OAH to request that the fair hearing be rescheduled; and

(2) provides OAH with the good cause reason for failing to appear at the fair hearing on the scheduled date.

(b) OAH will consider a fair hearing request involving Medical Assistance abandoned if neither the appellant nor the appellant's authorized representative appears at a fair hearing, and the requirements of subdivision (a) of this section are not met within 10 calendar days of the postmark of a letter sent to the appellant and the appellant's authorized representative inquiring whether the appellant still wants a fair hearing.

(c) OAH will reopen an abandoned fair hearing request if, within one calendar year from the scheduled date of the fair hearing, the requirements of subdivision (a) of this section are met.

(d) If neither the appellant nor the appellant's authorized representative appears at a fair hearing that has been rescheduled or reopened pursuant to subdivision (a), (b) or (c) of this section, OAH will consider the fair hearing request abandoned and the letter described in subdivision (b) of this section will not be sent.

(e) If neither the appellant nor the appellant's authorized representative appears at a fair hearing that is subject to aid-continuing, such aid shall discontinue on the date the fair hearing request is abandoned.

(1) If the fair hearing request is thereafter reopened pursuant to subdivision (c) of this section based upon a request made within 60 days from the scheduled date of the fair hearing, aid-continuing will be restored retroactively to the date of abandonment.

(2) If the fair hearing request is thereafter reopened pursuant to subdivision (c) of this section based upon a request to do so made 60 days or more from the scheduled date of the fair hearing, aid-continuing will be restored prospectively from the date of the request to reopen.

(f) In no event will an abandoned fair hearing request be reopened if such request is made one calendar year or more from the scheduled date of the fair hearing.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a)-(b); amd. filed July 25, 2012 eff. Oct. 23, 2012; rep. and new added filed March 16, 2020 eff. April 1, 2020.

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.6

Section 358-5.6. Hearing officer

Currentness

(a) The hearing shall be conducted by an impartial hearing officer assigned by OAH to conduct the hearing, who has not been involved in any way with the action in question.

(b) To ensure a complete record at the hearing, the hearing officer must:

(1) preside over the fair hearing and regulate the conduct and course of the fair hearing, including at the hearing officer's discretion, requiring sworn testimony, and administering the necessary oaths;

(2) make an opening statement explaining the nature of the proceeding, the issues to be heard and the manner in which the fair hearing will be conducted;

(3) elicit documents and testimony, including questioning the parties and witnesses, if necessary, particularly where the appellant demonstrates difficulty or inability to question a witness; however, the hearing officer will not act as a party's representative;

(4) where the hearing officer considers independent medical assessment necessary, require that an independent medical assessment be made part of the record when the fair hearing involves medical issues such as a diagnosis, an examining physician's report, or a medical review team's decision;

(5) adjourn the fair hearing to another time on the hearing officer's own motion or on the request of either party, to the extent allowable by section 358-5.3 of this Subpart;

(6) adjourn the fair hearing when in the judgment of the hearing officer it would be prejudicial to the due process rights of the parties to go forward with the hearing on the scheduled hearing date;

(7) review and evaluate the evidence, rule on the admissibility of evidence, determine the credibility of witnesses, make findings of fact relevant to the issues of the hearing which will be binding upon the commissioner unless such person has read a complete transcript of the hearing or has listened to the electronic recording of the fair hearing;

(8) at the hearing officer's discretion, where necessary to develop a complete evidentiary record, issue subpoenas, and/or require the attendance of witnesses and the production of books and records; and

(9) prepare an official report containing the substance of what transpired at the fair hearing and including a recommended decision to the commissioner or the commissioner's designee.

(c) A party to a hearing may make a request to a hearing officer that the hearing officer remove himself or herself from presiding at the hearing.

(1) The grounds for removing a hearing officer are that such hearing officer has:

(i) previously dealt in any way with the substance of the matter which is the subject of the hearing except in the capacity of hearing officer; or

(ii) any interest in the matter, financial or otherwise, direct or indirect, which will impair the independent judgment of the hearing officer; or

(iii) displayed bias or partiality to any party to the hearing.

(2) The hearing officer may independently determine to remove himself or herself from presiding at a hearing on the grounds set forth in paragraph (1) of this subdivision.

(3) The request for removal made by a party must:

(i) be made in good faith; and

(ii) be made at the hearing in writing or orally on the record; and

(iii) describe in detail the grounds for requesting that the hearing officer be removed.

(4) Upon receipt of a request for removal, the hearing officer must determine on the record whether to remove himself or herself from the hearing.

(5) If the hearing officer determines not to remove himself or herself from presiding at the hearing, the hearing officer must advise the party requesting removal that the hearing will continue but the request for removal will automatically be reviewed by the general counsel of ODTA or the general counsel's designee.

(6) The determination of the hearing officer not to remove himself or herself will be reviewed by the general counsel of ODTA or the general counsel's designee. Such review will include review of written documents submitted by the parties and the transcript of the hearing.

(7) The general counsel of ODTA or the general counsel's designee must issue a written determination of whether the hearing officer should be removed from presiding at the hearing within 15 business days of the close of the hearing.

(8) The written determination of the general counsel or the general counsel's designee will be made part of the record.

Credits

Sec. filed Dec. 23, 1988; amds. filed: May 13, 1991; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a), (b)(9), (c)(5)-(7).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.6, 18 NY ADC 358-5.6

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.7

Section 358-5.7. Who may be present at the fair hearing

Currentness

The following persons may be present at a fair hearing:

- (a) the appellant who has requested the fair hearing;
- (b) the appellant's representative;
- (c) counsel or other representatives of the social services agency;
- (d) witnesses of either party and any who may be called by the hearing officer;
- (e) an interpreter; and
- (f) any other person admitted at the hearing officer's discretion, with the consent of the appellant.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.7, 18 NY ADC 358-5.7

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.8

Section 358-5.8. Media admission to fair hearing

[Currentness](#)

(a) The media may be admitted to a fair hearing where the appellant has made a specific waiver of appellant's right to confidentiality both in writing and on the record and has clearly and unequivocally confirmed on the record that the appellant desires and consents to the presence of the media. The waiver must be unqualified, complete, and made with full knowledge of the ramifications of the waiver, including that the waiver is irrevocable.

(b) Where a waiver has been secured in accordance with subdivision (a) of this section, the extent of any access to be granted to the media is to be determined at the discretion of the hearing officer. In determining the extent of such access, the hearing officer will consider the following:

(1) maintenance of proper hearing decorum;

(2) potential disruption to the proceedings;

(3) adverse effect on witnesses;

(4) impediments to the making of a proper and accurate record;

(5) the physical space and conditions of the hearing room;

(6) potential disruption to the hearing officer, including impediments to the hearing officer's ability to discharge responsibilities; and

(7) any other factor which, in the discretion of the hearing officer, is necessary to ensure the orderly and proper conduct of the hearing and the creation of a complete and accurate hearing record or which is necessary in order to protect confidential information where confidentiality cannot be waived by the appellant.

Credits

Sec. filed Dec. 23, 1988 eff. Jan. 15, 1989.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.8, 18 NY ADC 358-5.8

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.9

Section 358-5.9. Fair hearing procedures

Currentness

(a) Burden of Proof.

(1) Appellant. At a fair hearing concerning the denial of an application for or the adequacy of public assistance, medical assistance, HEAP, supplemental nutrition assistance program (SNAP) benefits or services, or an exemption from work activity requirements, the appellant must establish that the social services agency's denial of assistance or benefits was not correct, or that the appellant is eligible for a greater amount of assistance or benefits, or is exempt from work requirements pursuant to Part 385 of this Title.

(2) Social Services Agency. Except where otherwise established by law or regulation, at a fair hearing, the social services agency must establish that its actions were correct regarding:

(i) the source of funding and the amount deducted from the initial payment of supplemental security income as reimbursement of public assistance; or

(ii) the discontinuance, reduction, or suspension of public assistance, medical assistance, or SNAP benefits or services.

(b) The fair hearing decision must be supported by and in accordance with substantial evidence.

(c) Technical rules of evidence followed by a court of law need not be applied. Irrelevant or unduly repetitious evidence and/or cross-examination may be excluded at the discretion of the hearing officer. Privileges recognized by law will be given effect.

(d) Any written record or document or part thereof to be offered as evidence may be offered in the form of a reproduction or copy where such reproduction or copy is identified satisfactorily as a complete and accurate reproduction or copy of the original material.

(e) In addition to subpoenas issued at the discretion of the fair hearing officer as allowed by section 358-5.6(b)(8) of this Subpart, attorneys for parties in fair hearings shall have the same authority to issue subpoenas as is possessed by attorneys under [section 2302 of the Civil Practice Law and Rules](#).

Credits

Sec. filed Dec. 23, 1988; amds. filed: Aug. 31, 2000; Aug. 19, 2003; Feb. 28, 2006 eff. March 15, 2006; amd. filed April 13, 2016 eff. May 4, 2016.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.9, 18 NY ADC 358-5.9

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.10

Section 358-5.10. Consolidated fair hearings

Currentness

(a) OAH may consolidate fair hearings where two or more persons request fair hearings in which the individual issues of fact are not disputed and the sole issue in each request is an objection to:

(1) Federal or State law or regulation, or local policy; or

(2) a change in Federal or State law.

(b) Each person whose case has been consolidated with another person's case has the right to:

(1) present one's own case or have one's case presented by a representative; and

(2) withdraw from the consolidated fair hearing and have an individual fair hearing.

Credits

Sec. filed Dec. 23, 1988; amd. filed Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.10, 18 NY ADC 358-5.10

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.11

Section 358-5.11. The hearing record

Currentness

(a) *Fair hearing record.* Only the OAH may record the fair hearing. A written transcript or recording of the fair hearing testimony and exhibits, or the hearing officer's official report together with the recommended decision of the hearing officer, all papers and requests filed in the proceeding prior to the close of the fair hearing and the fair hearing decision, constitute the complete and exclusive record of the fair hearing. Where a decision without hearing is issued in accordance with section 358-6.2 of this Part, the documents submitted by the appellant and the social services agency constitute the complete and exclusive record of the fair hearing.

(b) *Review of record.* The exclusive record of the fair hearing is confidential; however, the exclusive record may be examined by either party or their authorized representative at the OAH, or upon request at some other location subject to the approval of the OAH.

Credits

Sec. filed Dec. 23, 1988; amds. filed: Nov. 29, 1989; Aug. 19, 2003 eff. Sept. 3, 2003. Amended (a)-(b).

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.11, 18 NY ADC 358-5.11

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.12

Section 358-5.12. Telephone hearings

Currentness

(a) OAH may provide that a fair hearing held pursuant to Part 398 of this Title be conducted by means of telephone. When a hearing is conducted by telephone, the parties and the hearing officer need not be physically present at the same location.

(b) All provisions of this Part, which are not inconsistent with the specific provisions of this section and Part 398 of this Title, shall apply to hearings conducted by telephone.

(c) The hearing will be held by means other than telephone in the following circumstances:

(1) when the applicant or recipient makes a request for an in-person hearing;

(2) when, in the judgment of OAH or the hearing officer, a party's due process rights would best be served by conducting a hearing in person; or

(3) when, in the judgment of OAH or the hearing officer, there are circumstances presented by the appellant which make proceeding with the hearing by telephone fundamentally unfair.

Credits

Sec. filed Sept. 9, 2014 eff. Oct. 1, 2014.

Current with amendments included in the New York State Register, Volume XLVII, Issue 46, dated November 19, 2025. Some sections may be more current, see credits for details.

N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.12, 18 NY ADC 358-5.12

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Subpart 358-5. The Fair Hearing Process (Refs & Annos)

18 NYCRR 358-5.13

Section 358-5.13. Video hearings

Currentness

(a) OAH may provide that a fair hearing held pursuant to this Part be conducted by means of video equipment. When a hearing is conducted using video equipment, the parties and the hearing officer need not be physically present at the same location.

(b) All provisions of this Part, which are not inconsistent with the specific provisions of this section, shall apply to hearings conducted using video equipment.

(c) An appellant who objects to OAH conducting the fair hearing by video equipment should notify OAH at the earliest possible opportunity before the time set for the hearing, but no later than at the commencement of the hearing. The request must be made in writing, in person, by video equipment, or by telephone.

(d) A fair hearing, with the appellant and the hearing officer physically present at the same location, will be held in the following circumstances:

(1) when, in the judgment of OAH, an appellant's due process rights would best be served by conducting a hearing in-person; or

(2) when, in the judgment of OAH, there are circumstances presented by the appellant which make proceeding with the hearing by video equipment fundamentally unfair.

Credits

Sec. filed Dec. 1, 2015 eff. Dec. 16, 2015.

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N.Y. Comp. Codes R. & Regs. tit. 18, § 358-5.13, 18 NY ADC 358-5.13

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Part 360. Medical Assistance

NYCRR T. 18, Ch. II, Subch. B, Art. 2, Pt. 360, Refs & Annos
[Currentness](#)

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KeyCite Red Flag

KeyCite Red Flag Negative Treatment T. 18, Ch. II, Subch. B, Art. 3, Pt. 380, Refs & Annos

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Article 3. Authorization and Payment

Part 380. [Repealed]

NYCRR T. 18, Ch. II, Subch. B, Art. 3, Pt. 380, Refs & Annos

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Article 4. Services to Individuals

Part 385. Public Assistance and Supplemental Nutrition Assistance Program (Snap) Employment Program Requirements

NYCRR T. 18, Ch. II, Subch. B, Art. 4, Pt. 385, Refs & Annos

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Article 5. Miscellaneous

Part 395. Military Service Benefits

NYCRR T. 18, Ch. II, Subch. B, Art. 5, Pt. 395, Refs & Annos

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